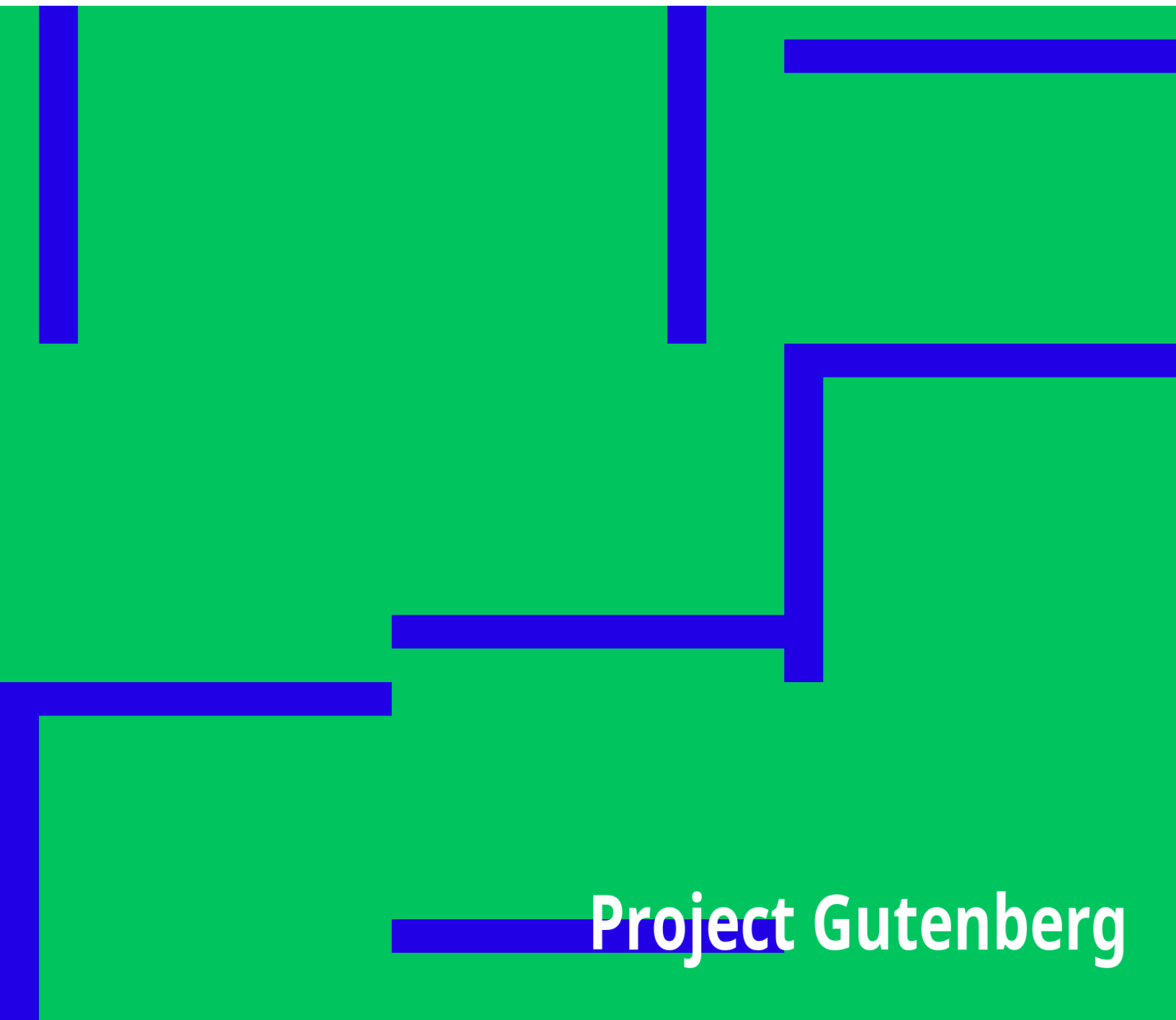


The Roof Tree

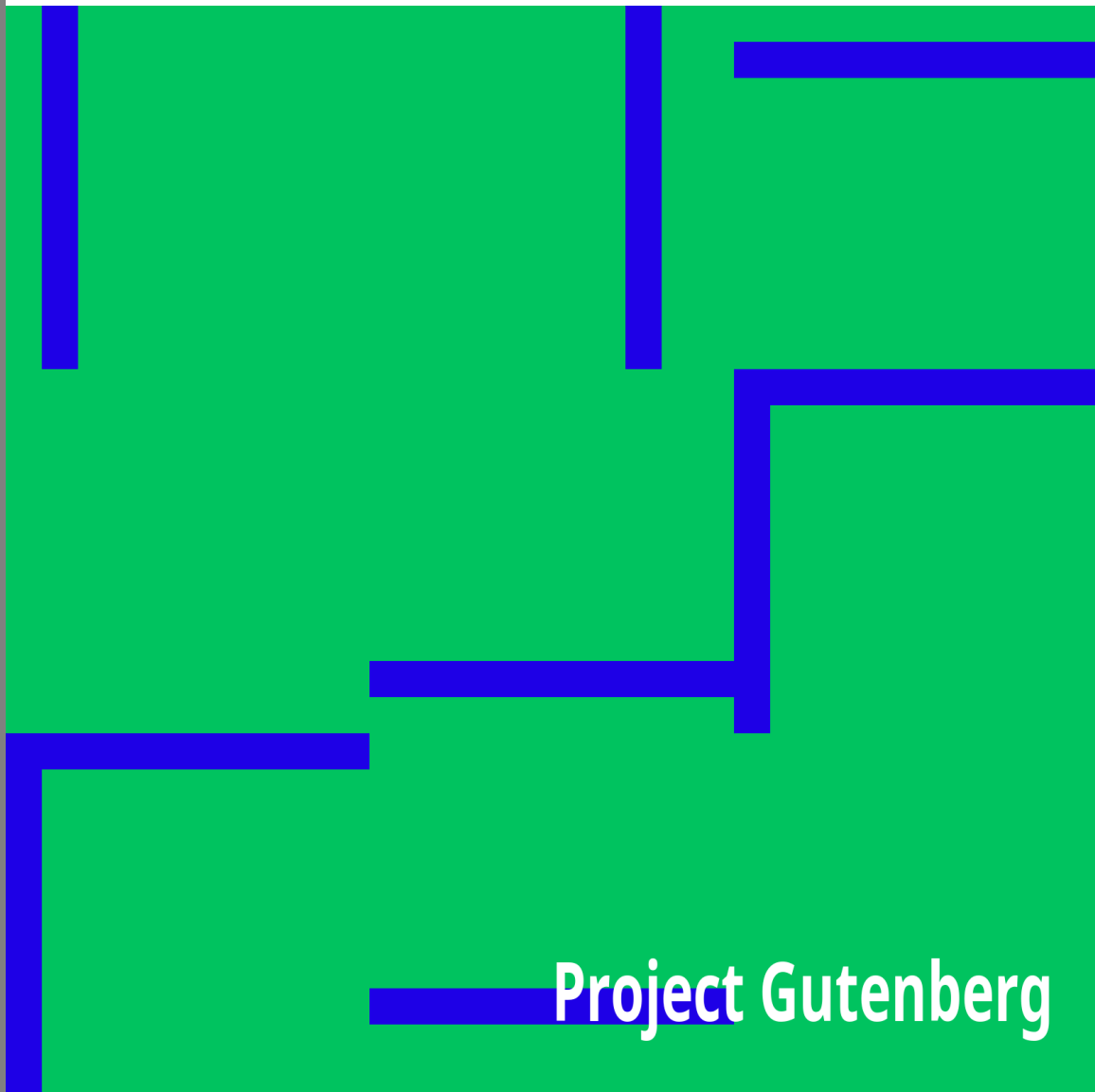
Charles Neville Buck



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The Roof Tree

Charles Neville Buck



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Title: The Roof Tree

Author: Charles Neville Buck

Illustrator: Lee F. Conrey

Release date: May 4, 2009 [eBook #28683]

Most recently updated: September 2, 2020

Language: English

Other information and formats: www.gutenberg.org/ebooks/28683

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*** START OF THE PROJECT GUTENBERG EBOOK THE ROOF
TREE ***

THE ROOF TREE

BOOKS BY
CHARLES NEVILLE BUCK

BATTLE CRY, THE
CALL OF THE
CUMBERLANDS, THE
CODE OF THE MOUNTAINS,
THE
DESTINY
KEY TO YESTERDAY, THE
LIGHTED MATCH, THE
PAGAN OF THE HILLS, A
PORTAL OF DREAMS, THE
ROOF TREE, THE
TEMPERING, THE
TYRANNY OF WEAKNESS,
THE
WHEN BEAR CAT WENT
DRY



"She stood there a little shyly at first; as slender and as gracefully
upright as a birch"

THE ROOF TREE

BY

CHARLES NEVILLE BUCK

ILLUSTRATED
BY
LEE F. CONREY

GARDEN CITY, N. Y., AND TORONTO
DOUBLEDAY, PAGE & COMPANY
1921

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INTO FOREIGN LANGUAGES, INCLUDING THE SCANDINAVIAN

*With the wish that it were a richer
and worthier tribute, this book is*

lovingly and gratefully dedicated

TO MY WIFE

LIST OF ILLUSTRATIONS

"She stood there a little shyly at first;
as slender and as gracefully
upright as a birch" [*Frontispiece*](#)

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THE ROOF TREE

CHAPTER I

BETWEEN the smoke-darkened walls of the mountain cabin still murmured the last echoes of the pistol's bellowing, and it seemed a voice of everlasting duration to the shock-sickened nerves of those within.

First it had thundered with the deafening exaggeration of confined space, then its echo had beaten against the clay-chink wall timbers and rolled upward to the rafters. Now, dwindled to a ghostly whisper, it lingered and persisted.

But the house stood isolated, and outside the laurelled forests and porous cliffs soaked up the dissonance as a blotter soaks ink.

The picture seen through the open door, had there been any to see, was almost as motionless as a tableau, and it was a starkly grim one, with murky shadows against a fitful light. A ray of the setting sun forced its inquisitive way inward upon the semi-darkness of the interior. A red wavering from the open hearth, where supper preparations had been going forward, threw unsteady patches of fire reflection outward. In the pervading smell of dead smoke from a blackened chimney hung the more pungent sharpness of freshly burned gun-powder, and the man standing near the door gazed downward, with a dazed stare, at the floor by his feet, where lay the pistol which gave forth that acrid stench.

Across from him in the dead silence—dead save for the lingering of the echo's ghost—stood the woman, her hands clutched to her thin bosom, her eyes stunned and dilated, her body wavering on legs about to buckle in collapse.

On the puncheon floor between them stretched the woman's husband. The echo had outlasted his life and, because the muzzle had almost touched his breast, he sprawled in a dark welter that was still spreading.

His posture was so uncouth and grotesque as to filch from death its rightful dignity, and his face was turned downward.

The interminability of the tableau existed only in the unfocussed minds of the two living beings to whom the consequence of this moment was not measurable in time. Then from the woman's parted lips came a long, strangling moan that mounted to something like a muffled shriek. She remained a moment rocking on her feet, then wheeled and stumbled toward the quilt-covered four-poster bed in one dark corner of the cabin. Into its feather billows she flung herself and lay with her fingernails digging into her temples and her body racked with the incoherencies of hysteria.

The man stooped to pick up the pistol and walked slowly over to the rough table where he laid it down noiselessly, as though with that quietness he were doing something to offset the fatal blatancy with which it had just spoken. He looked down at the lifeless figure with burning eyes entirely devoid of pity, then went with a soundless tread, in spite of his heavy-soled boots, to the bed and spoke softly to the woman—who was his sister.

"Ye've got ter quit weepin' fer a spell, honey," he announced with a tense authority which sought to recall her to herself. "I'm obleeged ter take flight right speedily now, an' afore I goes thar's things ter be studied out an' settled betwixt us."

But the half-stifled moan that came from the feather bed was a voice of collapse and chaos, to which speech was impossible.

So the brother lifted her in arms that remained unshaken and sat on the edge of the bed looking into her eyes with an almost hypnotic forcefulness.

"Ef ye don't hearken ter me now, I'm bound ter tarry till ye does," he reminded her, "an' I'm in right tormentin' haste. Hit means life and death ter me."

As if groping her tortured way back from pits of madness, the woman strove to focus her senses, but her wild eyes encountered the dark and crumpled mass on the floor and again a low shriek broke from her. She turned her horrified face away and surrendered to a fresh paroxysm, but at length she stammered between gasps that wrenched her tightened throat:

"Kiver him up first, Ken. Kiver him up ... I kain't endure ter look at him thetaway!"

Although the moments were pricelessly valuable, the man straightened the contorted limbs of the dead body and covered it decently with a quilt. Then he stood again by the bed.

"Ef I'd got hyar a minute sooner, Sally," he said, slowly, and there was a trace of self-accusation in his voice, "hit moutn't hev happened. I war jest a mite too tardy—but I knows ye hed ter kill him. I knows ye acted in self-defence."

From the bed came again the half-insane response of hysterical moaning, and the young mountaineer straightened his shoulders.

"His folks," he said in a level voice, "won't skeercely listen ter no reason.... They'll be hell-bent on makin' somebody pay.... They'll plum hev ter hang SOME person, an' hit kain't be *you*."

The woman only shuddered and twisted spasmodically as she lay there while her brother went doggedly on:

"Hit kain't be *you* ... with yore baby ter be borned, Sally. Hit's been punishment enough fer ye ter endure him this long ... ter hev been wedded with a brute ... but ther child's got hits life ter live ... an' hit kain't be borned in no jail house!"

"I reckon—" the response came weakly from the heaped-up covers—"I reckon hit's *got* ter be thetaway, Ken."

"By God, no! Yore baby's got ter w'ar a bad man's name—but hit'll hev a good woman's blood in hits veins. They'll low I kilt him, Sally. Let 'em b'lieve hit. I hain't got no woman nor no child of my own ter think erbout ... I kin git away an' start fresh in some other place. I loves ye, Sally, but even more'n thet, I'm thinkin' of thet child thet hain't borned yit—a child thet hain't accountable fer none of this."

* * *

That had been yesterday.

Now, Kenneth Thornton, though that was not to be his name any longer, stood alone near the peak of a divide, and the mists of early morning lay thick below him. They obliterated, under their dispiriting gray, the valleys

and lower forest-reaches, and his face, which was young and resolutely featured, held a kindred mood of shadowing depression. Beneath that miasma cloak of morning fog twisted a river from which the sun would strike darts of laughing light—when the sun had routed the opaqueness suspended between night and day.

In the clear gray eyes of the man were pools of laughter, too, but now they were stilled and shaded under bitter reflections.

Something else stretched along the hidden river-bed, but even the mid-day light would give it no ocular marking. That something which the eye denied and the law acknowledged meant more to this man, who had slipped the pack from his wearied shoulders, than did the river or the park-like woods that hedged the river.

There ran the border line between the State of Virginia and the State of Kentucky and he would cross it when he crossed the river.

So the stream became a Rubicon to him, and on the other side he would leave behind him the name of Kenneth Thornton and take up the less damning one of Cal Maggard.

He had the heels of his pursuers and, once across the state line, he would be beyond their grasp until the Sheriff's huntsmen had whistled in their pack and gone grumbling back to conform with the law's intricate requirements. At that point the man-hunt fell into another jurisdiction and extradition papers would involve correspondence between a governor at Richmond and a governor at Frankfort.

During such an interlude the fugitive hoped with confidence to have lost himself in a taciturn and apathetic wilderness of peak-broken land where his discovery would be as haphazard an undertaking as the accurate aiming of a lightning bolt.

But mere escape from courts and prisons does not assure full measure of content. He had heard all his life that this border line separated the sheep of his own nativity from the goats of a meaner race, and to this narrow tenet he had given unquestioning belief.

"I disgusts Kaintuck'!" exclaimed the refugee half aloud as his strong hands clenched themselves, one hanging free and the other still grasping the rifle which as yet he had no intent of laying aside. "I plum disgusts Kaintuck'!"

The sun was climbing now and its pallid disk was slowly flushing to the wakefulness of fiery rose. The sky overhead was livening to turquoise light and here and there along the upper slopes were gossamer dashes of opal and amethyst, but this beauty of unveiling turrets and gold-touched crests was lost on eyes in which dwelt a nightmare from which there was no hope of awakening.

To-day the sparsely settled countryside that he had put behind him would buzz with a wrath like that of swarming bees along its creek-bed roads, and the posse would be out. To-day also he would be far over in Kentucky.

"I mout hev' tarried thar an' fronted hit out," he bitterly reflected, "fer God in Heaven knows he needed killin'!" But there he broke off into a bitter laugh.

"God in Heaven knows hit ... *I* knows hit an' *she* knows hit, but nairy another soul don't know an' ef they did hit wouldn't skeercely make no differ."

He threw back his head and sought to review the situation through the eyes of others and to analyze it all as an outsider would analyze it. To his simplicity of nature came no thought that the assumption of a guilt not his own was a generous or heroic thing.

His sister's pride had silenced her lips as to the brutality of this husband whose friends in that neighbourhood were among the little czars of influence. Her suffering under an endless reign of terror was a well-kept secret which only her brother shared. The big, crudely handsome brute had been "jobial" and suave of manner among his fellows and was held in favourable esteem. Only a day or two ago, when the brother had remonstrated in a low voice against some recent cruelty, the husband's wrath had blazed out. Witnesses to that wordy encounter had seen Thornton go white with a rage that was ominous and then bite off his unspoken retort and turn away. Those witnesses had not heard what was first said and had

learned only what was revealed in the indignant husband's raised voice at the end.

"Don't aim ter threaten me, Ken. I don't suffer no man ter do thet—an' don't never darken my door henceforward."

Now it must seem that Thornton had not only threatened but executed, and no one would suspect the wife.

He saw in his mind's eye the "High Court" that would try the alleged slayer of John Turk; a court dominated by the dead man's friends; a court where witnesses and jurors would be terror-blinded against the defendant and where a farce would be staged: a sacrifice offered up.

There had been in that log house three persons. One of them was dead and his death would speak for him with an eloquence louder than any living tongue. There were, also, the woman and Thornton himself. Between them must lie the responsibility. Conscientiously the fugitive summarized the circumstances as the prosecution would marshal and present them.

A man had been shot. On the table lay a pistol with one empty "hull" in its chamber. The woman was the dead man's wife, not long since a bride and shortly to become the mother of his child. If she had been the murdered man's deadly enemy why had she not left him; why had she not complained? But the brother had been heard to threaten the husband only a day or two since. He was in the dead man's house, after being forbidden to shadow its threshold.

"Hell!" cried Thornton aloud. "Ef I stayed she'd hev ter come inter C'ote an' sw'ar either fer me or ergin me—an' like es not, she'd break down an' confess. Anyhow, ef they put her in ther jail-house I reckon ther child would hev hits bornin' thar. Hell—no!"

He turned once more to gaze on the vague cone of a mountain that stood uplifted above its fellows far behind him. He had started his journey at its base. Then he looked westward where ridge after ridge, emerging now into full summer greenery, went off in endless billows to the sky, and he went down the slope toward the river on whose other side he was to become another man.

Kenneth Thornton was pushing his way West, the quarry of a man-hunt, but long before him another Kenneth Thornton had come from Virginia to Kentucky, an ancestor so far lost in the mists of antiquity that his descendant had never heard of him; and that man, too, had been making a sacrifice.

CHAPTER II

SPRUNG from a race which had gone to seed like plants in a long-abandoned garden, once splendid and vigorous, old Caleb Harper was a patriarchal figure nearing the sunset of his life.

His forebears had been mountaineers of the Kentucky Cumberlands since the vanguard of white life had ventured westward from the seaboard. From pioneers who had led the march of progress that stock had relapsed into the decay of mountain-hedged isolation and feudal lawlessness, but here and there among the wastage, like survivors over the weed-choked garden of neglect, emerged such exceptions as Old Caleb; paradoxes of rudeness and dignity, of bigotry and nobility.

Caleb's house stood on the rising ground above the river, a substantial structure grown by occasional additions from the nucleus that his ancestor Caleb Parish had founded in revolutionary times, and it marked a contrast with its less provident neighbours. Many cabins scattered along these slopes were dismal and makeshift abodes which appeared to proclaim the despair and squalor of their builders and occupants.

Just now a young girl stood in the large unfurnished room that served the house as an attic—and she held a folded paper in her hand.

She had drawn out of its dusty corner a small and quaintly shaped horsehide trunk upon which, in spots, the hair still adhered. The storeroom that could furnish forth its mate must be one whose proprietors held inviolate relics of long-gone days, for its like has not been made since the life of America was slenderly strung along the Atlantic seaboard and the bison ranged about his salt licks east of the Mississippi.

Into the lock the girl fitted a cumbersome brass key and then for a long minute she stood there breathing the forenoon air that eddied in currents of fresh warmth. The June sunlight came, too, in a golden flood and the soft radiance of it played upon her hair and cheeks.

Outside, almost brushing the eaves with the plumes of its farthest flung branches, stood a gigantic walnut tree whose fresh leafage filtered a mottling of sunlight upon the age-tempered walls.

The girl herself, in her red dress, was slim and colourful enough and dewy-fresh enough to endure the searching illumination of the June morning.

Dark hair crowned the head that she threw back to gaze upward into the venerable branches of the tree, and her eyes were as dark as her hair and as deep as a soft night sky.

Over beetling summits and sunlit valley the girl's glance went lightly and contentedly, but when it came back to nearer distances it dwelt with an absorbed tenderness on the gnarled old veteran of storm-tested generations that stood there before the house: the walnut which the people of her family had always called the "roof tree" because some fanciful grandmother had so named it in the long ago.

"I reckon ye're safe now, old roof tree," she murmured, for to her the tree was human enough to deserve actual address, and as she spoke she sighed as one sighs who is relieved of an old anxiety.

Then, recalled to the mission that had brought her here, she thought of the folded paper that she held in her hand.

So she drew the ancient trunk nearer to the window and lifted its cover.

It was full of things so old that she paused reverently before handling them.

Once the grandmother who had died when she was still a small child had allowed her to glimpse some of these ancient treasures but memory was vague as to their character.

Both father and mother were shadowy and half-mythical beings of hearsay to her, because just before her birth her father had been murdered from ambush. The mother had survived him only long enough to bring her baby into the world and then die broken-hearted because the child was not a

boy whom she might suckle from the hatred in her own breast and rear as a zealot dedicated to avenging his father.

The chest had always held for this girl intriguing possibilities of exploration which had never been satisfied. The gentle grandfather had withheld the key until she should be old enough to treat with respect those sentimental odds and ends which his women-folk had held sacred, and when the girl herself had "grown up"—she was eighteen now—some whimsey of clinging to the illusions and delights of anticipation had stayed her and held the curb upon her curiosity. Once opened the old trunk would no longer beckon with its mystery, and in this isolated life mysteries must not be lightly wasted.

But this morning old Caleb Harper had prosaically settled the question for her. He had put that paper into her hand before he went over the ridge to the cornfield with his mule and plow.

"Thet thar paper's right p'intedly valuable, leetle gal," he had told her. "I wants ye ter put hit away safe somewhars." He had paused there and then added reflectively, "I reckon ther handiest place would be in ther old horsehide chist thet our fore-parents fetched over ther mountings from Virginny."

She had asked no questions about the paper itself because, to her, the opening of the trunk was more important, but she heard the old man explaining, unasked:

"I've done paid off what I owes Bas Rowlett an' thet paper's a full receipt. I knows right well he's my trusty friend, an' hit's my notion thet he's got his hopes of bein' even more'n thet ter *you*—but still a debt sets mighty heavy on me, be hit ter friend or foe, an' hit pleasures me thet hit's sottled."

The girl passed diplomatically over the allusion to herself and the elder's expression of favour for a particular suitor, but without words she had made the mental reservation: "Bas Rowlett's brash and uppety enough withouten us bein' beholden ter him fer no money debt. Like as not he'll be more humble-like a'tter this when he comes a-sparkin'."

Now she sat on a heavy cross-beam and looked down upon the packed contents while into her nostrils crept subtly the odour of old herbs and spicy

defences against moth and mould which had been renewed from time to time through the lagging decades until her own day.

First, there came out a soft package wrapped in a threadbare shawl and carefully bound with home-twisted twine and this she deposited on her knees and began to unfasten with trembling fingers of expectancy. When she had opened up the thing she rose eagerly and shook out a gown that was as brittle and sere as a leaf in autumn and that rustled frigidly as the stiffened folds straightened.

"I'll wager now, hit war a *weddin'* dress," she exclaimed as she held it excitedly up to the light and appraised the fineness of the ancient silk with eyes more accustomed to homespun.

Then came something flat that fell rustling to the floor and spread into a sheaf of paper bound between home-made covers of cloth, but when the girl opened the improvised book, with the presentiment that here was the message out of the past that would explain the rest, she knitted her brows and sat studying it in perplexed engrossment.

The ink had rusted, in the six score years and more since its inscribing, to a reddish faintness which shrank dimly and without contrast into the darkened background, yet difficulties only whetted her discoverer's appetite, so that when, after an hour, she had studied out the beginning of the document, she was deep in a world of romance-freighted history. Here was a journal written by a woman in the brave and tragic days of the nation's birth.

That part which she was now reading seemed to be a sort of preamble to the rest, and before the girl had progressed far she found a sentence which, for her, infused life and the warmth of intimacy into the document.

"It may be that God in His goodenesse will call me to His house which is in Heaven before I have fully written ye matters which I would sett downe in this journall," began the record. "Since I can not tell whether or not I shall survive ye cominge of that new life upon which all my thoughtes are sett and shoulde such judgement be His Wille, I want that ye deare childe shall have this recorde of ye days its father and I spent here in these forest

hills so remote from ye sea and ye rivers of our deare Virginia, and ye gentle refinements we put behind us to become pioneers."

There was something else there that she could not make out because of its blurring, and she wondered if the blotted pages had been moistened by tears as well as ink, but soon she deciphered this unusual statement.

"Much will be founde in this journall, touching ye tree which I planted in ye first dayes and which we have named ye rooffe tree after a fancy of my owne. I have ye strong faith that whilst that tree stands and growes stronge and weathers ye thunder and wind and is revered, ye stem and branches of our family also will waxe stronge and robust, but that when it falls, likewise will disaster fall upon our house."

One thing became at once outstandingly certain to the unsophisticated reader.

This place in the days of its founding had been an abode of love unshaken by perils, for of the man who had been its head she found such a portrait as love alone could have painted. He was described as to the modelling of his features, the light and expression of his eyes; the way his dark hair fell over his "broade browe"—even the cleft of his chin was mentioned.

That fondly inspired pen paused in its narrative of incredible adventures and more than Spartan hardships to assure the future reader that, "ye peale of his laugh was as clear and tuneful as ye fox horn with which our Virginia gentry were wont to go afield with horse and hound." There had possibly been a touch of wistfulness in that mention of a renounced life of greater affluence and pleasure for hard upon it followed the observation:

"Here, where our faces are graven with anxieties that besette our waking and sleeping, it seemeth that most men have forgotten ye very fashion of laughter. Joy seemes killed out of them, as by a bitter frost, yet *he* hath ever kept ye clear peale of merriment in his voice and its flash in his eye and ye smile that showes his white teeth."

Somehow the girl seemed to see that face as though it had a more direct presentment before her eyes than this faded portraiture of words penned by a hand long ago dead.

He must have been, she romantically reflected, a handsome figure of a man. Then naïvely the writer had passed on to a second description: "If I have any favour of comeliness it can matter naught to me save as it giveth pleasure to my deare husbände, yet I shall endeavour to sette downe truly my own appearance alsoe."

The girl read and re-read the description of this ancestress, then gasped.

"Why, hit mout be *me* she was a-writin' erbout," she murmured, "save only I hain't purty."

In that demure assertion she failed of justice to herself, but her eyes were sparkling. She knew that hereabout in this rude world of hers her people were accounted both godly and worthy of respect, but after all it was a drab and poverty-ridden world with slow and torpid pulses of being. Here, she found, in indisputable proof, the record of her "fore-parents". Once they, too, had been ladies and gentlemen familiar with elegant ways and circumstances as vague to her as fable. Henceforth when she boasted that hers were "ther best folk in ther world" she would speak not in empty defiance but in full confidence!

But as she rose at length from her revery she wondered if after all she had not been actually dreaming, because a sound had come to her ears that was unfamiliar and that seemed of a piece with her reading. It was the laugh of a man, and its peal was as clear and as merry as the note of a fox horn.

The girl was speedily at the window looking out, and there by the roadside stood her grandfather in conversation with a stranger.

He was a tall young man and though plainly a mountaineer there was a declaration of something distinct in the character of his clothing and the easy grace of his bearing. Instead of the jeans overalls and the coatless shoulders to which she was accustomed, she saw a white shirt and a dark coat, dust-stained and travel-soiled, yet proclaiming a certain predilection toward personal neatness.

The traveller had taken off his black felt hat as he talked and his black hair fell in a long lock over his broad, low forehead. He was smiling, too, and she caught the flash of white teeth and even—since the distance was short—the deep cleft of his firm chin.

Framed there at the window the girl caught her hands to her breast and exclaimed in a stifled whisper, "Land o' Canaan! He's jest walked spang outen them written pages—he's ther spittin' image of that man my dead and gone great-great-great-gran'-mammy married."

It was at that instant that the young man looked up and for a moment their eyes met. The stranger's words halted midway in their utterance and his lips remained for a moment parted, then he recovered his conversational balance and carried forward his talk with the gray-beard.

The girl drew back into the shadow, but she stood watching until he had gone and the bend in the road hid him. Then she placed the receipt that had brought her to the attic in the old manuscript, marking the place where her reading had been interrupted, and after locking the trunk ran lightly down the stairs.

"Gran'pap," she breathlessly demanded, "I seed ye a-talkin' with a stranger out thar. Did ye find out who *is* he?"

"He give ther name of Cal Maggard," answered the old man, casually, as he crumbled leaf tobacco into his pipe. "He lows he's going ter dwell in ther old Burrell Thornton house over on ther nigh spur of Defeated Creek."

That night while the patriarch dozed in his hickory withed chair with his pipe drooping from his wrinkled lips his granddaughter slipped quietly out of the house and went over to the tree.

Out there magic was making under an early summer moon that clothed the peaks in silvery softness and painted shadows of cobalt in the hollows. The river flashed its response and crooned its lullaby, and like children answering the maternal voice, the frogs gave chorus and the whippoorwills called plaintively from the woods.

The branches of the great walnut were etched against a sky that would have been bright with stars were it not that the moon paled them, and she gazed up with a hand resting lightly on the broad-girthed bole of the stalwart veteran. Often she had wondered why she loved this particular tree so much. It had always seemed to her a companion, a guardian, a

personality, when its innumerable fellows in the forest were—nothing but trees.

Now she knew. She had only failed to understand the language with which it had spoken to her from childhood, and all the while, when the wind had made every leaf a whispering tongue, it had been trying to tell her many ancient stories.

"I knows, now, old roof tree," she murmured. "I've done found out erbout ye," and her hand patted the close-knit bark.

Then, in the subtle influence of the moonlight and the night that awoke all the young fires of dreaming, she half closed her eyes and seemed to see a woman who looked like herself yet who—in the phantasy of that moment—was arrayed in a gown of silk and small satin slippers, looking up into the eyes of a man whose hair was dark and whose chin was cleft and whose smile flashed upon white teeth. Only as the dream took hold upon her its spirit changed and the other woman seemed to be herself and the man seemed to be the one whom she had glimpsed to-day.

Then her reveries were broken. In the shallow water of the ford down at the river splashed a horse's hoofs and she heard a voice singing in the weird falsetto of mountain minstrelsy an old ballade which, like much else of the life there, was a heritage from other times.

So the girl brushed an impatient hand over rudely awakened eyes and turned back to the door, knowing that Bas Rowlett had come sparking.

CHAPTER III

IT was a distraite maiden who greeted the visiting swain that night and one so inattentive to his wooing that his silences became long, under discouragement, and his temper sullen. Earlier than was his custom he bade her good-night and took himself moodily away.

Then Dorothy Harper kindled a lamp and hastened to the attic where she sat with her head bowed over the old diary while the house, save for herself, slept and the moon rode down toward the west.

Often her eyes wandered away from the bone-yellow pages of the ancient document and grew pensive in dreamy meditation. This record was opening, for her, the door of intimately wrought history upon the past of her family and her nation when both had been in their bravest youth.

She did not read it all nor even a substantial part of it because between scraps of difficult perusal came long and alluring intervals of easy revery. Had she followed its sequence more steadily many things would have been made manifest to her which she only came to know later, paying for the knowledge with a usury of experience and suffering.

Yet since that old diary not only set out essential matters in the lives of her ancestors but also things integral and germane to her own life and that of the stranger who had to-day laughed in the road, it may be as well to take note of its contents.

The quaint phrasing of the writer may be discarded and only the substance which concerned her narrative taken into account, for her sheaf of yellow pages was a door upon the remote reaches of the past, yet a past which this girl was not to find a thing ended and buried but rather a ghost that still walked and held a continuing dominion.

In those far-off days when the Crown still governed us there had stood in Virginia a manor house built of brick brought overseas from England.

In it Colonel John Parish lived as had his father, and in it he died in those stirring times of a nation's painful birth. He had been old and stubborn and his emotions were so mixed between conflicting loyalties that the pain of his hard choice hastened his end. Tradition tells that, on his deathbed, his emaciated hand clutched at a letter from Washington himself, but that just at the final moment his eyes turned toward the portrait of the King which still hung above his mantel shelf, and that his lips shaped reverent sentiments as he died.

Later that same day his two sons met in the wainscoted room hallowed by their father's books and filled with his lingering spirit—a library noted in a land where books were still few enough to distinguish their owner.

Between them, even in this hour of common bereavement, stood a coolness, an embarrassment which must be faced when two men, bound by blood, yet parted by an unconfessed feud, arrive at the parting of their ways.

Though he had been true to every requirement of honour and punctilio, John the elder had never entirely recovered from the wound he had suffered when Dorothy Calmer had chosen his younger brother Caleb instead of himself. He had indeed never quite been able to forgive it.

"So soon as my father has been laid to rest, I purpose to repair to Mount Vernon," came the thoughtful words of the younger brother as their interview, which had been studiously courteous but devoid of warmth ended, and the elder halted, turning on the threshold to listen.

"There was, as you may recall, a message in General Washington's letter to my father indicating that an enterprise of moment awaited my undertaking," went on Caleb. "I should be remiss if I failed of prompt response."

* * *

Kentucky! Until the fever of war with Great Britain had heated man's blood to the exclusion of all else Virginia had rung with that name.

La Salle had ventured there in the century before, seeking a mythical river running west to China. Boone and the Long Hunters had trod the trails

of mystery and brought back corroborative tales of wonder and Ophir richness.

Of these things, General Washington and Captain Caleb Parish were talking on a day when the summer afternoon held its breath in hot and fragrant stillness over the house at Mount Vernon.

On a map the general indicated the southward running ranges of the Alleghanies, and the hinterland of wilderness.

"Beyond that line," he said, gravely, "lies the future! Those who have already dared the western trails and struck their roots into the soil must not be deserted, sir. They are fiercely self-reliant and liberty-loving, but if they be not sustained we risk their loyalty and our back doors will be thrown open to defeat."

Parish bowed. "And I, sir," he questioned, "am to stand guard in these forests?"

George Washington swept out his hand in a gesture of reluctant affirmation.

"Behind the mountains our settlers face a long purgatory of peril and privation, Captain Parish," came the sober response. "Without powder, lead, and salt, they cannot live. The ways must be held open. Communication must remain intact. Forts must be maintained—and the two paths are here—and here."

His finger indicated the headwaters of the Ohio and the ink-marked spot where the steep ridges broke at Cumberland Gap.

Parish's eyes narrowed painfully as he stood looking over the stretches of Washington's estate. The vista typified many well-beloved things that he was being called upon to leave behind him—ordered acres, books, the human contacts of kindred association. It was when he thought of his young wife and his daughter that he flinched. 'Twould go hard with them, who had been gently nurtured.

"Do women and children go, too?" inquired Parish, brusquely.

"There are women and children there," came the swift reply. "We seek to lay foundations of permanence and without the family we build on quicksand."

* * *

Endless barriers of wilderness peaks rose sheer and forbidding about a valley through which a narrow river flashed its thin loop of water. Down the steep slopes from a rain-darkened sky hung ragged fringes of cloud-streamer and fog-wraith.

Toward a settlement, somewhere westward through the forest, a drenched and travel-sore cortège was plodding outward. A handful of lean and briar-infested cattle stumbled in advance, yet themselves preceded by a vanguard of scouting riflemen, and back of the beef-animals came ponies, galled of wither and lean of rib under long-borne pack saddles.

Behind lay memories of hard and seemingly endless journeying, of alarms, of discouragement. Ahead lay a precarious future—and the wilderness.

The two Dorotheys, Captain Caleb Parish's wife and daughter, were ending their journey on foot, for upon them lay the duties of example and *noblesse oblige*—but the prideful tilt of their chins was maintained with an ache of effort, and when the cortège halted that the beasts might blow, Caleb Parish hastened back from his place at the front to his wife and daughter.

"It's not far now," he encouraged. "To-night, at least, we shall sleep behind walls—even though they be only those of a block-house—and under a roof tree."

Both of them smiled at him—yet in his self-accusing heart he wondered whether the wife whose fortitude he was so severely taxing would not have done better to choose his brother.

While the halted outfit stood relaxed, there sounded through the immense voicelessness of the wilderness a long-drawn, far-carrying shout, at which the more timid women started flutteringly, but which the vanguard

recognized and answered, and a moment later there appeared on the ledge of an overhanging cliff the lithe, straight figure of a boy.

He stood statuesquely upright, waving his coonskin cap, and between his long deerskin leggins and breech clout the flesh of his slim legs showed bare, almost as bronze-dark as that of an Indian.

"That is our herald of welcome," smiled Caleb Parish. "It's young Peter Doane—the youngest man we brought with us—and one of our staunchest as well. You remember him, don't you, child?"

The younger Dorothy at first shook her head perplexedly and sought to recall this youthful frontiersman; then a flash of recognition broke over her face.

"He's the boy that lived on the woods farm, isn't he? His father was Lige Doane of the forest, wasn't he?"

"And still is." Caleb repressed his smile and spoke gravely, for he caught the unconscious note of condescension with which the girl used the term of class distinction. "Only here in Kentucky, child, it is as well to forget social grades and remember that we be all 'men of the forest.' We are all freemen and we know no other scale."

That fall, when the mountains were painted giants, magnificently glorified from the brush and palette of the frost; when the first crops had been gathered, a spirit of festivity and cheer descended on the block-houses of Fort Parish. Then into the outlying cabins emboldened spirits began moving in escape from the cramp of stockade life.

Against the palisades of Wautaga besieging red men had struck and been thrown back. Cheering tidings had come of Colonel William Christian's expedition against the Indian towns.

The Otari, or hill warriors, had set their feet into the out-trail of flight and acknowledged the chagrin of defeat, all except Dragging Canoe, the ablest and most implacable of their chiefs who, sullenly refusing to smoke the

pipe, had drawn far away to the south, to sulk out his wrath and await more promising auspices.

Then Caleb Parish's log house had risen by the river bank a half mile distant from the stockade, and more and more he came to rely on the one soul in his little garrison whose life seemed talisman-guarded and whose woodcraft was a sublimation of instinct and acquired lore which even the young braves of the Otari envied.

Young Peter Doane, son of "Lige Doane of the forest," and not yet a man in years, came and went through the wilderness as surely and fleetly as the wild things, and more than once he returned with a scalp at his belt—for in those days the whites learned warfare from their foes and accepted their rules. The little community nodded approving heads and asked no questions. It learned valuable things because of Peter's adventurings.

But when he dropped back after a moon of absence, it was always to Caleb Parish's hearth-stone that Peter carried his report. It was over Caleb Parish's fire that he smoked his silent pipe, and it was upon Caleb Parish's little daughter that he bent his silently adoring glances.

Dorothy would sit silent with lowered lashes while she dutifully sought to banish aloofness and the condescension which still lingered in her heart—and the months rounded into seasons.

The time of famine long known as the "hard winter" came. The salt gave out, the powder and lead were perilously low.

The "traces" to and through the Wilderness road were snow-blocked or slimy with intermittent thaws, and the elder Dorothy Parish fell ill.

Learned physicians might have found and reached the cause of her malady—but there were no such physicians. Perhaps the longings that she repressed and the loneliness that she hid under her smile were costing her too dearly in their levies upon strength and vitality. She, who had been always fearless, became prey to a hundred unconfessed dreads. She feared for her husband, and with a frenzy of terror for her daughter. She woke trembling out of atrocious nightmares. She was wasting to a shadow, and always pretending that the life was what she would have chosen.

It was on a bitter night after a day of blizzard and sleet. Caleb Parish sat before his fire, and his eyes went constantly to the bed where his wife lay half-conscious and to the seated figure of the tirelessly watchful daughter.

Softly against the window sounded a guarded rap. The man looked quickly up and inclined his ear. Again it came with the four successive taps to which every pioneer had trained himself to waken, wide-eyed, out of his most exhausted sleep.

Caleb Parish strode to the door and opened it cautiously. Out of the night, shaking the snow from his buckskin hunting shirt, stepped Peter Doane with his stoical face fatigue drawn as he eased down a bulky pack from galled shoulders.

"Injins," he said, crisply. "Get your women inside the fort right speedily!"

The young man slipped again into the darkness, and Parish, lifting the half-conscious figure from the bed, wrapped it in a bear-skin rug and carried it out into the sleety bluster.

That night spent itself through a tensivity of waiting until dawn.

When the east grew a bit pale, Caleb Parish returned from his varied duties and laid a hand on his wife's forehead to find it fever-hot. The woman opened her eyes and essayed a smile, but at the same moment there rode piercingly through the still air the long and hideous challenge of a war-whoop.

Dorothy Parish, the elder, flinched as though under a blow and a look of horror stamped itself on her face that remained when she had died.

* * *

Spring again—and a fitful period of peace—but peace with disquieting rumours.

Word came out of the North of mighty preparations among the Six Nations and up from the South sped the report that Dragging Canoe had laid aside his mantle of sullen mourning and painted his face for war.

Dorothy Parish, the wife, had been buried before the cabin built by the river bank, and Dorothy, the daughter, kept house for the father whom these months had aged out of all resemblance to the former self in knee breeches and powdered wig with lips that broke quickly into smiling.

And Peter, watching the bud of Dorothy's childhood swell to the slim charms of girlhood, held his own counsel and worshipped her dumbly. Perhaps he remembered the gulf that had separated his father's log cabin from her uncle's manor house in the old Virginia days, but of these things no one spoke in Kentucky.

Three years had passed, and along the wilderness road was swelling a fuller tide of emigration, hot with the fever of the west.

Meeting it in counter-current went the opposite flow of the faint-hearted who sought only to put behind them the memory of hardship and suffering—but that was a light and negligible back-wash from an onsweeping wave.

Caleb Parish smiled grimly. This spelled the beginning of success. The battle was not over—his own work was far from ended—but substantial victory had been won over wilderness and savage. The back doors of a young nation had suffered assault and had held secure.

Stories drifted in nowadays of the great future of the more fertile tablelands to the west, but Caleb Parish had been stationed here and had not been relieved.

The pack train upon which the little community depended for needed supplies had been long overdue, and at Caleb's side as he stood in front of his house looking anxiously east was his daughter Dorothy, grown tall and pliantly straight as a lifted lance.

Her dark eyes and heavy hair, the poise of her head, her gracious sweetness and gentle courage were, to her father, all powerful reminders of the woman whom he had loved first and last—this girl's mother. For a moment he turned away his head.

"Some day," he said, abruptly, "if Providence permits it, I purpose to set a fitting stone here at her head."

"Meanwhile—if we can't raise a stone," the girl's voice came soft and vibrant, "we can do something else. We can plant a tree."

"A tree!" exclaimed the man, almost irritably. "It sometimes seems to me that we are being strangled to death by trees! They conceal our enemies—they choke us under their blankets of wet and shadow."

But Dorothy shook her head in resolute dissent.

"Those are just trees of the forest," she said, whimsically reverting to the old class distinction. "This will be a manor-house tree planted and tended by loving hands. It will throw shade over a sacred spot." Her eyes began to glow with the growth of her conception.

"Don't you remember how dearly Mother loved the great walnut tree that shaded the veranda at home? She would sit gazing out over the river, then up into its branches—dreaming happy things. She used to tell me that she found my fairy stories there among its leaves—and there was always a smile on her lips then."

The spring was abundantly young and where the distances lengthened they lay in violet dreams.

"Don't you remember?" repeated the girl, but Caleb Parish looked suddenly away. His ear had caught a distant sound of tinkling pony bells drifting down wind and he said devoutly, "Thank God, the pack train is coming."

It was an hour later when the loaded horses came into view herded by fagged woodsmen and piloted by Peter Doane, who strode silently, tirelessly, at their head. But with Peter walked another young man of different stamp—a young man who had never been here before.

Like his fellows he wore the backwoodsman's garb, but unlike them his tan was of newer wind-burning. Unlike them, too, he bowed with a ceremony foreign to the wilderness and swept his coonskin cap clear of his head.

"This man," announced Peter, brusquely, "gives the name of Kenneth Thornton and hears a message for Captain Parish!"

The young stranger smiled, and his engaging face was quickened with the flash of white teeth. A dark lock of hair fell over his forehead and his firm chin was deeply cleft.

"I have the honour of bearing a letter from your brother, Sir," he said, "and one from General Washington himself."

Peter Doane looked on, and when he saw Dorothy's eyes encounter those of the stranger and her lashes droop and her cheeks flush pink, he turned on his heel and with the stiffness of an affronted Indian strode silently away.

"This letter from General Washington," said Caleb Parish, looking up from his reading, "informs me that you have already served creditably with our troops in the east and that you are now desirous to cast your lot with us here. I welcome you, Sir."

Kenneth Thornton was swift to learn and when he went abroad with hunting parties or to swing the axe in the clearings, his stern and exacting task-masters found no fault with his strength or spirit.

Their ardent and humourless democracy detected in him no taint of the patronizing or supercilious, and if he was new to the backwoods, he paid his arrears of knowledge with the ready coin of eagerness.

So Kenneth Thornton was speedily accepted into full brotherhood and became a favourite. The cheery peal of his laugh and his even cordiality opened an easy road to popularity and confidence.

Thornton had been schooled in England until the war clouds lowered, and as he talked of his boyish days there, and of the sights and festivities of London town, he found in Caleb Parish and his daughter receptive listeners, but in young Doane a stiff-necked monument of wordless resentment.

One summer night when the skies had spilt day-long torrents of rain and the sun had set red with the woods still sobbing and chill, a great fire roared on Caleb Parish's hearth. Before it sat the householder with his daughter and Kenneth Thornton; as usual, too, silent and morose yet stubbornly present, was Peter Doane.

Oddly enough they were talking of the minuet, and Kenneth rose to illustrate a step and bow that he had seen used in England.

Suddenly the girl came to her feet and faced him with a curtsy.

Kenneth Thornton bent low from the waist, and, with a stately gesture, carried her fingers to his lips.

"Now, my lord," she commanded, "show the newest steps that they dance at court."

"Your humble servant, Mistress Dorothy," he replied, gravely.

Then they both laughed, and Caleb Parish was divided between smile and tears—but Peter Doane glowered and sat rigid, thinking of freshly reared barriers that democracy should have levelled.

CHAPTER IV

A WEEK later Dorothy led Kenneth Thornton and Peter Doane to a place where beside a huge boulder a "spring-branch" gushed into a natural basin of stone. The ferns grew thick there, and the moss lay deep and green, but over the spot, with branches spreading nobly and its head high-reared, stood an ancient walnut and in the narrow circle of open ground at its base grew a young tree perhaps three feet tall.

"I want to move that baby tree," said Dorothy, and now her voice became vibrant, "to a place where, when it has grown tall, it can stand as a monument over my mother's grave."

She paused, and the two young men offered no comment. Each was watching the glow in her eyes and feeling that, to her, this ceremony meant something more than the mere setting out of a random seedling.

"It will stand guard over our home," she went on, and her eyes took on an almost dreamy far-awayness. "It will be shade in summer and a reminder of coming spring in winter. It will look down on people as they live and die—and are born. At last," she concluded, "when I come to die myself, I want to be buried under it, too."

When the young walnut had been lifted clear and its roots packed with some of its own native earth Kenneth Thornton started away carrying it in advance while Dorothy and Peter followed.

But before they came to the open space young Doane stopped on the path and barred the girl's way. "Dorothy," he began, awkwardly, and with painful embarrassment, "I've got something that must needs be said—an' I don't rightly know how to say it."

She looked up into his set face and smiled.

"Can I help you say it?" she inquired, and he burst out passionately, "Until *he* come, you seemed to like me. Now you don't think of nobody else

but jest him ... and I hates him."

"If it's hatred you want to talk about," she said, reproachfully, "I don't think I can help you after all."

"Hatred of him," he hastened to explain. "I've done lived in the woods—an' I ain't never learned pretty graces ... but I can't live without you, an' if he comes betwixt us...."

The girl raised a hand.

"Peter," she said, slowly, "we've been good friends, you and I. I want to go on being good friends with you ... but that's all I can say."

"And him," demanded the young man, with white cheeks and passion-shaken voice, "what of him?"

"He asked me an hour ago," she answered, frankly. "We're going to be married."

The face of the backwoodsman worked spasmodically for a moment with an agitation against which his stoic training was no defense. When his passion permitted speech he said briefly, "I wishes ye joy of him—damn him!"

Then he wheeled and disappeared in the tangle.

"I'm sorry, dearest," declared Thornton when she had told him the story and his arms had slipped tenderly about her, "that I've cost you a friend, but I'm proud beyond telling that this tree was planted on the day you declared for me. To me too, it's a monument now."

That night the moon was clouded until late but broke through its shrouding before Dorothy went to bed, and she slipped out to look at the young shoot and perhaps to think of the man who had taken her in his arms there.

But as she approached she saw no standing shape and when she reached the spot she found that the freshly placed earth had been dug up. The tree had been spitefully dragged from its place and left lying with its roots

extending up instead of its branches. Plainly it was an act of mean vandalism and Dorothy feared an emblem of deeper threat as well.

Already in the girl's thought this newly planted monument had become a sacred thing. To let it be so soon destroyed would be an evil augury and submission to a desecration. To tell Kenneth Thornton would kindle his resentment and provoke a dangerous quarrel. She herself must remedy the matter. So Dorothy Parish went for her spade, and late into the night she laboured at that second transplanting.

The roots had not had time to dry or burn, because they had been upturned so short a time, and before the girl went to her bed the task was finished, and she dreamed of birds nesting in broad branches and other home-making thoughts more intimate, but also of vague dangers and grudge-bearings.

But the next morning her face blanched when her father roused her before dawn.

"Kenneth Thornton was waylaid and shot last night," he said, briefly. "They fear he's dying. He's been asking for you."

About the door of Thornton's cabin in the gray freshness of that summer dawn stood a clump of silent men in whose indignant eyes burned a sombre light which boded no good for the would-be murderer if he were found. As the girl came up, with her face pale and grief-stricken, they drew back on either side opening passageway for her, and Dorothy went directly to the bed.

Caleb, though, halted at the threshold in response to a hand laid detainingly on his fringed sleeve.

"We hates to accuse a white man of a deed like this," said Jake Rowlett, a time-gnawed old Indian fighter, "but Thornton made a statement to us—under oath. He recognized Peter Doane—and Peter would of scalped him as well as shot him only he heard somebody rustlin' the brush an' got away."

"Peter Doane!" Caleb pressed a shaken hand to his bewildered forehead. "Peter Doane—but I can't credit that! Peter has sat by my hearth night after night ... Peter has eaten my salt ... Peter has been our staunchest reliance!"

Caleb's glance travelled searchingly about the circle of faces and read there unanimous conviction and grim determination.

"Peter has done growed to be half Injin hisself," came the decided answer. "Thornton didn't swear to no lie when he knew he mout be dyin'."

Caleb straightened decisively and his eyes blazed in spurts of wrath.

"Go after him then," he ordered. "It won't do to let him get away."

The pursuit parties that spread into the woods travelled fast and studiously—yet with little hope of success.

No man better than Peter Doane himself would recognize his desperation of plight—and if he had "gone bad" there was but one road for his feet and the security of the colony depended upon his thwarting.

Pioneer chronicles crowned with anathema unspeakable their small but infamous roster of white renegades, headed by the hated name of Samuel Girty; renegades who had "painted their faces and gone to the Indians!"

These were the unforgivably damned!

Now at the council-fires of Yellow-Jacket, even at the war-lodge of Dragging Canoe himself, the voluntary coming of Peter Doane would mean feasting and jubilation and a promise of future atrocities.

Inside Dorothy bent over the bed and saw the eyes of her lover open slowly and painfully. His lips parted in a ghost of his old, flashing smile.

"Is the tree safe?" he whispered.

The girl stooped and slipped an arm under the man's shoulders. The masses of her night-dark hair fell brushing his face in a fragrant cascade and her deep eyes were wide, unmasking to his gaze all the candid fears and intensities of her love. Then as her lips met his in the first kiss she had ever given him, unasked, it seemed to him that a current of exaltation and vitality swept into him that death could not overcome.

"I'm going to get well," he told her. "Life is too full—and without you, heaven would be empty."

The next pack train did not arrive. But several weeks later a single, half-famished survivor stumbled into the fort. His hands were bound, his tongue swollen from thirst, and about his shoulders dangled a hideous necklace of white scalps. When he had been restored to speech he delivered the message for which his life had been spared.

"This is what's left of your pack train," was the insolent word that Peter Doane—now calling himself Chief Mad-dog, had sent back to his former comrades. "The balance has gone on to Yellow Jacket, but some day I will come back for Thornton's scalp—and my squaw."

As the summer waned the young walnut tree sent down its roots to vigour and imperceptibly lifted its crest. Its leaves did not wither but gained in greenness and lustre, and as it prospered so Kenneth Thornton also prospered, until when the season of corn shucking came again, he and Dorothy stood beside it, and Caleb, who had received his credentials as a justice of the peace, read for them the ritual of marriage.

At the adze-smoothed table of a house which, for all its pioneer crudity, reflected the spirit of tradition-loving inhabitants, sat a young woman whose dark hair hung braided and whose dark eyes looked up from time to time in thoughtful reminiscence.

She was writing with a goose-quill which she dipped into an ink-horn, and as she nibbled at the end of her pen one might have seen that whatever she was setting down lay close to her heart.

"Since I can not tell," she wrote, "whether or not I shall survive ye comings of that new life upon which all my thoughts are set and should such judgment be His Wille, I want that ye deare child shall have this record of ye days its father and I spent here in these forest hills so remote from ye sea and ye rivers of our dear Virginia and ye gentle refinements we put behind us to become pioneers. This wish leads me to the writing of a journall."

A shadow in the doorway cut the shaft of sunlight and the woman at the writing table turned. On the threshold stood Kenneth Thornton and by the

hand he held a savage-visaged child clad in breech clout and moccasins, but otherwise naked. Its eyes held the beady sharpness of the Indian, and though hardly past babyhood, it stood haughtily rigid and expressionless.

The face of the man was not flashing its smile now, but deeply grave, and as his wife's gaze questioned him he spoke slowly.

"This is Peter Doane's boy," he said, briefly.

Dorothy Thornton shrank back with a gesture of repulsion, and the man went on:

"A squaw with a travelling party of friendly Indians brought him in. Mad-dog Doane is dead. His life ended in a drunken brawl in an Otari village—but before he died he asked that the child be brought back to us."

"Why?"

"Because," Thornton spoke seriously, "blood can't be silenced when death comes. The squaw said Chief Mad-dog wanted his boy raised to be a white brave.... He's half white, of course."

"And *he* ventured to ask favours of *us*!" The woman's voice, ordinarily gentle, hardened, and the man led the child over and laid his own hand on her shoulder.

"The child is not to blame," he reminded her. "He's the fruit of madness—but he has human life."

Dorothy rose, inclining her head in reluctant assent.

"I'll fetch him a white child's clothes," she said.

This was the story that the faded pages told and a small part of which Dorothy Harper read as she sat in the lamplight of the attic a century and a quarter later.

CHAPTER V

THE old Thornton house on Defeated Creek had for almost two decades stood vacant save for an occasional and temporary tenant. A long time back a formal truce had been declared in the feud that had split in sharp and bitter cleavage the family connections of the Harpers and the Doanes. Back into the limbo of tradition and vagueness went the origin of that "war".

The one unclouded certainty was that the hatred had grown until even in this land of vendetta its levy of violent deaths had been appalling beyond those of other enmities.

Yet, paradoxically enough, the Harpers in the later feud stages had followed a man named Thornton and the Doanes had fought at the behest of a Rowlett. Now on the same night that Dorothy read in her attic smoke rose from the chimney of the long-empty house and a stranger, whose right of possession no one questioned, was to be its occupant. He sat now, in the moonlight, on the broken mill-stone that served his house as a doorstep—and as yet he had not slept under the rotting roof. About him was a dooryard gone to a weed-jungle and a farm that must be reclaimed from utter wildness. His square jaw was grimly set and the hands that rested on his knees were tensely clenched. His eyes held a far-away and haunted fixity, for they were seeing again the cabin he had left in Virginia with its ugly picture of sudden and violent death and the body of a man he hated lying on the blood-stained floor.

The hysteria-shaken figure of the woman he had left alone with that grisly companionship refused, too, to soften the troubling vividness of its remembered misery.

He himself had not escaped his pursuers by too wide a margin, but he *had* escaped. He had come by a circuitous course to this place where he hoped to find quiet under his assumed name of Maggard, nor was his choice of refuge haphazard.

A distantly related branch of his own family had once lived here, and the property had passed down to him, but the Thornton who had first owned the place he had never known.

The Kentucky history of his blood was as unfamiliar to him as genealogies on Mars, and while the night voices sounded in tempered cadences about him and the hills stood up in their spectral majesty of moonlight, he sat with a drawn brow. Yet, because the vitality of his youth was strong and resilient, other and less grim influences gradually stole over him and he rose after a while with the scowl clearing from his face.

Into the field of his thoughts, like sunlight into a storm sky, came a new image: the image of a girl in a red dress looking at him from an attic window. The tight lips loosened, softened, and parted in a smile.

"Afore God," he declared in a low voice, "she war a comely gal!"

Kenneth Thornton—now self rechristened Cal Maggard, was up and his coffee pot was steaming on the live coals long before the next morning's sun had pierced its shafts into the gray opaqueness that cloaked the valleys. He squatted on his heels before the fire, honing the ancient blade of the scythe that he had found in the cock loft, and that blade was swinging against the stubborn resistance of weed and briar-trailer before the drench of the dew had begun to dry.

He did not stop often to rest, and before noon he straightened and stood breathing deep but rhythmically to survey a levelled space where he had encountered an impenetrable thicket.

Then Cal Maggard leaned his scythe and axe against a young hickory and went over to the corner of the yard where a spring poured with a crystal flow into a natural basin under the gnarled roots of a sycamore. Kneeling there, stripped to the waist, he began laving his chest and shoulders and dipping his face deep into the cold water.

So intent was he that he failed to hear the light thud of hoofs along the sand-cushioned and half-obliterated road which skirted his dilapidated fence line, and he straightened up at length to see a horseman who had drawn rein there and who now sat sidewise gazing at him with one leg thrown across his pommel.

The horseman, tall and knit for tremendous strength, was clad in jeans overalls and a blue cotton shirt. His unshaven face was swarthy and high of cheekbone and his black hat, though shapeless and weather-stained, sat on his head with a jauntiness that seemed almost a challenge. Eyes, both shrewd and determined, gave the impression of missing nothing, but his voice was pleasant as he introduced himself.

"My name's Bas Rowlett, an' I reckon *you're* Cal Maggard, hain't ye? I've done heered ye 'lowed ter dwell amongst us."

Maggard nodded. "Come inside an' set ye a cheer," he invited, and the horseman vaulted to the ground as lightly as though he carried no weight, flinging his bridle rein over a picket of the fence.

For a short space when the host had donned his shirt and provided his guest with a chair by the door the conversation ran laggingly between these two newly met sons of a taciturn race, yet beneath their almost morose paucity of words lay an itch of curiosity. They were gauging, measuring, estimating each other under wary mantles of indifference.

Rowlett set down in his appraisal, with a touch of scorn, the clean-shaven face and general neatness of the other, but as against this effeminacy he offset the steady-eyed fearlessness of gaze and the smooth power of shoulders and torso that he had seen stripped.

Maggard's rifle stood leaning against the chinked log wall near to the visitor's hand and lazily he lifted and inspected it, setting its heel-plate to his shoulder and sighting the weapon here and there.

"Thet rifle-gun balances up right nice," he approved, then seeing a red squirrel that sat chattering on a walnut tree far beyond the road he squinted over the sights and questioned musingly, "I wonder now, could I knock thet boomer outen thet thar tree over yon."

"Not skeercely, I reckon. Hit's a kinderly long, onhandy shot," answered Maggard, "but ye mout try, though."

Rowlett had hoped for such an invitation. He knew that it was more than an "unhandy" shot. It was indeed a spectacularly difficult one—but he knew

also that he could do it twice out of three times, and he was not averse to demonstrating his master-skill.

The rifle barked and the squirrel dropped, shot through the head, but Maggard said nothing and Rowlett only spat and set the gun down.

After that he relighted his pipe. Had this newcomer from across the Virginia border been his peer in marksmanship, he reasoned, he would not have let the exploit rest there without contest, and his own competitive spirit prompted him to goad the obviously inferior stranger.

"Thar's an old cock-of-the woods hammerin' away atter grubs up yon," he suggested. "Why don't ye try yore own hand at him—jest fer ther fun of ther thing?"

He pointed to a dead tree-top perhaps ten yards more distant than his own target had been, where hung one of those great ivory-billed woodpeckers that are near extinction now except in the solitudes of these wild hills.

Maggard smiled again, as he shook his head noncommittally—yet he reached for the rifle. That silent smile of his was beginning to become provocative to his companion, as though in it dwelt something of quiet self-superiority.

The weapon came to the stranger's shoulder with a cat-like quickness of motion and cracked with seemingly no interval of aim-taking, and the bird fell as the squirrel had done.

Rowlett flushed to his high cheekbones. This was a country of riflemen where skill was the rule and its lack the exception, yet even here few men could duplicate that achievement, or, without seeing it, believe it possible. It had been characterized, too, by the incredible swiftness of a sleight-of-hand performance.

"Hell's red hole," came the visitor's eruptive outburst of amazement. "Ef ther man-person thet used ter dwell in this hyar house, and his kinfolks, hed of shot thet fashion, I reckon mebbey ther Rowletts wouldn't never hev run old Burrell Thornton outen these mountings."

"Did they run him out?"

Rowlett studied his companion much as he might have studied someone who calmly admits a stultifying ignorance.

"Hain't ye nuver heered tell of ther Harper-Doane war?" he demanded and Maggard shook an unabashed head.

"I hain't nuver heered no jedgmatic details," he amended, "I knowed thar was sich-like warfare goin' on here one time. My folks used ter dwell in Kaintuck onc't but hit war afore my own day."

"Come on over hyar," prompted Rowlett, and he led the way to the back of the house where half-buried in the tangle that had overrun the place stood the ruins of a heavy and rotting log stockade.

"Old Burrell Thornton dwelt hyar in ther old days," he vouchsafed, "an' old Burrell bore ther repute of being ther meanest man in these parts. He dastn't walk in his own backyard withouten he kept thet log wall betwixt hisself an' ther mounting-side. So long as him an' old Mose Rowlett both lived thar warn't no peace feasible nohow. Cuss-fights an' shootin's an' laywayin's went on without no eend, twell finely hit come on ter be sich a hell-fired mommick thet ther two outfits met up an' fit a master battle in Claytown. Hit lasted nigh on ter two days."

"What war ther upcome of ther matter?" inquired the householder, and the narrator went on:

"Ther Harpers an' Thorntons went inside ther co'te house an' made a pint-blank fort ouden hit, an' ther Rowletts tuck up *thar* stand in ther stores an' streets. They frayed on, thet fashion, twell ther Doanes wearied of hit an' sot ther co'te house afire. Some score of fellers war shot, countin' men an' boys, and old Mose Rowlett, thet was headin' ther Doanes, war kilt dead. Then—when both sides war plum frazzled ragged they patched up a truce betwixt 'em an' ther gist of ther matter war that old Burrell Thornton agreed ter leave Kaintuck an' not never ter come back no more. He war too pizen mean fer folks ter abide him, an' his goin' away balanced up ther deadenin' of Mose Rowlett."

"Ye sez thet old hellion used ter dwell in this hyar house onc't?"

"Yes, sir, that's what I'm noratin' ter ye. Atter he put out his fire an' called his dawgs an' went away Caleb Harper tuck over ther leadin' of ther Harpers and my uncle Jim Rowlett did likewise fer ther Doanes. Both on 'em war men thet loved law-abidin' right good an' when they struck hands an' pledged a peace they aimed ter see thet hit endured—an' hit did. But till word come thet old Burrell Thornton war dead an' buried, folks didn't skeercely breathe easy nohow. They used ter keep hearin' thet he aimed ter come back an' they knowed ef he did——"

There the speaker broke off and shrugged his powerful shoulders.

A brief silence fell, and through the sunflecks and the deep woodland shadows came the little voices that were all of peace, but into Rowlett's eyes flashed a sudden-born ghost of suspicion.

"How come *you* ter git possession of ther place hyar?" he demanded. "Ye didn't heir hit from Old Burrell Thornton's folks, did ye?"

The new occupant was prepared for this line of interrogation and he laughed easily.

"Long erbout a year back," he said, "a feller named Thornton thet dwelt over thar in Virginny got inter debt ter me an' couldn't pay out. He give me a lease on this hyar place, but I didn't hev no chanst ter come over hyar an' look at hit afore now."

Rowlett nodded a reassured head and declared heartily:

"I'm right glad ye hain't one of thet thar sorry brood. Nobody couldn't confidence *them*."

Rowlett, as he rekindled the pipe that had died in the ardour of his narration, studied the other through eyes studiously narrowed against the flare of his match.

The newcomer himself, lost in thought, was oblivious of this scrutiny, and it was as one speaking from revery that he launched his next inquiry.

"Ther gal thet dwells with old man Harper.... She hain't his wife, air she?"

The questioner missed the sudden tensely challenged interest that flashed in the other's eyes and the hot wave of brick-red that surged over the cheeks and neck of his visitor.

But Bas Rowlett was too adroit to betray by more than a single unguarded flash his jealous reaction to mention of the girl and he responded quietly and unemotionally enough.

"She hain't no man's wife ... yit. Old Caleb's her grandpap."

"I've done seed some powerful comely gals in my day an' time," mused Maggard, abstractedly, "but I hain't nuver seed ther like of *her* afore."

Bas thoughtfully fingered his pipe, and when he spoke his words came soberly.

"Seein' es how ye're a stranger hyarabouts," he suggested, "I reckon hit hain't no more then plain charity ter forewarn ye. She's got a lavish of lovers an' thar's some several amongst 'em that's pizen mean—mean enough ter prove up vi'lent and murderous ter any new man thet comes trespassin'."

"Oh, pshaw, thet's always liable ter happen. Anyhow, I reckon I don't have ter worrit myself 'bout thet yit."

"Suit yoreself." This time the native spoke dryly. "But what ye says sounds unthoughted ter me. Ef a man's mean enough ter foller murderin' somebody over a gal, he's more like ter do hit afore ther feller gits his holt on her then a'tterwards. When did ye see ther gal?"

Maggard shook himself like a dog roused from contented sleep and sat up straight.

"I hain't nuver seed her but jest one time, an' I hain't nuver passed no word of speech with her," he replied. "When I come by ther house an' tarried ter make my manners with ther old man, she was a-standin' in an upstairs winder lookin' out an' I seed her thar through ther branches of that big old walnuck tree. She hed on a dress thet made me think of a red-bird, an' her checks minded me right shrewdly of ivy blooms."

"Does ye aim ter name hit ter her thet she puts ye in mind of—them things?"

"I kinderly hed hit in head ter tell her." Suddenly Maggard's frank laugh broke out disconcertingly as he added an inquiry so direct that it caused the other to flush.

"Rowlett, be ye one of these hyar lavish of lovers ye jest told me erbout?"

The mountaineer is, by nature, secretive to furtiveness, and under so outright a questioning the visitor stiffened with affront. But at once his expression cleared of displeasure and he met frankness with a show of equal candour.

"I'm one of ther fellers thet's seekin' ter wed with her, ef thet's what ye means, albeit hit's my own business, I reckon," he said, evenly. "But I hain't one of them I warned ye erginst on account of meanness. Myself I believes in every person havin' a fair chanst an' ther best man winnin'."

The other nodded gravely.

"I didn't aim at no offense," he hastened to declare. "I hain't nuver met ther gal an' like as not she wouldn't favour me with no second look nohow."

"I loves ter see a man talk out-right," avowed the Kentuckian with cordial responsiveness. "Es fer me, I've done made me some sev'ral right hateful enemies, myself, because I seeks ter wed with her, an' I 'lowed ter warn ye in good time thet ye mout run foul of like perils."

"I'm beholden ter ye fer forewarnin' me," came Maggard's grave response. "Ther old man hes done invited me ter sa'nter over thar an' sot me a cheer some time, though—an' I reckon I'll go."

Rowlett rose and with a good-humoured grin stretched his giant body. In the gesture was all the lazy power of a great cat.

"I hain't got no license ter dissuade ye, ner ter fault ye," he declared, "but I hopes ter Goddlemighty she hain't got no time of day fer ye."

That afternoon Maggard sat before the doorstep of Old Caleb Harper's house when the setting sun was splashing from a gorgeous palette above the ragged crests of the ridges. It was colour that changed and grew in splendour with ash of rose and purpled cloud border and glowing orange

streamer. Against those fires the great tree stood with druid dignity, keeping vigil over the roof it sheltered.

At length Maggard heard a rustle and turned his head to see the girl standing in the doorway.

He was a mountain man and mountain men are not schooled in the etiquette of rising when a woman presents herself. Yet now he came to his feet, responding to no dictate of courtesy but lifted as by some nameless exaltation at the sight of her—some impulse entirely new to him and inexplicable.

She stood there a little shyly at first, as slender and as gracefully upright as a birch, and her dark hair caught the fire of the sinking sun with a bronze glow like that of the turkey's wing. Her eyes, over which heavy lashes drooped diffidently, were bafflingly deep, as with rich colour drowned in duskiness.

"This hyar's my gal, Dorothy," announced the old man and then she disappeared.

That night Maggard walked home with a chest rounded to the deep draughts of night air which he was drinking, and a heady elation in the currents of his veins. She had slipped in and out of the room as he had talked with the patriarch, after supper, flitting like some illusive shadow of shyness. He had had hardly a score of words with her, but the future would plentifully mend that famine.

In the brilliant moonlight he vaulted the picket fence of his own place and saw the front of the cube-like house, standing before him, streaked with the dark of the logs and the white of the chinking. About it was the patch of scythe-cleared ground as blue as cobalt in the bright night, and back of it the inky rampart of the mountainside.

But as he approached the door of the cabin the silver bath of light picked out and emphasized a white patch at its centre, and he made out that a sheet of paper was pinned there.

"I reckon Rowlett's done left me some message or other," he reflected as he took the missive down and went inside to light his lantern and build a

fire on the hearth—since even the summer nights were shrewdly chilling here in the hills.

When the logs were snapping and he had kicked off his heavy boots and kindled his pipe, he sprawled luxuriously in a back-tilted chair and held his paper to the flare of the blaze to read it.

At first he laughed derisively, then his brows gathered in a frown of perplexity and finally his jaw stiffened into grimness.

The note was set down in crudely printed characters, as though to evade the identifying quality of handwriting, and this was its truculent message:

No trespassin'. The gal ain't fer *you*. Once more of goin' over yon and they'll find you stretched dead in a creek bed. This is writ with God in Heaven bearin' witness that it's true.

CHAPTER VI

CAL MAGGARD sat gazing into the blaze that leaped and eddied fitfully under the blackened chimney. In one hand drooped the sheet of paper that he had found fastened to his door and in the other the pipe which had been forgotten and had died.

He looked over his shoulder at the door which he had left ajar. Through its slit he could see a moonlit strip of sky, and rising slowly he circled the room, holding the protection of the shadowy walls until he reached and barred it. That much was his concession to the danger of the threat, and it was the only concession he meant to make.

Into this place he had come unknown and under this roof he had slept only one night. He had injured no man, offended no woman or child, yet the malevolent spirit of circumstance that had made a refugee of him in Virginia seemed to have pursued him and found him out.

Perhaps Rowlett had been right. The Harper girl was, among other mountain women, like a moon among stars. Her local admirers might hate and threaten one another, but against an intruder from elsewhere they would unite as allies. Such a prize would be fought for, murdered for if need be—but one ray of encouragement played among the clouds. Any lover who felt confidence in his own success would not have found such tactics needful—and if she herself were not committed, she was not yet won by any rival. In that conclusion lay solace.

The next morning found Maggard busied about his dooryard, albeit with his rifle standing ready to hand, and to-day he wore his shirt with the arm-pit pistol holster under its cover.

His vigilance, too, was quietly alert, and when a mule came in sight along the trail which looped over the ridge a half mile distant and was promptly swallowed again by the woods, his ears followed its approach by

little sounds that would have been silent to a less sensitively trained hearing.

It was a smallish, mouse-coloured mule that emerged at length to view and it looked even smaller than it was because the man who straddled it dwarfed it with his own ponderous stature and a girth which was almost an anomaly in a country of raw-boned gauntness.

The big man slid down, and his thick neck and round face were red and sweat-damp though the day was young and cool.

"I made a soon start this mornin'," he enlightened: "ter git me some gryste ground, an' I didn't eat me no vittles save only a few peanuts. I'm sich a fool 'bout them things thet most folks round hyar calls me by ther name of 'Peanuts.'"

"I reckon I kin convenience ye with some sort of snack," Maggard assured him. "Ef so be ye're hungry—an' kin enjoy what I've got."

Fed and refreshed, "Peanuts" Causey started on again and before he had been long gone Bas Rowlett appeared and sent his long halloo ahead of him in announcement of his coming.

"I jist lowed I'd ride over an' see could I tender ye any neighbourly act," he began affably and Maggard laughed.

"Thet thar's right clever of ye," he declared. "Fer one thing, ye kin tell me who air ther big, jobial-seeming body thet gives ther name of Peanuts Causey. I reckon ye knows him?"

Rowlett grunted. "He's a kind of loaferer thet goes broguein' 'round scatterin' peanut hulls an' brash talk everywhich way an' yon," he gave enlightenment. "Folks don't esteem him no turrible plenty. Hit's all right fer hawks ter fatten but hit don't become a man none. Myself I disgusts gutty fellers."

Cal Maggard had drawn out his pipe and was slowly filling it. As though the thought were an amusing one he inquired drawlingly:

"Be he one of ther fellers thet seeks ter wed Harper's gal, too?"

At that question Rowlett snorted his disdain.

"Him? Thet tub of fat-meat? Wa'al now ye names hit ter me, I reckon he does loiter 'round thar erbout all he das't—he's ther hang-roundin'est feller ye ever seed—but ther only chanst he's got air fer every other man ter fall down an' die."

"I fared over thar last night," said Maggard with a level glance at his companion, "an' I met ther gal. She seemed right shy-like an' didn't hev much ter say one way ner t'other."

As he spoke he searched the face of his visitor but the only expression that it gave forth in response to the announcement was one of livened and amiable interest. Then, after a brief pause, the Virginian laid a hand on the elbow of his neighbour and lowered his voice.

"I wisht ye'd come inside a minute. Thar's a matter I'd love ter hev ye counsel me erbout."

With a nod of acquiescence the visitor followed the householder through the door, and Maggard's face grew soberly intent as he picked up a sheet of paper from the table and held it out.

"Yestiddy ye forewarned me thet ef I went over thar I'd gain me some enemies," he said. "Hit 'pears like ye made a right shrewd guess ... read thet.... I found hit nailed ter my door when I come home last night."

Hewlett took the paper and corrugated his brows over its vindictive message; then his high cheekbones flushed and from his unshaven lips gushed a cascade of oath-embroidered denunciation.

"Afore God Almighty," he ripped out in conclusion, "kin any man comprehend ther sneakin', low-down meanness of a feller thet seeks ter terrify somebody sich fashion es thet? He don't das't disclose hisself and yit he seeks ter run ye off!"

"He hain't a' goin' ter run me off none—whosoever he be," was the calm rejoinder, and Rowlett looked up quickly.

"Then ye aims ter go right ahead?"

"I aims ter go over thar ergin termorrer evenin'.... I'd go terday only I don't seek ter w'ar my welcome out."

Rowlett nodded. His voice came with convincing earnestness.

"I told ye yestiddy thet I aimed ter wed with thet gal myself ef so be I proved lucky at sweetheartin' her. I hain't got no gay int'rest in aidin' ner abettin' ye, but yit I don't hold with no such bull-dozin' methods. What does ye aim ter do erbout hit?"

"I aims ter pin this hyar answer on ther door whar I found ther letter at," replied Maggard, crisply, "An' ef hit comes ter gun-battlin' in ther bresh—I don't seek ter brag none—but ye seed me shoot yestiddy."

Rowlett took and slowly read the defiant response which the other had pencilled and a grim smile of approval came to his face:

To whoever it consarns. I aim to stay here and go wherever I takes the notion. I aim to be as peaceable as I'm suffered to be—and as warlike as I has to be.

CAL MAGGARD.

"I wonders, now," mused Rowlett, half-aloud, "who that damn craven mout be?"

Suddenly his swarthy face brightened with an idea and he volunteered: "Let me hev thet thar paper. I won't betray ter no man what's in hit but mebby I mout compare them words with ther handwrite of some fellers I knows—an' git at ther gist of the matter, thet fashion."

It seemed a slender chance yet a possibility. A man who was everywhere acquainted might make use of it, whereas the stranger himself could hardly hope to do so.

But as Maggard thrust the note forward in compliance he took second thought—and withdrew it.

"No," he said, slowly. "I'm obleeged ter ye—but ye mout lose this hyar paper an' like es not, I'll hev need of hit herea'tter."

With evident disappointment Rowlett conceded the argument by a nod of his head.

"Mebby ye're right," he said. "But anyhow we'd better s'arch round about. Ef thar's a shoe-print left anywheres in ther mud or any sich-like thing, I'd be more like ter know what hit denotes then what a stranger would."

Together they went up and down the road, studying the dusty and rock-strewn surface with backwoods eyes to which little things were more illuminating than large print.

They circled back of the ruined stockade and raked the rising laurel tangles with searching scrutiny. Finally Rowlett, who was several paces in advance, beckoned to the other and gave a low whistle of discovery.

Behind a low rock the thick grass was downpressed as though some huge rabbit had been huddled there.

"Some person's done fixed hisself a nestie hyar—ter spy on yore dwellin' house," he confidently asserted, then as he stood studying the spot he reached into the matted tangle and drew out a hand closed on some small object.

For a moment he held it open before his own eyes, then tossed over to Maggard a broken peanut shell.

Neither of them made any comment just then, but as they turned away Rowlett murmured, as though to himself:

"Of course, *any* feller kin eat peanuts."

All that afternoon Cal Maggard lay hidden in the thicket overlooking his front door and, as a volunteer co-sentinel, Bas Rowlett lay in a "laurel-hell" watching from the rear, but their vigilante was unrewarded.

That night, though, while Maggard sat alone, smoking his pipe by his hearth, two shadowy figures detached themselves, at separate times and points, from the sooty tangle of the mountain woods some mile and a half away, and met at the rendezvous of a deserted cabin whose roof was half collapsed.

They held the shadows and avoided the moonlight and they moved like silhouettes without visible features. They struck no matches and conferred

in low and guarded tones, squatting on their heels and haunches in the abandoned interior.

"He went over ter Harper's house yestiddy evenin', an' he's like ter go right soon ergin'," said one.

"All ye've got ter do air ter keep in tech with me—so any time I needs ye I kin git ye. I hain't plum made up my mind yit."

The other shadowy and hunched figure growled unpleasantly, then bit from a tobacco twist and spat before he answered.

"I hain't got no hankerin' fer no more laywayin's," he objected. "Ef ye resolves that he needs killin', why don't ye do hit yoreself? Hit hain't nothin' ter me."

"I've done told ye why I kain't handily do hit myself. Nobody hain't ergoin'ter suspicion *you*—an' es fer what's in hit fer ye—ef so be I calls on ye—we've done sottled that."

The other remained churlishly silent for awhile. Palpably he had little stomach for this jackal task and it was equally obvious that he feared refusal even more than acceptance of the stewardship.

"Hit hain't like as if I was seekin' ter fo'ce ye ter do suthin' ye hedn't done afore," the persuasive voice reminded him, and again the snarling response growled out its displeasure.

"No, an' ye hain't said nothin' cons'arnin' what ye knows erbout me, nuther. Ye hain't even drapped a hint thet any time ye takes ther notion ter talk out ter ther High-cote ye kin penitenshery me—but thet's jest because ye knows ye don't haf ter. By God, sometimes I think's hit would well-nigh profit me ter layway *you* an' be shet of ye."

The second voice was purring now, with a hint of the claw-power under the softness.

"Thet would be a right smart pity, though. Thar *is* one other body thet knows—an' ef so be I got kilt he'd be right speedy ter guess ther man thet done hit—an' ther reason, too. I reckon hit'll profit ye better ter go on bein' friends with me."

Again long silence, then grudgingly the murderer-elect rose to his feet and nodded reluctant assent.

"So be it," he grumbled. "I gives ye my hand ter deaden him whensoever ye says ther word. But afore we parts company let's talk ther matter over a leetle more. I wouldn't love ter hev ye censure me for makin' no error."

"Ther main thing," came the instruction of the employer, "air this: I wants ter be able ter get ye quick an' hev ye ack quick—ef so be I needs ye, no matter when that be."

CHAPTER VII

WHEN Cal Maggard closed and locked his cabin door late the next afternoon he stood regarding with sombre eyes his message of defiance which, it seemed, no one had come to read.

Yet, as he turned his back a smile replaced the scowl, for he was going to see a girl.

At the bend where the trail crossed the shallow creek, and a stray razor-back wallowed at the roadside, Maggard saw a figure leaning indolently against the fence.

"I suspicioned ye'd be right likely ter happen along erbout this time," enlightened Bas Rowlett as he waved his hand in greeting. "So I 'lowed I'd tarry an' santer along with ye."

"I'm beholden ter ye," responded Maggard, but he knew what the other had been too polite to say: That this pretended casualness marked the kindly motive of affording escort because of the danger under which he himself was travelling unfamiliar roads.

Over the crests heavy banks of clouds were settling in ominous piles of blackness and lying still-heaped in the breathlessness that precedes a tempest, but the sun still shone and Rowlett who was leading the way turned into a forest trail.

As they went, single file, through a gorge into which the sun never struck save from the zenith; where the ferns grew lush and the great leaves of the "cucumber tree" hung motionless, they halted without a word and a comprehending glance shot between them.

When two setters, trained to perfect team work, come unexpectedly upon the quail scent in stubble, that one which first catches the nostril-warning becomes rigid as though a breath had petrified him—and at once his fellow drops to the stiff posture of accord.

So now, as if one hand had pulled two strings, Cal Maggard and Bas Rowlett ceased to be upright animals. The sound of a crackled twig off to the right had come to their ears, and it was a sound that carried the quality of furtiveness.

Instantly they had dropped to their bellies and wriggled snake-like away from the spots where they had stood. Instantly, too, they became almost invisible and two drawn weapons were thrust forward.

There they lay for perhaps two minutes, with ears straining into the silence, neither exaggerating nor under-estimating the menace that might have caused that sound in the underbrush. After a while Rowlett whispered, "What did ye hear?"

"Peared like ter me," responded Maggard, guardedly, "a twig cracked back thar in ther la'rel."

Rowlett nodded but after a space he rose, shaking his head.

"Ef so be thar's anybody a-layin' back thar in ther bresh, I reckon he's done concluded ter wait twell he gits ye by yourself," he decided. "Let's be santerin' along."

So they went forward until they came to a point where they stood on the unforested patch of a "bald knob." There Rowlett halted again and pointed downward. Beneath them spread the valley with the band of the river winding tenuously through the bottoms of the Harper farm. About that green bowl the first voices of the coming storm were already rumbling with the constant growl of thunder.

"Thar's ther house—and thar's ther big tree in front of hit," said Rowlett. "Ef I owned ther place I'd shorely throw ther axe inter hit afore it drewed a lightnin' bolt down on ther roof."

Cal Maggard, who had known walnuts only growing in the forest, gazed down now with something of wonderment at this one which stood alone. A sense of its spreading magnificence was borne in upon him, and though the simile was foreign to his mind, it seemed as distinct and separate from the thousands of other trees that blended in the leagues of surrounding forestry

as might a mounted and sashed field marshal in the centre of an army of common soldiery.

Even in the dark atmosphere of gathering storm its spread of foliage held a living, golden quality of green and its trunk an inky blackness that gave a startling vividness.

He did not know that this tree which grows stiff of head and narrow of shoulder in the woods alters its character when man provides it with a spacious setting, and that it becomes the noblest of our native growths. He did not know that when Ovid wrote of folk in the Golden Age, who lived upon:

Acorns that had fallen
From the towering trees of Jove,

he called acorns what we call nuts, and that it was not the oak but the walnut that he celebrated.

But Maggard did know it had been through the leafage of that splendid tree that he had first glimpsed the girl's face, and he did know that never before had he seen a thing of trunk and branch and leaf that had so impressed him with its stateliness and vital beauty.

If he were master at that house, he thought, he would not cut it down.

"I'm obleeged ter ye fer comin' thus fur with me," he observed, then supplemented drily, "an' still more fer not comin' no further."

The other laughed. "I hain't ergoin' ter 'cumber yore projeck's none ternight," he declared, good-humouredly, then added fairly enough, "but termorrer night *I* aims ter go sparkin' thar myself—an' I looks ter ye to do as much fer me an' give me a cl'ar road."

Maggard had hardly reached the house when, with all the passionate violence of the hills, the tempest broke. Safe inside, he talked and smoked with the patriarch and his thoughts wandered, as he sat there by the hearth, back to the room from which now and then drifted a fragment of plaintively crooning song.

The stag horns over the fireplace and the flintlock gun that lay across their prongs spoke of days long past, before the deer and bear had been "dogged to death" in the Cumberlands. There were a few pewter pieces, too—and these the visitor knew were found only in houses that went back to revolutionary days.

This, mused Kenneth Thornton, was the best house and the most fertile farm in all the wild surrounding country, and irony crept into his smile with the thought that it was a place he could not enter save under an anonymous threat of death.

By the time supper had been eaten, the storm voices had dwindled from boisterous violence to exhausted quiet, and even the soft patter of warm rain died away until through the door, which now stood ajar, the visitor could see the moonlight and the soft stars that seemed to hang just out of arm's reach.

Dorothy had slipped quietly into the room and chosen a seat at the chimney corner where she sat as voiceless as a nun who has taken vows of silence. Soon the old man's head began to nod in drowsy contentment. At first he made dutiful resistance against the pleasant temptation of languor—then succumbed.

The young man, who had been burning with impatience for this moment, made a pretense of refilling his pipe. Over there out of the direct flare and leaping of the flames the girl sat in shadow and he wanted to see her face. Yet upon him had descended an unaccustomed embarrassment which found no easy door opening upon conversation.

So they sat in a diffident silence that stretched itself to greater awkwardness, until at last Dorothy rose abruptly to her feet and Thornton feared that she meant to take flight.

"'Pears like ter me," she asserted, suddenly, "'hit's nigh suffocatin' hot in hyar."

"I war jest a-studyin' erbout thet myself," affirmed Maggard whose quickness of uptake was more eager than truthful. "Ther moon's a-shinin' outdoors. Let's go out thar an' breathe free."

As though breathing free were the most immediate of her needs, the girl rose and stood for a moment with the firelight catching the pink of her cheeks and bronzing her heavy hair, then she turned and led the way out to the porch where, in the moisture of the fresh-washed air, the honeysuckle vines were heavy with fragrance.

The walnut tree, no longer lashed into storm incantations, stood now in quiet majesty, solitary though, at a respectful distance, surrounded. The frogs and whippoorwills were voiceful, and from the silvery foreground, shadow-blotted with cobalt, to the indigo-deep walls of the ranges, the earth spilled over influences of sentient youth.

Maggard gazed down at the girl and the girl, with a hand resting on a porch post, stood looking off out of eyes that caught and gave back the soft light from the moon. To Maggard she seemed unconditionally lovely, but the fetters of shyness still held them both.

"I don't know many folks hyarabouts yit," he said with impetuous suddenness. "I'd plumb love ter hev ye befriend me."

Dorothy turned toward him and her lips relaxed their shyness into a friendly smile—then impulsively she demanded: "Did yore foreparents dwell hyarabouts a long time back?"

Thornton's face, with the moonlight upon it, stiffened into a mask-like reticence at this touching upon the sensitive topic which threatened his identification as a hunted man.

"I've done heered that they lived somewhars in Kaintuck ginerations afore my time," he made evasive answer. "What made ye ask me that question?"

Then it was she who became hesitant but after a little she suggested, "Come on down hyar under thet old walnuck tree. Seems like I kin talk freer thar."

Together they went to the place where the shadows lay deep, like an island in a lake of moonshine, and the girl talked on in the hurried, shy fashion of one with a new secret and the need of a confidant.

"Ther mornin' ye fust come by ... an' stopped thar in ther high road ... I'd jest been readin' somethin' thet ... was writ by one of my foreparents ... way back, upwards of a hundred y'ars ago, I reckon." She paused but he nodded his interest so sympathetically that she went on, reassured; "She told how come she planted this hyar tree ... in them days when ther Injins still scalped folks ... an' she writ down jest what her husband looked like."

"What *did* he look like?" inquired the man, gravely, and the girl found herself no longer bashful with him but at ease, as with an old friend.

"Hit war right then I looked out an' seed ye," she said, simply, "an' 'peared like ye'd plum bodily walked outen them pages of handwrite. Thet's why I asked whether yore folks didn't dwell hyar onc't. Mebby we mout be kin."

Cal Maggard shook his head.

"My folks moved away to Virginny so fur back," he informed her, "thet hit's apt ter be right distant kinship."

"This was all fur back," she reminded him, and in order that the sound of her voice might continue, he begged:

"Tell me somethin' else erbout this tree ... an' what ye read in ther book."

She was standing close to him, and as she talked it seemed to him that the combined fragrances of the freshly washed night all came from her. He was conscious of the whippoorwill calls and the soft crooning of the river, but only as far-away voices of accompaniment, and she, answering to dreamy influences, too, went on with her recitals from the journal of the woman who had been a lady in Virginia and who probably lay buried under the spot on which they stood.

"Hit's right amazin' ter listen at ye," he said at length. "But plentiful amazin' things comes ter pass."

An amazing thing was coming to pass with him at that moment, for his arms were twitching with an eagerness to close about her, and he seemed struggling against forces of impulse stronger than himself.

It was amazing because he had sworn to avoid the folly of chancing everything on too hasty a love declaration, and because the discipline of patient self-control was strong in him. It was amazing, too, because, with a warning recently received and appreciated, his ears had become deaf to all sounds save her voice, and when the thicket stirred some fifty yards away he heard nothing.

Even the girl herself would ordinarily have paused to bend her head and listen to an unaccustomed sound, but in her as well as in him the close-centred magic was working absorption.

Each of them felt the tense, new something that neither fully understood, but which set them vibrating to a single impulse as the two prongs of a tuning fork answer to one note. Neither of them thought of the figure that hitched its way toward them—more cautious after that first warning rustle—to watch and listen—the figure of an armed man.

For the girl reality seemed to recede into the gossamer of dreams. She could fancy herself the other woman who had lived and died before her—and the face of the man in the moonlight might have been that of the pioneer Thornton. Fancy was stronger than actuality.

"Hit almost seems like," she whispered, "that ther old tree's got a spell in hit—ter bewitch folks with."

"Ef hit has ... hit's a spell I loves right good," he fervently protested.

He heard her breath come quick and sudden, as if under a hypnotic force, and following the prompting of some instinctive mentor, he held out his arms toward her.

Still she stood with the wide-eyed raptness of a sleepwalker, and when Cal Maggard moved slowly forward, she, who had been so shy an hour ago, made no retreat.

It was all as though each of them reacted to the command of some controlling volition beyond themselves. The man's arms closed about her slender body and pressed it close to his breast. His lips met her upturned ones, and held them in a long kiss that was returned. Each felt the stir of the other's breath. To each came the fluttering tumult of the other's heart. Then

after a long while they drew apart, and the girl's hands went spasmodically to her face.

"What hev we been doin', Cal?" she demanded in the bewildered tone of returning realization. "I don't skeercely know ye yit, nuther."

"Mebby hit war ther spell," he answered in a low but triumphant voice. "Ef hit war, I reckon God Hisself worked hit."

The figure in the tangle had drawn noiselessly back now and slipped off into the woods a few hundred yards away where it joined another that stood waiting there.

"I hain't mad with ye, Cal," said Dorothy, slowly. "I hain't even mortified, albeit I reckon I ought ter be sick with shame ... but I wants ye ter go home now. I've got need ter think."

As they stood together at the fence they heard Bas Rowlett's voice singing down the road, and soon his figure came striding along and stopped by the stile.

"Howdy, Dorothy," he called, then recognizing that this was a leave-taking he added, "Cal, ef ye're startin' home, I'll go long with ye, fer comp'ny."

The moon was westering when the two men reached the turn of the road and there Rowlett paused and began speaking in a cautious undertone.

"I didn't come along accidental, Cal. I done hit a-purpose. I got ter studyin' 'bout that cracklin' twig we heered in ther bresh an' hit worried me ter think of yore goin' home by yoreself. I concluded ter tarry fer ye an' guide ye over a trace thet circles round thet gorge without techin' hit."

"I'm right sensibly beholden ter ye," answered Maggard, the more embarrassed because he now knew this generous fellow to be a vanquished rival. "But 'atter ternight ye've got ter suffer me ter take my own chances."

Together they climbed the mountainside until they reached the edge of a thicket that seemed impassable but through which the guide discovered a narrow way. Before they had come far they halted, breathing deep from the steep ascent, and found themselves on a shelf of open rock that commanded

a view of the valley and the roof of the Harper house, on which the moonlight slept.



"'Hit almost seems like,' she whispered, 'that ther old tree's got a spell
in hit—ter bewitch folks with.'"

"Thar's ther last glimpse we gits ternight of ther house an' ther old tree," said Rowlett who stood a few feet away and, as Maggard turned to look, the night stillness broke into a bellowing that echoed against the precipice and the newcomer lurched forward like an ox struck with a sledge.

As he fell Maggard's hand gripped convulsively at his breast and at the corners of his mouth a thin trickle of blood began to ooze.

But before his senses went under the closing tide of darkness and insensibility the victim heard Rowlett's pistol barking ferociously back into the timber from which the ambushed rifle had spoken. He heard Rowlett's reckless and noisy haste as he plowed into the laurel where he, too, might encounter death, and raising his voice in a feeble effort of warning he tried to shout out: "Heed yoreself, Bas ... hit's too late ter save me."

CHAPTER VIII

TO THE man lying in the soaked grass and moss of the sandstone ledge came flashes of realization that were without definite beginning or end, separated by gaps of insensibility. Out of his limbs all power and volition seemed to have evaporated, and his breath was an obstructed struggle as though the mountain upon which he lay were lying instead upon his breast. Through him went hot waves of pain under which he clenched his teeth until he swooned again into a merciful numbness.

He heard in an interval of consciousness the thrashing of his companion's boots through the tangle and the curses with which his companion was vainly challenging his assailant to stand out and fight in the open.

Then, for a little while, he dropped endlessly down through pits of darkness and after that opened his eyes to recognize that he was being held with his head on Rowlett's knee. Rowlett saw the fluttering of the lids and whispered:

"I'm goin' ter tote ye back thar—ter Harper's house. Hit's ther only chanst—an' I reckon I've got ter hurt ye right sensibly."

Bas rose and hefted him slowly and laboriously, straightening up with a muscle-straining effort, until he stood with one arm under the limp knees and one under the blood-wet shoulders of his charge.

For a moment he stood balancing himself with his feet wide apart, and then he started staggering doggedly down the stony grade, groping, at each step, for a foothold. In the light of the sinking moon the slowly plodding rescuer offered an inviting target, with both hands engaged beyond the possibility of drawing or using a weapon, but no shot was fired.

The distance was not great, but the pace was slow, and the low moon would shortly drop behind the spruce fringe of the ridges. Then the burden-bearer would have to stumble forward through confused blackness—so he

hastened his steps until his own breath rattled into an exhausted rasp and his own heart hammered with the bursting ache of effort.

When he had reached the half-way point he put his load down and shouted clamorously for help, until the black wall of the Harper house showed an oblong of red light and the girl's voice came back in answer.

"I've got a dyin' man hyar," he called, briefly, "an' I needs aid."

Then as Maggard lay insensible in the mud, Bas squatted on his heels beside him and wiped the sweat drench from his face with his shirt-sleeve.

It was with unsteady eyes that he watched a lantern crawling toward him: eyes to which it seemed to weave the tortuous course of a purposeless glow-worm.

Then the moon dipped suddenly and the hills, ceasing to be visible shapes, were felt like masses of close crowded walls, but at length the lantern approached and, in its shallow circle of sickly yellow, it showed two figures—that of the old man and the girl.

Dorothy carried the light, and when she held it high and let its rays fall on the two figures, one sitting stooped with weariness and the other stretched unconscious, her eyes dilated in a terror that choked her, and her face went white.

But she said nothing. She only put down the lantern and slipped her arms under the shoulders that lay in the wet grass, shuddering as her hands closed on the warm moisture of blood, and Rowlett rose with an effort and rallied his spent strength to lift the inert knees. While the old man lighted their footsteps the little procession made its painful way down what was left of the mountainside, across the road, and up into the house.

* * *

When Haggard opened his eyes again he was lying with his wounds already bathed and roughly bandaged. Plainly he was in a woman's room, for its clean particularity and its huge old four-poster bed spread with a craftily wrought "coverlet" proclaimed a feminine proprietorship. A freshly

built fire roared on a generous hearth, giving a sense of space broadening and narrowing with fickle boundaries of shadow.

The orange brightness fell, too, on a figure that stood at the foot-board looking down at him with anxiety-tortured eyes; a figure whose heavy hair caught a bronze glimmering like a nimbus, and whose hands were held to her breast with a clutching little suspended gesture of dread.

Voices vaguely heard in disjointed fragments of talk called him back to actuality.

The old man was speaking:

"... I fears me he kain't live long.... 'Pears like ther shot war a shore deadener...." and from Rowlett came an indignant response "... I heered ther crack from right spang behind us ... I wheeled 'round an' shot three shoots back at ther flash."

Then Maggard heard, so low that it seemed a joyous and musical whisper, the announcement from the foot of his bed:

"I'm goin' ter fetch Uncle Jase Burrell now, ter tend yore hurts, Cal," she said, softly. "I jest couldn't endure ter start away twell I seed ye open yore eyes, though."

Maggard glanced toward Bas Rowlett who stood looking solicitously down at him and licked his lips. There was an acknowledgment which decency required his making in their presence, and he keyed himself for a feeble effort to speak.

"Rowlett thar...." he began, faintly, and a cough seemed to start fresh agonies in his chest so that he had to wait awhile before he went on.

"Mighty few men would hev stood by me ... like he done.... Ef I'd been his own blood-brother...." there he gulped, choked, and drifted off again.

Cal Maggard next awoke with a strangely refreshed sense of recovery and a blessed absence of pain. He seemed still unable to move, and he said nothing, for in that strange realization of a brain brought back to focus came a shock of new amazement.

Bas Rowlett bent above his pillow, but with a transformed face. The eyes that were for the moment turned toward the door burned with a baleful hatred and the lips were drawn into a vicious snarl.

This, too, must be part of the light-headedness, thought Maggard, but instinctively he continued to simulate unconsciousness. This man had been his steadfast and self-forgetful friend. So the wounded man fought back the sense of clear and persistent reality, which had altered kindly features into a gargoyle of vindictiveness, and lay unmoving until Rowlett rose and turned his back.

Then, through the slits of warily screened eyes, he swept a hasty glance about the room and found that except for the man who had carried him in and himself it was empty. Probably that hate-blackness on the other face was for the would-be assassin and not for himself, argued Maggard.

Rowlett went over and stood by the hearth, staring into the fire, his hands clenching and unclenching in spasmodic violence.

This was a queer dream, mused Maggard, and more and more insistently it refused to seem a dream.

More surely as he watched the face which the other turned to glare at him did the instinct grow that he himself was the object of that bitter animosity of expression.

He lay still and watched Rowlett thrust a hand into his overalls pocket and scatter peanut shells upon the fire—objects which he evidently wished to destroy. As he did this the standing figure laughed shortly under his breath—and full realization came to the wounded man.

The revelation was as complete as it was ugly. As long as he lay unmoving the pain seemed quiescent, and his head felt crystal clear—his thought efficient. Perhaps he was dying—most probably he was. If so this was a lucid interval before death, and in it his mind was playing him no tricks. The supposed friend loomed in an unmasked and traitorous light which even the preconceived idea could not confuse or mitigate. Maggard did not want to give credence to the certainty that was shaping itself—and yet the conviction had been born and could not be thrust back into the

womb of the unborn. All of Rowlett's friendliness and loyalty had been only an alibi! It had been Rowlett who had led him, unsuspecting, into ambush!

Maggard's coat and pistol-holster hung at the headboard of his bed. Now with a cat-soft tread upon the creaking puncheons of the floor Rowlett approached them. He paused first, bending to look searchingly down at the white face on the pillow, and the eyes in that face remained almost but not quite closed. The hand that rested outside the coverlet, too, lay still and limp like a dead hand.

Reassured by these evidences of unconsciousness, Bas Rowlett drew a deep breath of satisfaction. The diabolical thought had come to him that by shaking the prone figure he could cause a hemorrhage that would assure death—and the evil fire in his eyes as his hands stole out toward his intended victim betrayed his reflection.

The seemingly insensible listener, with a Spartan effort, held his pale face empty of betrayal as the two impulsive hands came closer.

But as quickly the arms drew back, and the expression clouded with doubt.

"No...." reflected Bas without words. "No, hit ain't needful nohow ... an' Jase Burrell mout detect I'd done hit."

The bending figure straightened again and its hands began calmly rifling the pockets of the wounded man's coat.

Through the narrow slits of eyes that dissembled sleep Maggard watched, while Rowlett opened and recognized the threatening letter that had been nailed to the door. The purloiner nodded, and his lips twisted into a smile of triumph, as he thrust the sheet of paper into his own pocket.

No longer now could there remain any vestige of doubt in Maggard's mind—no illusion of mistaking the true for the untrue, and in the vengeful fury that blazed eruptively through him he forgot the hurt of his wounding.

He could not rise from his bed and give battle. Had the other not reconsidered his diabolical impulse to shake him into a fatal hemorrhage he

could not even have defended himself. His voice, in all likelihood, would not carry to the door of the next room—if indeed any one were there.

Physically, he was defenseless and inert, but all of him beyond the flesh was galvanized into quicksilver acuteness and determination. He was praying for a reprieve of life sufficient to call this Judas friend to an accounting—and if that failed, for strength enough to die with his denunciation spoken. Yet he realized the need of conserving his tenuous powers and so, gauging his abilities, he lay motionless and to all seeming unconscious, while the tall figure continued to tower over him.

Cal Maggard had some things to say and if his power of speech forsook him before he finished it was better not to make the start. These chances he was calculating, and after Rowlett had turned his back, the man in the bed opened his eyes and experimented with the one word, "Bas!"

He found that the monosyllable not only sounded clear, but had the quiet and determined quality of tone at which he had striven, and as it sounded the other wheeled, flinching as if the word had been a bullet.

But at once he was back by the bed, and Maggard's estimate of him as a master of perfidy mounted to admiration, for the passion clouds had in that flash of time been swept from his eyes and left them disguised again with solicitude and friendliness.

"By God, Cal!" The exclamation bore a counterfeited heartiness. "I didn't skeercely suffer myself ter hope y'd ever speak out ergin!"

"I'm obleeged, Bas." Maggard's voice was faint but steady now. "Thar's a thing I've got ter tell ye afore my stren'th gives out."

Beguiled by a seeming absence of suspicion into the belief that Maggard had just then awakened to consciousness, Rowlett ensconced himself on the bedside and nodded an unctuous sympathy. The other closed his eyes and spoke calmly and without raising his lids.

"Ye forewarned me, Bas.... We both of us spoke out p'int blank ... erbout ther gal ... an' we both went on bein' ... plum friendly."

"Thet war ther best way, Cal."

"Yes.... Then ye proffered ter safeguard me.... Ye didn't hev no need ter imperil yoreself ... but ye *would* hev hit so."

"I reckon ye'd hev done likewise."

"No. I misdoubts I wouldn't ... anyhow ... right from ther outset on you didn't hev ter be friendly ter me ... but ye was."

"I loves fa'r mindedness," came the sanctimonious response.

A brief pause ensued while Maggard rested. He had yet some way to go, and the last part of the conversation would be the hardest.

"Most like," he continued at last, "I'll die ... but I've got a little bitty, slim chanst ter come through."

"I hopes so, Cal."

"An' ef I *does*, I calls on God in heaven ter witness thet afore ther moon fulls ergin ... I'm a-goin' ter *kill*—somebody."

"Who, Cal?"

The white face on the pillow turned a little and the eyes opened.

"I hain't keerin' none much erbout ther feller thet fired ther shot...." went on the voice. "Ther man I aims ter git ... air ther one thet hired him.... *He's* goin' ter die ... *hard!*"

"What makes ye think"—the listener licked his lips furtively—"thar war more'n one?"

"Because I knows who ... t'other one is."

Rowlett rose from his seat, and lifted a clenched fist. The miscreant's thoughts were in a vortex of doubt, fear, and perplexity—but perhaps Maggard suspected "Peanuts" Causey, and Rowlett went on with an admirable bit of acting.

"Name him ter me, Cal," he tensely demanded. "He shot at both of us. He's my man ter kill!"

"When ye lay thar ... by my house ... watchin' with me...." went on the ambushed victim in a summarizing of ostensible services, "what made ye discomfort yoreself, fer me, save only friendliness?"

"Thet war all, Cal."

"An' hit war ther same reason thet made ye proffer ter take away thet letter an' seek ter diskiver who writ hit, warn't hit ... an' ter sa'rch about an' find thet peanut hull ... an' ter come by hyar an' show me a safe way home.... All jest friendliness, warn't hit?"

"Hain't thet es good a reason es any?"

The voice on the bed did not rise but it took on a new note.

"Thar couldn't handily be but jest ... one better one ... Bas."

"What mout thet be?"

"Ther right one. Ther reason of a sorry craven thet aimed at a killin' ... an' sought ter alibi hisself."

Rowlett stood purple-faced and trembling in a transport of maniac fury with which an inexplicable fear ran cross-odds as warp and woof. The other had totally deluded him until the climax brought its accusation, and now the unmasked plotter took refuge in bluster, fencing for time to think.

"Thet's a damn lie an' a damn slander!" he stormed. "Ye've done already bore witness afore these folks hyar thet I sought ter save ye."

"An' I plum believed hit ... then. Now I knows better. I sees thet ye led me inter ambush ... thet ye planted them peanut hulls.... Thet ye writ thet letter ... an' jest now ye stole hit outen my pocket."

"Thet's a lie, too. I reckon yore head's done been crazed. I toted ye in hyar an' keered fer ye."

"Ye aimed ter finish out yore alibi," persisted Maggard, disdainfully. "Ye didn't low I seed ye steal ther letter ... but I gives ye leave ter tek hit over thar an' and burn hit up, Rowlett—same es them peanut hulls.... I hain't got no need of nuther them ... nur hit."

Rowlett's hand, under the sting of accusation, had instinctively pressed itself against his pocket. Now guiltily and self-consciously it came away and he found himself idiotically echoing his accuser's words:

"No need of hit?"

"No, I don't want nuther law-co'tes ner juries ter help me punish a man thet hires his killin' done second-handed.... All I craves air one day of stren'th ter stand on my feet."

With a brief spasm of hope Rowlett bent forward and quickly decided on a course of temporizing. If he could encourage that idea the man would probably die—with sealed lips.

"I'm willin' ter look over all this slander, Cal," he generously acceded; "ye've done tuck up a false notion in yore light-headedness."

"This thing lays betwixt me an' you," went on the low-pitched but implacable voice from the bed, "but ef I ever gits up again—you're goin' ter wisht ter God in Heaven ... hit war jest only ther penitenshery threatenin' ye."

Again Rowlett's anger blazed, and his self-control slipped its leash.

"Afore God, ef ye warn't so plum puny an' tuckered out, I wouldn't stand hyar an' suffer ye ter fault me with them damn lies."

"Is thet why ye was ponderin' jest now over shakin' me till I bled inside myself?... I seed thet thought in yore eyes."

The breath hissed out of Rowlett's great chest like steam from an over-stressed boiler, and a low bellow broke from his lips.

"I kin still do thet," he declared in a rage-choked voice. "I *did* hire a feller ter kill ye, but he failed me. Now I'm goin' ter finish ther job myself."

Then the door opened and old Caleb Harper called from the threshold:

"Did I hear somebody shout out in hyar? What's ther matter, Bas?"

As the menacing face hung over him, Maggard saw it school itself slowly into a hard composure and read a peremptory warning for silence in the

eyes. The outstretched hands had already touched him, and now they remained holding his shoulders as the voice answered:

"Cal jest woke up. I reckon he war outen his head, an' I'm heftin' him up so's he kin breath freer."

Old Man Harper came over to the bed and Rowlett released his hold and moved away.

"I've done been studyin' whether Dorothy's goin' ter make hit acrost ter Jase Burrell's or not," said Caleb, quaveringly. "I fears me ther storm hes done washed out the ford."

Then he crossed to the hearth and sat down in a chair to light his pipe.

CHAPTER IX

CAL MAGGARD lay unmoving as the old man's chair creaked. Over there with his back turned toward the fire stood Bas Rowlett, his barrel-like chest swelling heavily with that excitement which he sought to conceal. To Caleb Harper, serenely unsuspecting, the churlish sullenness of the eyes that resented his intrusion, went unmarked. It was an intervention that had come between the wounded man and immediate death, and now Rowlett cursed himself for a temporizing fool who had lost his chance.

He stood with feet wide apart and his magnified shadow falling gigantically across floor and wall—across the bed, too, on which his intended victim lay defenseless.

If Cal Maggard had been kneeling with his neck on the guillotine block the intense burden of his suspense could hardly have been greater.

So long as Caleb Harper sat there, with his benign old face open-eyed in wakefulness, death would stand grudgingly aloof, staring at the wounded man yet held in leash.

If those eyes closed in sleep the restive executioner would hardly permit himself to be the third time thwarted.

Yet the present reprieve would for a few moments endure, since the assassin would hesitate to goad his victim to any appeal for help.

Slowly the fire began to dwindle and the shadows to encroach with a dominion of somberness over the room. It seemed to the figure in the bed as he struggled against rising tides of torpor and exhaustion that his own resolution was waning with the firelight and that the murk of death approached with the thickening shadows.

He craved only sleep yet knew that it meant death.

With a morose passion closely akin to mania the thoughts of the other man, standing with hands clenched at his back, were running in turbulent freshet.

To have understood them at all one must have seen far under the surface of that bland and factitious normality which he maintained before his fellows. In his veins ran a mongrelized strain of tendencies and vices which had hardened into a cruel and monstrous summary of vicious degeneracy.

Yet with this brain-warping brutality went a self-protective disguise of fair-seeming and candour.

Rowlett's infatuation for Dorothy Harper had been of a piece with his perverse nature—always a flame of hot passion and never a steadfast light of unselfish love.

He had received little enough encouragement from the girl herself, but old Caleb Harper had looked upon him with partiality, and since, to his own mind, possession was the essential thing and reciprocated affection a minor consideration, he had until now been confident of success. Once he had married Dorothy Harper, he meant to break her to his will, as one breaks a spirited horse, and he had entertained no misgivings as to his final mastery.

Once unmasked, Bas Rowlett could never regain his lost semblance of virtue—and this battered creature in the bed was the only accuser who could unmask him. If the newcomer's death had been desirable before, it was now imperative.

The clock ticked on. The logs whitened, and small hissing tongues of blue flame crept about them where there had been flares of vermillion.

Like overstrained cat-gut drawn tauter and tauter until the moment of its snapping is imminent, the tension of that waiting grew more crucial and tortured.

Bit by bit into Cal Maggard's gropings after a plan crept the beginnings of an idea, though sometimes under the stupefying waves of drowsiness he lost his thread of thought.

Old Caleb was not yet asleep, and as the room grew chill he shivered in his chair, and rose slowly, complaining of the misery in his joints.

He threw fresh fuel on the fire and then, over-wearied with the night's excitement, let his head fall forward on his breast and his breath lengthen to a snore.

Then in a low but peremptory voice Maggard said:

"Rowlett, come hyar."

With cautious but willing footfall Rowlett approached, but before he reached the bedside a curt undertone warned him, "Stop right thar ... ef ye draws nigher I'll call out. Kin ye hear me?... I aims ter talk low."

"I'm hearkenin'."

"All right. Give me yore pledge, full-solemn an' in ther sight of God Almighty ... thet ye'll hold yore hand till I gits well ... or else dies."

"Whar'fore would I do thet?"

"I'll tell you fer why. Ef ye don't ... I'll wake old Caleb up an' sw'ar ter a dyin' statement ... an' I'll tell ther full, total truth.... Does ye agree?"

The other hesitated then evaded the question.

"S'posin' I does give ye my pledge ... what then?"

"Then ef I dies what I knows'll die with me.... But ef I lives ... me an' you'll settle this matter betwixt ourselves so soon es I kin walk abroad."

That Maggard would ever leave that bed save to be borne to his grave seemed violently improbable, and if his silence could be assured while he lay there, success for the plotter would after all be complete. Yet Rowlett pretended to ponder the proposition which he burned ardently to accept.

"Why air ye willin' ter make thet compact with me?" he inquired dubiously, and the other answered promptly:

"Because ter send ye ter sulter in ther penitenshery wouldn't pleasure me ner content me ... no more then ter see ye unchurched fer tale-bearin'. Ye've

got ter *die* under my own hands.... Ef ye makes oath an' abides by hit ... ye needn't be afeared thet I won't keep mine, too."

For a brief interval the standing man withheld his answer, but that was only for the sake of appearances. Then he nodded his head.

"I gives ye my hand on hit. I sw'ars."

Something like a grunt of bitter laughter came from the bed.

"Thet hain't enough ... fotch me a Bible."

"I don't know whar hit's at."

"I reckon they've got one—in a godly dwellin'-house like this. Find hit—an' speedily ... or I'll call out."

Rowlett turned and left the room, and presently he returned bearing a cumbersome and unmistakable tome.

"Now kneel down," came the command from the bed, and the command was reluctantly obeyed.

"Repeat these hyar words atter me ... 'I swa'rs, in ther sight an' hearin' of God Almighty....'" and from there the words ran double, low voiced from two throats, "'thet till sich time as Cal Maggard kin walk abroad, full rekivered ... I won't make no effort ter harm ner discomfort him ... no wise, guise ner fashion.... Ef I breaks this pledge I prays God ter punish me ... with ruin an' death an' damnation in hell hyaratter!"

"An' now," whispered Maggard, "kiss ther book."

As the weirdly sworn malefactor came slowly to his feet the instinct of craft and perfidy brought him back to the part he must play.

"Now thet we onderstands one another," he said, slowly, "we're swore enemies atter ye gits well. Meantime, I reckon we'd better go on *seemin'* plum friendly."

"Jist like a couple of blood-brothers," assented Maggard with an ironic flash in his eyes, "an' now Blood-brother Bas, go over thar an' set down."

Rowlett ground his teeth, but he laughed sardonically and walked in leisurely fashion to the hearth.

There he sat with his feet outspread to the blaze, while he sought solace from his pipe—and failed to find it.

Possibly stray shreds of delirium and vagary mingled themselves with strands of forced clarity in Cal Maggard's thinking that night, for as he lay there a totally unreasonable comfort stole over him and seemed real.

He had the feeling that the old tree outside the door still held its beneficent spell and that this magic would regulate for him those elements of chance and luck without which he could not hope to survive until Dorothy and Uncle Jase came back—and Dorothy had started on a hard journey over broken and pitch-black distances.

Fanciful as was this figment of a sick imagination, the result was the same as though it had been a valid conviction, for after a while Old Man Caleb roused himself and stretched his long arms. Then he rose and peered at the clock with his face close to its dial, and once more he replenished the fire.

"Hit's past midnight now, Bas," he complained with a querulous note of anxiety in his words. "I'm plum tetchious an' worrited erbout Dorothy."

For an avowed lover the seated man gave the impression of churlish unresponsiveness as he made his grumbling reply.

"I reckon she hain't goin' ter come ter no harm. She hain't nobody's sugar ner salt."

Caleb ran his talon-like fingers through his mane of gray hair and shook his patriarchal head.

"Ther fords air all plum ragin' an' perilous atter a fresh like this.... I hain't a-goin' ter enjoy no ease in my mind ef *somebody* don't go in s'arch of her—an' hit jedgmatically hain't possible fer me ter go myself."

Slowly, unwillingly, and with smouldering fury Rowlett rose from his chair.

He was a self-declared suitor, a man who had boasted that no night was too wild for him to ride, and a refusal in such case would stultify his whole attitude and standing in that house.

"I reckon ye'll suffer me ter ride yore extry critter, won't ye?" he inquired, glumly, "an' loan me a lantern, too."

* * *

After the setting of the moon the night had become a void of blackness, but it was a void in which shadows crowded, all dark but some more inkily solid than others—and of these shadows some were forests, some precipices, and some chasms lying trap-like between.

Dorothy Harper and the mule she rode were moving somewhere through this world of sooty obscurity.

Sometimes in the bottoms, where the way ran through soft shale, teaming wheels had cut hub-deep furrows where a beast could break a leg with a miscalculated step. Sometimes, higher up, a path wide enough only for the setting down of foot before foot skirted a cliff's edge—and the storm might at any point have washed even that precarious thoroughfare away in a gap like a bite taken out of a soft apple.

But along those uncertain trails, obeying something surer than human intelligence, the beast piloted his rider with an intuitive steadiness, feeling for his foothold, and the girl, being almost as wise as he, forebore from any interference of command save by the encouragement of a kindly voice.

Once in a swollen ford where the current had come boiling up mount and rider were lifted and swept downstream, and for a matter of long moments it was a toss-up whether water-power or mule-power would prevail. Through the caldron roar of storm-fed waters, then, the girl could hear the heavy, straining breath in the beast's lungs, and the strong lashing of its swimming legs. She caught her lip till it bled between her teeth and clung tight and steady, knowing her danger but seeking to add no ounce of difficulty to the battle for strength and equilibrium of the animal under her. And they had won through and were coming back.

At her side now rode Uncle Jason, the man of diverse parts who was justice of the peace, adviser in dissension, and self-taught practitioner of medicine.

He had been roused out of his sleep and had required no urging. He had listened, saddled, and come, and now, when behind them lay the harder part of the journey, they heard other hoofs on the road and made out a shadowy horseman who wheeled his mount to ride beside them.

Then for the first time in a long while the girl opened her tight-pressed lips to shape the gasping question which she was almost terrified to ask.

"How is he, Bas? Air he still alive?"

When at last they stood by the bedside, the volunteer doctor pressed his head to the hardly stirring chest and took the inert wrist between his fingers. Then he straightened up and shook a dubious head.

"Thar hain't but jist only a flicker of pulse-beat left," he declared. "Mebby he mout live through hit—but ef he does hit'll p'int-blank astonish me."

CHAPTER X

THROUGH the rest of that night Old Jase lay on a pallet spread before the fire, rising at intervals out of a deathlike slumber to slip his single suspender strap over his bent shoulder, turn up the lantern, and inspect his patient's condition.

On none of these occasions did he find the girl, who spent that night in a straight-backed chair at the bedside, asleep. Always she was sitting there with eyes wide and brimming with suffering and fear, and a wakeful, troubled heart into which love had flashed like a meteor and which it threatened, now, to sear like a lightning bolt. It seemed to her that life had gone aimlessly, uneventfully on until without warning or preparation it had burst into a glory of discovery and in the same breath into a chaos of destruction.

"Kain't ye give me no encouragement yit, Uncle Jase?" she whispered once when he came to the bedside, with a convulsive catching at her throat, though her eyes were dry and hot, and the old man, too ruggedly honest to soften the edge of fact with evasion, shook his head.

"I hain't got no power ter say yit—afore I sees how he wakes up termorrer," he admitted. "Why don't ye lay down, leetle gal? I'll summons ye ef airy need arises."

But the girl shook her head and later the old man, stirring on his pallet, heard her praying in an almost argumentative tone of supplication:

"Ye sees, Almighty God, hit don't call for no master *big* miracle ter save him ... an' Ye've done fotched ther dead back ter life afore now."

That night Dorothy Harper grew up. For the first time she recognized the call of her adult womanhood which centred about one man and made its own universe. She would not be a child again.

The town of Lake Erie was no town at all, but a scant cluster of shack-like buildings at the crossing of two roads, which were hardly roads at all, either.

The place had been called Lake Erie when the veterans who had gone to the "War of Twelve" came home from service with Perry—for in no war that the nation has waged has this hermit people failed of response and representation.

This morning it stood as an unsightly detail against a background of impressive beauty. Back of it rose wooded steeps, running the whole lovely gamut of greenery and blossoming colour to a sun-filled sky which was flawless.

The store of Jake Crabbott was open and already possessed of its quorum for the discussion of the day's news.

And to-day there *was* news! A dozen hickory-shirted and slouch-hatted men lounged against the wall or on empty boxes and broken chairs about its porch and door.

The talk was all of the stranger who had come so recently from Virginia and who had found such a hostile welcome awaiting him. Spice was added to the debate by a realization in the mind of every man who joined in it that the mysterious firer of those shots might be—and probably was—a member of the present conclave.

Jake Crabbott who ran the store maintained, in all neighbourhood differences, the studious attitude of an incorruptible neutral. Old Grandsire Templey, his father-in-law, sat always in the same low chair on the porch in summer and back of the stove in winter, with his palsied hands crossed on his staff-head and his toothless gums mumbling in inconsequential talk.

Old Grandsire was querulous and hazy in his mind but his memory went back almost a century, and it clarified when near events were discarded and he spoke of remoter times.

Now he sat mumbling away into his long beard, and in the door stood his son-in-law, a sturdy man, himself well past middle-age, with a face that was

an index of hardihood, shrewdness, and the gift for knowing when and how to hold his tongue.

On the steps of the porch, smiling like a good-humoured leviathan and listening to the talk, sat "Peanuts" Causey, but he was not to be allowed to sit long silent, because of all those gathered there he alone had met and talked with the stranger.

"I fared past his dwellin' house day before yistiddy," declared Causey in response to a question, "an' I 'lowed he war a right genial-spoken sort of body."

The chorus of fresh interrogations was interrupted by a man who had not spoken before. He rose from his seat and stepped across toward Peanuts, and he was not prepossessing of appearance as he came to his feet.

Joe Doane, whom the pitiless directness of a rude environment had rechristened "Hump" Doane, stood less than five feet to the crown of his battered hat, and the hat sat on an enormous head out of which looked the seamed and distorted face of a hunchback. But his shoulders were so broad and his arms so long and huge that the man had the seeming of gorilla hideousness and gorilla power.

The face, too, despite its soured scowl, held the alert of a keen mentality and was dominated by eyes whose sleeping fires men did not lightly seek to fan into blazes of wrath.

No man of either faction stood with a more uncompromising sincerity for law and peace—but Hump Doane viewed life through the eyes of one who has suffered the afflictions and mortification of a cripple in a land that accepts life in physical aspects. His wisdom was darkened with the tinge and colour of the cynic's thought. He trusted that man only who proved his faith by his works, and believed all evil until it was disproven. Like a nervous shepherd who tends wild sheep he feared always for his flock and distrusted every pelt that might disguise and mask a possible wolf of trouble.

"What did ye say this hyar stranger calls hisself, Peanuts?" he demanded, bluntly, and when the other had told him he repeated the name thoughtfully.

Then he shot out another question with the sharp peremptoriness of a prosecuting attorney, and in the high, rasping voice of his affliction.

"What caused him ter leave Virginny?"

The stout giant grinned imperturbably.

"He didn't look like he'd relish ter be hectored none with sich-like questions es thet, an' I wasn't strivin' ter root inter his private business without he elected of his own free will ter give hit out ter each an' every."

Young Pete Doane, the cripple's son, who fancied his own wit, hitched his chair backward and tilted it against the wall.

"I reckon a man don't need no severe reason but jest plain common sense fer movin' outen Virginny inter Kaintuck."

Hump swept a disdainful glance at his offspring and that conversational volunteer ventured no further repartee.

"By ther same token," announced the elder Doane, crushingly, "thar's trash in Virginny thet don't edify Kaintuck folks none by movin' in amongst 'em."

Young Pete, whose entrance into the discussion had been so ruthlessly stepped upon by his own sire, sat now sulkily silent, and his face in that sombre repose was a study. Though his name was that of the ancestor who had "gone to the Indians" and introduced the red strain into the family there was no trace of that mingling in young Peter's physiognomy. Indeed the changes of time had transferred all the recognizable aspects of that early blood-line to the one branch represented by Bas Rowlett, possibly because the Doanes had, on the distaff side, introduced new blood with greater frequency.

Young Pete was blond, and unlike his father had the receding chin and the pale eyes of a weak and impressionable character. Bas Rowlett was a hero whom he worshipped, and his nature was such as made him an instrument for a stronger will to use at pleasure.

The sturdy father regarded him with a strange blending of savage affection and stern disdain, brow-beating him in public yet ready to flare

into eruptive anger if any other recognized, as he did, the weaknesses of his only son.

The crowd paused, too, to receive and question a newcomer who swung himself down from a brown mare and strolled into the group.

Sim Squires was a fellow of medium height and just under middle-age, whose face was smooth shaven—or had been some two days back. He smiled chronically, just as chronically he swung his shoulders and body with a sort of swagger, but the smile was vapid, and the swagger an empty boast.

"I jest heered erbout this hyar ruction a leetle while back," he announced with inquisitive promptness, "an' I rid straightway over hyar ter find me out somethin'."

"Thar comes Bas Rowlett now," suggested the storekeeper, waving his hand toward the creek-bed road along which a mule and rider came at a placid fox-trot. "He's ther feller that fotched ther stranger in, an' shot back at ther la'rel. Belikes he kin give us ther true sum an' amount of ther matter."

As Sim Squires and Peanuts Causey glanced up at the approaching figure one might have said that into the eyes of each came a shadow of hostility. On Sim's face the chronic grin for once faded, and he moved carelessly to one side—yet under the carelessness one or two in that group discerned a motive more studied. Though no one knew cause or nature of the grievance, it was generally felt that bad blood existed between Bas and Sim, and Sim was not presumed to court a collision.

When Bas Rowlett had dismounted and come slowly to the porch, the loungers fell silent with the interest accorded one of the principal actors in last night's drama, then the hunchback demanded shortly:

"Bas, we're all frettin' ourselves ter know ther gist of this hyar trouble ... an' I reckon ye're ther fittin' man ter tell us."

The new arrival glanced about the group, nodding in greeting, until his eyes met those of Sim Squires—and to Sim he did not nod. Squires, for his part, had the outward guise of one looking through transparent space, but Peanuts and Bas exchanged greetings a shade short of cordial, and Peanuts

did not rise, though he sat obstructing the steps and the other had to go around him.

"I reckon ye've done heered all I kin tell ye," said Bas, gravely. "I'd done been over ter ther furriner's house some siv'ral times bekase he war a neighbour of mine—an' he seemed a mighty enjoyable sort of body. He war visitin' at old man Harper's las' night an' I met up with him on ther highway. He'd done told me he'd got a threatenin' letter from somebody thet was skeered ter sign hit, so I proffered ter walk along home with him, an' as we come by ther rock-clift somebody shot two shoots.... I toted him back ter Harper's dwellin' house, an' he's layin' thar now an' nobody don't know yit whether he'll live or die. Thet's all I've got ther power ter tell ye."

"Hed this man Maggard ever been over hyar afore? Did he know ther Harpers when he come?"

Hump Doane still shot out his questions in an inquisitorial manner but Bas met its peremptory edginess with urbanity, though his face was haggard with a night of sleeplessness and fatigue.

"He lowed ter me that his folks hed lived over hyar once a long time back.... Thet's all I knows."

Hump Doane wheeled on the old man, whose life had stretched almost to the century span, and shouted:

"Gran'sire, did ye ever know any Maggards dwellin' over hyar? Thar hain't been none amongst us in my day ner time."

"Maggards ... Maggards?... let me study," quavered the frosty-headed veteran in his palsied falsetto. "I kin remember when ther boys went off ter ther war of Twelve ... I kin remember thet.... Thar war Doanes an' Rowletts an' Thorntons...."

"I hain't askin' ye erbout no Doanes ner Thorntons. I'm askin' ye war thar any Maggards?"

For a long time the human repository of ancient history pondered, fumbling through the past.

"Let's see—this hyar's ther y'ar one thousand and nine hundred.... Thar's some things I disremembers. Maggards ... Maggards?... I don't remember no Maggards.... No, siree! I don't remember none."

The cripple turned impatiently away, and Bas Rowlett speculatively inquired:

"Does ye reckon mebbby he war a-fleein' from some enemy over in Virginny—an' thet ther feller followed atter him an' got him?"

"Seems like we'd hev heered of ther other stranger from some source or other," mused Hump. "Hit hain't none of my business nohow—onless—" the man's voice leaped and cracked with a belligerent violence—"onless hit's some of Old Burrell Thornton's feisty kin, done come back ter tek up his wickedness an' plaguery whar he left off at."

Bas Rowlett sat down on an empty box and his shoulders sagged wearily.

"Hit's Old Burrell's house he come ter," he admitted. "But yit he told me he'd done tuck hit fer a debt. I hain't knowed him long, but him an' me hed got ter be good friends an' ther feller thet shot him come nigh gettin' me, too. Es fer me I'd confidence ther feller ter be all right."

"Ef he dies," commented the deformed cynic, grimly, "I'll confidence him, too—an' ef he lives, I'll be plum willin' ter see him prove hissself up ter be honest. Twell one or t'other of them things comes ter pass, I hain't got nothin' more ter say."

CHAPTER XI

THE room that Dorothy Harper had given over to the wounded man looked off to the front, across valley slope and river—commanding the whole peak and sky-limited picture at whose foreground centre stood the walnut tree.

Uncle Jase came often and as yet he had been able to offer no greater assurance than a doubtful shake of the head. Bas Rowlett, too, never let a day pass without his broad shadow across the door, and his voice sounding in solicitous inquiry. But Dorothy had assumed an autocracy in the sick room which allowed no deviations from its decree of uninterrupted rest, and the plotter, approaching behind his mask of friendship, never found himself alone with the wounded man.

Between long periods of fevered coma Cal Maggard opened his eyes weakly and had strength only to smile up at the face above him with its nimbus of bronze set about the heaviness of dark hair—or to spend his scarcely audible words with miserly economy.

Yet as he drifted in the shadowy reaches that lie between life and death it is doubtful whether he suffered. The glow of fever through his drowsiness was rather a grateful warmth, blunted of all responsible thinking, than a recognized affliction, and the realization of the presence near him enveloped him with a languorous contentment.

The sick man could turn his head on his pillow and gaze upward into cool and deep recesses of green where the sun shifted and sifted golden patches of light, and where through branch and twig the stir of summer crooned a restful lullaby. Often a squirrel on a low limb clasped its forepaws on a burgher-fat stomach, and gazed impudently down, chattering excitedly at the invalid. From its hanging nest, with brilliant flashes of orange and jet, a Baltimore oriole came and went about its housekeeping affairs.

As half-consciously and dreamily he gazed up, between sleeping and waking, the life of the tree became for him that of a world in miniature.

But when he heard the door guardedly open and close, he would turn his gaze from that direction as from a minor to a major delight—for then he knew that on the other side of the bed would be the face of Dorothy Harper. "Right smart's goin' ter *deepend* on how hard he fights hisself," Uncle Jase told Dorothy one day as he took up his hat and saddle-bags. "I reckon ef he feels sartin he's got enough ter live fer—he kin kinderly holp nature along right lavish."

That same day Maggard opened his eyes while the girl was sitting by his bedside.

His smile was less dazzling out of a thin, white face, than it had been through the tan of health, but such as it was he flashed it on her gallantly.

"I don't hone fer nothin' else ter look at—when you're hyar," he assured her. "But when you *hain't* hyar I loves ter look at ther old tree."

"Ther old tree," she replied after him, half guiltily; "I've been so worrited, I'd nigh fergot hit."

His smile altered to a steady-eyed seriousness in which, too, she recognized the intangible quality that made him seem to her different from all the other men she had known.

He had been born and lived much as had the men about him. He had been chained to the same hard and dour materialism as they, yet for him life had another essence and dimension, because he had been born with a soul capable of dreams.

"Thet fust night—when I lay a-waitin' fer ye ter come back—an' misdoubtin' whether I'd last thet long," he told her almost under his breath, "seemed like ter me thet old tree war kinderly a-safeguardin' me."

She bent closer and her lips trembled.

"Mebby hit did safeguard ye, Cal," she whispered. "But I prayed fer ye thet night—I prayed hard fer ye."

The man closed his eyes and his features grew deeply sober.

"I'd love ter know ther pint-blank truth," he said next. "Am I a-goin' ter live or die?"

She struggled with the catch in her breath and hesitated so long with her hands clenched convulsively together in her lap that he, still lying with lids closed, construed her reticence into a death sentence and spoke again himself.

"Afore I come over hyar," he said, quietly, "I reckon hit wouldn't hev made no great differ ter me nuther way."

"Ye've got a chanst, Cal, and Uncle Jase 'lows," she bent closer and now she could command her voice, "thet ef ye wills ter live ... survigrous strong enough—yore chanst is a better one ... then ef ye ... jist don't keer."

His eyes opened and his lips smiled dubiously.

"I sometimes lays hyar wonderin' whether I truly does keer or not."

"What does ye mean, Cal?"

He paused and lay breathing as though hardly ready to face so vital an issue, then he explained:

"Ye said ye wasn't mad with me ... thet night ... under ther tree ... but yit ye said, too ... hit war all a sort of dream ... like es ef ye warn't plum shore."

"Yes, Cal?"

"Since then ye've jest kinderly pitied me, I reckon ... an' been plum charitable.... I've got ter know.... War ye mad at me when ye pondered hit in ther daylight ... stid of ther moonshine?"

The girl's pale face flushed to a laurel-blossom pink and her voice was a ghost whisper.

"I hain't niver been mad with ye, Cal."

"Could ye—" he halted and spoke in a tense undernote of hope that hardly dared voice itself—"could ye bend down ter me an' kiss me ...

ergin?"

She could and did.

Then with her young arms under his head and her own head bowed until her lips pressed his, the dry-eyed, heart-cramping suspense of these anxious days broke in a freshet of unrestrained tears.

She had not been able to cry before, but now the tears came flooding and they brought such a balm as comes with rain to a parched and thirsting garden.

For a space the silence held save for the tempest of sobs that were not unhappy and that gradually subsided, but after a little the rapt happiness on the man's face became clouded under a thought that carried a heavy burden of anxiety and he seemed groping for words that were needed for some dreaded confession.

"When a man fust falls in love," he said, "he hain't got time ter think of nuthin' else ... then all ther balance of matters comes back ... an' needs ter be fronted. Thar's things I've got ter tell ye, Dorothy."

"What matters air them, Cal? I hain't thought of nuthin' else yit."

"Ye didn't know nuthin' erbout me when I come hyar ... ye jest tuck me on faith, I reckon...."

He halted abruptly there, and his face became drawn into deep lines. Then he continued dully: "When I crossed over ther Virginny line ... a posse was atter me—they sought ter hang me over thar ... fer murder."

He felt her fingers tighten over his in spasmodic incredulity and saw the stunned look in her eyes, but she only said steadily, "Go on ... I knows ye *hed* ter do hit. Tell me ther facts."

He sketched for her the grim narrative of that brief drama in the log cabin beyond the river and of the guilt he had assumed. He told it with many needful pauses for breath, but refused to stop until the story had reached its conclusion, and as she listened, the girl's face mirrored many emotions, but the first unguarded shock of horror melted entirely away and did not return.

"Ef ye'd acted any other fashion," came her prompt and spirited declaration when the recital reached its end, "I couldn't nuther love ye ner esteem ye. Ye tuck blame on yoreself ter save a woman."

For a time she sat there gazing out through the window, her thoughts busy with the grim game in which this man whom she loved had been so desperately involved. She knew that he had spoken the whole truth ... but she knew, too, that over them both must hang the unending shadow of a threat, and after a little she acknowledged that realization as she said with a new note of determination in her voice:

"Thar hain't no p'int in our waitin' over-long ter be wedded. Folks thet faces perils like we does air right wise ter git what they kin ouden life—whilst they kin."

"We kain't be wedded none too soon fer me," he declared with fervour. "Albeit yore grandpap's got ter be won over fust. He's right steadfast to Bas Rowlett, I reckon."

As anxiously as Dorothy followed the rise and fall in the tide of her lover's strength it is doubtful if her anxiety was keener than that of Bas Rowlett, who began to feel that he had been cheated.

Unless something unforeseen altered the trend of his improvement, Cal Maggard would recover. He would not keep his oath to avenge his way-laying before the next full moon because it would require other weeks to restore his whole strength and give back to him the use of his gun hand, but the essential fact remained that he would not die.

Bas had entered into a compact based upon his belief that the other *would* die—a compact which as the days passed became a thing concrete enough and actual enough to take reckoning of.

Of course Bas meant to kill his enemy. As matters now stood he must kill him—but he would only enhance his own peril by seeking to forestall the day when his agreement left him free to act.

So Bas still came to inquire with the solicitude of seeming friendship, but outside that house he was busy breathing life into a scheme of broad and

parlous scope, and in all but a literal sense that scheme was a violation of his oath-bound compact.

It was when Cal sat propped against pillows in a rocking chair, with his right arm in a splint, and old Caleb smoked his pipe on the other side of the window, that Dorothy suddenly went over and standing by Maggard, laid her arm across his shoulders.

"Gran'pap," she said with a steadiness that hid its underlying trepidation, "Cal an' me aims ter wed ... an' we seeks yore blessin'."

The old mountaineer sat up as though an explosion had shaken him out of his drowsy complacency. The pipe that he held in his thin old fingers dropped to the floor and spilled its ashes unnoted.

He gazed at them with the amazement of one who has been sitting blindly by while unseen forces have had birth and growth at his elbow.

"Wed?" he exclaimed at last in an injured voice. "Why, I hedn't nuver suspicioned hit was nuthin' but jest plain charity fer a stranger thet hed suffered a sore hurt."

"Hit's been more then thet sence ther fust time we seed one another," declared the girl, and the old man shifted his gaze, altered its temper, too, from bewilderment to indignation, and sat with eyes demanding explanation of the man who had been sheltered and tended under his roof.

"Does ye aim ter let ther gal do all ther talkin'?" he demanded. "Hain't ye got qualities enough ter so much as say 'by yore leave' fer yoreself?"

Cal Maggard met his accusation steadily as he answered:

"Dorothy 'lowed she wanted ter tell ye fust-off her ownself. Thet's why I hain't spoke afore now."

The wrath of surprise died as quickly as it had flared and the old man sat for a time with a far-away look on his face, then he rose and stood before them.

He seemed very old, and his kindly features held the venerable gravity and inherent dignity of those faces that look out from the frieze of the

prophets. He paused long to weigh his words in exact justice before he began to speak, and when the words at last came they were sober and patient.

"I hain't hed nobody ter spend my love on but jest thet leetle gal fer a lengthy time ... an' I reckon she hain't a-goin' ter go on hevin' me fer no great spell longer.... I'm gittin' old."

Caleb looked infirm and lonely as he spoke. He had struggled through his lifetime for a realization of standards that he vaguely felt to be a bequest of honour from God-fearing and self-respecting ancestors—and in that struggle there had been a certain penalty of aloofness in an environment where few standards held. The children born to his granddaughter and the man she chose as her mate must either carry on his fight for principle or let it fall like an unsupported standard into the mouldy level of decay.

These things were easy to feel, hard to explain, and as he stood inarticulate the girl rose from her knees and went over to him, and his arm slipped about her waist.

"I hain't niver sought ter fo'ce no woman's will," he said at last and his words fell with slow stress of earnestness. "But I'd always sort of seed in my own mind a fam'ly hyar—with another man ter tek my place at hits head when I war dead an' gone. I'd always thought of Bas Rowlett in that guise. He's a man thet's done been, in a manner of speakin', like a son ter me."

"Bas Rowlett——" began Dorothy but the old man lifted a hand in command for silence. "Let me git through fust," he interrupted her. "Then ye kin hev yore say. Thar's two reasons why I'd favoured Bas. One of them was because he's a sober young man thet's got things hung up." There he paused, and the quaint phrase he had employed to express prosperity and thrift summed up his one argument for materialistic considerations.

"Thet's jest one reason," went on Caleb Harper, soberly, "an' save fer statin' hit es I goes along I hain't got nuthin' more ter say erbout hit—albeit hit seems ter me a right pithy matter fer young folks ter study erbout. I don't jedgmatically know nothin' erbout *yore* affairs," he nodded his head toward Maggard. "So fur's I've got any means ter tell, ye mout be independent rich or ye mout not hev nothin' only ther shirt an' pants ye sots thar in ... but thet

kin go by, too. Ef my gal kain't be content withouten ye, she kin sheer with ye ... an' I aims ter leave her a good farm without no debt on hit."

The girl had been standing silent and attentive while he talked, but the clear and delicate modelling of her face had changed under the resolute quality of her expression until now it typified a will as unbreakable as his own.

Her chin was high and her eyes full of lightnings, held back yet ready to break, if need be, into battle fires.

Now her voice came in that low restraint in which ultimatums are spoken.

"Whatever ye leaves me in land an' money hain't nuthin' ter me—ef I kain't love ther man I weds with. An' whilst I seeks ter be dutiful—thar hain't no power under heaven kin fo'ce me ter wed with no other!"

The old man seemed hardly to hear the interruption as he paused, while in his eyes ancient fires seemed to be awakening, and as he spoke from that point on those fires burned to a zealot's fervour.

"Nuther one of ye don't remember back ter them days when ther curse of ther Harper-Doane war lay in a blood pestilence over these hyar hills ... but I remembers hit. In them sorry times folks war hurtin' fer vittles ter keep life in thar bodies ... yit no man warn't safe workin' out in his open field. I tells ye death was ther only Lord thet folks bowed down ter in them days ... and ther woman thet saw her man go forth from ther door didn't hev no confident assurance she'd ever see him come back home alive. My son Caleb—Dorothy's daddy—went out with a lantern one night when ther dogs barked ... and we fotched him in dead."

He paused, and seemed to be looking through the walls and hills to things that lay buried.

"Them few men thet cried out fer peace an' law-abidin' war scoffed at an' belittled.... Them of us that preached erginst bloodshed was cussed an' damned. Then come ther battle at Claytown ter cap hit off with more blood-lettin'.

"One of ther vi'lent leaders war shot ter death—an' t'other one agreed ter go away an' give ther country a chanst ter draw a free breath in peace onc't more."

Again he fell silent, and when after a long pause he had not begun again Dorothy restively inquired: "What's thet got ter do with me an Bas Rowlett, Gran'pap?"

"I'm a-comin' ter thet ... atter thet pitch-battle folks began turnin' ter them they'd been laughin' ter scorn ... they come an' begged me ter head ther Thorntons an' ther Harpers. They went similar ter Jim Rowlett an' besaught him ter do ther like fer ther Rowletts an' ther Doanes. They knowed that despite all ther bad blood an' hatefulness me an' Jim was friends an' thet more then we loved our own kin an' our own blood, we loved peace fer every man ... us two!"

Cal Maggard was watching the fine old face—the face out of which life's hardship and crudity had not quenched the majesty of unassuming steadfastness.

"An' since we undertook ter make ther truce and ter hold it unbroke, hit's done stood unbroke!" The old man's voice rang suddenly through the room.

"An' thet's been nigh on ter twenty ya'rs ... but Jim's old an' I'm old ... an' afore long we'll both be gone ... an' nuther one ner t'other of us hain't sich fools es not ter know what we've been holdin' down.... Nuther one ner t'other of us don't beguile hissself with ther notion thet all them old hates air dead ... or thet ef wild-talkin', loose-mouthed men gains a hearin' ... they won't flare up afresh."

He went over to the place where his pipe had fallen and picked it up and refilled it, and when he fell silent it seemed as though there had come a sudden stillness after thunder.

Then in a quieter tone he went on once more:

"Old Jim hain't got no boy ter foller him, but he confidences Bas. I hain't got no son nuther but I confidences my gal. Ther two of us hev always 'lowed thet ef we could see them wedded afore we lays down an' dies, we'd come mighty nigh seein' ther old breach healed—an' ther old hates buried.

Them two clans would git tergither then—an' thar'd jest be one peaceful fam'ly 'stid of two crowds of hateful enemies."

Dorothy had hardly moved since she had spoken last. During her grandfather's zealous pronouncement her slender uprightness had remained statue-like and motionless, but in her deep eyes all the powerful life forces that until lately had slept dormant now surged into their new consciousness and invincible self-assertion.

Now the head crowned with its masses of dark hair was as high as that of some barbaric princess who listens while her marriage value is appraised by ambassadors, and the eyes were full of fire too steadily intense for flickering. The arch of her bosom only revealed in movement the palpitant emotion that swayed her, with its quick rise and fall, but her voice held the bated quiet of a tempest at the point of breaking.

"I'd hate ter hev anybody think I wasn't full loyal ter my kith an' kin. I'd hate ter fail my own people—but I hain't no man's woman ter be bartered off ner give away." She paused, and in the long-escaping breath from her lips came an unmistakable note of scorn.

"Ye talks of healin' a breach, Gran'pap, but ye kain't heal no breach by tyin' a woman up ter a man she kain't never love. Thar'd be a breach right hyar under this roof ter start with from ther commencement." That much she had been able to say as a preface in acknowledgment of the old man's sincerity of purpose, but now her voice rang with the thrill of personal liberty and its deeper claim. Her beauty grew suddenly gorgeous with the surge of colour to her cheeks and the flaming of her eyes. She stood the woman spirit incarnate, which can at need be also the tigress spirit, asserting her home-making privilege, and ready to do battle for it.

"Fam'ly means a man an' a woman—an' children," she declared, "an' ther man thet fathers my babies hes need ter be ther man I *loves*!"

Caleb inclined his head. He had spoken, and now as one closes a book he dismissed the matter with a gesture.

"I've done give ye my reasons," he said, "but I hain't niver sought ter fo'ce no woman, an' hit's too late ter start. Ther two of ye sets thar like a jury thet's done heered ther argyment. My plan wouldn't be feasible nohow

onlessen yore heart war in hit, Dorothy, an' I sees es plain as day whar yore heart's at. So I reckon I kin give ye my blessin' ef ye're plum shore ye hain't makin' no error."

CHAPTER XII

THE old man struck a match and held it to his pipe and then as he turned to leave the room Maggard halted him.

"I kain't suffer ye ter go away without I tells ye suthin'," he said, "an' I fears me sorely when ye hears hit ye're right like ter withhold yore blessin' atter all."

The patriarch wheeled and stood listening, and Dorothy, too, caught her breath anxiously as the young man confessed.

For a time old Caleb stood stonily immovable while the story, which the girl had already heard, had its second telling. But as the narration progressed the gray-haired mountaineer bent interestedly forward, and by the time it had drawn to its close his eyes were no longer wrathful but soberly and judicially thoughtful.

He ran his fingers through his gray hair, and incredulously demanded, "Who did ye say yore grandsire was?"

"His name was Caleb Thornton—he went ter Virginny sixty ya'rs back."

"Caleb Thornton!" Through the mists of many years the old man was tracking back along barefoot trails of boyhood.

"Caleb Thornton! Him an' me hunted an' fished tergither and worked tergither when we wasn't nothin' but small shavers. We was like twin brethren an' folks called us Good Caleb an' Bad Caleb. I was ther bad one!" The old lips parted in a smile that was tenderly reminiscent.

"Why boy, thet makes ye blood-kin of mine ... hit makes yore business my business ... an' yore trouble my trouble. I'm ther head of ther house now—an' ye're related ter me."

"I hain't clost kin," objected Cal, quickly. "Not too clost ter wed with Dorothy."

"Ey God, no, boy, ye hain't but only a distant cousin—but a hundred an' fifty y'ars back our foreparent war ther same man. An' ef ye've got ther same heart an' the same blood in ye thet them old-timers hed, mebbby ye kin carry on my work better than any Rowlett—an' stand fer peace and law!" Here spoke the might of family pride and mountain loyalty to blood.

"Then ye kin give us yore blessin' atter all—despite ther charge thet hangs over me?"

"My blessin'? Why, boy, hit's like a dead son hed done come back ter life—an' false charges don't damn no man!"

The aged face had again become suffused with such a glow as might have mantled the brow of a prophet who had laboured long and preached fierily for his belief, until the hoar-frost of time had whitened his head. It was as if when the hour approached for him to lay down his scrip and staff he had recognized the strength and possible ardour of a young disciple to come after him.

But after a little that emotional wave, which had unconsciously straightened his bent shoulders and brought his head erect, subsided into the realization of less inspiring facts.

"Atter all," he said, thoughtfully, "I've got ter hev speech with old Jim Rowlett afore this matter gits published abroad. He's done held ther same notions I have—about Dorothy an' Bas—an' I owes hit ter him ter make a clean breast of what's come ter pass."

The wounded man in the chair was gazing off through the window, and he was deeply disturbed. He stood sworn to kill or be killed by the man whom these two custodians of peace or war had elected in advance as a clan head and a link uniting the factions. If he himself were now required to assume the mantle of leadership, it was hard to see how that quarrel could be limited to a private scope.

"When I come over hyar," he said, steadily and deliberately, "I sought ter live peaceable—an' quiet. I didn't aim, an' I don't seek now, ter hold place as head of no feud-faction."

"Nuther did I seek ter do hit." The old man's voice was again the rapt and fiery utterance of the zealot. "Thar wasn't nuthin' I wouldn't of chose fust—but when a man's duty calls ter him, ef he's a true man in God's eyes, he hain't got no rather in the matter which ner whether. He's beholden ter obey! Besides—" the note of fanatical exaltation diminished into a more placid evenness—"besides, I've done told ye I only sought ter hev ye lead toward peace an' quiet—not ter mix in no warfarin'."

So a message went along the waterways to the house where old Jim Rowlett dwelt, and old Jim, to whose ears troubling rumours had already come stealing, mounted his "ridin'-critter" and responded forthwith and in person.

He came, trustful as ever of his old partner, in the task of shepherding wild flocks, yet resentful of the girl's rumoured rebellion against what was to have been, in effect, a marriage of state.

Before starting he had talked long and earnestly with his kinsman, Bas Rowlett, and as a result he saw in Bas a martyr nobly bearing his chastening, and in the stranger a man unknown and tinged with a suspicious mystery.

Jim Rowlett listened in silent politeness to the announcement of the betrothal and presently he rose after a brief, unbending visit.

"Caleb," he said, "through a long lifetime me an' you hev been endurin' friends. We aims ter go on bein', an albeit I'd done sot my hopes on things thet hain't destined ter come ter pass, I wishes these young folks joy."

That interview was in the nature of a public announcement, and on the same day at Jake Crabbott's store the conclave discussed it. It was rumoured that the two old champions of peace had differed, though not yet in open rupture, and that the stranger, whose character was untested, was being groomed to stand as titular leader of the Thorntons and the Harpers. Many Rowlett and Doane faces darkened with foreboding.

"What does Bas say?" questioned some, and the answer was always the same: "Bas hain't a-talkin' none."

But Sim Squires, who was generally accredited with a dislike of Bas Rowlett, was circulating among those Harpers and Thorntons who bore a wilder repute than did old Caleb, and as he talked with them he was stressing the note of resentment that an unknown man from the hated state of Virginia should presume to occupy so responsible a position when others of their own blood and native-born were being overlooked.

* * *

One afternoon the girl and her lover sat together in the room where she had nursed him as the western ridges turned to ashy lilac against a sky where the sun was setting in a fanfare of delicate gorgeousness.

That evening hush that early summer knows, between the day's full-throated orchestration and the night song of whippoorwills, held the world in a bated stillness, and the walnut tree stood as unstirring as some age-crowned priest with arms outstretched in evening prayer.

Hand in hand the two sat in the open window. They had been talking of those little things that are such great things to lovers, but over them a silence had fallen through which their hearts talked on without sound.

Slowly the sunset grew brilliant—then the foregrounds gave up their detail in a soft veiling of purple dusk, and the tree between the house and the road became a dark ghost-shape, etched in the unmoving majesty of spread and stature.

"Hit hain't jest a tree," whispered the girl with an awe-touched voice, "hit's *human*—but hit's bigger an' wiser an' stronger then a human body."

The man nodded his head for so it seemed to him, a woodsman to whom trees in their general sense were common things. In this great growth he felt a quality and a presence. Its moods were as varied as those of life itself—as it stood triumphing over decades of vicissitude, blight, and storm.

"I wonder ef hit knows," said the girl, abruptly, "who hit war thet shot ye, Cal?"

The man shook his head and smiled.

"Mebby hit don't jedgmatically *know*," he made answer, seeking as he had often sought before to divert her thoughts from that question and its secret answer: "But so long es hit stands guard over us, I reckon no enemy won't skeercely *succeed*."

CHAPTER XIII

THE blossom had passed from the laurel and rhododendron and the June freshness had freckled into rustiness before the day came when Dorothy Harper and Cal Maggard were to be married, and as yet the man had not been able to walk beyond the threshold of the house, and to the people of the neighbourhood his face had not become familiar.

Once only had Cal been out of doors and that was when leaning on the girl's arm he had gone into the dooryard. Dorothy did not wish the simple ceremony of their marriage to take place indoors, but that when Uncle Jase, the justice of the peace, joined their hands with the words of the simple ritual, they should stand under the shade of the tree which, already hallowed as a monument, should likewise be their altar.

So one afternoon, when the cool breath of evening came between sunset and dusk, they had gone out together and for the first time in daylight he stood by the broad-girthed base of the walnut's mighty bole.

"See thar, Cal," breathed the girl, as she laid reverent fingers upon the trunk where initials and a date had been carved so long ago that now they were sunken and seamed like an old scar.

"Them letters an' dates stands fer ther great-great-great gran'mammy thet wrote ther book—an' fer ther fust Kenneth Thornton. They're our fore-parents, an' they lays buried hyar. Hit's all in ther front pages of thet book upsta'rs in ther chist."

The ground on which they stood was even now, for the mounds so long ago heaped there had been levelled by generations of time. Later members of that house who had passed away lay in the small thicket-choked burial ground a hundred yards to the side.

"Hit's a right fantastic notion," complained old Caleb who had come out to join them there, "ter be wedded outdoors under a tree, stid of indoors

under a roof," but the girl turned and laid a hand on his arm, and her eyes livened with a glow of feeling and tenderness.

"Hit was right hyar thet we diskivered we loved one another," she said, softly, "an' ef ye'd ever read thet book upstairs I reckon ye'd onderstand. Our foreparents planted this tree hyar in days of sore travail when they'd done come from nigh ter ther ocean-sea at Gin'ral George Washington's behest, an' they plum revered hit from thet time on."

She paused, looking up fondly into the magnificent fulness of branches where now the orioles had hatched their brood and taught the fledglings to fly, then her eyes came back and her voice grew rapt.

"Them revolutionary folk of our own blood bequeathed thet tree ter us—an' we heired hit from 'em along with all thet's good in us. They lays buried thar under hit, an' by now I reckon hits roots don't only rest in ther ground an' rock thet's underneath hit—but in ther graves of our people theirselves. Some part of them hes done passed inter thet old tree, I reckon, ter give virtue ter hits sap an' stren'th. Thet's why thar hain't no other place ter be married at."

The July morning of their wedding day dawned fresh and cloudless, and from remote valleys and coves a procession of saddled mounts, ox-carts, and foot travellers, grotesque in their oddly conceived raiment of festivity, set toward the house at the river's bend. They came to look at the bride, whose beauty was a matter of local fame, and for their first inquisitive scrutiny of the stranger who had wooed with such interest-provoking dispatch and upon whom, rumour insisted, was to descend the mantle of clan leadership, albeit his blood was alien.

But the bridegroom himself lay on his bed, the victim of a convalescent's set-back, and it seemed doubtful whether his strength would support him through the ceremony. When he attempted to rise, after a night of returned fever, his muscles refused to obey the mandates of his will, and Uncle Jase Burrell, who had arrived early to make out the license, issued his edict that Cal Maggard must be married in bed.

But at that his patient broke into defiant and open rebellion.

"I aims ter stand upright ter be wed," he scornfully asserted, "ef I don't nuver stand upright ergin! Ask Dorothy an' her gran'pap an' Bas Rowlett ter come in hyar. I wants ter hev speech with 'em all together."

Uncle Jase yielded grudgingly to the stronger will and within a few minutes those who had been summoned appeared.

Bas Rowlett came last, and his face bore the marks of a sleepless night, but he had undertaken a role and he purposed to play it to its end.

In after days, days for which Bas Rowlett was planning now, he meant that every man who looked back on that wedding should remember and say of him: "Bas, he war thar—plum friendly. Nobody couldn't be a man's enemy an' act ther way Bas acted." In his scheme of conspiracy the art of alibi building was both cornerstone and arch-key.



"Even Bas Rowlett, whose nerves were keyed for an ordeal, started and almost let the leaning bridegroom fall"

Now it pleased Cal, even at a time when other interests pressed so close and absorbingly, to indulge himself in a grim and sardonic humour. The man who had "hired him killed" and whom in turn he meant to kill stood in the room where he himself lay too weak to rise from his bed, and toward that man he nodded his head.

"Good mornin', Bas," he accosted, and the other replied, "Howdy, Cal."

Then Maggard turned to the others. "This man, Bas Rowlett," he said, "sought to marry Dorothy hisself. Ye all knows thet, yet deespite thet fact when I come hyar a stranger he befriended me, didn't ye, Bas?"

"We spoke ther truth ter one another," concurred Rowlett, wondering uneasily whither the conversational trend was leading, "an' we went on bein' friends."

"An' now afore ye all," Maggard glanced comprehensively about the group, "albeit hit don't need no more attestin', he's goin' ter prove his friendship fer me afresh."

A pause followed, broken finally from the bed.

"I kain't stand up terday—an' without standin' up I couldn't hardly be rightfully wedded—so Bas air agoin' ter support me, and help me out thar an' hold me upright whilst I says ther words ... hain't ye, Bas?"

The hardly taxed endurance of the conspirator for a moment threatened to break in failure. A hateful scowl was gathering in his eyes as he hesitated and Maggard went on suavely: "Anybody else could do hit fer me—but I've got ther feelin' thet I wants ye, Bas."

"All right," came the low answer. "I'll aim ter convenience ye, Cal."

He turned hastily and left the room, and bending over the bed Uncle Jase produced the marriage license.

"I'll jest fill in these blank places," he announced, briskly, "with ther names of Dorothy Harper an' Cal Maggard an' then we'll be ready fer ther signatures."

But at that Maggard raised an imperative hand in negation.

"No," he said, shortly and categorically, "I aims ter be married by my rightful name—put hit down thar like hit is—Kenneth Parish Thornton—all of hit!"

Caleb Harper bent forward with a quick gesture of expostulation.

"Ef ye does thet, boy," he pleaded, "ye won't skeercely be wedded afore ther officers will come atter ye from over thar in Virginny."

"Then they kin come," the voice was obdurate. "I don't aim ter give Almighty God no false name in my weddin' vows."

Uncle Jase, to whom this was all an inexplicable riddle, glanced perplexedly at old Caleb and Caleb stood for the moment irresolute, then with a sigh of relief, as though for discovery of a solution, he demanded:

"Did ye ever make use of yore middle name—over thar in Virginny?"

"No. I reckon nobody don't skeercely know I've got one."

"All right—hit belongs ter ye jist as rightfully as ther other given name. Write hit down Parish Thornton in thet paper, Jase. Thet don't give no undue holt ter yore enemies, boy, an' es fer ther last name hit's thicker then hops in these parts, anyhow."

In all the numbers of the crowd that stood about the dooryard that day waiting for the wedding party to come through the door one absence was recognized and felt.

"Old Jim Hewlett didn't come," murmured one observant guest, and the announcement ran in a whisper through the gathering to find an echo that trailed after it. "I reckon he didn't aim ter countenance ther matter, atter all."

Then the door opened and Dorothy came out, with a sweet pride in her eyes and her head high. At her side walked the man whose face they had been curiously waiting to see.

They acknowledged at a glance that it was an uncommon face from which one gained feeling of a certain power and mastery—yet of candour, too, and fearless good nature.

But the crowd, hungry for interest and gossip, breathed deep in a sort of chorused gasp at the dramatic circumstance of the bridegroom leaning heavily on the arm of Bas Rowlett, the defeated lover. Already Uncle Jase stood with his back to the broad, straight column whose canopy of leafage spread a green roof between the tall, waving grass that served as a carpet and the blue of a smiling sky.

Through branches, themselves as heavy and stalwart as young trees, and through the myriads of arrow-pointed leaves that rustled as they sifted and shifted the gold flakes of sunlight, sounded the low, mysterious harping of wind-fingers as light and yet as profound as those of some dreaming organist.

The girl, with her eyes fixed on that living emblem of strength and tranquillity, felt as though instead of leaving a house, she were entering a cathedral—though of man-built cathedrals she knew nothing. It was the spirit which hallows cathedrals that brought to her deep young eyes a serenity and thanksgiving that made her face seem ethereal in its happiness—the spirit of benediction, of the presence of God and of human sanctuary.

So she went as if she were treading clouds to the waiting figure of the man who was to perform the ceremony.

When the clear voice of the justice of the peace sounded out as the pair—or rather the trio—stood before him at the foot of the great walnut, the astonishment which had been simmering in the crowd broke into audible being again and with a rising tempo.

The tone with which old Jase read the service was full and sonorous and the responses were clear as bell metal. On the fringe of the gathering an old woman's whispered words carried to those about her:

"Did ye heer thet? Jase called him Parish Thornton—I thought he give ther name of Cal Maggard!"

Even Bas Rowlett, whose nerves were keyed for an ordeal, started and almost let the leaning bridegroom fall.

The loft of old Caleb's barn had been cleared for that day, and through the afternoon the fiddles whined there, alternating with the twang of banjo and "dulcimore." Old Spike Crooch, who dwelt far up at the headwaters of Little Tribulation, where the "trails jest wiggle an' wingle about," and who bore the repute of a master violinist, had vowed that he "meant ter fiddle at one more shin-dig afore he laid him down an' died"—and he had journeyed the long way to carry out his pledge.

He had come like a ghost from the antique past, with his old bones straddling neither horse nor mule, but seated sidewise on a brindle bull, and to reach the place where he was to discourse music he had made a "soon start" yesterday morning and had slept lying by the roadside over night.

Now on an improvised platform he sat enthroned, with his eyes ecstatically closed, the violin pressed to his stubbled chin, and his broganned feet—with ankles innocent of socks—patting the spirited time of his dancing measure.

Outside in the yard certain young folk who had been reared to hold dancing ungodly indulged in those various "plays" as they called the games less frowned upon by the strait-laced. But while the thoughtless rollicked, their elders gathered in small clumps here and there and talked in grave undertones, and through these groups old Caleb circulated. He knew how mysterious and possibly significant to these news-hungry folk had seemed the strange circumstance of the bridegroom's answering, in the marriage service, to a name he had not previously worn and he sought to draw, by his own strong influence, the sting of suspicion from their questioning minds.

But Bas Rowlett did not remain through the day, and when he was ready to leave, old Caleb followed him around the turn of the road to a point where they could be alone, and laid a sympathetic hand on his shoulder.

"Bas," he said, feelingly, "I'd hate ter hev ye think I hain't a-feelin' fer ye terday. I knows right well ye're sore-hearted, boy, an' thar hain't many men thet could hev took a bitter dose like ye've done."

Rowlett looked gloomily away.

"I hain't complainin' none, Caleb," he said.

"No. But I hain't got master long ter live—an' when Jim an' me both passes on, I fears me thar'll be stressful times ahead. I wants ye ter give me yore hand thet ye'll go on standin' by my leetle gal an' her fam'ly, Bas. Else I kain't die satisfied."

Bas Rowlett stood rigidly and tensely straight, his eyes fixed to the front, his forehead drawn into furrows. Then he thrust out his hand.

"Ye've done confidenced me until now," he said simply, "ye kin go on doin' hit. I gives ye my pledge."

CHAPTER XIV

AMONG the men who danced at that party were Sim Squires and Pete Doane, but when they saddled and mounted at sunset, they rode divergent ways.

Each of the two was acting under orders that day, and each was spreading an infection whose virus sought to stir into rebirth the war which the truce had so long held in merciful abeyance.

Aaron Capper, who was as narrow yet as religious as an Inquisition priest, had always believed the Thorntons to be God's chosen and the Doanes to be children of Satan. The bonds of enforced peace had galled him heavily. Three sons had been killed in the battle at Claytown and he felt that any truce made before he had evened his score left him wronged and abandoned by his kinsmen.

Now Sim Squires, mounted on a swift pacing mare, fell in beside Aaron, his knee rubbing the knee of the grizzled wayfarer, and Sim said impressively:

"Hit looks right bodaciously like es ef ther war's goin' ter bust loose ergin, Aaron."

The other turned level eyes upon his informant and swept him up and down with a searching gaze.

"Who give ye them tidin's, son? I hain't heered nothin' of hit, an' I reckon ef ther Harpers war holdin' any council they wouldn't skeercely pass me by."

"I don't reckon they would, Aaron." Sim now spoke with a flattery intended to placate ruffled pride. "Ther boys thet's gittin' restive air kinderly lookin' ter *you* ter call thet council. Caleb Harper hain't long fer this life—an' who's goin' ter take up his leadership—onless hit be you?"

Aaron laughed, but there was a grim complaisance in the tone that argued secret receptiveness for the idea.

"'Peared like hit war give out ter us terday thet this hyar young stranger war denoted ter heir thet job."

"Cal Maggard!" Sim Squires spat out the name contemptuously and laughed with a short hyena bark of derision. "Thet woods-colt from God-knows-whar? Him thet goes hand in glove with Bas Rowlett an' leans on his arm ter git married? Hell!"

Aaron took refuge in studied silence, but into his eyes had come a new and dangerously smouldering darkness.

"I'll ponder hit," he made guarded answer—then added with humourless sincerity, "I'll ponder—an' pray fer God's guidin'."

And as Sim talked with Aaron that afternoon, so he talked to others, even less conservative of tendency, and Pete Doane carried a like gospel of disquiet to those whose allegiance lay on the other side of the feud's cleavage—yet both talked much alike. In houses remote and widely scattered the security of the longstanding peace was being insidiously undermined and shaken and guns were taken furtively out and oiled.

But in a deserted cabin where once two shadowy figures had met to arrange the assassination of Cal Maggard three figures came separately now on a night when the moon was dark, and having assured themselves that they had not been seen gathering there, they indulged themselves in the pallid light of a single lantern for their deliberations.

Bas Rowlett was the first to arrive, and he sat for a time alone smoking his pipe, with a face impatiently scowling yet not altogether indicative of despair.

Soon he heard and answered a triple rap on the barred door, and though it seemed a designated signal he maintained the caution of a hand on his revolver until a figure entered and he recognized the features of young Peter Doane.

"Come in, Pete," he accosted. "I reckon ther other feller'll git hyar d'reck'ly."

The two sat smoking and talking in low tones, yet pausing constantly to listen until again they heard the triple rap and admitted a third member to their caucus.

Here any one not an initiate to the mysteries of this inner shrine would have wondered to the degree of amazement, for this newcomer was an ostensible enemy of Bas Rowlett's whom in other company he refused to recognize.

But Sim Squires entered unhesitatingly and now between himself and the man with whom he did not speak in public passed a nod and glance of complete harmony and understanding.

When certain subsidiary affairs had been adjusted—all matters of upbuilding for Rowlett's influence and repute—Bas turned to Sim Squires.

"Sim," he said, genially, "I reckon we're ready ter heer what ye've got on *yore* mind now," and the other grinned.

"Ther Thorntons an' Harpers—them thet dwells furthest back in ther sticks—air a doin' a heap of buzzin' an' talkin'. They're right sim'lar ter bees gittin' ready ter swarm. I've done seed ter that. I reckon when this hyar stranger starts in ter rob ther honey outen thet hive he's goin' ter find a tol'able nasty lot of stingers on his hands."

"Ye've done cautioned 'em not ter make no move afore they gits ther word, hain't ye—an' ye've done persuaded 'em ye plum hates me, hain't ye?"

Again Sim grinned.

"Satan hisself would git rightfully insulted ef anybody cussed an' damned him like I've done *you*, Bas."

"All right then. I reckon when ther time comes both ther Doanes and Harpers'll be right sick of Mr. Cal Maggard or Mr. Parish Thornton or Mr. Who-ever-he-is."

They talked well into the night, and Peter Doane was the first to leave, but after his departure Sim Squires permitted a glint of deep anxiety to show in his narrow and shifty eyes.

"Hit's yore own business ef ye confidences Pete Doane in yore own behalf, Bas," he suggested, "but ye hain't told him nuthin' erbout *me*, hes ye?"

Bas Rowlett smiled.

"I hain't no damn fool, Sim," he reassured. "Thar don't nobody but jest me an' you know thet ye shot Cal Maggard—but ye war sich a damn disable feller on ther job thet rightly I ought ter tell yore name ter ther circuit-rider."

"What fer?" growled the hireling, sulkily, and the master laughed.

"So's he could put hit in his give-out at meetin' an shame ye afore all mankind," he made urbane explanation.

* * *

July, which began fresh and cool, burned, that year, into a scorching heat, until the torrid skies bent in a blue arch of arid cruelty and the ridges stood starkly stripped of their moisture.

Forests were rusted and freckled and roads gave off a choke of dust to catch the breath of travellers as the heat waves trembled feverishly across the clear, hot distances.

Like a barometer of that scorched torpor, before the eyes of the slowly convalescing Thornton stood the walnut tree in the dooryard. A little while ago it had spread its fresh and youthful canopy of green overhead in unstinted abundance of vigour.

Now it stood desolate, with its leaves drooping in fever-hot inertia. The squirrel sat gloomily silent on the branches, panting under its fur, and the oriole's splendour of orange and jet had turned dusty and bedraggled.

When a dispirited wisp of breeze stirred in its head-growth its branches gave out only the flat hoarseness of rattling leaves.

One morning before full daylight old Caleb left the house to cross the low creek bed valley and join a working party in a new field which was being cleared of timber. He had been away two hours when without warning the hot air became insufferably close and the light ghost of breeze died to a breathless stillness. The drought had lasted almost four weeks, and now at last, though the skies were still clear, that heat-vacuum seemed to augur its breaking.

An hour later over the ridge came a black and lowering pall of cloud moving slowly and bellying out from its inky centre with huge masses of dirty fleece at its margin—and in the little time that Dorothy stood in the door watching, it spread until the high sun was obscured.

The distant but incessant rumbling of thunder was a chorussed growling of storm voices against a background of muffled drum-beat, and the girl said, a shade anxiously, "Gran'pap's goin' ter git drenched ter ther skin."

While the inky pall spread and lowered until it held the visible world in a gray-green corrosion of gloom the stillness became more pulseless. Then with a crashing salvo of suddenness the tempest broke—and it was as though all the belated storms of the summer had merged into one armageddon of the elements.

A rending and splintering of timber sounded with the shriek of the tornado that whipped its lash of destruction through the woods. The girl, buffeted and almost swept from her feet, struggled with her weight thrown against the door that she could scarcely close. Then the darkness blotted midday into night, and through the unnatural thickness clashed a frenzy of detonations.

Out of the window she and her husband seemed looking through dark and confused waters which leaped constantly into the brief and blinding glare of such blue-white instants of lightning as hurt the eyes. The walnut tree appeared and disappeared—waving arms like a high-priest in transports of frenzy, and adding its wind-song to the mighty chorus.

The sturdily built old house trembled under that assaulting, and when the first cyclonic sweep of wind had rushed by the pelting of hail and rain was a roar as of small-arms after artillery.

"Gran'pap," gasped Dorothy. "I don't see how a livin' soul kin endure—out thar!"

Then came a concussion as though the earth had broken like a bursted emery wheel, and a hall of white fire seemed to pass through the walls of the place. Dorothy pitched forward, stunned, to the floor and at the pit of his stomach Cal Maggard felt a sudden sickness of shock that passed as instantly as it had come. He found himself electrically tingling through every nerve as the woman rose slowly and dazedly, staring about her.

"Did hit strike ... ther house?" she asked, faintly, and then with the same abruptness as that with which darkness had come, the sky began to turn yellowish again and they could see off across the road through the amber thickness of returning daylight.

"No," her husband said, hesitantly, "hit warn't ther house—but hit was right nigh!"

The girl followed his startled gaze, and there about the base of the walnut tree lay shaggy strips of rent bark.

Running down the trunk in the glaring spiral of a fresh scar two hand-breadths wide went the swath along which the bolt had plunged groundward.

For a few moments, though with a single thought between them, neither spoke. In the mind of Dorothy words from a faded page seemed to rewrite themselves: "Whilst that tree stands ... and weathers the thunder and wind ... our family also will wax strong and robust ... but when it falls——!"

Cal rose slowly to his feet, and the girl asked dully, "Where be ye goin'?"

"I'm goin'," he said as their eyes met in a flash of understanding, "ter seek fer yore gran'pap."

"I fears me hit's too late...." Her gaze went outward and as she looked the man needed no explanation.

"Ef he's—still alive," she added, resolutely, with a return of self-control, "ther danger's done passed now. Hit would kill ye ter go out in this storm, weak as ye be. Let's strive ter be patient."

Ten minutes later they heard a knock on the door and opened it to find a man drenched with rain standing there, whose face anticipated their questions.

"Me and old Caleb," he began, "was comin' home tergither ... we'd got es fur as ther aidge of ther woods ..." he paused, then forced out the words, "a limb blew down on him."

"Is he ... is he...?" The girl's question got no further, and the messenger shook his head. "He's dead," came the simple reply. "The other boys air fotchin' him in now."

CHAPTER XV

INTO the grave near the house the rough pine coffin, which had been knocked together by neighbour hands, was lowered by members of both factions whose peace the dead man had impartially guarded.

No circuit-rider was available, but one or two godly men knelt there and prayed and over the green valley, splendidly resurrected from the scorch and thirst of the drought, floated untrained voices raised in the old hymns.

Then as the crowd scattered along its several ways a handful of men delayed their departure, and when the place had otherwise emptied itself they led Cal Maggard to his front door where, without realization that they were selecting a spot of special significance, they halted under the nobly spread shade of the tree.

The walnut, with the blight of dry weeks thrown off, had freshened its leafage into renewed vigour—and though its scar was fresh and raw, its vital stalwartness was that of a veteran who has once more triumphed over his wounding.

The few men who had remained were all Doanes, in clan affiliation if not in name, and they stood as solemnly silent as they had been by the open grave but with heads no longer uncovered and with a grimmer quality in their sober eyes.

It was Hump Doane, the man with the twisted back, who broke the silence as spokesman for the group, and his high, sharp voice carried the rasping suggestion of a threat.

"Afore we went away from here," he said with a note of embarrassment, "we 'lowed that we hed need ter ask ye a few questions, Mr. Thornton."

"I'm hearkenin' ter ye," came the non-committal rejoinder, and the hunchback went on:

"Ther man we've jest laid ter rest was ther leader of ther Harpers an' ther Thorntons but over an' above thet he was ther friend of every man thet loved peace-abidin' and human betterment."

That tribute Cal acknowledged with a grave inclination of his head, but no word.

"So long as he lived ther truce thet he'd done made endured. Now thet he's dead hit would be a right distressful thing ef hit collapsed."

Maggard's candid eyes engaged those of the others in level glance as he inquired, "Is thar any self-respectin' man thet feels contrariwise, Mr. Doane?"

"Thet's what we seeks ter find out. With Caleb dead an' gone, no man kin handily foretell what ther Thorntons aims ter do—an' without we knows we kain't breathe free."

"Why does ye come ter me?"

"Because folks tells hit thet ther old man named ye ter stand in his stead—an' ef ye does thet we hev need ter put some questions up ter ye."

"I hain't said I sought no leadership—but speak right out fer yoreselves," invited Maggard.

"All right. We knows thet ye come hyar from *somewhars* else—an' we don't know whar from. Because ye're old Caleb's heir, what ye does an' what ye says gets ter be mighty pithy an' pertinent ter us."

"I've done come ter kinderly reelize that, myself, hyar of late."

"Ye comes from Virginny, folks says; air thet true?"

"Thet's true."

"An' ye give one name when ye come an' tuck another atter ye'd been hyar a while, air thet true likewise?"

Maggard stiffened but he bowed his head in assent.

"All right, then—I reckon ye kin see fer yorself thet ef we've got ter trust our business in yore hands tor'ds keepin' ther truce, we've jedgmatically got ter confidence ye. We seeks ter hev ye ter tell us why ye left Virginny an' why ye changed yore name. We wants ter send a man of our own pick an' choosin' over thar an' find out fer ourselves jest what yore reput war in yore own home afore ye come hyar."

Cal could feel the tingling of antagonism in a galvanic current along his spine. He knew that his eyes had flashed defiance before he had quelled their impulse and controlled his features, but he held his lips tight for a rebellious moment and when he opened them he asked with a velvety smoothness:

"Ye says nobody didn't mistrust Caleb Harper. Why didn't ye ask him, whilst he war still a-livin', whether he'd made an heir outen a man thet couldn't be confidenced?"

"So long es he lived," came the hunchback's quick and stingingly sharp retort, "we didn't need ter ask no questions atall an' thar warn't no prophets amongst us ter foresay he was goin' ter die suddent-like, without tellin' us what we needed ter know. Will ye give us them facts thet we're askin' fer—or won't ye?"

"I won't," said Maggard, shortly. "I stand ter be jedged by ther way I demeans myself—an' I don't suffer no man ter badger me with questions like es ef I war some criminal in ther jail-house."

The grotesque face of the hunchback hardened to the stony antagonism of an issue joined. His dwarfed and twisted body seemed to loom taller and more shapely as if the power of the imprisoned spirit were expanding its ugly shell from within, and an undeniable dignity showed itself flashingly through the caricatured features.

Back of him, his silent colleagues stiffened, too, and though they were all tall men, with eyes flaming in unspoken wrath, they seemed smaller in everything but bodily stature than he.

After a brief pause, Hump Doane wheeled and addressed himself to his companions. "I reckon thet's all, men," he said, briefly, and Cal Maggard

recognized that the silence with which they turned away from him was more ominous than if they had berated him.

Yet before he reached the stile Doane halted and stood irresolute with his gaze groundward and his chin on his breast, then summoning his fellows with a jerk of the thumb, he turned back to the spot where Cal Maggard had remained unmoving at the base of the great tree, and his face though still solemn was no longer wrathful.

"Sometimes, Mr. Thornton," he said with a slow weighing of his words, "men thet aims at accord fails ter comprehend each other—an' gits ther seemin' of cavillin'. Mebby we kinderly got off on ther wrong foot an' I kain't go away from hyar satisfied without I'm plum sartain thet ye onderstands me aright."

Maggard had learned to read the type of human features and human contact clearly enough to place this man in his rightful page and column of life. He recognized an honesty and sincerity that might be trusted under the test of torture itself, purposes undeviatingly true—and the narrow intensity of fanaticism. He would have liked to make an ally of this man, and a friend, yet the question that had been raised could not be answered.

"I hain't only willin' but plum anxious ter hear all ye've got ter say, Mr. Doane," he made serious reply, and the other after a judicial pause went on:

"Hit hain't no light an' frivolous sperit of meddlin' thet brings me hyar askin' ye questions thet seems imp'dent an' nosy. Hit's a dire need of safeguardin' ther peace of our folks—aye, an' thar lives, too, like es not."

He paused, leaving room for an answer that would make easier his approach to an understanding, but no answer came, and he continued:

"Ye hain't got no handy way of knowin' like me an' some of these other men thet's always lived hyarabouts, what a ticklish balance things rests on in this section. A feller mout reasonably surmise thet a peace what hes stood fer twenty y'ar an' more would go on standin'—but mebby in yore time ye've done seed a circus-show—hev ye?"

Maggard nodded, wondering what moral was to be drawn from tan-bark ring and canvas top, and his interviewer continued:

"Then like es not ye've seed one of them fellers in tights an' tin spangles balancin' a ladder on his chest with a see-saw atop hit—an' a human bein' settin' on each eend of thet see-saw. Hit looks like he does hit plum easy—but ef he boggles or stumbles, them folks up thar falls down, sure as hell's hot."

"I reckon thet's right."

"Wa'al, thar's trouble-makin' sperits amongst both ther Doanes an' ther Harpers—an' they seeks ter start all thet hell up a-bilin' ergin like ther devil's own cauldron.... Ef we've done maintained peace 'stid of war fer upwards of twenty y'ars hit's because old Caleb an' a few more like him hes been balancin' thet ladder till th'ar hearts was nigh ter bustin' with ther weight of hit. Peace hain't niver stood upright amongst us by hits own self—an' hit won't do hit now. Ef ye stands in old Caleb's shoes, Mr. Thornton, ye've got ter stand balancin' thet ladder, too."

"We hain't hed no disagreement es ter thet, Mr. Doane. I craves law-abidin' life an' friendly neighbours as master strong es *you* does."

"An' yit," continued the cripple, earnestly, "ef thet old-time war ever busts loose afresh hit'll make these hyar numerous small streams, in a manner of speakin', run red with men's blood an' salty with women's tears, too, I fears me. I've done dream't of a time when all thet pizen blight would be swep' away from ther hills like a fog—an' I sought ter gain yore aid in hastenin' thet day. A man kain't skeercely plead with his enemy but he kin with his friend—an' that's how I hoped I'd be met."

"Yore friend is what I'd love ter be." Maggard stood with his hand resting on the bark of the tree, as though out of it he might hope to draw some virtue from the far past which it commemorated or from the dust of those wiser men whose graves its roots penetrated. His eyes were darkly clouded with the trouble and perplexity of his dilemma. To refuse still was to stand on a seeming point either of over-stubborn pride or of confessed guilt. To accede was to face the court that wanted him for murder and that would prostitute justice to hang him.

"Them things ye dreams of an' hopes fer," he went on in a voice thrilling with earnestness and sincerity, "air matters thet I've got heart an' cravin' ter

see come erbout. An' yit—I kain't answer yore question. Hit's ther only test ye could seek ter put me ter—thet I wouldn't enjoy ter meet outright——"

"Then, even atter what I've told ye, ye still refuses me?"

"Even atter what ye've told me, an' deespite thet I accords with all ye seeks ter compass hyarabouts, I've *got* ter refuse ye. I hain't got no other choice."

This time Hump Doane and his delegation did not turn back, but crossed the stile and passed stiffly on.

Thornton, for now it was useless to think of himself longer as Cal Maggard, stood straight-shouldered until the turn of the road took them beyond sight, then his head came down and his eyes clouded into a deep misery.

That night the moon rode in a sky where the only clouds were wisps of opal-fleece and the ranges were flat-toned and colossal ramparts of cobalt. Down in the valley where the river looped its shimmering thread the radiance was a wash of platinum softly broken by blue-gray islands of shadow.

Dorothy Thornton stood, a dim and ghostly figure of mute distress, by the grave in the thicketed burial ground where the clods had that day fallen and the mound still stood glaringly raw with its freshly spaded earth, and Parish Thornton stood by her side.

But while she mourned for the old man who had sought to be father and mother to her, he thought, too, of the sagacious old shepherd without whose guidance the flocks were already showing tendencies to stampede in panic.

Parish Thornton would have given much for a word of counsel to-night from those silent lips, and hardly realizing what impulse prompted him he raised his eyes to the great gray-purple shadow-shape of the tree. Its roots lay in those Revolutionary graves and its top-most plumes of foliage seemed to brush the starry sky, where the spirits of the dead might be having their longer and serener life.

Half comprehended yet disquieting with its vague portent, a new element of thought was stirring in the mind of the young man. By nature he was an individualist whose inherent prompting was to walk his own way neither interfering with his neighbour nor permitting his neighbour to encroach unduly upon him. Had he been a quoter of Scripture his chosen text might have been, "Am I my brother's keeper?"

And if that had been the natural colour of his mind and nature it was deepened and intensified by his circumstance. The man whom the law seeks and whom it charges with murder must keep to himself and within himself if he would escape notice and capture. Yet now the older impulses that had driven and urged his pioneering ancestors were beginning to claim voice, too, and this voice demanded of him "can any man live alone?"

Somehow that plea from the hunchbacked Doane had, with its flaming sincerity, left its unforgettable mark upon him. His own affairs included a need of hiding from Virginia sheriffs and of reckoning with Bas Rowlett, and yet he began to wonder if his own private affairs were not after all only part of a whole, and as such smaller than the whole. If a man is born to play a part greater in its bearings than the merely personal he cannot escape his destiny, and to-night some stirring of that cloudy realization was troubling Thornton.

"Let's get some leaves offen ther old tree," suggested the girl in a hushed voice, "an' make a kind of green kiverlet over him." She shuddered as she added, "Ther ground's plum naked!"

When they had performed their whimsical service—these two representatives of a grimly unimaginative race of stoics—they went again and stood together under the tree and into the girl's grief and the man's forebodings crept an indefinable anodyne of quiet and consolation.

That tree had known death before, and always after death it had known rebirth. It could stand serene and placid over hearts bruised as was her own because it had heard the echoes of immortality and seen the transient qualities of human grief.

Now she could realize only death and death's wounding, but to it the seasons came and went as links in an unbroken chain. Beneath it slept the

first friends who had loved it. Somewhere in the great, star-strewn spaces above it perhaps dwelt the souls of unborn men and women who would love it hereafter. Somehow its age-old and ever-young message seemed to come soothingly to her heart. "All end is but beginning, and no end is final. The present is but hesitation between past and future. Shadows and sunlight are abstract things until you see them side by side—filtered through my branches. Winds are silent until they find voice through my leaves.... My staunch column gives you your standard of uprightness ... beneath me red men and white have fought and whispered of love ... as my bud has come to leaf and in turn fallen so generation has followed generation. For the present I bear the word of steadfastness and courage. For the future, I bear the promise of hope."

Dorothy's lissome beauty took on a touch of something supernatural from the magic of moonlight and soft shadow and the man slipped his arm about her, while they looked off across the tempered nocturne of the hills and heard the lullaby of the night breeze in the branches overhead.

"I war thinkin', Cal," said the girl in a hushed voice, "of what would of happened ter me ef ye hedn't come. I'd be ther lonesomest body in ther mountings of Kaintuck—but, thank God, ye *did* come."

* * *

An agency for disturbing the precarious balance of peace was at work, and the mainspring of its operation was the intriguing mind of Bas Rowlett.

Bas had had nothing to gain and everything to lose by weakening the pacific power of old Caleb, whose granddaughter he sought to wed, but with a successful rival, whom he must kill or be killed by, usurping the authority to which he had himself expected to succeed, his interests were reversed. If he could not rule, he could wreck, and the promiscuous succession of tragedies that would follow in the wake of such an avalanche had no terrors to give Bas pause. Many volunteers would arise to strike down his enemy and leave him safe on the outskirts of the conflict. He could stand apart unctuously crying out for peace and washing his hands after the fashion of Pontius Pilate.

Manifestly the provocation must seem to come from the Harper-Thornton faction in order that their Doane-Rowlett adversaries might righteously take the path of reprisal.

The device upon which the intriguer decided was one requiring such delicate handling in both strategy and marksmanship that he dared not trust it to either young Pete Doane or the faithful Sim Squires.

Indeed, he could trust no one but himself, and so one evening he lay in the laurel back of the house where dwelt his universally respected kinsman, old Jim Rowlett.

Bas had no intention of harming the old man who sat placidly smoking, yet he was bent on making it seem evident and certain that someone had sought to assassinate him, and so it was not at the breast that he aimed his rifle but at the peak of the tall-crowned slouch hat.

The sights of his rifle showed clean as the rustless barrel rested on a log. Bas himself lay stretched full-length in that position which gives the greatest surety of marksmanship.

His temples were moist with nervous sweat, and once he took the rifle down from his shoulder and flexed his muscles in rest. Then he aimed again and pressed the trigger.

He could not tarry now, but he paused long enough to see the punctured hat spin downward from the aged head and the old man rise, bewildered but unhurt, with a dazed hand experimentally rubbing his white crown. Then Bas grinned, and edging backward through the brush as a woman rushed screaming out, he made his way to the house of Parish Thornton. The first gun had been fixed in the new Harper-Doane war.

Bas knew that the tidings of the supposed attempt on the patriarch's life would go winging rapidly through the community, and it pleased his alibi instinct to be at his enemy's house at a time which would seem almost contemporaneous with the shooting. To have reached his own place would have taken longer.

But when he arrived Thornton was not indoors. He was strong enough now to move about the place a little, though he still fretted under a

weakness that galled him, so Bas found Dorothy alone.

"I reckon, leetle gal," he made a sympathetic beginning, "yore heart's right sore these days since yore gran'paw died. My own heart's sore fer ye, too."

"He was mighty devoted ter ye, Bas," said the girl, and the man who had just come from an act of perfidy nodded a grave head.

"I don't know whether he ever named hit ter ye, Dorothy," came his slow words, "but thet day when ye war wedded he tuck me off ter one side an' besought me always ter stand by ye—an' befriend ye."

"Ye acted mouty true-hearted thet day, Bas," she made acknowledgment and the conspirator responded with a melancholy smile.

"I reckon I don't hev ter tell ye, I'd do most anything fer ye, leetle gal. I'd hed hopes thet didn't turn out—but I kin still be a friend. I'd go through hell fer ye any time."

He rose suddenly from his seat on the kitchen threshold, and into his eyes came a flash of feeling. She thought it love, but there was an unexpectedly greedy quality in it that frightened her. Then at once the man recovered himself, and turned away, and the girl breathed easy again.

"I'm beholden ter ye fer many things," she said, softly.

Suddenly and with no reason that she could explain, his recent words, "I'd do most anything fer ye," set her thoughts swirling into a new channel ... thoughts of things men do, without reward, for the women they love.

This man, she told herself in her ignorance of the truth, had sacrificed himself without complaint. She knew of only one greater sacrifice, and of that she could never think without a cloud of dread shutting off the sunlight of her happiness.

Even Bas would hardly have done what her husband had done for his sister: assumed a guilt of murder which made of himself an exile and a refugee whom the future always threatened.

Then somehow, as Bas sat silent, she saw again that hunger in his eyes, a hunger so wolf-like that it was difficult to harmonize it with his record of generous self-effacement; a hunger so avidly rapacious that a dim and unacknowledged uneasiness stirred in her heart.

But at that moment they heard a shout from the front, and Peanuts Causey came hurriedly around the corner of the house. His great neck and fat face were fiery red with heat and excitement, and he panted as he gave them his news.

"Old Jim Rowlett's done been shot at from ther bresh!" he told them. "He escaped death, but men says ther war's like ter bust, loose ergin because of hit."

"My God!" exclaimed Bas Rowlett in a tone of shocked incredulity; "old Jim hain't got no enemies. A man would hev need ter be a fiend ter harm him! I've got ter git over thar straightway."

Yet the crater did not at once burst into molten up-blazing. For a while yet it smouldered—held from eruption by the sober counsel of the man who had been fired on and who had seemingly escaped death by a miracle.

Adherents of the two factions still spoke as they met on the road, but when they separated each turned his head to watch the other out of sight and neither trusted an unprotected back to the good faith of any possible adversary.

To the house of Aaron Capper, unobtrusively prompted by Sim Squires, went certain of the Harper kin who knew not where else to turn—ignoring Parish Thornton as a young pretender for whom they had little more liking than for the enemy himself.

The elderly clansman received them and heard their talk, much of which was wild and foolish. All disclaimed, and honestly disclaimed, any knowledge of the infamy that had been aimed at old Jim Rowlett, but even in their frothy folly and yeasty clamour none was so bereft as to deny that the Harpers must face accountability. If war were inevitable, argued the hotheads, it were wisdom to strike the first blow.

Yet Aaron, who had during the whole long truce been fretting for a free hand, listened now with a self-governed balance that astonished his visitors.

"Men," said he with a ring of authority in his voice, "thar hain't no profit in headlong over-hastiness. I've been foreseein' this hour an' prayin' fer guidance. We've got ter hev speech with young Parish Thornton afore we turns a wheel."

Sim Squires had not been enlisting his recruits from the ranks of those who wished to turn to Thornton, and from them rose a yelping clamour of dissent, but Aaron quelled that mutiny aborning and went evenly on.

"Ef warfare lays ahead of us we hev need ter stand tergether solid—an' thar's good men amongst us thet wouldn't nuver fergive affrontin' old Caleb's memory by plum lookin' over his gal's husband. Thet's my counsel, an' ef ye hain't a-goin' ter heed hit——"

The quiet voice ripped abruptly into an explosiveness under which some of them cowered as under a lash.

"Then I reckon thar'll be Thorntons an' Harpers thet *will*—an they'll fight both ther Doanes an' your crowd alike."

CHAPTER XVI

PARISH THORNTON sat on the doorstep of the house gazing abstractedly upward where through soft meshes of greenery the sunlight filtered.

Here, he told himself, he ought to be happy beyond any whisper of discontent—save for the fret of his lingering weakness. Through the open door of the house came the voice of Dorothy raised in song, and the man's face softened and the white teeth flashed into a smile as he listened. Then it clouded again.

Parish Thornton did not know all the insidious forces that were working in the silences of the hills, but he divined enough to feel the brewing of a storm, which, in its bursting, might strike closer and with more shattering force than the bolt that had scarred the giant tree trunk.

Two passions claimed his deep acknowledgment of allegiance and now they stood in conflict. One was as clear and flawlessly gracious as the arch of blue sky above him—and that was his love; the other was as wild and impetuous as the tempests which sprang to ungoverned life among these crags—and that was his hate.

When he had sworn to Bas Rowlett that the moon should not "full again" before he avenged his betrayal with death, he had taken that oath solemnly and, he sincerely believed, in the sight of God. It was, therefore, an oath that could be neither abandoned nor modified.

The man who must die knew, as did he himself and the heavenly witness to the compact, that his physical incapacity had been responsible for his deferred action—but now with returning strength he must make amends of promptness.

He would set out to-day on that enterprise of cleansing his conscience with performance. In killing Bas Rowlett he would be performing a virtuous act. As to that he had no misgiving, but an inner voice spoke in disturbing whispers. He could not forget Hump Doane's appeal—and

prophecy of tribulation. By killing Bas now he might even loose that avalanche!

"An' yit ef I tarries a few days more," he argued stubbornly within himself, "hit's ergoin' ter be even wusser. I'm my own man now—an' licensed ter ack fer myself." He rose and stiffened resolutely, against the tide of doubt, and his fine face darkened with the blood malignity of his heritage.

He went silently into the house and began making his preparations. His pistol holster should have fitted under his left arm-pit but it was useless there now with no right hand to draw or use it. So Parish Thornton thrust it into his coat pocket on the left-hand side, and then at the door he halted in a fresh perplexity.

He could not embark on a mission that might permit of no returning without bidding Dorothy good-bye—and as he thought of that farewell his face twitched and the agate hardness wavered.

So he stood for awhile in debate with himself, the relentlessness of the executioner warring obdurately with the tenderness of the lover—and while he did so a group of three horsemen came into view on the highway, moving slowly toward his house.

When the trio of visitors had dismounted, an elderly man, whose face held a deadly sort of gravity, approached, introducing himself as Aaron Capper and his companions as Sim Squires and Lincoln Thornton.

"Albeit we hain't well beknowest ter one another," Aaron reminded him, "we're all kinfolks more or less—an' we've done rid over ter hev speech with ye cons'arnin' right sober matters."

"Won't ye come inside an' sot ye cheers?" invited Parish, but the elder man shook his head as he wiped his perspiring and dust-caked face on the sleeve of his shirt.

"Ther breeze is stirrin' tol'able fresh out hyar," suggested Aaron, "an thet old walnuck tree casts down a right grateful shade. I'd jest es lieve talk out hyar—ef hit suits ye."

So under the tree, where a light breeze stirred with welcome tempering across the river, the four men squatted on their heels and lighted their pipes.

"Thar hain't no profit in mincin' matters none," began old Aaron, curtly. "I lost me three boys when they fit ther battle of Claytown twenty y'ars back—an' now hit looks powerful like ther war's fixin' ter bust out afresh. Ef hit does I aims ter take me full toll fer tha'r killin'."

Parish Thornton—who had ten minutes before been planning a death infliction of his own—raised his brows at this unsoftened bluntness of announcement, but he inquired of Aaron Capper as he had done of Hump Doane: "Why does ye come ter me?"

"We comes ter ye," Aaron gave him unambiguous answer, "because ef ther Harpers hev got ter fight, that hain't no health in divided leaderships ner dilatory delays.... Some men seems ter hold thet because ye wed with Old Caleb's gal, ye're licensed ter stand in Old Caleb's shoes ... whilst others seems plum resolved not ter tolerate ye atall an' spits ye outen thar mouths."

"Which of them lots does *you* men stand with?"

The question came soberly, yet something like a ruffle of cynical amusement glinted in the eyes of Parish Thornton as he put it.

"I hain't made up my mind yit. All I knows is thet some fellers called on me ter head ther Harpers ... an' afore I give 'em any answer, I 'lowed thet hit become us ter hev speech with ye fust. We owed ye thet much because ther Doanes'll pint-blank deem thet ther trouble started when ye wed Bas Rowlett's gal—an' whatever *we* does, *they'll* hold ye accountable."

The heir to Caleb Harper's perplexities stood leaning against the tree. There were still moments when his strength seemed to ebb capriciously and leave him giddy. After a moment, though, he smiled quietly and glanced about the little group.

"When I come over hyar," he said, "I didn't ask nothin' but ter be left alone. I married Dorothy, an' old Caleb confided me. I've got my own affairs ter tend an' I'm satisfied ter tend 'em. So fur es frayin' an' fightin' goes"—his voice mounted suddenly and the half-whimsical humour died

instantly in his eyes—"I've got some of my own ter study erbout—an' I don't have ter meddle with other folkses' quarrels."

"Then ye aims ter stand aside an' let things take thar own course?"

"Thet's what I 'lowed ter do, but ye've jest done told me thet the Doanes don't aim ter *let* me stand aside. S'pose ye tells me some more."

"All right," said Aaron, brusquely. "Ef thet's what ye wants I'll tell ye a lavish."

Dorothy had come to the front door and looked out, and seeing the men still mopping hot faces, she had brought out a pitcher of cool buttermilk and a pewter mug.

The backs of the three visitors were turned toward the house, and her feet on the grass had made no sound so that only Parish himself had known of her coming and he had, with a lifting of the brows, signalled her to wait until old Aaron finished speaking.

"I've done sought by prayer an' solemn ponderin' ter take counsel with Almighty God," declared the spokesman. "Ther blood of them three boys of mine hes been cryin' out ter me fer twenty y'ars but yet I knows thet ef ther war does come on again hit's goin' ter bring a monstrous sum of ruination an' mischief. So I comes ter ye—es Caleb Harper's heir—ter heer what ye've got ter say."

Dorothy Thornton's eyes widened as, standing with the pitcher and the ancient mug in her hands, she listened to that speech. Then as the full import of its feudal menace broke upon her understanding the blossom colour flowed out of her smooth cheeks and neck, leaving them ivory white.

She saw herself as the agency which had drawn her husband into this vortex, and bitterly reflected that this had been her dowry and the gift of her love!

Parish's glance held by that stunned fixety in her expression attracted the attention of the others and old Aaron Capper, turning his head, saw her and let a low oath of exasperation escape him.

"Send her away!" he snapped, angrily. "This hyar hain't no woman's business. How much did she hyar?"

Parish Thornton went forward and took the pitcher and pewter mug from his wife's hand, then he shook his head, and his voice altered to a new ring, quiet, yet electrically charged with dominance.

"No," he ripped out, shortly. "I hain't ergoin' ter send her away. Ye says hit hain't no woman's business, and yit she's Caleb Harper's gran'daughter—an' because of her weddin' with me—Harpers an' Doanes alike—ye won't suffer me ter foller out my own affairs in my own fashion, onmolested!"

Aaron came to his feet, bristling indignantly and with new protests rising to his lips, but an imperious gesture of command from Parish silenced him into a bewildered obedience. It had become suddenly impossible to brow-beat this man.

"Dorothy," said her husband, "I reckon ye heered enough ter know what brought these men hyar. They norates that ther Doanes holds me accountable fer whatever ther Harpers does—good or evil—because I stands as heir ter yore gran'pap. They tells me likewise that ther Harpers hain't got no settled leader, an' only two things hinders me from claimin' thet job myself: Fust place, I don't crave ter mingle in thar ructions, and second place they won't hev none of me. Seems like I'm ther gryste betwixt two mill-stones ... an' bein' es ye're my wife, thet's a state of things thet consarns *you* es well es me."

A Valkyrie fire glowed in the dark eyes of the young woman and her hands clenched themselves tautly. The colour that had gone out of her cheeks came back with a rush of vividness which seemed to transform her as a lighted wick transforms a candle.

"When my gran'pap war a-strivin' aginst all manner of odds fer peace," she said, disdainfully, "thar was them thet kept hamperin' him by whoopin' on ther troublemakers—an' I've done heered him say thet one turrible hard man ter reason with bore ther name of Aaron Capper."

The elderly spokesman of the delegation flushed brick-red and his heavy lashes gathered close in a menacing scowl.

"No man didn't love Caleb Harper no better'n me," he protested, indignantly, "but ef we've got ter fight hit profits us ter hit fust—an' hit hard."

"Now, I've got somethin' ter tell ye," went on Parish, and though they did not know just when or how the change had been wrought, each of the three visitors began to realize that a subtle shifting of places had come over their relations to their host.

At first they had spoken categorically and he had listened passively. Now when he spoke they felt the compulsion of hearkening to him as to one whose words carried authority. Personalities had been measured as are foils in the hands of fencers, and Parish Thornton was being recognized to hold the longest and keenest blade.

"I've done sought ter show ye, outen yore own mouths," he said, soberly, "thet at one an' ther same time ye was demandin' ter know what I aimed ter do an' tellin' me I couldn't do nothin'. Now I tells ye thar's one thing I jedgmatically *hain't* a-goin' ter do, an' thet is ter stand by an' suffer them two mill-stones ter grind me ter no powder."

He paused, and the girl had moved forward until she stood at his side with her outstretched hand resting against the bark of the old tree in a reverent touch of caress. She ignored the others and spoke to her husband.

"Back thar in ther beginnin's, Cal," she said, clinging to the name by which she had first known him, "our foreparents planted this tree—an' founded this country—an' held hit erginst ther Injuns. They was leaders then—afore any man hed ever heered of Cappers an' Squireses an' ther like. I reckon ef men needs a leader now, hit runs in yore blood ter be one ... but a leader fer betterment—an' one thet gives orders 'stid of takin' 'em."

She turned then, and with her chin regally high, she left them, and a brief silence held after her going.

"I reckon I couldn't hardly hev said hit thet well, myself," announced Parish Thornton, quietly, "but yit hit erbout sums up my answer ter ye."

"Whatever ye says from now on, erbout takin' me er leavin' me, ther *enemy's* done picked me out es ther head man of ther Harpers—an' what

they'd love best would be ter see ye all cavillin' amongst yoreselves. Caleb Harper picked me out, too. Now I aims ter stand by his choosin'—an' I aims ter be heeded when I talks."

Aaron and Parish stood eye to eye, searching and measuring each other with gazes that sought to penetrate the surface of words and reach the core of character. The older man, angry, and insulted though he felt himself, began to realize about his heart the glow of that unwilling admiration which comes of compulsion in the presence of human mastery and pays tribute to inherent power. The quiet assurance of this self-announced chieftain carried conviction that made argument idle—and above all else the Thorntons needed an unchallengeable leader.

"Afore God," he murmured, "I believes ye're a *man*!" Then after a pause he added: "But nobody don't know ye well enough—an' afore a man kin be trusted ter give orders he's got ter prove hisself."

Parish Thornton laughed.

"Prove yoreself, then, Aaron," he challenged, "ye talks erbout yore hunger ter avenge yore dead boys—albeit they fell in a pitch-battle an' ye don't know who deadened 'em—an' ther fire of thet wrath's been coolin' fer a full score of ya'rs. Why did ye let hit simmer so long?"

"Because I was pledged ter peace an' I wasn't no truce-buster. I sought ter remain steadfast and bide my time."

"All right. Then ef fresh war-farin' kin be carcumvented, ye still stands beholden by thet pledge, don't ye?"

"Ef hit kin be, yes—but how kin hit be?"

"Thet's what I aims ter show ye. Ye talks erbout yore grievance. Now listen ter mine. Ther bullit wound hyar in my shoulder hain't healed yit—an' thar hain't no hotter fire in hell then my own hate fer whoever caused hit. So when ye talks ter me about grievances, ye talks a language I kin onderstand without no lingster ter construe hit."

He paused a moment, unconscious that his term for an interpreter was one that Englishmen had used in Chaucer's day, and, save here, not since a

long-gone time. Then he swept on, and Sim Squires listening to this man whom for hire he had waylaid felt an unmanning creep of terror along his spine; a fear such as he had not felt for any human being before. The sweat on his face grew clammy, but with a mighty effort he held his features mask-like.

"But atter you an' me hed evened our scores—what then? Air ye willin' ter burn down a dwellin' house over ther heads of them inside hit, jest ter scorch out a feisty dog that's done molested ye? Is thet leadin' men forwards—or jest backwards like a crawfish?"

"Ye talks," said Aaron Capper, sharply, "like es if I'd stirred up an' provoked tribulation. Them fellers air a-plottin' tergither right now over at old Hump Doane's house—an' hell's broth air a-brewin' thar."

The younger man's head came back with a snap.

"Ye says they're holdin' a council over thar at Hump Doane's?" he demanded.

"Yes—an' hit's a war conf'rence. I've hed men find thet out—they're right sim'lar ter a swarm of hornets."

Parish Thornton took a step forward.

"Will ther Harpers stand to what ther two of us agrees on tergither in full accord—an' leave cavillin' an' wranglin' amongst ourselves fer a more seemly time?"

Aaron nodded his head. "So long as us two stands agreed we kin handle 'em, I reckon."

The young man nodded his head in a gesture of swift decision.

"All right then! I'm goin' over thar ter Hump Doane's house—an' reason with them hotheads. I'm goin' ter advocate peace as strong es any man kin—but I'm goin' ter tell 'em, too, thet ther Harpers kin give 'em unshirted hell ef they disdains peace. I'm goin' ter pledge ourselves ter holp diskiver an' penitenshery ther man thet shot at old Jim Rowlett. Does thet suit ye?"

Aaron stood looking at Parish Thornton with eyes blankly dumfounded, and the other two faces mirrored his bewilderment, then the spokesman broke into bitterly derisive laughter, and his followers parroted his mirthless ridicule.

"Hit *mout* suit me," he finally replied, "save only hit denotes that ye're either p'intedly wishful ter throw yore life away—or else plum bereft of reason."

"Thet's a *secret* meetin' over thar," interposed Lincoln Thornton, grimly, "with rifles in ther la'el ter take keer of trespassers. They'd stretch ye dead afore ye got nigh enough ter shout out—much less reason with 'em. Some things is practical an' others is jest damn foolery."

"I took thought of them chances," replied Parish, quietly, "afore I made my proffer."

This time there was no laughter but Aaron shook his head decisively. "No," he declared, "hit won't do. Hit's a right bold idee but hit would be sartain death. Ye're ther man they're cussin' an' damnin' over an' above all others, over thar—right now."

"All right then," asserted Thornton, crisply, "ef I kin stop 'em from cussin' an' damnin' me, mebbey they mout quiet down again an' listen ter reason. Anyhow, ef ye agrees ter let me bind ye by my words, I'm a-goin' over thar."

After that the talk was such a discussion of ways and means as takes place between allies in complete harmony of agreement.

"Afore God in Heaven," exclaimed the old clansman at its end, "ye *air* a man thet's cut out ter lead! Hev ye got yore pistol handy?"

"Hit's handy enough," answered Parish, "but I don't aim ter go over thar armed—ef they kills me like ye foretells they will, they've got ter murder me coldblooded—so all men kin see wh'ar ther fault lays at."

CHAPTER XVII

PARISH THORNTON and Aaron Capper stood for a few moments watching the departure of the two other horsemen, one of whom was a spy and a traitor—for Aaron himself meant to wait here until he could ride home with some knowledge of the outcome of his new ally's mad project.

But Parish could not wait long, for the summer afternoon was already half spent and his depleted strength would make travelling slow.

The thought that now oppressed him with the poignancy of an immediate ordeal was the need of saying good-bye to Dorothy, and neither of them would fail to understand that it might be a last good-bye. There was no room for equivocation in this crisis, and as he gazed up into the full and peaceful shade over his head, a flood of little memories, bound tendril-like by sounds, sights, and fragrances to his heart, swept him with disconcerting violence.

He steadied himself against that assaulting and went resolutely into the room where Dorothy was standing with her back half turned so that she did not at once see him.

She stood deep in thought—artlessly posed in lance-like straightness, and on the smooth whiteness of her neck a breath of breeze stirred wisps of bronzed and crisply curling hair. The swing of her shoulders was gallant and the man thanked God for that. She would want her courage now.

"Dorothy," he said, softly, standing close at her side, "I've got ter do somethin' thet ye're goin' ter hate ter hev me ter undertake—an' yet I knows ye'll want me ter do hit, too."

She wheeled at the tenseness of his voice and he wondered whether some premonition had already foreshadowed his announcement, for her cheeks were pale as she raised her hands and locked her fingers behind his head, standing off at arms' length so that she might look into his face.

He felt the hands tighten and tremble as he explained his mission, and saw the lids close over the eyes as if to shut out pictures of terror-stricken foreboding, while the lips parted stiffly in the pain of repressed and tidal emotions. Dorothy swayed uncertainly on her feet, then recovered self-command.

With a passionate impulse of holding him for herself, her arms closed more rigidly about him and her soft body clung against his own, but no sound of sobbing came from her lips and after a little she threw back her head and spoke rapidly, tensely, with the molten fierceness of one mountain-bred:

"I hain't seekin' ter dissuade ye ... I reckon I kinderly egged ye on out thar under ther tree ... but ef any harm comes ter ye, Cal ... over yon ... then afore God, even ef I'm only a woman ... I'll kill ther man thet causes hit!"

It was Dorothy who saddled and bridled the easy-paced mule for the man with the bandaged arm to mount, and who gave him directions for reaching his destination. As he turned in his saddle he summoned the spirit to flash upon her his old smile in farewell and she waved as though she were speeding him on some errand of festival. Then while old Aaron paced the dooryard with a grim face of pessimism bowed low over his chest, she turned into the house and, beside the bed where her lover had so long lain, dropped to her knees and clasped her hands in prayer.

Parish Thornton had told Aaron that he meant to go unarmed to that meeting, but so many thoughts had crowded upon him that only when he settled back against the high cantle of his saddle was he reminded, by its angular hardness, of the pistol which bulged in his pocket.

He drew rein to take it back, then shook his head and rode on again.

"Goin' over an' comin' back," he told himself, "I'd jest as lieve be armed, anyhow. Afore I gits thar I'll climb down an' hide ther thing in some holler log."

* * *

Hump Doane's house was larger than many of those lying scattered about it, but between its long walls hung that smoky air of the rudely mediæval

that made a fit setting for so grim a conclave as that of to-day. About the empty hearth of its main room men, uncouthly dressed and unbarbered, sat, and the smoke from their pipes hung stale and heavy. A door at the back and one at the front stood wide, but there were no windows and along the blackened rafters went strings of peppers and "hands" of home-grown tobacco. A dull glint here and there against the walls proclaimed leaning rifles.

On the threshold of the back door sat Bas Rowlett gazing outward, and his physical position, beyond the margin of the group proper, seemed to typify a mental attitude of detachment from those mounting tides of passion that held sway within.

"I'm ther feller thet got shot at, men," declared old Jim, rising unsteadily from his chair and sweeping them all with his keen and sagacious old eyes, "an' until terday ye've all stud willin' ter hearken ter my counsel. Now ef ye disregards me an' casts loose afresh all them old hates an' passions, I'd a heap ruther be dead then alive."

"Afore God, what fer do we waste good time hyar cavillin' an' backbitin' like a passel of old granny-women?" demanded Sam Opdyke whose face was already liquor-flushed, as he came tumultuously to his feet, overturning his chair and lifting clenched fists above his head.

"When this hyar unknowed man come from Virginny ter start things up whar old Burrell Thornton left 'em off at, he brung ther war with him. Thet troublemaker's got ter die—an' when he's dead hit's time ter parley erbout a new truce."

A low growl of approval ran in the throats of the hearers, but Hump Doane rose and spoke with his great head and misshapen shoulders reaching only a little way above the table top, and his thin voice cutting sharp and stridently.

"I've always stood staunch by Jim Rowlett's counsel," he announced, soberly, "but we kain't handily refuse ter see what our own eyes shows us. Ef ther Harpers hed any survigrous leader thet hed come out strong fer peace, I'd still sanction givin' him a chanst, but who hev they got? I talked

solemn with this new man, Parish Thornton, an' I didn't git no satisfaction outen hem."

From the door Bas Rowlett raised an even voice of hypocrisy:

"I knows ther new man better then any of ye, I reckon ... an' I believes him when he says he wants a quiet life ... but I don't skeercely deem ther Harpers hev any notion of heedin' him."

"Men," old Jim, who felt his power slipping from him, and who was too old to seize it back with the vigour of twenty years ago, rose again and in his attitude was the pathos of decayed influence and bitter failure at life's end.

"Men," he implored, "I beseeches ye ter hearken ter me one time more. A man thet's got ter be kilt kin always be kilt, but one thet's dead kain't be fotched back ter life. Hold off this bloodshed fer a spell yit.... Suffer me ter counsel with two or three Harpers an' Thorntons afore ye goes too fur!"

So long had this man's voice held a wizardry of influence that even now, though the spirit of reconciliation had faint life in that meeting, a silence of respect and veneration followed on his words, and while it endured he gazed beseechingly around the group to meet eyes that were all obdurately grim and adverse.

It was Hump Doane who broke the pause.

"Save fer a miracle of luck, Jim, ye'd be a dead man now—an' whilst we tarries fer ye ter parley, you an' me an' others besides us air like ter die. Over-hastiness is a sorry fault—but dilitariness is oftentimes sorrier."

* * *

Back in the house that had grown around the nucleus of a revolutionary cabin sat the woman who had been for such a short time a wife—and who might so soon be a widow.

She had risen from her knees at last after agonized praying, but even through her prayers came horrible and persistent pictures of what might be happening to the man who had smiled as he rode away.

The insupportable dread chilled and tortured her that the brief happiness of her marriage had been only a scrap and sample, which would leave all the rest of life and widowhood bleaker for its memory and loss.

Dorothy sat by the window with a face ghost-pallid and fingers that wound in and out of spasmodic clutchings.

She closed her eyes in an effort to forget her nightmare imaginings and saw only more fantastic visions of a body sliding from its saddle and lying still in the creek bed trail.

She rose at last and paced the room, but outside in the road her gaze fell on old Aaron who was uneasily pacing, too, and in his drooping shoulders and grimly set face she read no encouragement to hope. That morose and pessimistic figure held her gaze with a fascination of terror and she watched it until its pacing finally carried it around a twist of the road. Then she went out and stood under the tree which in its wordlessness was still a more sympathetic confidant than human beings.

She dropped on her knees there in the long grass at the roots of the straight-stemmed walnut and for the first time some spark of hope crept into her bruised soul. She began catching at straws of solace and had she known it, placing faith and reliance in the source of all the danger, yet she found a vestige of comfort in the process—and that was something.

"I'd done fergot," she exclaimed as she rose from her knees. "Most like Bas Rowlett's thar—so he'll hev one friend thet men won't skeercely das't ter defy. Bas'll stand by him—like he done afore."

CHAPTER XVIII

RIDING with the weariness of a long convalescence, Parish Thornton passed the house where for two days only he had made his abode, and turned into an upward-climbing trail, gloomily forested, where the tangle brushed his stirrups as he rode. On a "bald-knob" the capriciousness of nature had left the lookout of an untimbered summit, and there he drew rein and gazed down into the basin of a narrow creek-valley a mile distant, where, in a cleared square of farm land, a lazy thread of smoke rose from a low roof.

That house was his objective, and from here on he must drop downward through woods which the eye could penetrate for only a few paces in any direction; where the poison ivy and sumac grew rank and the laurel and rhododendron made entanglements that would have disconcerted a bear. He realized that it was a zone picketed with unseen riflemen, and advisers, who were by no means alarmists, had told him that he could not pass through it alive. Yet he believed there was the possibility, and upon it he was staking everything, that so long as he rode openly and with the audacity of seemingly nickel-plated self-confidence, these watchers by the way would, in sheer curiosity, pass him on to those superiors within the house from whom they took their orders.

His life hung on the correctness of that assumption, but the hazard was a part of the game. He thrust his pistol into a broken oak where a woodpecker had nested, then flapped his reins and clucked to his mule. For the sake of a bold appearance he raised his voice in a spirited and cheerful ballad, but from time to time he broke off since he had stern need for acute listening.

The mule carried him into—and through—a gorge where day-long a shadowy gloom hung among the fern-fringed rocks, and where the austere wildness of dripping cliffs and forbidding woods seemed a stage set for dark and tragic happenings.

He passed not one but several rifles as he went—he even caught the glint of one muzzle among the waxen rhododendron leaves but pretended not to see it, and though on him every barrel was trained, not a trigger was pressed.

The coming of a Harper clansman whom some men called a leader to the conclave of the Doane chieftains was so astounding a phenomenon that it would be a pity to cut it short until its intent was made manifest. So the sentinels along the way held their breath—and their fire.

But Thornton came at last to the place where the forest ran out into more open woods and the "trace" widened to a sledge-trail. He drew his horse to a standstill and halloed loudly, for he knew that at this point all policy of experiment must end. The showdown could no longer be delayed. From near by in the laurel came a prompt voice of response though the speaker remained unseen.

"Halt whar ye're at," it commanded, gruffly. "What does ye want over hyar?"

"I aimed ter hev speech with Hump Doane," answered Thornton, unruffled, counterfeiting a tranquil ease, and from the thicket drifted the unintelligible mingling of two low voices in consultation. Then a second voice spoke:

"Wait right whar ye stands at an' don't aim ter move till I tells ye ye kin."

Punctiliously, Parish Thornton obeyed that injunction, sitting quietly in his saddle with a meditative gaze fixed on the twitching of his mule's ears, until after so long a time a stir in the thicket announced the return of the messenger and a command came succinctly from an invisible speaker.

"Hitch yore critter an' light down. Hump 'lows he'll see ye."

The door at the front of the house was closed now but when Thornton had dismounted and knocked, it opened, and straining his eyes at the darkness of the interior he found himself in a room cloudy with tobacco smoke and crowded with unoccupied chairs—yet empty of any humanity save for himself and the hunchback who stood inhospitably bulking just beyond the threshold.

The trap to the cock-loft was open, though, and the ladder was drawn up so Thornton knew that this seeming of vacancy was specious and that in all likelihood gun barrels were trained from above.

"I've done come," he said, steadily, and he raised his voice so that it would also carry to those unseen individuals whom he believed to be concealed near by, "ter see kin us two carcumvent bloodshed. I bears due authority from ther Thorntons and ther Harpers. We seeks ter aid ye in diskiverin' an' punishin' ther man thet sought ter kill Jim Rowlett—if so be ye'll meet us halfway."

For a moment there was silence in the room, then with a skeptical note of ridicule and challenge the hunchback demanded: "Why didn't ye go ter Jim Rowlett hisself?"

Though he had not been invited to enter Parish Thornton took a forward step into the room, and a bold effrontery proclaimed itself in both the words and the manner of his response.

"I've done come ter both of ye. I knows full well I'm speakin' right now in ther hearin' of numerous men hyar—albeit they're hidin' out from me."

Again there was silence, then Parish Thornton turned his eyes, following the cripple's gaze, toward the open door and found himself gazing into the muzzles of two rifles presented toward his breast. He laughed shortly and commented, "I thought so," then glancing at the cock-loft he saw other muzzles and in the back door which swung silently open at the same moment yet others gave back a dull glint of iron from the sunlight, so that he stood ringed about with levelled guns.

Hump Doane's piercing eyes bored into the face of the intruder during a long and uneasy silence. Then when his scrutiny had satisfied itself he asserted with a blunt directness:

"Ye hain't skeercely got no means of knowin' who's inside my house without ye come by thet knowledge through spyin' on me."

From the darkness of the cock-loft came a passionate voice of such rabid truculence as sounds in the throat of a dog straining at its leash.

"Jest say one word, Hump ... jest say one word an' he won't know nothin' a minute hence!... My trigger finger's itchin' right now!"

"Hold yore cacklin' tongue, Sam Opdyke, an' lay aside thet gun," the cripple barked back with the crack of a mule whip in his voice, and silence again prevailed up there and fell upon the room below.

Again the householder paused and after that he decided to throw aside futile pretence.

"Come on back in hyar, men," he gave curt order. "Thar hain't no need of our askin' no man's lieve ter meet an' talk nohow."

Slowly and somewhat shamefacedly, if the truth must be told, the room refilled itself and the men who trooped heavily back through the two doors, or slid down the lowered ladder, came rifle and pistol armed.

Parish Thornton had no trouble in identifying, by the malevolence on one face, the man who had pleaded for permission to kill him, but the last to saunter in—and he still stood apart at the far threshold with an air of casual detachment—was Bas Rowlett.

"Now," began Hump Doane in the overbearing tone of an inquisitor, "we don't owe ye no explanations as ter which ner whether. We've gathered tergether, as we hev full right ter do, because you Harpers seems hell bent on forcin' warfare down our throats—an' we aims ter carcumvent ye." He paused, and a murmur of general approbation gave force to his announcement, then he added, "But hit's right p'intedly seemly fer *you* ter give us a reason why ye comes oninvited ter my house—at sich a time as this."

It was to old Jim Rowlett that Parish Thornton turned now, ignoring the spokesman who had addressed him, and his voice was clear and even:

"When I come hyar from Virginny," he declared, "I didn't never seek no leadership—an' ther Thorntons in gin'ral didn't never press me ter take over none—but thar was men hyar thet wouldn't look on me in no other guise, an them men war *you Doanes*."

"Us Doanes," broke out the red-eyed Opdyke, explosively, "what hev we got ter do with yore feisty lot?"

"Yes, you Doanes," Thornton shot back at him with a stiffening jaw. "When ther Harpers didn't want me, and I didn't want them, *you* men plum fo'ced me on 'em by seekin' ter hold me accountable fer all thar doin's. Ef I'm goin' ter be accountable, I'm likewise goin' ter be accounted *to*! Now we've done got tergither over thar an' they've despatched me hyar ter give ye our message an' take back yore answer."

"Thet is ter say," amended the firebrand with significant irony, "providin' *we* concludes ter let ye take back *any* message *atall*."

Thornton did not turn his head but held with his eyes the faces of old Jim and Hump Doane and it was still to them that he addressed himself.

"I'm licensed ter bind ther Harpers an' Thorntons by my words—an' my words air plain ones. We proffers ye peace or war, whichever ye chooses: full peace or war ter ther hinges of hell! But peace air what we wants with all our hearts an' cravin's, an' peace hit'll be onlessen ye denies us." He paused for a moment only, then in altered voice he reminded them: "Ef I *don't* go back, my death'll be all the answer they'll need over thar—but ther guilt fer bloodshed an' what follers hit will rest on ther Doanes henceforth. We've done our damndest."

"We're wastin' time an' breath. Kill ther damn moon-calf an' eend hit," clamoured the noisy agitator with the bloodshot eyes. "They only seeks ter beguile us with a passel of fair-seemin' lies."

"No, we hain't wastin' breath, men!" Old Jim Rowlett was on his feet again with the faded misery of defeat gone out of his eyes and a new light of contest kindled in them.

"Every man hyar, save a couple of clamorous fools, hes declared hisself thet ef ther Thorntons hed a trustworthy leader, he favoured dealin' with him. This man says they've got tergither. Let's hear him out."

A muttering chorus of dissent sounded inarticulate protest that needed only a spokesman and Hump Doane raised his hand.

"I've done already hed speech with Mr. Thornton—who come over hyar by another name—an' he refused ter give me any enjoyment. I misdoubts ef he kin do much better now. Nonetheless"—he stepped forward and turned as he spoke, swinging his glance with compelling vigour about the rough circle of humanity—"Nonetheless he's done come, an' claims he's been sent. Stand over thar, Mr. Thornton, in front of the chimbley—an' I aims ter see thet ye gits yore say!"

So Parish Thornton took his place before the hearth and began an argument that he knew to be adversely prejudged.

"Thar's grievances festerin' amongst ther men of yore crowd an' mine alike, but warfare won't ease 'em none," he said at the end; "I've got a grievance myself thet calls fer avengin'—but hit hain't no Harper-Doane matter. I hadn't dwelt hyar amongst ye three days afore I was laywayed—an' I hadn't give just offence ter no man so fur es I knows of."

"But sence ye've done tuck up preachin' a gospel of peace," came the sneering suggestion from the fringe of the crowd, "I reckon ye're willin' ter lay thet grudge by like a good Christian an' turn t'other cheek, hain't ye?"

Thornton wheeled, and his eyes flamed.

"No," he exclaimed in a voice that filled the room. "I'd be a damn hypocrite ef I claimed thet. I swore thet night, whilst I lay thar, thet thet man belonged ter me ter kill, an' I hain't altered thet resolve no fashion, degree ner whipstitch. But thet's a thing thet's separate an' apart from ther war...."

He paused, realizing the difficulty of making clear so complicated and paradoxical a position, while an outburst of derisive laughter fell on the pause as he reached his period. Then someone made ironic comment: "Hit's all beginnin' ter come out now. Ye aims ter hev everybody else fergive thar enemies an' lay down like lambs tergither—atter ye gits teetotally done with yore own shootin' an avengin'."

But Hump Doane seized the hickory staff that leaned against old Jim's chair and pounded with it on the table.

"Silence!" he roared; "suffer ther feller ter git through!"

"I don't aim ter bushwack ner layway nobody," went on Thornton, obdurately. "Hit wouldn't content me ef I wasn't facin' my enemy when I sottled with him—an' hit's a private business—but this other matter te'ches everybody. Hit denotes y'ars of blood-spillin' an' murder—of women an' children sufferin' fer causes thet hain't no wise th'ar fault ner doin'."

The cripple still stood regarding the man by the hearth with a brow knit in absorption, and so tense was his expression that it seemed to bind the others to a brief, waiting silence until Hump himself slowly broke the tension.

"I said I aimed ter give ye a chanst ter hev yore say out.... Hev ye got fur enough ter let me ask ye a question?"

The nodded head of assent gave permission and Doane inquired briefly:

"Does I onderstand ye ter plead fer ther Harpers an' ther Doanes ter 'bide by ther old truce—an' yit ter seek ter stand free yore own self an' kill yore own enemy?"

Old Jim Rowlett leaned forward gripping his staff head with eyes of incredulity, and from the chest of the others sounded long-drawn breaths, inarticulate yet eloquent of scorn and sneering repudiation.

But Parish Thornton retained the earnest and resolute poise with which he had spoken before as he made his answer.

"I means thet I don't aim ter suffer no craven betrayal an' not hit back. I means thet ther feller thet sought my murder is *my man ter kill*, but I aims ter kill him in f'ar combat. Hit jest lays between him an' me an' hit hain't no Harper-Doane affair, nohow."

Hump Doane shook his head and there was in the gesture both decisiveness and disappointment.

"What commenced ter look like a mighty hopeful chanst falls flat right hyar an' now," he announced. "I'd begun ter hope thet atter all a leader hed done riz up amongst us, but I sees when ye talks erbout peace ye means a peace fer other folks thet don't bind ner hamper yoreself. Thar hain't nuthin' but folly in seekin' ter build on a quicksand like thet."

"I told ye fust-off thet we war a-wastin' time an' breath," broke out Opdyke, furiously. "A man only courts trouble when he seeks ter gentle a rattlesnake—ther seemly thing ter do air ter kill hit."

Parish Thornton turned his eyes and studiously appraised the hare-brained advocate of violence, then he said, again addressing Hump Doane:

"An' yit hit's a pity, Mr. Doane, ef you an' me kain't some fashion git tergither in accord. We've got ther same cravin's in our hearts, us two."

"I come ter ye onc't afore, Mr. Thornton," the cripple reminded him, "an' I asked ye a question thet ye didn't see fit ter answer. Now I asks ye ter lay by one grudge, when ye calls on us ter lay by many—an' hit happens ergin thet ye don't see fit ter yield no p'int. Mebby me an' you *have* got cravin's fer betterment in common betwixt us—but hit 'pears like thar's always one diff'rence risin' up thet balks everything else."

CHAPTER XIX

EVEN the peppery Opdyke did not venture to break heatedly in on the pause that followed those regretful words. Into the minds of the majority stole a sense, vague and indefinable it is true, that a tragic impasse was closing on a situation over which had flashed a rainbow gleam of possible solution. Ahead lay the future with its sinister shadows—darker because of the alternative they had glimpsed in its passing.

Old Jim Rowlett came to his feet, and drew his thin shoulders back—shoulders that had been broad and strong enough to support heavy burdens through trying years.

"Mr. Thornton," he said, and the aged voice held a quaver of emotion which men were not accustomed to hearing it carry, "I wants ter talk with ye with ther severe freedom of an' old man counsellin' a young 'un—an' hit hain't ergoin' ter be in ther manner of a Doane argyfyin' with a Harper so much es of a father advisin' with a son."

The young Thornton met those eyes so full of eagle boldness yet so tempered with kindness, and to his own expression came a responsive flash of that winning boyishness which these men had not seen on his face before.

"Mr. Rowlett," he made answer in a low and reverent voice, "I hain't got no remembrance of my pappy, but I'd love ter think he favoured ye right smart."

Slowly the low-pitched voice of the Nestor began to dominate the place, cloudy with its pipe-smoke and redolent with the stale fumes of fires long dead. Like some Hogarth picture against a sombre background the ungainly figures of men stood out of shadow and melted into it: men unkempt and tribal in their fierceness of aspect.

Old Jim made to blaze again before their eyes, with a rude and vigorous eloquence, all the ruthless bane of the toll-taking years before the truce. He

stripped naked every specious claim of honour and courage with which its votaries sought to hallow the vicious system of the vendetta. He told in words of simple force how he and Caleb Harper had striven to set up and maintain a sounder substitute, and how for the permanence of that life-work they had prayed.

"Caleb an' me," he said at last, "we didn't never succeed without we put by what we asked others ter forego. Yore wife's father was kilt most foully—an' Caleb looked over hit. My own boy fell in like fashion, an' my blood wasn't no tamer then thet in other veins—but yit I held my hand. Ye comes ter us now, frettin' under ther sting of a wrong done ter ye—an' I don't say yore wrath hain't righteous, but ye've done been vouchsafed sich a chanst as God don't proffer ter many, an' God calls fer sacrifices from them elected ter sarve him."

He paused there for a moment and passed his knotted hand over the parchment-like skin of his gaunt temples, then he went on: "Isaac offered up Jacob—or leastways he stud ready ter do hit. Ye calls on us ter trust ye an' stand with ye, an' we calls on *you* in turn fer a pledge of faith. Fer God's sake, boy, be big enough ter bide yore time twell ther Harpers an' Doanes hev done come outen this distemper of passion. I tells ye ye kain't do no less an' hold yore self-esteem."

He paused, then came forward with his old hand extended and trembling in a palsy of eagerness, and despite the turmoil of a few minutes before, such a taut silence prevailed that the asthmatic rustiness of the old man's breath was an audible wheezing through the room.

The young messenger had only to lift his hand then and grasp that outheld one—and peace would have been established—yet his one free arm seemed to him more difficult to lift in a gesture of compliance than that which was bandaged down.

His own voice broke and he answered with difficulty: "Give me a leetle spell ter ponder—I kain't answer ye off-hand."

Thornton's eyes went over, and in the lighted doorway fell upon Bas Rowlett sitting with his features schooled to a masked and unctuous hypocrisy, but back of that disguise the wounded man fancied he could read

the satisfaction of one whose plans march toward success. His own teeth clicked together and the sweat started on his temples. He had to look away—or forget every consideration other than his own sense of outrage and the oath he had sworn to avenge it.

But the features of old Jim were like the solace of a reef-light in a tempest; old Jim whose son had fallen and who had forgiven without weakness.

If what Parish knew to be duty prevailed over the passionate tide that ran high in temptation, what then? Would he live to serve as shepherd when his undertaking under the private compact had been waived and the other man stood free to indulge his perfidy?

Finally he laid his hand on the shoulder of the veteran.

"Mr. Rowlett," he declared, steadily, "I've got ter ask ye ter give me full twenty-four hours afore I kin answer ye fer sartain. Will yore men agree ter hold matters es they stands twell this time termorrer?"

Jim Rowlett glanced at Hump Doane and the cripple nodded an energetic affirmation. He was hard to convince but when convinced he was done with doubt.

"I'd ruther heer Mr. Thornton talk thetaway," he declared, crisply, "then ter hev him answer up heedless an' over-hasty."

With his knee brushing against that of old Jim Rowlett, Parish Thornton rode away from that meeting, and from the sentinels in the laurel he heard no hint of sound.

When he had come to the place where his pistol lay hidden he withdrew it and replaced it in his pocket, and a little farther on where the creek wound its way through a shimmering glade and two trails branched, the veteran drew rein.

"I reckon we parts company hyar," he said, "but I feels like we've done accomplished a right good day's work. Termorrow Hump an' me'll fare over ter yore house and git yore answer."

"I'm obleeged," responded the new chief of the Thorntons, but when he was left alone he did not ride on to the house in the river bend. Instead he went to the other house upon whose door his first letter of threat had been posted, and hitching his horse in its dilapidated shed he set out on foot for the near-by place where Bas Rowlett dwelt alone.

Twenty-four hours had been all he could ask in reaching a decision on such an issue, yet before he could make answer much remained to be determined, and in that determination he must rely largely on chances which he could not hope to regulate or force into a pattern of success.

He had, for example, no way of guessing how long it would be before Bas returned to his farm or whether, when he came, he would be alone—and to-morrow's answer depended upon an unwitnessed interview between them.

But he had arrived on foot and taken up his place of concealment at the back of the log structure with only a half-hour of waiting when the other man appeared, riding in leisurely unconcern and unaccompanied.

Thornton loosed his pistol and drew back into the lee of the square stone chimney where he remained safe from discovery until the other had passed into the stable and begun to ungirth his saddle.

The house stood remote from any neighbouring habitation, and the road at its front was an infrequently used sledge trail. The stable was at its side, while back of the buildings themselves, angling off behind the screening shoulder of a steep spur of hillside, stretched a small orchard where only gnarled apple trees and a few "bee-gums" broke a small and level amphitheatre into which the possible passerby could not see.

The lord of this manor stood bent, his fingers wrestling with the stubbornness of a rusted buckle, when he heard at his back, low of tone but startlingly staccato in its quality of imperativeness, the single syllable, "Bas!"

Rowlett wheeled, leaping back with a hand sweeping instinctively to his holster—but he arrested that belligerent gesture with a sudden paralysis of caution because of the look in the eyes of the surprise visitor who stood

poised with forward-bending readiness of body, and a revolver levelled in a hand of bronze steadiness.

"I'm on my feet now, Bas," came a quiet voice that chilled the hearer with an inexplicable rigour, "I reckon ye hain't fergot my promise."

Rowlett gave way backward until the wall obstructed his retreat, and in obedience to the unspoken command in the eyes of his visitor, he extended both arms high above his head, but while he stood unmoving, his adroit mind was racing.

He knew what he would do if the situation were reversed, and he believed that the other was waiting only to punish him with a castigation of vengeful words before he shot him down and left him lying in the trampled straw and manure of that unclean stable.

Now he had to brace himself against the tortures of a physical fear from which he had believed himself immune. So he stood breathing unevenly and waiting, and while he waited the temper of his nerves was being drawn as it is drawn from over-heated steel.

"Come on with me," commanded Thornton.

The surprised man obeyed sullenly, casting an anxious eye about in the slender hope of interruption, and when they reached the orchard where even that chance ended Parish Thornton spoke again:

"When us two tuck oath ter sottle matters betwixt ourselves—I didn't skeercely foresee what was comin' ter pass. Now I kain't seek ter make ther compact hold over till a fairer time, ner seek ter change hit's terms, nuther, without ye're willin'."

"Suppose I hain't willin'?"

For answer Parish Thornton sheathed his weapon.

"Now," he said with a deadly quiet, "we're on even terms. Either you an' me draws our pistols an' fights twell one of us draps dead or else——"

He paused, and saw the face of his enemy go green and pasty as Rowlett licked his lips yet left his hands hanging at his sides. At length the intriguer

demanded, "Or else—what?"

Thornton knew then beyond doubt what he already believed. This man was quailing and had no stomach for the fair combat of duel yet he would never relinquish his determination to glut his hatred by subterfuge.

"Or else ye've got ter enter inter a *new* compact."

"What's thet?" A ring of hope sounded in the question, since in any fresh deal lies the possibility of better fortune.

"Ter go on holdin' yore hand twell this feud business blows over—an' I sarves notice on ye thet our own private war's opened up ergin."

"I reckon," said Rowlett, seeking to masquerade his relief under the semblance of responsible self-effacement, "common decency ter other folks lays thet need on both of us alike."

"I'm offerin' ye a free choice," warned Thornton, "but onless ye're ready ter fight hyar an' now ye've p'int-blank got ter walk in thar an' set down in handwrite, with yore name signed at ther bottom, a full confession thet ye hired me shot thet night."

"Like hell I will!" Bas roared out his rejection of that alternative with his swarthy cheekbones flaming redly, and into his rapidly and shiftily working mind came the comfort of a realization which in that first surprise and terror had escaped him. It was not to his enemy's first interest to goad him into a mortal clash, since that would make it impossible to give a favourable answer to the leaders to-morrow—and incidentally it would be almost certain to mean Thornton's own death.

Now he straightened up with a ghost of renewed bravado and shook his head while an enigmatical grin twisted his lips.

"S'posin'," he made insolent suggestion, "I don't see fit ter do nuther one ner t'other? S'posin' I jest tells ye ter go ter hell?"

Parish had anticipated that question and was prepared, if he were forced so far, to back threat with execution.

"I aims ter *make* ye fight—or agree—either one," he answered, evenly, and when Bas laughed at him he stepped forward and, with lightning quickness, struck the other squarely across the face.

Though the blow fell open-handed it brought blood from the nose and spurts of insane fury from the eyes.

Rowlett still kept his arms down, but he lunged and sought to drive his knee to his adversary's groin, meaning to draw and fire during the moment of paralyzing pain that must ensue.

As it happened, though, Parish had also anticipated some such manœuvre of foul fighting, and he sprung aside in time to let the unbalanced Rowlett pitch stumblingly forward. When he straightened he was again looking into the muzzle of a drawn pistol.

Rowlett had been drawing his own weapon as he lunged, but now he dropped it as if it had scalded his fingers, and once more hastily raised his hands above his head.

The whole byplay was swift to such timing as belongs to sleight-of-hand, but the split-second quickness of the left-hander was as conclusively victorious as if the matter had been deliberate, and now he had margin to realize that he need not fire—for the present.

"Ef ye'd been jest a mite quicker in drawin', Bas," he declared, ironically, "or jest a mite tardier in throwin' down thet gun—I'd hev hed ter kill ye. Now we kin talk some more."

The conflict of wills was over and Rowlett's voice changed to a whine as he asked beseechingly: "What proof hev I got ye won't show thet paper ter some outsider afore we fights hit out?"

"Ye've got my pledge," answered Thornton, disdainfully, "an' albeit ye knows ye don't keep 'em yoreself, ye knows thet I don't niver break 'em. Ye've got thet knowledge, moreover, thet I hain't a-goin' ter be content save ter sottle this business with ye fust handed—man ter man." He paused there, and his tone altered when he continued: "Thet paper'll lay whar no man won't niver see hit save myself—unless ye breaks yore word. Ef I gits murdered, one man'll know whar thet paper's at—but not what's in hit. He'll

give hit over ter ther Harpers an' they'll straightway hunt ye down an' kill ye like a mad dog. What does ye say?"

The other stood with face demoniacally impassioned, yet fading into the pasty gray of fear—the fear that was the more unmanageable because it was a new emotion which had never risen to confront him before.

"I knows when I've got ter knock under," he made sullen admission, at last, "an' thet time's done come now. But I hain't ther only enemy ye've got. S'pose atter all ther war breaks out afresh an' ye gits slain in battle—or in some fray with other men. Then I'd hev ter die jest ther same, albeit I didn't hev no hand in ther matter."

Thornton laughed.

"I hain't seekin' ter make ye gorryntee my long life, Bas. Ef I falls in any pitch-battle or gits kilt in a fashion thet's p'intedly an outside matter, ye hain't a-goin' ter suffer fer hit."

As the long-drawn breath went out between the parted lips of Bas Rowlett he wilted into a spectacle of abject surrender, then turning he led the way to the house, found pencil and paper, and wrote laboriously as the other dictated. At the end he signed his name.

Then Parish Thornton said, "Now I aims ter hev ye walk along with me till I gits my horse an' starts home. I don't 'low ter trust ye till this paper's put in a safe place, an' should we meet up with anybody don't forgit—I won't fail ter shoot ef ye boggles!"

CHAPTER XX

THE sun, dropping into a western sea of amber and opal, seemed to grow in diameter. Then it dipped until only a naming segment showed and the barriers darkened against the afterglow.

Still Parish Thornton had not come home and Dorothy standing back of the open window pressed both hands over eyes that burned ember hot in their sockets.

Old Aaron Capper had mounted his horse a half-hour ago and ridden away somewhere—and she knew that he, too, had begun to fret against this insupportable waiting, and had set out on the unpromising mission of searching for the ambassador—who might already be dead.

A nervous chill shook the girl and she started up from the seat into which she had collapsed; frightened at the incoherent lack of sanity that sounded from her own throat.

She went again to the door and looked out into a world that the shadows had taken, save where the horizon glowed with a pallid green at the edge of darkness. Leaning limply against the uprights of the frame and clasping her hands to her bosom, she distrusted her senses when she fancied she heard voices and saw two horsemen draw up at the stile and swing down from their saddles. Then she crumpled slowly down, and when Aaron and Parish Thornton reached the house they found her lying there insensible.

They carried her to the four-poster bed and chafed her wrists and poured white whiskey between her pale lips until she opened her eyes in the glow of the lighted lamp.

"Did they hearken ter ye?" she whispered, and the man nodded his head.

"I compassed what I aimed at," he told her, brokenly, "but when I seed ye layin' thar, I feared me hit hed done cost too dear."

"I'm all right now," she declared five minutes later; "I war jest terrified about ye. I had nervous treemors."

The stars were hanging low and softly magnified when Aaron Capper mounted to ride away, and at the stile he leaned in his saddle and spoke in a melancholy vein.

"I seeks ter be a true Christian," he said, "an' I ought ter be down on my marrow-bones right now givin' praise an' thanksgivin' ter ther Blessed Lord, who's done held back ther tormints of tribulation, but—" he broke off there and his voice trailed off into something like an internal sob—"but yit hit seems ter me like es ef my three boys air sleepin' res'less an' oneasy-like in th'ar graves ternight."

Parish Thornton laid a hand on the horseman's knee.

"Aaron," he admitted, "I was called on ter give a pledge of faith over yon—an' I promised ter bide my time, too. I reckon I kin feel fer ye."

Informal and seemingly loose of organization was that meeting of the next afternoon when three Harpers and three Doanes met where the shade of the walnut tree fell across dooryard and roadway. The sun burned scorchingly down, and waves of heat trembled vaporously along the valley, while over the dusty highway small flocks of white and lemon butterflies hung drifting on lazy wings. From the deep stillness of the forest came the plaintive mourning of a dove.

Jim Rowlett, Hump Doane, and another came as representatives of the Doanes, and Parish Thornton, Aaron Capper, and Lincoln Thornton met them as plenipotentiaries of the Harpers.

When commonplaces of greeting had ended, Jim Rowlett turned to Aaron Capper as the senior of his group:

"Aaron," he said, "this land's hurtin' fer peace an' human charity. We craves hit, an' Mr. Thornton hyar says *you* wants hit no less. We've come ter git yore answer now."

"Jim," responded Aaron, gravely, "from now on, I reckon when ye comes ter ther Harpers on any sich matter as thet Parish Thornton's ther man ter

see. He stands in Caleb Harper's shoes."

That was the simple coronation ceremony which raised the young man from Virginia to the position of responsibility for which he had had no wish and from which he now had no escape. It was his acknowledgment by both clans, and to him again turned Jim Rowlett, with an inexpressible anxiety of questioning in his aged eyes.

Then Parish Thornton held out his hand.

"I'm ready," he said, "ter give ye my pledge an' ter take your'n."

The two palms met and the fingers clasped, and into six unemotional faces flashed an unaccustomed fire.

"Thar's jest one thing more yit," suggested the practical minded hunchback. "Some few wild fellers on both sides of ther line air apt ter try out how strong we be ter enfo'ce our compact. Hit's kinderly like young colts plungin' ergainst a new hand on ther bridle-rein—we've got ter keep cool-headed an' patient an' ack tergether when a feller like thet shows up."

Parish Thornton nodded, and Hump Doane took off his hat and ran his hand through his bristling hair.

"An' now," he announced, "we'll ride on home an' pass ther word along thet matters stands es they stud in old Caleb's day an' time." He paused then, noting the weariness on the face of Jim Rowlett, added tentatively: "All of us, thet is ter say, save Old Jim. He's sorely tuckered out, an' I reckon ef ye invited him ter stay ther night with ye, Mr. Thornton, hit would be a kinderly charitable act."

"He's mighty welcome," declared the host, heartily.

"Dorothy'll look atter him like his own daughter an' see that he gits enjoyed."

* * *

At Jake Crabbott's store the loungers were in full attendance on the morning after Parish Thornton's ride to Hump Doane's house, and the rumours that found currency there were varied and for the most part

inaccurate. But the fact that Parish Thornton had ridden through picketed woods, promulgated some sort of ultimatum and come away unharmed, had leaked through and endowed him with a fabulous sort of interest.

Young Pete Doane was there, and since he was the son of the man under whose roof the stirring drama had been staged, he assumed a magnified importance and affected a sphinx-like silence of discretion to mask his actual ignorance. Hump Doane did not confide everything he knew to this son whom he at once loved and disdained.

Young Doane stood indulging in rustic repartee with bright-eyed Elviry Prooner, a deep-bosomed Diana, who, next to Dorothy Thornton, was accounted the "comeliest gal along siv'ral creeks."

When Bas Rowlett joined the group, however, interest fell promptly away from Pete and centred around this more legitimate pole. But Bas turned on them all a sullenly uncommunicative face, and the idlers were quick to recognize and respect his unapproachable mood and to stand wide of his temper.

After he had bought twist tobacco and lard and salt and chocolate drops, Bas summoned Pete away from his temporary inamorata with an imperative jerk of his head and the youthful hillsman responded with the promptness of a lieutenant receiving instructions from his colonel. When the two were mounted, the son of the hunchback gained a more intimate knowledge of actual conditions than he had been able to glean at home.

"Ther upshot of ther matter's this, Pete," declared Bas, earnestly. "Sam Opdyke lef' thet meetin' yestidday with his mind made up ter slay this man Thornton—an' ther way things hev shaped up now, hit won't no fashion do. He's got ter be halted—an' I kain't afford ter be knowd in ther matter one way ner t'other. Go see him an' tell him he'll incense everybody an' bring on hell's own mischief ef he don't hold his hand. Tell him his chanst'll come afore long but right now, I say he's got ter *quit hit*."

An hour later the fiery-tempered fellow, still smarting because his advice had been spurned yesterday, straightened up from the place outside his stable door where he was mending a saddle girth and listened while the envoy from Bas Rowlett preached patience.

But it was Bas himself who had coached Sam Opdyke with the incitement and inflammatory counsel which he had voiced the day before. Now the man had taken fire from the flames of his own kindling—and that fire was not easy to quench. He had been, at first, a disciple but he had converted himself and had been contemptuously treated into the bargain. The grievance he paraded had become his own, and the nature Bas had picked for such a purpose was not an April spirit to smile in sunlight twenty-four hours after it had fulminated in storm.

Opdyke gazed glumly at his visitor, as he listened, then he lied fluently in response.

"All right. I had my say yestidday an' now I'm done. Next time ther circuit-rider holds big meetin' I'm comin' through ter ther mourners' bench an' howl out sanctimony so loud I'll bust everybody's eardrums," and the big man laughed sneeringly.

Yet an hour later Opdyke was greasing and loading his squirrel gun.

* * *

When the supper dishes had been cleared away that night, Old Jim and Parish Thornton sat for a long while in the front room, and because it was a sultry night and peace had been pledged, both door and window stood open.

Dorothy sat listening while they talked, and the theme which occupied them was the joint effort that must be made on either side the old feud line for the firm enforcement of the new treaty. They discussed plans for catching in time and throttling by joint action any sporadic insurgencies by which the experimentally minded might endeavour to test their strength of leadership.

"Now thet we stands in accord," mused Old Jim, "jestice kin come back ter ther cote-house ergin—an' ther jedge won't be terrified ter dispense hit, with me sittin' on one side of him an' you on t'other. Men hev mistrusted ther law so long es one crowd held all hits power."

Outside along the roadside margin of deep shadow crept the figure of a man with a rifle in his hand. It was a starlit night with a sickle of new moon,

neither bright nor yet densely dark, so that shapes were opaquely visible but not clear-cut or shadow-casting.

The man with the long-barrelled rifle none the less avoided the open road and edged along the protecting growth of heavy weed stalk and wild rose thicket until he came to a point where the heavier shadow of the big walnut tree blotted all shapes into blackness. There he cautiously climbed the fence, taking due account of the possible creaking-of unsteady rails.

"I'd love ter see men enabled ter confidence ther co'te ergin," said Parish Thornton, answering his old guest after a long and meditative silence. "Hit would ease a heap of torment. Up ter now they've hed ter trust tha'r rifle-guns."

As he spoke his eyes went to the wall by the door where during these weeks of disuse his own rifle had stood leaning, and his wife smiled as her glance followed his. She was thinking that soon both his arms would be strong enough to use it again, and she was happy that he would need it only for hunting.

The man outside had by this time gained the dooryard and stood beside the tree trunk where the shadow was deepest. He raised his long barrel and steadied it against the bark, not knowing that as coincidence would have it the metal rested against those initials which had been carved there generations before, making of the tree itself a monument to the dead.

Through the raised window he could see two heads in the lamplight; those of Parish Thornton and his wife, and it was easy to draw his sights upon the point just below the left shoulder blade of the man's back. Old Man Rowlett sat too far to one side to be visible.

High in the top of the walnut a shattered branch had hung in a hair balance since the great storm had stricken it. High winds had more than once threatened to bring this dead wood down, yet it had remained there, out of reach and almost out of sight but still precariously lodged.

The wind to-night was light and capricious, yet it was just as the man, who was using that tree as an ambush, established touch between finger and trigger, that the splintered piece of timber broke away from its support and ripped its way noisily downward until a crotch caught and held it. Startled

by that unexpected alarm from above, given as though the tree had been a living sentinel, the rifleman jerked his gun upward as he fired.

The bullet passed through the window to bury itself with a spiteful thud in the wall above the hearth. Both men and the woman came to their feet with astonished faces turned toward the window.

Parish Thornton reached for the pistol which he had laid on the mantel, but before he had gained the door he saw Dorothy flash past him, seizing his rifle as she went, and a few seconds later he heard the clean-lipped snap of its voice in a double report.

"I got him," panted the young woman, as her husband reached her side. "Git down low on ther ground!" She did likewise as she added in a guarded whisper, "I shot at his legs, so he's still got his rifle an' both hands. He drapped right thar by ther fence."

They went back into the house and old Jim Rowlett said grimly: "Now let me give an order or two. Thornton, you fotch yore pistol. Gal, you bring thet rifle-gun an' give me a lantern. Then come out ther back door an' do what I tells ye."

A few minutes later the voice of the old Doane was raised from the darkness:

"Whoever ye be over yon," it challenged, "lift up both yore hands. I'm a-goin' ter light a lantern now an' come straight to'rds ye—but thar's a rifle-gun ter ther right of ye an' a pistol ter ther left of ye—an' ef ye makes a false move both of 'em'll begin shootin'."

Out there by the fence a voice answered sullenly in recognition of the speaker—and realization of failure: "I hain't ergoin' ter shoot no more. I gives up."

CHAPTER XXI

THEY helped Opdyke into the house and bandaged a wound in his leg, but old Jim sat looking on with a stony face, and when the first aid had been administered he said shortly: "Parish Thornton an' me hev jest been a-studyin' erbout how ter handle ther likes of *you*. Ye come in good season—an' so fur as kin be jedged from ther place whar thet ball hit, no man kin say which one of us ye shot at. We aims ter make a sample of ye, fer others ter regulate theirselves by, an' I reckon ye're goin' ter sulter in ther penitenshery fer a spell of y'ars."

And when County Court day came there rode into town men of both factions, led by Hump Doane and Parish Thornton, and the courtroom benches were crowded with sightseers eager to hear that examining trial. It had been excitedly rumoured that Opdyke would have something of defiant insurgency to say and that perhaps a force would be found at his back sufficiently strong to give grim effect to his words.

The defendant himself had not been "hampered in the jail-house" but had walked free on his own recognizance, and, if report were true, he had been utilizing his freedom to organize his sympathizers for resistance. All in all, it promised to be a court day worth attending, with a measuring of neighbourhood influences, open and hidden.

Now the judge ascended the bench and rapped with his gavel, and when the name of Sam Opdyke was called, heads craned, feet shuffled, and an oppressive silence fell.

Then down the centre aisle, from rear door to crescent-shaped counsel table, stalked Opdyke himself with a truculent glitter in his eyes and a defiant swing to his shoulders, though he still limped from his recent wounding. A pace behind him walked two black-visaged intimates.

He looked neither to right nor left, but held the eyes of the man on the bench, and the judge, who was slight of stature, with straw-coloured hair

and a face by no means imposing or majestic, returned his glance unwaveringly.

Then at the bar Opdyke halted, with nothing of the suppliant in his bearing. He thrust a hand into each coat pocket, and with an eloquent ringing of ironmongery, slammed a brace of heavy revolvers on the table before him. The two henchmen stood silent, each with right hand in right pocket.

"I heered my name called," announced the defendant in a deep-rumbling voice of challenge, "an' hyar I be—but, afore God on high, I aims ter git me jestice in this co'te!"

Had the man on the bench permitted the slightest ripple of anxiety to disconcert his steadfastness of gaze just then pandemonium was ripe for breaking in his courtroom. But the judge looked down with imperturbable calm as though this were the accustomed procedure of his court, and when a margin of pause had intervened to give his words greater effect he spoke in a level voice that went over the room and filled it, and he spoke, not to the defendant, but to Joe Bratton the "high-sheriff" of that county.



"Dorothy flashed past him ... and a few seconds later he heard the clean-lipped snap of the rifle in a double report"

"Mr. Sheriff," he said, slowly and impressively, "the co'te instructs you to disarm Sam Opdyke an' put him under arrest fer contempt. An', Mr. Sheriff, when I says ter arrest him ... I mean to put him in ther jail ... an' I don't *only* mean to put him in ther jail but in a cell and leave him there till this co'te gets ready for him. When this co'te *is* ready, it will let you know." He paused there in the dead hush of an amazed audience, then continued on an even key: "An', Mr. Sheriff, if there's any disquiet in your mind about your ability to take this prisoner into custody, an' hold him securely in such custody, the co'te instructs you that you are empowered by law to call into service as your posse every able-bodied man in the jurisdiction of this county.... Moreover, Mr. Sheriff, the co'te suggests that when you get ready to summons this posse—an' it had ought to be right here an' now—you call me fer the fust man to serve on it, an' that you call Hump Doane and Parish Thornton fer ther second an' third men on it...."

A low wave of astonished voices went whispering over the courtroom, from back to front, but the judge, ignoring the two revolvers which still lay on the table fifteen feet away, and the livid face of the man from whose pockets they had been drawn, rapped sharply with his gavel.

"Order in the co'teroom," he thundered, and there was order. Moreover, before the eyes of all those straining sight-seers, Opdyke glanced at the two men who composed his bodyguard and read a wilting spirit in their faces. He sank down into his chair, beaten, and knowing it, and when the sheriff laid a hand on his shoulder, he rose without protest and left his pistols lying where he had so belligerently slammed them down. His henchmen offered no word or gesture of protest. They had seen the strength of the tidal wave which they had hoped to outface, and they realized the futility of any effort at armed resistance.

* * *

It was when he had ridden home from the county seat after attending that session of the County Court, that Parish Thornton found Bas Rowlett smoking a pipe on his doorstep.

That was not a surprising thing, for Bas came often and maintained flawlessly the pose of amity he had chosen to assume. In his complex make-up paradoxes of character met and mingled, and it was possible for him, despite his bitter memories of failure and humiliation, to smile with just the proper nicety of unrestraint and cordiality.

Behind the visitor in the door stood Dorothy with a plate and dish towel in her hand, and she was laughing.

"Howdy, Parish," drawled Bas, without rising, as the householder came up and smiled at his wife. "How did matters come out over thar at co'te?"

"They come out with right gay success," responded the other, and in his manner, too, there was just the proper admixture of casualness and established friendship. "Sam Opdyke is sulterin' in ther jail-house now."

"Thet's a God's blessin'," commended Bas, and then as Dorothy went back to the kitchen Parish lifted his brows and inquired quietly, "Ye war over hyar yistiddy an' the day afore, warn't ye, Bas?"

The other nodded and laughed with a shade of taunt in his voice.

"Yes. Hit pleasures me ter drap in whar I always gits me sich an old-time welcome."

"Did ye aim ter stay an' eat ye some dinner?"

"I 'lowed I mout—ef so be I got asked."

"Well ye gits asked ter go on home, Bas. I'm askin' ye now—an' hereatter ye needn't bother yoreself ter be quite so neighbourly. Hit mout mek talk ef ye stayed away altogether—but stay away a heap more than what ye've been doin'."

The other rose with a darkening face.

"Does ye aim ter dictate ter me not only when an' whar's we fights our battles at, but every move I makes meanwhile?"

"I aims ter dictate ter ye how often ye comes on this place—an' I orders ye ter leave hit now. Thar's ther stile—an' ther highway's open ter ye. Begone!"

"What's become of Bas?" inquired the young wife a few minutes later, and her husband smiled with an artless and infectious good humour. "He hed ter be farin' on," came his placid response, "an' he asked me ter bid ye farewell fer him."

But to Bas Rowlett came the thought that if his own opportunities of keeping a surveillance over that house were to be circumscribed, he needed a watchman there in his stead.

In the first place, there was a paper somewhere under that roof bearing his signature which prudence required to be purloined. So long as it existed it hampered every move he made in his favourite game of intrigue. Also he had begun to wonder whether any one save Caleb Harper who was dead knew of that receipt he had given for the old debt. Bas had informed himself that, up to a week ago, it had not been recorded at the court house—and quite possibly the taciturn old man had never spoken of its nature to the girl. Caleb had mentioned to him once that the paper had been put for

temporary safekeeping in an old "chist" in the attic, but had failed to add that it was Dorothy who placed it there.

Then one day Bas met Aaron Capper on the highway.

"Hes Parish Thornton asked ye ter aid him in gittin' some man ter help him out on his farm this fall?" demanded the elder who, though he religiously disliked Bas Rowlett, was striving in these exacting times to treat every man as a friend. Bas rubbed the stubble on his chin reflectively.

"No, he hain't happened ter name hit ter me yit," he admitted. "But men's right hard ter git. They've all got thar own crops ter tend."

"Yes, I knows thet. I war jest a-ridin' over thar, an' hit come ter me thet ye mout hev somebody in mind."

"I'd love ter convenience ye both," declared Bas, heartily, "but hit's a right bafflin' question." After a pause, however, he hazarded the suggestion: "I don't reckon ye've asked Sim Squires, hev ye? Him an' me, we hain't got no manner of use for one another, but he's kinderly kin ter *you*—an' he bears the repute of bein' ther workin'est man in this county."

"Sim Squires!" exclaimed old Aaron. "I didn't niver think of him, but I reckon Sim couldn't handily spare ther time from his own farm. Ef he could, though, hit would be mighty pleasin'."

"I reckon mebbly he couldn't," agreed Bas. "But ther thought jest happened ter come ter me, an' he don't dwell but a whoop an' a holler distant from Parish Thornton's house."

That same day, in pursuance of the thought "that just happened to come to him," Bas took occasion to have a private meeting with the man for whom "he didn't hev no manner of use," and to enter into an agreement whereby Sim, if he took the place, was to draw double pay: one wage for honest work and another as spy salary.

Three days later found Sim Squires sitting at the table in Parish Thornton's kitchen, an employee in good and regular standing, though at night he went back to his own cabin which was, in the words of his other employer, "only jest a whoop an' a holler away."

Household affairs were to him an open book and of the movements of his employer he had an excellent knowledge.

CHAPTER XXII

THE earliest frost of late September had brought its tang to the air with a snappy assertion of the changing season, when Parish Thornton first broached to Dorothy an idea that, of late, had been constantly in his mind. Somehow that morning with its breath of shrewd chill seemed to mark a dividing line. Yesterday had been warm and languorous and the day before had been hot. The ironweed had not long since been topped with the dusty royalty of its vagabond purple, and the thistledown had drifted along air currents that stirred light and warm.

"Honey," said the man, gravely, as he slipped his arm about Dorothy's waist on that first cold morning, when they were standing together by the grave of her grandfather, "I hain't talked much erbout hit—but I reckon my sister's baby hes done hed hits bornin' afore now."

"I wonder," she mused, as yet without suspicion of the trend of his suggestions, "how she come through hit—all by herself thetaway?"

The man's face twitched with one of those emotional paroxysms that once in a long while overcame his self-command. Then it became a face of shadowed anxiety and his voice was heavy with feeling.

"I've done been ponderin' thet day an' night hyar of late, honey. I've got ter fare over thar an' find out."

Dorothy started and caught quickly at his elbow, but at once she removed her hand and looked thoughtfully away.

"Kain't ye write her a letter?" she demanded. "Hit's walkin' right inter sore peril fer ye ter cross ther state line, Cal."

"An' yit," he answered with convincing logic, "I'd ruther trust ter my own powers of hidin' out in a country whar I knows every trail an' every creek bed, then ter take chances with a letter. Ef I wrote one hit would carry a post-office mark on ther envelop ter tell every man whence hit come."

She was too wise, too sympathetic, and too understanding of that clan loyalty which would deny him peace until he fulfilled his obligation, to offer arguments in dissuasion, but she stood with trouble ripples in her deep eyes until at last she asked:

"When did ye aim ter start—over yon?"

"Hit ought ter be right soon now, while travellin's good. Come snowfall hit'll git ter be right slavish journeyin'—but I don't 'low ter tarry there long. I kain't noways be content away from ye."

The thoughts that were occupying Dorothy were for the most part silent ones but at length she inquired:

"Why don't ye bring her back with ye, ter dwell hyar with us—her an' ther baby?"

Thornton shook his head, but his heart warmed because she had asked.

"Hit wouldn't do—jest yit. Folks mout seek ter trace me by follerin' her. I kin slip in thar an' see her, though, an' mebbby comfort her some small degree—an' then slip back home ergin without no man's knowin' I've ever been thar."

Instinctively the wife shuddered.

"Ef they *did* find out!" she exclaimed in a low voice, and the man nodded in frank comprehension.

"Ef they did," he answered, candidly, "I reckon hit would be hangin' or ther penitenshery fer me—but they hain't agoin' ter."

"I don't seek ter hinder ye none," she told him in a faltering voice, "despite hit's goin' ter nigh kill me ter see ye go. Somehow hit seems like I wouldn't be so skeered ef ye war guilty yoreself ... but ter hev ye risk ther gallers fer somethin' ye didn't niver do——"

The words choked her and she stopped short.

"I'm goin' ter hev a mouty strong reason fer seekin' ter come home safe," he said, softly. "But even ef hit did cost me my life, I don't see as I could

fail a woman thet's my sister, an' thet's been facin' her time amongst enemies, with a secret like thet hauntin' her day an' night. I've got ter take ther chanst, honey."

A sound came to them through their preoccupation, and they looked up to see Bas Rowlett crossing the stile.

His case-hardened hypocrisy stood valiantly by him, and his face revealed nothing of the humiliation he must feel in playing out his farcical role of friendship before the eyes of the man to whom it was so transparent.

"I war jest passin' by," he announced, "an I 'lowed I'd light down an' make my manners. I'd love ter hev a drink of water, too."

Without a word Parish turned and went toward the well and the visitor's eyes lit again to their avid hunger as he gazed at the girl.

Abruptly he declared: "Don't never fergit what I told ye, Dorothy. I'd do most anything, fer *you*."

The girl made no answer, but she flushed under the intensity of his gaze, and to herself she said, as she had said once before: "I wonder would he do sich a thing fer me as Cal's doin' fer his sister?"

The scope and peril of that sacrifice seemed to stand between her and all other thoughts.

Then Parish came back with a gourd dipper, and forced himself for a few moments into casual conversation. Though to have intimated his purpose and destination would have been a fatal thing, it would have been almost as foolish to wrap in mystery the fact that he meant to make a short journey from home, so as Bas mounted Parish said:

"I've got a leetle business acrost in Virginny, Bas, an' afore long I'm goin' over thar fer a few days."

When Elviry Prooner had consented to come as temporary companion for Dorothy, it seemed merely an adventitious happening that Sim, too, felt the call of the road.

"I don't know es I've named hit to ye afore, Parish," he volunteered the next day as the three sat around the dinner table, "but I've got a cousin thet used ter be more like a brother ter me—an' he got inter some leetle trouble."

"Is thet so, Sim?" inquired Parish with a ready interest. "War hit a sore trouble?"

"Hit couldn't skeercely be holped—but he's been sulterin' in ther penitenshery down thar at Frankfort fer nigh on ter two y'ars now. Erbout once in a coon's age I fares me down thar ter fotch him tidin's of his folks. Hit pleasures him."

Thornton began to understand—or thought he did, and again he inclined his head.

"I reckon, Sim," he said, "ye wants ter make one of them trips now, don't ye?"

"Thet's a right shrewd guess, Parish. Hit's a handy time ter go. I kin git back afore corn-shuckin', an' thar hain't no other wuck a-hurtin' ter be done right now."

"All right, Sim"—the permission came readily—"light out whenever ye gits ready—but come back fer corn-shuckin'."

When Sim related to Bas Rowlett how free of complication had been the arrangement, Bas smiled in contentment. "Start out—an' slip back—an' don't let him git outen yore sight till ye finds out whar he goes an' what he's doin'," came the crisp order. "He's up ter suthin' thet he hain't givin' out ter each an' every, an' I'd love ter know what hit is."

Along the ridges trailed that misty, smoky glamour with which Autumn dreams of the gorgeous pictures she means to paint, with the woods for a canvas and the frost for a brush.

Bas Rowlett had shaved the bristle from his jowl and chin and thrown his overalls behind his cabin door. He had dressed him in high-laced boots and

donned a suit of store clothes, for in his mind were thoughts livened and made keen with the heady intoxication of an atmosphere like wine.

He knocked on the door of the house which he knew to be manless, and waited until it was opened by Elviry Prooner.

His swarthy face with its high cheekbones bequeathed from the shameful mixing of his blood in Indian veins wore a challenging smile of daredeviltry, and the buxom young woman stood regarding him out of her provocative eyes. Perhaps she owned to a revival of hope in her own breast, which had known the rancour of unacknowledged jealousy because this man had passed her by to worship at Dorothy Harper's shrine. Perhaps Bas Rowlett who "had things hung up" had at last come to his senses and meant, belatedly, to lay his heart at her feet. If he did, she would lead him a merry dance of doing penance—but she would nowise permit him to escape.

But Bas saw in Elviry only an unwelcome presence interfering with another tête-à-tête, and the hostile hardening of his eyes angered her so that the girl tossed her head, and wheeling haughtily she swept into the house. A minute later he saw her still flushed and wrathful stalking indignantly along the road toward Jake Crabbott's store at Lake Erie.

So Bas set his basket down and removed his hat and let his powerful shoulders relax themselves restfully against the door frame. He was waiting for Dorothy, and he was glad that the obnoxious Elviry had gone.

After a little Dorothy appeared. Her lips were innocent of the flippant sneer that the other girl's had held and her beauty was not so full-blown or material.

Bas Rowlett did not rise from his seat and the young woman did not expect it. Casually he inquired: "Is Parish hyar?"

The last question came so innocently that it accomplished its purpose.

Bas seemed to hope for an affirmative reply, and his manner robbed his presence of any apparent intent of visiting a husbandless wife. Since no one but himself knew that his jackal Sam Squires was at that moment trailing after Parish Thornton as the beagle courses after the hare, he could logically enough make such an inquiry.

"No. Didn't ye know? He started out soon this mornin'. I reckon he's fur over to'rds Virginny by now."

"Oh!" Bas Rowlett seemed surprised, but he made prompt explanation. "I knowed he hed hit in head ter go—but I didn't know he'd started yit." For more than an hour their talk went on in friendly channels of reminiscence and commonplace, then the man lifted the basket he had brought. "I fotched some 'simmons offen thet tree by my house. Ye used ter love 'em right good, Dorothy."

"I does still, Bas," she smiled with that sweet serenity that men found irresistible as she reached for the basket, but the man sat with eyes brimming melancholy and fixed on the violet haze of the skyline until she noticed his abstraction and inquired: "What ails ye, Bas? Ye're in a brown study erbout somethin'."

He drew back his shoulders then, and enlightened, "Sometimes I gits thetaway. I fell ter thinkin' of them days when you an' me used ter gather them 'simmons tergether, little gal."

"When we was kids," she answered, nodding her head. "We hed fun, didn't we?"

"God Almighty," he exclaimed, impetuously and suddenly. "How I loved ye!"

The girl drew away, and her answer was at once sympathetic and defensive. "Thet war all a right long time back, Bas."

The defeated lover came to his feet and stood looking at her with a face over which the passion of his feeling came with a sweep and surge that he made no effort to control.

In that instant something had slipped in Bas Rowlett and the madman that was part of him became temporarily all of him.

"Hit hain't so long a time ago," he vehemently declared, "thet I've changed any in hits passin'. So long es I lives, Dorothy, I'll love ye more an' more—till I dies."

She drew back another step and shook her head reprovingly, and in the gravity of her eyes was the dawning of indignation, disappointment, and astonishment.

"Bas," she said, earnestly, "even ef Cal hadn't of come, I couldn't niver hev wedded with ye. He did come, though, an'—in thet way of carin'—thar hain't no other man in the world fer me. I kain't never pay ye back fer all thet I'm beholden ter ye ... fer savin' him an' fotchin' him in when thet craven shot him ... fer stayin' a friend when most men would hev got ter be enemies. I knows all them things—but don't seek ter spile none of 'em by talkin' love ter me.... Hit's too late.... I'm married."

For an instant he stood as though long-arrested passions were pounding against the dams that had held them; then his words came like the torrent that makes driftwood of its impediments.

"Ter hell with this man Thornton! Ye didn't never hev no chanst ter know yore own mind.... Ye jest thinks ye loves him because ye pitied him. Hit won't last noways."

"Bas," she spoke his name with a sharp and stinging note of command, "I'm willin' ter look over what ye've said so fur—because of what I owes ye—but don't say no more!"

In a frenzy of wild and sensuous abandon he laughed. Then leaping forward he seized her and crushed her to him with her arms pinioned in his and her body close against his own.

Her struggles were as futile as those of a bird held in a human hand—a hand that takes no thought of how severely it may bruise but only of making firm its imprisoning hold.

"I said 'ter hell with him'," repeated the man in a low voice but one of white-hot passion. "I says hit ergin! From ther time thet ye fust begun ter grow up I'd made up my mind thet ye belonged ter me—an' afore I quits ye're *goin'* ter belong ter me. Ye talks erbout bein' wedded an' I says ter hell with thet, too! Mebby ye're his wife but ye're goin' ter be my woman!"

The senses of the girl swirled madly and chaotically during those moments when she strained against the rawhide strength of the arms that

held her powerless, and they seemed to her hours.

The hot breath of the face which had suddenly grown unspeakably horrible to her burned her like a blast, and through her reeling faculties rose that same impression of nightmare that had come to Parish when he lay wounded on his bed: the need of altering at a flash her whole conception of this man's loyal steadfastness to a realization of unbelievable and bestial treachery.

The fact was patent enough now, and only the hideous possibilities of the next few minutes remained doubtful. His arms clamped her so tightly that she gasped stranglingly for breath, and the convulsive futility of her struggles grew fainter. Consciousness itself wavered.

Then Rowlett loosened one arm and bent her head upward until he could crush his lips against hers and hold them there while he surfeited his own with an endlessly long kiss.

When again her eyes met his, the girl was panting with the exhaustion of breath that sounded like a sob, and desperately she sought to fence for time.

"Let me go," she panted. "Let me go—thar's somebody comin'!"

That was a lie born of the moment's desperation and strategy but, somewhat to her surprise, it served its ephemeral purpose. Rowlett released his hold and wheeled to look at the road, and with a flashing swiftness his victim leaped for the door and slammed it behind her.

CHAPTER XXIII

AN INSTANT later, with a roar of fury, as he realized the trick that had been played upon him, Bas was beating his fists against the panels and hurling against them the weight of his powerful shoulders. But those hot moments of agitation and mental riot had left him breathless, too, and presently he drew away for a quieter survey of the situation. He strolled insolently over to the window which was still open and leaned with his elbows on the sill looking in. The room was empty, and he guessed that Dorothy had hurried out to bar the back door, forgetting, in her excitement, the nearer danger of the raised sash.

Bas had started to draw himself up over the sill when caution prompted him to turn first for a look at the road.

He ground his teeth and abandoned his intention of immediate entry for there swinging around the turn, with her buxom vigour of stride, came Elviry Prooner.

Rowlett scowled as he folded his arms and leaned by the window, and then he saw Dorothy appear in the back door of the room and he cautioned her in a low voice: "Elviry's comin' back. I warns ye not ter make no commotion."

But to his astonishment Dorothy, whose face was as pale as paper no longer, wore in her eyes the desperation of terror or the fluttering agitation that seemed likely to make outcry. In her hand she held a kitchen knife which had been sharpened and re-sharpened on the grindstone until its point was as taperingly keen as that of a dirk.

She laid this weapon down on the table and hastily rearranged her dishevelled hair, and then she said in a still and ominous voice, more indicative of aggressive temerity than shrinking timidity:

"Don't go yit, Bas, I'm comin' out thar ter hev speech with ye—an' ef ye fails ter hearken ter me—God knows I pities ye!"

Waiting a little while to recover from the pallid advertising of her recent agitation she opened the front door and went firmly out as Elviry, with a toss of her head that ignored the visitor, passed around the house to the rear.

Dorothy's right hand, armed with the blade, rested inconspicuously under her apron, but the glitter in her eyes was unconcealed and to Bas, who smiled indulgently at her arming, she gave the brief command, "Come out hyar under ther tree whar Elviry won't hear us."

Curious and somewhat mystified at the transformation from helplessness to aggression of bearing the man followed her and as she wheeled to face him with her left hand groping against the bark, he dropped down into the grass with insolent mockery in his face and sat cross-legged, looking up at her.

"Ef I'd hed this knife a minute ago," she began in a low voice, throbbing like a muffled engine, "I'd hev cut yore heart out. Now I've decided not ter do hit—jest yit."

"Would ye ruther wait an' let ther man with siv'ral diff'rent names undertake hit fer ye?" he queried, mockingly, and Dorothy Thornton shook her head.

"No, I wouldn't hev him dirty his hands with no sich job," she answered with icy disdain. "Albeit he'd t'ar hit out with his bare fingers, I reckon—ef he knowed."

Bas Rowlett's swarthy face stiffened and his teeth bared themselves in a snarl of hurt vanity, but as he started to speak he changed his mind and sat for a while silent, watching the splendid figure she made as she leaned against the tree with a breast rising and falling to the storm tide of her indignation.

Rowlett's thoughts had been active in these minutes since the craters of his sensuous nature had burst into eruption, and already he was cursing himself for a fool who had prematurely revealed his hand.

"Dorothy," he began, slowly, and a self-abasing pretence of penitence sounded through his words, "my reason plum left me a while ago an' I was

p'int blank crazed fer a spell. I've got ter crave yore pardon right humbly—but I reckon ye don't begin ter know how much I loves ye."

"How much ye loves me!" She echoed the words with a scorn so incandescent that he winced. "Love's an honest thing, an' ye hain't niver knowed ther meanin' of honesty!"

"Ye've got a right good license ter git mad with me, Dorothy," he made generous concession, "an' I wouldn't esteem ye ef ye hedn't done hit—but afore ye lets that wrath settle inter a fixed hate ye ought ter think of somethin' ye've done fergot."

He paused but received no invitation to present his plea in extenuation, so he proceeded without it:

"I kissed ye erginst yore will, an' I cussed an' damned yore husband, but I did both them things in sudden heat an' passion. Ye ought ter take thought afore ye disgusts me too everlastin'ly much thet I've done loved ye ever since we was both kids tergither. I've done been compelled ter put behind me all ther hopes I ever hed endurin' my whole lifetime an' hit's been makin' a hell of tormint outen my days an' nights hyar of late."

He had risen now, and into his argument as he bowed a bared and allegedly stricken head he was managing to put an excellent semblance of sincerity.

But it was before a court of feminine intuition that Bas Rowlett stood arraigned, and his specious contriteness fell flat as it came from his lips. Dorothy was looking at him now in the glare of revelation—and seeing a loathsome portrait.

"An hour ago," she declared with no relenting in the deep blaze of her eyes, "I believed all good of ye. Now I sees ye fer what ye air an' I suspicions iniquities thet I hedn't niver dreamt' of afore. I wouldn't put hit past ye ter hev deevise Cal's lay-wayin' yoreself. I wouldn't be none astonished ef ye hired ther man thet shot him ... an' yit I'd nigh cut my tongue afore I'd drap a hint of thet ter him."

That last statement both amazed and gratified the intriguer. He had now two avowed enemies in this house and each stood pledged to a solitary

reckoning. His warfare against one of them was prompted by murder-lust and against the other by love-lust, but the cardinal essence of good strategy is to dispose of hostile forces in detail and to prevent their uniting for defence or offence. It seemed to Bas that, in this, the woman was preparing to play into his hands, but he inquired, without visible eagerness:

"Fer why does ye say thet?"

Out of Dorothy's wide eyes was blazing upon him torrential fury and contempt. Yet she did not give him her truest reasons in her answer. She had no longer any fear of him for herself, but she trembled inwardly at the menace of his treachery against her man.

"I says hit," she answered, still in that level, ominously pitched voice that spoke from a heart too profoundly outraged for gusty vehemence, "because, now thet I knows ye, I don't need nobody ter fight ye fer me. He trusts ye an' thinks ye're his friend, an' so long es ye don't lift no finger ter harm him I'm willin' ter let him go on trustin' ye." She paused, and to her ears with a soothing whisper came the rustle of the crisp leaves overhead. Then she resumed, "Ef he ever got any hint of what's come ter pass terday, I mout es well try ter hold back a flood-tide with a splash-dam es ter hinder him from follerin' atter ye an' trompin' ye in ther dirt like he'd tromple a rattlesnake.... But he stands pledged ter peace an' I don't aim ter bring on no feud war ergin by hevin' him break hit."

"Ef him an' me fell out," admitted Bas with wily encouragement of her confessed belief, "right like others would mix inter hit."

"But ef *I* kills ye hit won't start no war," she retorted. "A woman's got a right ter defend herself, even hyar."

"Dorothy, I've done told ye I jest lost my head in a swivet of wrath. Ye're jedgin' me by one minute of frenzy and lookin' over a lifetime of trustiness."

"Ef I kills ye hit won't start no war," she reiterated, implacably, ignoring his interruption, "an' betwixt ther two of us, I'm ther best man—because I'm honest, an' ye're as craven as Judas was when he earned his silver money. Ye needn't hev no fear of my tellin' Cal, but ye've got a right good cause ter fear *me*!"

"All right, then," once more the hypocritical mask of dissimulation fell away and the swarthy face showed black with the savagery of frustration. "Ef ye won't hev hit no other way, go on disgustin' me—but I warns ye thet ye kain't hold out erginst me. Ther time'll come when ye won't kick an' fly inter tantrums erginst my kisses ... ye'll plum welcome 'em."

"Hit won't be in this world," she declared, fiercely, as her eyes narrowed and the hand that held the knife crept out from under the apron.

The man laughed again.

"Hit'll be right hyar on y'arth," he declared with undiminished self-assurance; "you an' me air meant ter mate tergither like a pair of eagles, an' some day ye're goin' ter come inter my arms of yore own free will. I reckon I kin bide my time twell ye does."

"Eagles don't mate with snakes," she shot out at him, with a bosom heaving to the tempest of her disgust. Then she added: "I don't even caution ye ter stay away from this house. I hain't afeared of ye, an' I don't want Cal ter suspicion nothin'—but don't come hyar too often ... ye fouls ther air I breathes whenever ye enters hit."

She paused and brushed her free arm across her lips in shuddering remembrance of his kiss, then she continued with the tone of finality:

"Now I've told ye what I wanted ter tell ye ... ef need arises ergin, I'm goin' ter kill ye ... this matter lays betwixt me an' you ... an' nobody else hain't agoin' ter be brung inter hit.... Does ye onderstand thet full clear?"

"Thet's agreed," he gave answer, but his voice trembled with passion, "an' I've done told *you* what I wants ye ter know. I loves ye an' I'm goin' ter hev ye. I don't keer no master amount how hit comes ter pass, but sooner or later I gits me what I goes atter—an' from now on I'm goin' atter *you*."

He turned and walked insolently away and the girl, with the strain of necessity removed, sank back weakly against the cool solidity of the walnut trunk. Except for its support she would have fallen, and after awhile, hearing Elviry's voice singing off at the back of the house and realizing that she was not watched, she turned weakly and spread her outstretched hands

upward in embrace against the rough wood, as a frightened child might throw its arms about a protecting mother.

When Sam Opdyke had been taken from the courtroom to the "jail-house" that his wrath might cool into submissiveness, and when later he had been held to the grand jury, he knew in his heart that ahead of him lay the prospect of leaving the mountains. The hated lowlands meant to him the penitentiary at Frankfort, and with Jim Rowlett and Parish Thornton united against him, this was his sure prospect.

The two men who had shared with him the sensational notability of that entrance and the deflated drama of that exit had gone home rankling under a chagrin not wholly concerned with the interests of the defendant.

Enmities were planted that day that carried the infection of bitterness toward Harpers and Doanes alike, and the resentful minority began taking thought of new organization; a thought secretly fanned and inflamed by emissaries of the resourceful Bas Rowlett.

Back in the days following on the War of Secession the word Ku Klux had carried a meaning of both terror and authority. It had functioned in the mountains as well as elsewhere through the South, but it had been, in its beginnings, a secret body of regulators filling a void left by the law's failure, and one boasting some colour of legitimacy.

Since then occasional organizations of imitative origin had risen for a time and fallen rapidly into decay, but these were all gangs of predatory activity and outrage.

Now once more in the talk of wayside store and highroad meeting one began to hear that name "Ku Klux" though it came vaguely from the tongue as a thing of which no man had seen any tangible evidence. If it had anywhere an actual nucleus, that centre remained as impalpable and unmaterial as fox-fire.

But the rumour of night meetings and oath-bound secrecy persisted, and some of these shreds of gossip came to Dorothy Thornton over the dooryard fence as passersby drew rein in the shadow of the black walnut. Nearer anxieties just now made her mind unreceptive to loose and improbable stories of that nature, and she gave them scant attention.

She found herself coming out to stand under the tree often, because it seemed to her that here she could feel the presence of the man who had gone away on a parlous mission—and it was during that time of his absence that she found more to fear in a seemingly trivial matter than in the disquieting talk of a mysterious body of avengers stirring into life.

When she looked up into the branches that were colouring toward autumnal hues she discovered here and there a small, fungus-like growth and leaves that were dying unnaturally, as though through the agency of some blight that diseased the vigour of the tree.

Her heart was ready to be frightened by small things, and through her thoughts ran that old prophecy:

"I have ye strong faithe that whilst that tree stands and grows stronge and weathers ye thunder and wind and is revered, ye stem and branches of our family alsoe will waxe stronge and robust, but that when it fails, likewise will disaster fall upon our house."

CHAPTER XXIV

FROM the shallow porch of a house over which brooded the dismal spirit of neglect and shiftlessness a woman stood looking out with eyes that should have been young, but were old with the age of a heart and spirit gone slack.

Evidences of thrift cast overboard bespoke the dejection that held sway there, and yet the woman had pathetic remnants of a beauty not long wrecked. Her hollow cheeks and lustreless hair, the hopeless mouth with a front tooth missing, served in their unsightliness to make one forget that the features themselves were well modelled, and that the thin figure needed only the filling out of sunken curves to bring back comeliness of proportion.

The woman was twenty-two and looked forty-five, but the small, shawl-wrapped bundle of humanity that she held in her arms was her first child, and two years ago she had been accounted a neighbourhood beauty.

Under her feet the flooring of the porch creaked its complaint of disrepair and the baby in her arms raised a shrill and peevish howl of malnutrition.

As the mother clasped it closer and rocked it against her shrunken breast a second and older woman appeared in the doorway, a witch-faced slattern who inquired in a nasal whine:

"Kain't ye, no fashion, gentle him ter sleep, Sally?"

The mother shook her head despondently.

"My milk don't seem ter nourish him none," she answered, and the voice which had once been sweet carried a haunting whine of tragedy.

Into the lawless tangle of the "laurel-hell" that came down the mountainside to encroach upon the meagre patch reclaimed for human habitation, a man who had crept yard by yard to the thicket's edge drew back at the sight of the older woman.

This man carried a rifle which he hitched along with him as he made his slow progress, and his clothes were ragged from laboured travel through rocky tangles. Small stains of blood, dried brown on his face and hands, testified to the stinging obstruction of thorned trailer and creeping briar, and his cheeks were slightly hollowed because for two days he had avoided human habitations where adequate food could be obtained.

Now he crouched there, gazing steadfastly at the house, and schooled his patience to keep vigil until the mother should come out or the other woman go away.

At least, Parish Thornton told himself, his sister and her baby were alive.

Out of the house door slouched a year-old hound puppy with shambling feet and lean ribs. It stood for a moment, whining and wagging a disconsolate tail at the woman's feet, then came suddenly to life and charged a razor-back hog that was rooting at will in what should have been a potato patch.

The hog wheeled with a startled grunt and stampeded into the thicket—almost upsetting in its headlong flight the man who was hiding there.

But the dog had stopped and stood rigidly sniffing as human scent proclaimed itself to his nostrils. The bristles rose erect as quills along his neck and shoulders as a deep growl rumbled in his throat.

That engrossment of interest and disquiet held until the woman with the baby in her arms came down the two steps, in curiosity, and crossed the yard.

Then Thornton let his whisper go out to her with an utterness of caution: "Don't say nothin', Sally.... Walk back inter ther woods ... outen sight of the house ... it's me ... it's yore brother, Ken."

For an instant she stood as tremulous as though she had seen or heard a ghost, while in her thin and shrunken bosom her heart pounded. Then she said: "I'll be thar d'reckly. I'll take ther baby back ter Mirandy."

"No," commanded the man, "bring hit with ye. I hain't nuver saw hit yit."

* * *

Parish Thornton had come safely home, and in forest stretches where fallen leaves lay crisp and thick under foot the razor-backs were fattening on persimmons and mast. Along the horizon slept an ashen mist of violet. "Sugar trees" blazed in rustling torches of crimson and in the sweet-gums awoke colour flashes like those which glint in a goblet of burgundy.

Before the house in the bend of the river the great walnut stood like a high-priest lording it over lesser clerics: a Druid giant of blond maturity, with outstretched arms that seemed to brush the drifting cloud-fleece by day and the stars by night. It whispered with the wandering voices of the little winds in tones of hushed mystery.

Mellow now and tranquil in its day of fruitage it had the seeming of meditation upon the cycles of bud and leaf, sun and storm; the starkness of death and the miracle of resurrection.

Yet the young wife searched its depths of foliage with an eye of anxiety for, though she had not spoken of it, her discernment recognized that the fungus-like blight was spreading through its breadth and height with a contagion of unhealth.

Beneath it Parish and Dorothy were gathering and piling the walnuts that should in due season be beaten out of their thick husks and stored away for winter nights by the blazing hearth, and in their veins, too, was the wine and the fragrance of that brief carnival that comes before the desolation of winter.

Dorothy straightened and, looking off down the road, made sudden announcement.

"Look thar, Cal. Ef hit hain't a stranger ridin' up on hoss-back. I wonder now who *is* he?"

With unhurried deliberation, because there was languor in the air that day, the man rose from his knee, but as soon as he saw the mounted figure his features stiffened and into them came the expression of one who had been suddenly stricken.

Dorothy, still looking outward, with the inquisitiveness of a land to which few strangers come, did not see that recognition of a Nemesis, and quickly,

in order that the stranger himself might not see it, the man drew a long breath into his chest and schooled himself to the stoic bearing of one who calmly accepts the inevitable.

By that time the horseman had halted and nodded. He dismounted and threw his rein over a picket, then from the stile he accosted Thornton: "Ken, I reckon ye knows me," he said, "an' I reckon ye knows what brought me."

Parish went forward, but before he reached the stile he turned and in a level voice said, "Dorothy, this hyar man's Jake Beaver. He's ther high-sheriff—from over in Virginny ... I reckon he seeks ter take me back."

Dorothy stood with all her pliant sinews inordinately tensed; with her deep eyes wide and terrified, yet voiceless of any outburst or exclamation, and near her, ill at ease, but seeking to treat the affair as an inescapable matter of business, and consequently a commonplace, the sheriff shifted his weight from foot to foot, and fanned himself with his hat.

The exact wording of the warrant was after all of no particular consequence. The announcement of its purport had carried all its necessary significance. Yet, before he spoke again, Kenneth Thornton, also known as Parish Thornton and as Cal Maggard—these names being included in the document as aliases—read it from preamble to signature and seal at the end.

Then he inquired: "How come ye ter diskiver wh'ar I was at, Jake?"

The officer shook his head. "Thet's a question I hain't got ther power ter answer ye, Ken. Somebody over thar got tidin's somehow and drapped a hint ter ther Commonwealth's Attorney."

With a nod of comprehension the man who was wanted accepted that explanation. He had not expected a fuller one.

Then, turning, he complied with the demands of courtesy. "Dorothy," he asked, "hain't ye goin' ter invite Jake ter come in an' eat him some dinner?"

The woman had not spoken. For her, stoic-bred though she was, it was impossible to separate calmly the personal side of this stranger from the abstract and menacing thing for which he stood. Now she gulped down a

hot and inhospitable impulse of refusal and said briefly to her husband, "You kin invite him ef ye've a mind ter, Cal. *I won't.*"

The officer flushed in embarrassment. Sheriffs, like bloodhounds, are frequently endowed with gentle natures, and this mission was not of Beaver's own choosing. It was a pursuit he followed with nothing of the sportsman's zest.

"I reckon I mout es well git over an' done with all ther onpleasant jobs I've got on hand," he announced, awkwardly, "air ye willin' ter waive extradition, Ken, or does ye aim ter fight goin' back? Hit's jest a matter of time either way—but ye've got the privilege of choosin'."

The man he had come after was carefully folding the warrant of arrest along its folded lines as though it were important to preserve the exact creasing of the paper.

"Does I keep this hyar thing, Jake," he asked, "or give hit back to ye?"

"Keep hit," replied the sheriff, with an equal gravity. "Hit b'longs ter *you.*"

There was a brief silence after that then Thornton said:

"This is a right grave matter ter me, Jake. Afore I decides what ter do I've got ter hev speech with some of my neighbours."

The foreign official inclined his head.

"I hain't drapped no hint ter no man es ter what business brought me hyar," he volunteered. "I 'lowed ter talk with ye in private fust. I knows full well I'm amongst yore friends over hyar—an' I've got ter trust myself in yore hands. This hain't no welcome task, Ken, any way ye looks at hit."

"I gives ye my hand, Jake," the accused reassured his accuser, "no harm hain't goin' ter come ter ye. Come on indoors and sot ye a cheer."

Parish Thornton stood under the black walnut again that afternoon and with his jackknife he was carving a small basket out of one of the walnuts that had fallen at his feet. About him stood a group including the custodian

of "the peace and dignity of the Commonwealth of Virginia" and the man who held like responsibility for the state of Kentucky.

Between the two, unexpressed but felt, lay the veiled hostility that had grown up through generations of "crossing the border" to hide out; the hostility of conflicting jurisdictions.

Hump Doane and Jim Rowlett were there, and Aaron Capper and Lincoln Thornton—a handful who could speak with the voice of public opinion thereabouts, and while he carved industriously at his watch-charm basket, Parish Thornton glanced at the cripple.

"Mr. Doane," he said, "once, standin' on this identical spot, ye asked me a question thet I refused ter answer. This man hes come over hyar, now, ter answer hit fer me. Jake, tell these folks what brought ye hither."

The sheriff cleared his throat and by way of preface remarked: "I didn't come of my own choosin', gentlemen. Ther state of Virginny accuses Parish Thornton of ther wilful murder of John Turk. I'm high-sheriff over in Lee County whar hit tuck place."

A grave restraint prevented any expression of surprise, but all the eyes were turned upon Thornton himself, and the accused gave back even glance for even glance.

"Now I'm goin' ter give ye my side of hit," he began, though to give his side in full justice he would have had to reveal a secret which he had no intent of disclosing.

"My sister, Sally, married John Turk an' he abused her till she couldn't endure hit no longer. Her pride was mighty high an' she'd hev cut her tongue out afore she'd hev told her neighbours ther way she war misused—but I knowed hit." As he paused his eyes darkened into sombre memory. "I reasoned with John an' he blackguarded me, too, an' ferbid me ter darken his door.... Deespite thet command I feared fer her life an' I fared over thar ... I went in at ther door an' he war a-maltreatin' her an' chokin' her. I railed out ... an' he hurt her wusser ... hit war his life or her'n. Ef hit war all ter do over ergin I wouldn't act no different." He paused again and no one offered a comment; so he resumed his statement: "I hain't told ye all of hit, but I reckon thet's enough. Thar warn't no witnesses ter help me come cl'ar an'

ther co'te over thar wouldn't vouchsafe me no justice.... Hit's jedge b'longed ter John Turk's kinfolks body an' soul ... so I come away."

"I reckon ye'd be plum daft ef ye didn't stay away," remarked the Kentucky sheriff with a sharp and bellicose glance at his colleague from another state. "Virginny officers hain't got no power of arrest in Kaintuck."

The Virginian bit a trifle nervously from a twist of "natural leaf."

"Hit's my bounden duty, though," he declared, staunchly, "ter call on *you* ter arrest him an' hold him till I gits me them extradition papers from Frankfort—an' then hit's *yore* bounden duty ter fotch him ter ther state line an' deliver him over ter me."

"I'm ther man thet decides what my duty is," came the swift retort, and Thornton raised a hand to quell incipient argument.

"Thet hain't ther p'int, men," he reminded them. "Ther law kin reach in an' take me out finally. We all knows thet—onless I forsook my home hyar an' lived a refugee, hidin' out. Atter they once diskivered whar I was, I mout jest es well be thar es hyar."

"Ther boy's right," ruled Hump Doane, judicially. "A man kain't beat ther law in ther long run." Then the cripple wheeled on the sheriff.

"Mr. Beaver," he said, "we hain't got no quarrel with ye fer doin' yore plain duty, but whether ye calls this man a criminal over thar in Virginny or not we knows over hyar thet he's a godly upholder of ther law—an' we don't aim ter see him made no scape-goat fer unlawful wrath ef we kin hinder hit. In so fur es we kin legally compass hit we stands ready ter fight ther state of Virginny from hell ter breakfast. All he's got ter do is jest give us ther word."

"I hain't seekin' ter contrary ye none es ter thet, Mr. Doane," the officer gave ready assurance.

"Ef Mr. Thornton takes my counsel," went on the deformed leader, "he'll bid ye go back thar an' tell them folks ye comes from thet ef they'll admit him ter bail, an' pledge him a fa'r day in co'te, he'll come back thar without no conflict when ye sends fer him. But ye've got ter hev 'em agree ter let

him stay over hyar till ther co'te sets ter try him. Es fer his bond ye kin put hit at any figger ye likes so long es thar's land enough an' money enough amongst us ter kiver hit."

The Virginia sheriff turned to the Kentucky officer.

"Will ye arrest this man an' hold him safe till I gits my order?" he demanded, and the Kentuckian in turn inquired of Parish, "Will ye agree to hold yoreself subject ter prompt response?"

Thornton nodded and casually the local officer replied:

"All right, Mr. Beaver. Ye kin ride on home now whenever ye gits ready. I've got this prisoner in a custody thet satisfies me right now."

CHAPTER XXV

HAD those enterprising spirits who had undertaken to organize a vigilance committee, modelled upon the old Ku Klux, been avowedly outlaws, banded together only for the abuse of power, their efforts would have died of inanition. The sort of lawlessness that has given the Appalachian mountaineer his wild name is one that the outer world understands as little as the hillsman understands the outer world, and the appeal which the organization made was a warped and distorted sense of justice, none the less sincere.

So now though the organizers of the new body were scheming rascals, actuated by the basest and meanest motives, the tissue and brawn of their recruiting was built up from the adventure-love of youth or the grim and honest insurgency of maturer age.

As yet the membership was small and it met in shifting places of rendezvous, with weird rites of oath-bound secrecy. To-night it was gathered around a campfire in a gorge between towering cliffs to which access was gained by a single and narrow gut of alley-way which was sentinel-guarded.

The men were notably bi-partisan in make-up, for Sim Squires of the Harper faction sat on the same short log with young Pete Doane of the Rowletts, and so it ran with the rest.

"Couldn't ye contrive ter persuade Bas Rowlett ter jine us, Pete?" inquired one of the two men who had swaggered with Sam Opdyke up the court-house aisle, and gone out in crestfallen limpness. "Hit looks like he'd ought ter hold with us. He war entitled ter leadership an' they cast him over."

Pete shook his head and answered with the importance of an envoy:

"Bas, he's fer us, body an' soul, an' he aims ter succour us every way he kin but he figgers he kin compass hit best fashion by *seemin'* ter stand solid

with ther old leaders."

Sim Squires said nothing but he spat contemptuously when the name of Bas Rowlett was mentioned.

"Ther fust task that lays ahead of us," declared the voice of Rick Joyce who seemed to be the presiding officer of the meeting, "is ter see that Sam Opdyke comes cl'ar in cote. When ther Doanes met in council, Sam war thar amongst 'em an' no man denied he hed as good a right ter be harkened to as anybody else. But they rid over him rough-shod. A few men tuck ther bit in their teeth and flaunted ther balance of us. Now we aims ter flaunt *them* some."

"How air we goin' ter compass hit?" came a query, and the answer was prompt.

"When ther panel's drawed ter try Sam we've got ter see that every man on the jury gits secretly admonished thet atter he finishes up thar, he's still got ter answer ter *us*—an' meantime we've got ter handle some two-three offenders in sich a fashion thet men will fear ter disobey us."

So working on that premise of injustices to be righted, malcontents from the minorities of both factions were induced with fantastic ceremonials of initiation into the membership of the secret brotherhood. And though they were building an engine of menacing power and outlawry, it is probable that more than half of them were men who might have turned on their leaders, as a wolf pack turns on a fallen member, had they known the deceit and the private grudge-serving with which the unseen hand of Bas Rowlett was guiding them.

The dreamy languor of autumn gave way to the gusty melancholy of winds that brought down the leaves from the walnut tree until it stretched out branches disconsolate and reeking with only the more tenacious foliage left clinging. Then Dorothy Thornton felt that the sand was running low in the hour glass of respited happiness and that the day when her husband must face his issue was terribly near.

Indian summer is a false glory and a brief one, with alluring beauty like the music of a swan-song, and it had been in an Indian summer of present

possession that she had lived from day to day, refusing to contemplate the future—but that could not go on.

The old journal which had fired her imagination as a door to a new life had lain through these days neglected—but they had been days of nearer and more urgent realities and, after all, the diary had seemed to belong to a world of dreams.

One of these fall afternoons when the skies were lowering and Parish was out in the woods with Sim Squires she remembered it with a pang of guilty neglect such as one might feel for an ill-used friend, and went to the attic to take it out of its hiding and renew her acquaintance.

But when she opened the old horsehide trunk it was not there and panic straightway seized her.

If the yellowed document were lost, she felt that a guardian spirit had removed its talisman from the house, and since she was a practical soul, she remembered, too, that the note-release bearing Bas Rowlett's signature had been folded between its pages! With her present understanding of Bas that thought made her heart miss its beat.

Dorothy was almost sure she had replaced it in the trunk after reading it the last time, yet she was not quite certain, and when Parish came back she was waiting for him with anxiety-brimming eyes. She told him with alarm in her face of the missing diary and of the receipt which had been enclosed and he looked grave, but rather with the air of sentimental than material interest.

"Thet old diary-book was in ther chist not very long ago," he declared. "I went up thar an' got ther receipt out when I fared over ter Sam Opdyke's arraignin'. I tuck hit ter ther co'te-house an' put hit ter record thet day—ther receipt, I means."

"How did ye git inter ther chist without my unlockin' hit?" she inquired with a relief much more material than sentimental, and he laughed.

"Thet old brass key," he responded, "war in yore key basket—an ye warn't in ther house right then, so I jest holped myself."

That brass key and that ancient record became the theme of conversation for two other people about the same time.

In the abandoned cabin which had come to be the headquarters of Bas Rowlett in receiving reports from, and giving instructions to, his secret agents, he had a talk with his spy Sim Squires, who had come by appointment to meet him there. In the sick yellow of the lantern light the lieutenant had drawn from his pocket and handed to his chief the sheaf of paper roughly bound in home-made covers of cloth which he had been commissioned to abstract from its hiding place.

"Hit's done tuck ye everlastin'ly ter git yore hands on this thing," commented Rowlett, sourly, as he held it, still unopened, before him. "But seems like ye've done got holt of hit at last."

"Hit warn't no facile matter ter do," the agent defended himself as his face clouded resentfully. "Ef I let folks suspicion me I wouldn't be no manner of use ter ye in thet house."

"How did ye compass hit finally?"

"Thornton's woman always kep' hit in the old hoss-hair chist in ther attic an' she always kep' ther chist locked up tight as beeswax." Sim paused and grinned as he added, "But woman-fashion—she sometimes fergot ter lock up ther key."

Rowlett was running through the pages whose ancient script was as meaningless to him as might have been a papyrus roll taken from the crypts of a pyramid.

"Old Caleb," he mused, "named hit ter me thet he'd done put thet paper I wanted betwext ther leaves old this old book inside ther chist."

He ran through the yellow pages time after time and finally shook them violently—without result. His face went blank, then anxious, and after that with a profane outcry of anger he flung the thing to the floor and wheeled with a livid face on Sim Squires.

"Hit hain't thar!" he bellowed, and as his passion of fury and disappointment mounted, his eyes spurted jets of fury and suspicion.

"Afore God," he burst out with eruptive volleys of abuse, "I halfway suspicions ye're holdin' thet paper yore own self ter barter an' trade on when ye gits ther chanst ... an' ef ye be, mebbe ye've got thet other document, too, thet ye pretends ye hain't nuver seed thar—thet one in ther sealed envellup!"

He broke off suddenly, choked with his wrath and panting crazily. Suppose this hireling who had once or twice shown a rebellious disposition held his own signed confession! Suppose he had even read it! Bas had never suspected the real course which Parish Thornton had taken to safeguard that other paper and he had not understood why Sim had been unable to locate it and abstract it from the house. Thornton had, in fact, turned it over to the safekeeping of Jase Burrell, who was to hold it, in ignorance of its contents, and only to produce it under certain given conditions. Now Bas stood glaring at Sim Squires with eyes that burned like madness out of a face white and passion distorted, and Sim gave back a step, cringing before the man whose ungoverned fury he feared.

But after an unbridled moment Bas realized that he was acting the muddle-headed fool in revealing his fear to a subordinate, his hold over whom depended on an unbroken pose of mastery and self-confidence.

He drew back his shoulders and laughed shamefacedly.

"I jest got red-headed mad fer a minute, Sim," he made placating avowal. "Of course I knows full well ye done ther best ye could; I reckon I affronted ye with them words, an' I craves yore pardon."

But Sim, who had never served for love, found the collar of his slavery, just then, galling almost beyond endurance, and his eyes were sombrely resentful.

"I reckon, Bas, ye'd better hire ye another man," he made churlish response. "I don't relish this hyar job overly much nohow.... Ye fo'ced me ter layway ther man ... but when ye comes ter makin' a common thief outen me, I'm ready ter quit."

At this hint of insubordination Rowlett's anger came back upon him, but now instead of frothy self-betrayal it was cold and domineering.

He leaned forward, gazing into the face upon which the lantern showed spots of high-light and trceries of deep shadow, and his voice was one of deliberate warning:

"I counsels ye ter take sober thought, Sim, afore ye contraries me too fur. Ye says I compelled ye ter layway Parish Thornton—but ye kain't nuver prove thet—an' ef I hed ther power ter fo'ce ye then hit war because I knowed things erbout ye thet ye wouldn't love ter hev told. I knows them things still!" He paused to let that sink in, and Sim Squires stood breathing heavily. Every sense and fibre of his nature was in that revolt out of which servile rebellions are born. Every element of hate centred about his wish to see this arrogant master dead at his feet—but he acknowledged that the collar he wore was locked on his neck.

So he schooled his face into something like composure and even nodded his head.

"You got mad unduly, Bas," he said, "an' I reckon I done ther same. I says ergin ef ye hain't satisfied with ther way I've acted, I'm ready ter quit. If ye *air* satisfied, all well an' good."

Bas Rowlett picked up the diary of the revolutionary Dorothy Thornton and twisted it carelessly into a roll which he thrust out of sight between a plate-girder of the low cabin and its eaves.

Jerry Black came one Saturday night about that time to the wretched cabin where he and his wife, a brood of half-clothed children, two hound-dogs, three cats, and a pig dwelt together—and beat his wife.

For years Jerry had been accustomed to doing precisely the same thing, not with such monotonous regularity as would have seemed to him excessive, but with periodical moderation. Between times he was a shiftless, indulgent, and somewhat henpecked little man of watery eyes, a mouth with several missing teeth, and a limp in one "sprung leg." But on semi-annual or quarterly occasions his lordliness of nature asserted itself in a drunken orgy. Then he went on a "high-lonesome" and whooped home with all the corked-up effervescence of weeks and months bubbling in his

soul for expression. Then he proved his latent powers by knocking about the woman and the brattish crew, and if the whole truth must be told, none of those who felt the weight of his hand were totally undeserving of what they got.

But on this occasion Jerry was all unwittingly permitting himself to become a pawn in a larger game of whose rules and etiquette he had no knowledge, and his domestic methods were no longer to pass uncensored in the privacy and sanctity of the home.

His woman, seizing up the smallest and dirtiest of her offspring, fled shrieking bloody murder to the house of the nearest neighbour, followed by a procession of other urchins who added their shrill chorus to her predominant solo. When they found asylum and exhibited their bruises, they presented a summary of accusation which kindled resentment and while Jerry slept off his spree in uninterrupted calm this indignation spread and impaired his reputation.

For just such a tangible call to arms the "riders," as they had come to be termed in the bated breath of terror, had been waiting. It was necessary that this organization should assert itself in the community in such vigorous fashion as would demonstrate its existence and seriousness of purpose.

No offence save arson could make a more legitimate call upon a body of citizen regulators than that of wife-beating and the abuse of small children. So it came about that after the wife had forgiven her indignities and returned to her ascendancy of henpecking, which was a more chronic if a less acute cruelty than that which she had suffered, a congregation of masked men knocked at the door and ordered the quaking Jerry to come forth and face civic indignation.

He came because he had no choice, limping piteously on his sprung leg with his jaw hanging so that the missing teeth were abnormally conspicuous. Outside his door a single torch flared and back of its waver stood a semicircle of unrecognized avengers, coated in black slickers with hats turned low and masks upon their faces. They led him away into the darkness while more lustily than before, though for an opposite reason, the woman and the children shrieked and howled.

Jerry trembled, but he bit into his lower lip and let himself be martyred without much whimpering. They stripped him in a lonely gorge two miles from his abode and tied him, face inward, to a sapling. They cow-hided him, then treated him to a light coat of tar and feathers and sent him home with most moral and solemn admonitions against future brutalities. There the victims of that harshness for which he had been "regulated" wept over him and swore that a better husband and father had never lived.

But Jerry had suffered for an abstract idea rather than a concrete offence, and both Parish Thornton and Hump Doane recognized this fact when with sternly set faces they rode over and demanded that he give them such evidence as would lead to apprehension and conviction of the mob leaders.

Black shivered afresh. He swore that he had recognized no face and no voice. They knew he lied yet blamed him little. To have given any information of real value would have been to serve the public and the law at too great a cost of danger to himself.

But Parish Thornton rode back, later and alone, and by diplomatic suasion sought to sift the matter to its solution.

"I didn't dast say nuthin' whilst Hump war hyar," faltered the first victim of the newly organized "riders," "an' hit's plum heedless ter tell ye anything now, but yit I did recognize one feller—because his mask drapped off."

"I hain't seekin' ter fo'ce no co'te evidence outen ye now, Jerry," the young leader of the Thorntons assured him. "I'm only strivin' ter fethom this matter so's I'll know whar ter start work myself. Ye needn't be afeared ter trust me."

"Wa'al, then, I'll tell ye." They were talking in the woods, where autumnal colour splashed its gorgeousness in a riot that intoxicated the eye, and no one was near them, but the man who had been tarred and feathered lowered his voice and spoke with a terrorized whine.

"Thet feller I reecognized ... hit war old Hump Doane's own boy ... Pete Doane."

Parish Thornton straightened up as though an electric current had been switched through his body. His face stiffened in amazement and the pain of

sore perplexity.

"Air ye plum onmistakably shore, Jerry?" he demanded and the little man nodded his head with energetic positiveness.

"I reckon ye're wise not ter tell nobody else," commented Parish. "Hit would nigh kill old Hump ter larn hit. Jest leave ther matter ter me."

CHAPTER XXVI

THE window panes were frost-rimed one night when Parish Thornton and Dorothy sat before the hearth of the main room. There was a lusty roar in the great chimney from a walnut backlog, for during these frosty days the husband and his hired man, Sim Squires, had climbed high into the mighty tree and sawed out the dead wood left there by years of stress and storm.

As it comforted them in summer heat with the grateful cool of its broad shadowing and the moisture gathered in its reservoirs of green, so it broke the lash and whip of stinging winds in winter, and even its stricken limbs sang a chimney song of cheer and warmth upon the hearth that pioneer hands had built in the long ago.

Through the warp and woof of life in this house went the influence of that living tree; not as a blind thing of inanimate existence but as a sentient spirit and a warder whose voices and moods they loved and revered—as a link that bound them to the past of the overland argonauts.

It stood as a monument to their dead and as the kindly patron over their lovemaking and their marriage. It had been stricken by the same storm that killed old Caleb and had served as the council hall where enmities had been resolved and peace proclaimed. Under its canopy the man had been hailed as a leader, and there the effort of an assassin had failed, because of the warning it had given.

And now these two were thinking of something else as well—of the new life which would come to that house in the spring, with its binding touch of home and unity. They were glad that their child would have its awakening there when the great branches were in bud or tenderly young of leaf—and that its eyes would open upon that broad spreading of filagreed canopy above the bedroom window, as upon the first of earthly sights.

"Ef hit's a man-child, he's goin' ter be named Ken," said the young woman in a low voice.

"But be hit boy or gal, one thing's shore. Hits middle name's a-goin' ter be T-R-E-E, tree. Dorothy Tree Thornton," mused Parish as his laugh rang low and clear and she echoed after him with amendment, "Kenneth Tree Thornton."

They sat silent together for a while seeing pictures in flame and coals. Then Dorothy broke the reverie:

"Ye've done wore a face of brown study hyar of late, Cal," she said as her hand stole out and closed over his, "an' I knows full well what sober things ye've got ter ponder over—but air hit anything partic'lar or new?"

Parish Thornton shook his head with gravity and answered with candour:

"Hump and old Jim an' me've been spendin' a heap of thought on this matter of ther riders," he told her. "Hit's got ter be broke up afore hit gits too strong a holt—an' hit hain't no facile matter ter trace down a secret thing like thet."

After a little he went on: "An' we hain't made no master progress yit to'rds diskiverin' who shot at old Jim, nuther. Thet's been frettin' me consid'rabable, too."

"War thet why ye rid over ter Jim's house yestidday?" she inquired, and Parish nodded his head.

"Me an' Sim Squires an' old Jim hisself war a-seekin' ter figger hit out—but we didn't git no light on ther matter." He paused so long after that and sat with so sober a face that Dorothy pressed him for the inwardness of his thoughts and the man spoke with embarrassment and haltingly.

"I lowed when we was married, honey, that all ther world I keered fer war made up of you an' me an' what hopes we've got. I was right sensibly affronted when men sought ter fo'ce me inter other matters then my own private business, but now——"

"Yes," she prompted softly. "An' now what?"

"Hit hain't thet ye're any less dear ter me, Dorothy. Hit's rather thet ye're dearer ... but I kain't stand aside no more.... I kain't think of myself no more es a man thet jist b'longs ter hisself." Again he fell silent then laughed self-

deprecatingly. "I sometimes 'lows thet what ye read me outen the old book kinderly kindled some fret inside me.... Hit's es ef the blood of the old-timers was callin' out an' warnin' me thet I kain't suffer myself ter shirk ... or mebbly hit's the way old Hump and old Aaron talked."

"What is hit ye feels?" she urged, still softly, and the man came to his feet on the hearth.

"Hit's like es ef I b'longs ter these people. Not jist ter the Harpers an' Thorntons but ter them an' the Doanes alike.... 'Pears like them of both lots thet wants right-livin' hes a call on me ... that when old Caleb giv me his consent ter wed with ye, he give me a duty, too—a duty ter try an' weld things tergither thet's kep' breakin' apart heretofore."

Yet one member of the party that had gone to old Jim's had gained enlightenment even if he had held his counsel concerning his discovery.

The investigators had encountered little difficulty in computing just about where the rifleman had lain to shoot, but that had told them nothing at all of his identity. Yet as the three had stood on the spot where Bas Rowlett had crouched that day Sim's keen eye had detected a small object half buried in the earth and quietly he had covered it with his foot. Later, when the other two turned away, he stooped and picked up a rusty jack-knife—and he knew that knife had belonged to Bas Rowlett. Given that clue and attaching to it such other things as he already knew of Bas, it was not hard for Sim to construct a theory that, to his own mind at least, stood on all fours with probability.

So, when the mercenary reported to Rowlett what had occurred on that afternoon he omitted any mention of the knife, but much later he carelessly turned it over to its owner—and confirmed his suspicions.

"I diskivered hit layin' in the highway," he said, innocently and Bas had looked at the corroded thing and had answered without suspicion, "Hit used ter be mine but hit hain't much use ter me now; I reckon I must hev drapped hit some time or other."

Bas Rowlett disappeared from his own neighbourhood for the period of ten days about that time. He said that he was going to Clay City to discuss a contract for a shipment of timber that should be rafted out on the next "spring-tide"; and in that statement he told the truth, as was evidenced by postcards he wrote back bearing the Clay City postmark.

But the feature of the visit which went unmentioned was that at the same time, and by prearrangement, Will Turk came from over in Virginia and met at the town where the log booms lie in the river the man whom he had never known before, but whose letter had interested him enough to warrant the journey and the interview.

Will Turk was a tall and loose-jointed man with a melancholy and almost ministerial face, enhanced in gravity by the jet-black hair that grew low on his forehead and the droop of long moustaches. In his own country the influence which he wielded was in effect a balance of power, and the candidate who aspired to public office did well to obtain Will Turk's view before he announced his candidacy. The judge who sat upon the bench made his rulings boldly only after consulting this overlord, but the matter which gave cause to the present meeting was the circumstance that Will Turk was a brother to John Turk, whom Parish Thornton was accused of killing.

"I 'lowed hit mout profit us both ter talk tergether," explained Rowlett when they had opportunity for discussion in confidence. "I'm ther man thet sent word ter ther state lawyer whar Ken Thornton war a-hidin' at."

"I'm right obleeged ter ye," answered Turk, noncommittally. "I reckon they've got a right strong case ergin him."

Bas Rowlett lighted his pipe.

"Ye knows more erbout thet then what I does," he said, shortly. "I hears he aims ter claim thet he shot in deefence of ther woman's life."

"He hain't got no proof," mused Turk, "an' feelin' runs right high ergin him. I'd mighty nigh confidence ther jury thet'll set in ther case ter convict."

Bas Rowlett drew in and puffed out a cloud of smoke. His eyes were meditative.

Here was a situation which called for delicate handling. The man whom he had called to conference was, by every reasonable presumption, one who shared an interest with him. His was the dogged spirit and energy that had refused to allow the Virginia authorities to give up the cold trail when Kenneth Thornton had supposedly slain his brother and escaped. His was the unalterable determination to hang that defendant for that act. Bas was no less eager to see his enemy permanently disposed of, yet the two met as strangers and each was cautious, wily, and given to the holding of his own counsel.

Rowlett understood that the processes of nominal law over in that strip of the Virginia mountains were tools which William Turk used at his pleasure, and he felt assured that in this instance no half-measures would satisfy him—but Bas himself had another proposition of alliance to offer, and he dared not broach it until he and this stranger could lay aside mutual suspicions and meet on the common ground of conspiracy. If there were any chance at all, however slight, that Parish Thornton could emerge, alive and free, from his predicament in court Rowlett wished to waylay and kill him on the journey home.

Over there where Thornton was known to have enemies, and where his own presence would not be logically suspected Bas believed he could carry out such a design and escape the penalty of having his confession published. This man Will Turk might also prefer such an outcome to the need of straining his command over the forms of law. If Parish could be hanged, Bas would be satisfied—but if he escaped he must not escape far.

"I'm right glad ter talk with ye," said the Virginian, slowly, "because comin' from over thar whar he's been dwelling at, ye kin kindly give me facts thet ther Commonwealth would love ter know," and that utterance sounded the keynote of the attitude Turk meant to assume and hold.

Bas was disconcerted. This man took his stand solidly on his lawful interests as the presser of the prosecution, but declined to intimate any such savagery of spirit as cried out for vengeance, legal or illegal.

"Suppose he comes cl'ar over thar, atter all?" hazarded the Kentuckian, sparring to throw upon his companion the burden of making advances.

"I've done told ye I'm *confident* he won't."

"*Confident* hain't plum sartain. Ef thar's any slip-up, what then?"

Will Turk shrugged his shoulders and shook a grave head. He was sitting with the deeply meditative expression of one who views life and its problems with a sober sense of human responsibility, and the long fingertips of one hand rested against the tips of the other.

"I'd hate ter see any *deefault* of jestice," he made response, "an' I don't believe any co'te could hardly err in a case like this one.... Ken Thornton war my brother-in-law an' him an' me loved one another—but ther man he kilt in cold blood war my own brother by blood—an' I loved him more. A crime like thet calls out louder fer punishment then one by a feller ye didn't hev no call ter trust—an' hit stirs a man's hate deeper down. I aims ter use all ther power I've got, an' spend every cent I've got, ef need be, ter see Ken Thornton hang." He paused and fixed the stranger with a searching interest. "I'm beholden ter ye fer givin' us ther facts thet led ter ketchin' him," he said. "War he an enemy of your'n, too?"

Rowlett frowned. The man was not only refusing to meet him halfway but was seeking to wring from him his own motives, yet the question was not one he could becomingly decline to answer, and if he answered at all, he must seem candid.

"Him an' me got ter be friends when he come thar," he said, deliberately. "Some enemy laywayed him an' I saved his life ... but he wedded ther gal I aimed ter marry ... an' then he tuck up false suspicions ergin me outen jealousy ... so long es he lives over thar, I kain't feel no true safety."

"Why hain't ye niver dealt with him yoreself, then?" inquired Turk, and the other shook his head with an indulgent smile.

"Things hain't always as simple es they looks," he responded. "Matters air so shaped up, over thar in my neighbourhood, thet ef I had any fray with him, hit would bring on a feud war. I'm bounden in good conscience ter hold my hand, but I hain't got no sartainty he'll do ther like. Howsomever——" Bas rose and took up his hat, "I writ ter ye because I 'lowed a man ought ter aid ther law ef so be he could. Es fer my own perils, I hain't none terrified over 'em. I 'lowed I mout be able ter holp ye, thet's all."

"I'm obleeged ter ye," said Turk again, "ye've already holped me in givin' us ther word of his wh'arabouts. I reckon I don't need ter tax ye no further. I don't believe he'll ever come back ter pester nobody in Kaintuck ergin."

But both the Virginian and the Kentuckian had gathered more of meaning than had been put into words, and the impression was strong on Turk that the other wished to kill Parish in Virginia, if need be, because he dared not kill him in Kentucky. In that he had only an academic interest since he trusted his own agencies and plans, and some of them he had not divulged to Rowlett.

As he rose to take leave of his new acquaintance he said abstractedly:

"I'll keep ye posted erbout ther trial when co'te sots so thet afore hit eends up ye'll hev knowledge of what's happenin'—an' ef he *should* chance ter come cla'r, ye'll know ahead of time when he's startin' back home. A man likes ter kinderly keep tabs on a feller he mistrusts."

And that was all Bas needed to be told.

One day during Rowlett's absence Parish met young Pete Doane tramping along the highway and drew him into conversation.

"Pete," he suggested, "I reckon ye appreciates ther fact thet yore pappy's a mouty oncommon sort of man, don't ye?"

The young mountaineer nodded his head, wondering a little at what the other was driving.

"Folks leans on him an' trusts him," went on Thornton, reflectively. "Hit ought ter be a matter of pride with ye, Pete, ter kinderly foller in his footsteps."

The son met the steady and searching gaze of his chance companion for only a moment before he shiftily looked away and, for no visible reason, flushed.

"He's a mighty good man—albeit a hard one," he made answer, "but some folk 'lows he's old-fashioned in his notions."

"Who 'lows thet, Pete—ther riders?"

Young Doane started violently, then recovered himself and laughed away his confusion.

"How'd I know what ther riders says?" he demanded. "We don't traffick with 'em none at our house."

But Parish Thornton continued to bore with his questioning eyes into the other face until Pete fidgeted. He drew a pipe from one pocket and tobacco crumbs from another, but the silent and inquisitorial scrutiny disconcerted him and he could feel a hot and tell-tale flush spreading on his face and neck.

Abruptly Parish Thornton admonished him in the quiet tone of decisiveness.

"Quit hit, Pete! Leave them riders alone an' don't mix up with 'em no more."

"I don't know what ye're talkin' erbout," disclaimed young Doane with peppery heat. "I hain't got no more ter do with them fellers then what ye hev yoreself. What license hev ye got ter make slurs like them erginst me, anyhow?"

"I didn't hev nothin' much ter go on, Pete," responded Thornton, mindful of his promise of secrecy to the unfortunate Jerry Black, "but ther way ye flushed up jest now an' twisted 'round when I named hit put ye in a kinderly bad light. Them men air right apt ter mislead young fellers thet hain't none too thoughted—an' hit's my business ter look inter affairs like thet. I'd hate ter hev yore pappy suspicion what *I* suspicions erbout ye."

"Honest ter God," protested the boy, now thoroughly frightened, "I hain't nuver consorted with 'em none. I don't know nothin' erbout 'em—no more'n what idle tattle I hears goin' round in common talk."

"I hain't askin' ye whether ye've rid with 'em heretofore or not, Pete," the other man significantly reminded him. "I'm only askin' ye ter give me yore hand ye won't nuver do hit ergin. We're goin' ter bust up thet crowd an' penitenshery them thet leads 'em. I hate ter hev ye mixed up, when thet comes ter pass. Will ye give me yore hand?"

Readily the young member of the secret brotherhood pledged himself, and Parish, ignorant of how deeply he had become involved in the service of Bas Rowlett, thought of him only as young and easily led, and hoped that an ugly complication had been averted.

When Joe Bratton, the Kentucky sheriff, came to the house in the bend of the river to take his prisoner to the Virginia line, he announced himself and then, with a rude consideration, drew off.

"I'll ride ter ther elbow of ther road an' wait fer ye, Parish," he said, awkwardly. "I reckon ye wants ter bid yore wife farewell afore ye starts out."

Already those two had said such things as it is possible to say. They had maintained a brave pretence of taking brief leave of each other; as for a separation looking to a speedy and certain reuniting. They had stressed the argument that, when this time of ordeal had been relegated to the past, no cloud of fear would remain to darken their skies as they looked eastward and remembered that behind those misty ranges lay Virginia.

They had sought to beguile themselves—each for the sake of the other—with all the tricks and chimeras of optimism, but that was only the masquerade of the clown who laughs while his heart is sick and under whose toy-bright paint is the gray pallor of despair.

That court and that jury over there would follow no doubtful course. Its verdict of guilty might as well have been signed in advance, and, while the girl smiled at her husband, it seemed to her that she could hear the voice of the condemning judge, inquiring whether the accused had "aught to say why sentence should not now be pronounced" upon him.

For, barring some miracle of fate, the end of that journey lay, and in their hearts they knew it with a sickness of certainty, at the steps of the gallows. The formalities that intervened were little more than the mummeries of an empty formula with which certain men cloaked the spirit of a mob violence they were strong enough to wreak.

Parish Thornton halted at the stile, and his eyes went back lingeringly to the weathered front of the house and to the great tree that made a wide and venerable roof above the other roof. The woman knew that her husband was

printing a beloved image on his heart which he might recall and hold before him when he could never again look upon it. She knew that in that farewell gaze and in the later, more loving one which he turned upon her own face, he was storing up the vision he wanted to keep with him even when the hangman's cap had shut out every other earthly picture—when he stood during the seconds that must for him be ages, waiting.

Then the hills reeled and spun before Dorothy Thornton's eyes as giddily as did the fallen leaves which the morning air caught up in little whirlwinds. Their counterfeit of cheer and factitious courage stood nakedly exposed to both of them, and the man's smile faded as though it were too flippant for such a moment.

Dorothy caught his hand suddenly in hers and led him back into the yard where the roots of the tree spread like star points which had their ends under the soil and deep in the rock of which those mountains were built.

"Kneel down, Cal," she whispered, chokingly, and when they had dropped side by side to postures of prayer, her voice came back to her.

"Lord God of Heaven an' y'arth," trembled the words on her bloodless lips, "he hain't goin' so fur away but what Yore power still goes with him ... keep him safe. Good Lord ... an' send him back ter me ergin ... watch over him thar amongst his enemies ... Amen."

They rose after their prayer, and stood for a little while with their hearts beating close in a final embrace, then Dorothy took out of her apron pocket a small object and handed it to him.

"I nigh fergot ter give hit ter ye," she said, "mebby hit'll prove a lucky piece over thar, Cal."

It was the small basket which he had carved with such neat and cunning workmanship from the hard shell of a black walnut ... a trinket for a countryman's watch chain—and intrinsically worthless.

"Hit's almost like takin' ther old tree along with ye," she faltered with a forced note of cheer, "an' ther old tree hain't nuver failed us yit."

Joe Bratton and his prisoner rode with little speech between them until they came to those creek bottom roads that crossed at Jake Crabbott's store, and there they found awaiting them, like a squad of cavalry, some eight or ten men who sat with rifles across the bows of their saddles.

Aaron Capper and Hump Doane were there in the van, and they rode as an escort of friends.

When their long journey over ridge and forest, through gorge and defile, came to its end at the border, the waiting deputation from Virginia recognized what it was intended to recognize. East of the state line this man might travel under strict surveillance, but thus far he had come with a guard of honour—and that guard could, and would, come further if the need arose.

CHAPTER XXVII

PARISH THORNTON had used all his persuasion to prevent Dorothy's going with him to Virginia. He had argued that the solace of feeling her presence in the courtroom would hardly compensate for the unnerving effect of knowing that the batteries of the prosecution were raining direct fire on her as well as on himself.

Twice, while he had waited the summons that must call him to face his ordeal, the attorney who was to defend him had come over into Kentucky for conference, and it was to the professional advice of this lawyer, almost clairvoyant in his understanding of jury-box psychology, that Dorothy had at last yielded.

"We'll want to have you there later on," he had told the wife. "Juries are presumed to be all logic; in fact, they are two-thirds emotion—and if you appear for the first time in that courtroom at precisely the right moment with your youth and wholesomeness and loyalty, your arrival will do more for your husband than anything short of an alibi. I'll send for you in due season—but until I do, I don't want you seen there."

So Dorothy had stayed anxiously at home.

One crisp and frosty morning she went over to Jake Crabbott's store where she found the usual congregation of loungers, and among them was Bas Rowlett leaning idly on the counter.

Dorothy made her few purchases and started home, but as she left the store the man upon whom she had declared irreconcilable war strolled out and fell into step at her side. She had not dared to rebuff him before those witnesses who still accounted them friends, but she had no relish for his companionship and when they had turned the bend of the road she halted and faced the fellow with determined eyes.

About them the hills were taking on the slate grays and chocolate tones of late autumn and the woods were almost denuded of the flaunting

gorgeousness which had so recently held carnival there, yet the sodden drabness of winter had in nowise settled to its monotony, for through the grays and browns ran violet and ultramarine reflexes like soft and creeping fires that burned blue, and those few tenacious leaves that clung valiantly to their stems were as rich of tone as the cherry-dark hues that come out on well-coloured meerschaum.

"I didn't give ye leave ter walk along with me, Bas," announced the girl with a spirited flash in her eyes, and her chin tilted high. "I've got a rather es ter ther company I keeps."

The man looked at her for a hesitant interval without answering, and in his dark face was a mingling of resentment, defiance, and that driving desire that he thought was love.

"Don't ye dast ter trust yoreself with me, Dorothy?" he demanded with a smile that was half pleading and half taunt, and he saw the delicate colour creep into her cheeks and make them vivid.

"I hain't afeared of ye," she quickly disavowed. "Ever sence thet other time when ye sought ter insult me, I've done wore my waist bloused—a-purpose ter tote a dirk-knife. I've got hit right now," and her hand went toward her bosom as she took a backward step into the brittle weed-stalks that grew by the roadside.

But Bas shook his head, and hastened to expound his subtler meaning.

"I didn't mean ye war skeered of no bodily vi'lence, Dorothy. I means ye don't das't trust yoreself with me because ye're affrighted lest ye comes ter love me more'n ye does ther man ye married in sich unthoughted haste. I don't blame ye fer bein' heedful."

"Love ye!" she exclaimed, as the colour deepened in her cheeks and neck, then went sweeping out again in the white and still passion of outraged indignation. "I hain't got no feelin' fer ye save only ter despise ye beyond all measure. A woman kain't love no craven an' liar thet does his fightin' by deceit."

Bas Rowlett looked off to the east and when he spoke it was with no reference to the insults that cut most deeply and sorely into mountain

sensibilities.

"A woman don't always know what she loves ner hates—all at onc't. Betwixt them two things thar hain't no sich great differ noways. I'd ruther hev ye hate me then not ter give me no thought one way ner t'other.... Ye're liable ter wake up some day an' diskiver thet ye've jest been gittin' ther names of yore feelin's mixed up." He paused in his exposition upon human nature long enough to smile indulgently, then continued: "So long es ye won't abide ter let me even talk te yer, I knows ye're afear'd of me in yore heart—an' thet's because ye're afear'd of what yore heart hitself mout come ter feel."

"Thet's a right elevatin' s'armon ye preaches," she made scornful answer, "but a body doesn't gentle a mad dog jest ter show they hain't skeered of hit."

"Es fer Parish Thornton," he went on as though his musings were by way of soliloquy, "ye kain't handily foller him whar he's goin' ter, nohow. He's done run his course already."

A hurricane gust of dizzy wrath swept the woman and her voice came explosively: "Thet's a lie, Bas Rowlett! Hit'll be *you* thet dies with a rope on yore neck afore ye gits through—not him!"

"Ef I does," declared the man with equanimity, "hit won't be jest yit. I grants him full an' free right of way ter go ahead of me."

But abruptly that cool and disconcerting vein of ironic calm left him and he bent his head with the sullen and smouldering eyes of a vicious bull.

"But be thet es hit may. I claims thet ye kain't stand out erginst my sweetheartin' ef ye trusts yoreself ter see me. *You* claims contrariwise, but ye don't dast test yore theory. I loves ye an' wants ye enough ter go on eatin' insults fer a spell.... Mebby ther Widder Thornton'll listen ter reason—when ther jury an' ther hangman gits done."

The girl made no answer. She could not speak because of the fury that choked her, but she turned on her heel and he made no effort to follow her.

The steeply humped mountains on either side seemed to Dorothy Thornton to close in and stifle her, and the bracing, effervescent air of the high places had become dead and lifeless in her nostrils, as to one who smothers.

That evening, when Sim Squires came in to supper, he made casual announcement that he understood Bas had gone away somewhere. His vapid grin turned to a sneer as he mentioned Rowlett's name after the never-failing habit of his dissembling, but Dorothy set down his plate as though it had become suddenly too hot to hold.

"Whar did he go?" she demanded with a gasp in her voice, and the hired man, drawing his platter over, drawled out his answer in a tone of commonplace:

"Nobody didn't seem ter know much erbout hit. Some 'lowed he'd fared over ter Virginny ter seek ter aid Parish in his trial." He paused, then with well-feigned maliciousness he added, "but ef I war inter any trouble myself, I'd thank Bas Rowlett ter keep his long fingers outen my affairs."

Gone to help Parish! Dorothy drew back and leaned against the wall with knees grown suddenly weak. She thought she knew what that gratuitous aid meant!

Parish fighting for his life over there in the adjoining state faced enemies enough at his front without having assassins lurking in the shadows at his back!

Perhaps Bas had not actually gone yet. Perhaps he could be stopped. Perhaps her rebuff that morning had goaded him to his decision. If he had not gone he must not go! The one thought that seemed the crux of her vital problem was that so long as he remained here he could not be there.

And if he had not actually set out she could hold him here! His amazing egotism was his one vulnerable point, the single blind spot on his crafty powers of reasoning—and that egotism would sway and bend to any seeming of relenting in her.

She was ready to fight for Parish's life in whatever form the need came—and she had read in the old Bible how once Judith went to the tent of

Holifernes.

Dorothy shuddered as she recalled the apocryphal picture of the woman who gave herself to the enemy, and she lay wide-eyed most of that night as she pondered it.

She would not give herself, of course. The beast's vanity was strong enough to be content with marking, as he believed, the signs of her gradual conversion. She would fence with him and provoke him with a seeming disintegration of purpose. She would dissemble her abhorrence and aversion, refashioning them first into indulgent toleration, then into the grudging admission that she had misjudged him. She would measure her wit against his wit—but she would make Kentucky seem to him too alluring a place to abandon for Virginia!

When she rose at dawn her hands clenched themselves at her sides. Her bosom heaved and her face was set to a stern dedication of purpose.

"I'll lead him on an' keep him hyar," she whispered in a voice that she would hardly have recognized as her own had she been thinking at all of the sound of voices. "But afore God in Heaven, I'll kill him fer hit atter-ward!"

So when Rowlett, who had really gone only on a neighbourhood journey, sauntered idly by the house the next afternoon near sunset, Dorothy was standing by the stile and he paused tentatively in the road. As though the conversation of yesterday had not occurred, the man said:

"Howdy, Dorothy," and the girl nodded.

She was not fool enough to overplay her hand, so her greeting was still disdainful, but when he tarried she did not send him away. It was, indeed, she who first referred to their previous encounter.

"When I come home yistidday, Bas," she said, "I sot down an' thought of what ye said ter me an' I couldn't holp laughing."

"Is thet so?" he responded. "Wa'al what seems ridic'lous to one body sometimes seems right sensible ter another."

"Hit sounded mighty foolish-like ter me," she insisted, then, as if in after thought, she added, "but I'd hate mightily ter hev ye think I wasn't willin' ter

give ye all ther rope ye wants ter hang yoreself with. Come on over, Bas, whenever ye've a mind ter. Ef ye kin convert me, do hit—an' welcome."

There was a shade of challenge in the voice such as might have come from the lips of a Carmen, and the man's pulses quickened.

Almost every day after that found Bas Rowlett at the house and the evenings found him pondering his fancied progress with a razor-edged zest of self-complacency.

"She'll hold out fer a spell," he told himself with large optimism. "But ther time'll come. When an apple gits ripe enough hit draps offen ther limb."

* * *

Over at the small county seat to the east the squat brick "jail-house" sat in the shadow of the larger building. There was a public square at the front where noble shade trees stood naked now, and the hitching racks were empty. Night was falling over the sordid place, and the mountains went abruptly up as though this village itself were walled into a prison shutting it off from outer contacts.

The mired streets were already shadowy and silent save for the whoop of a solitary carouser, and the evening star had come out cold and distant over the west, where an amber stretch of sky still sought feebly to hold night apart from day.

Through the small, grated window of one of the two cells which that prison boasted, Parish Thornton stood looking out—and he saw the evening star. It must be hanging, he thought, just over the highest branches of the black walnut tree at home, and he closed his eyes that he might better conjure up the picture of that place.

With day-to-day continuances the Commonwealth had strung out the launching of his trial until the patience of the accused was worn threadbare. How much longer this suspense would stretch itself he could not guess.

"I wonder what Dorothy's doin' right now," he murmured, and just then Dorothy was listening to Bas Rowlett's most excellent opinion of himself.

It would not be long, the young woman was telling herself, before she would go over there to the town east of the ridges—if only she could suppress until that time came the furies that raged under her masquerade and the aversion that wanted to cry out denunciation of her tormentor!

But the summons from the attorney had never come, and Bas never failed to come as regularly as sunrise or sunset. His face was growing more and more hateful to her with an unearthly and obsessing antipathy.

One afternoon, when the last leaves had drifted down leaving the forests stark and unfriendly, her heart ached with premonitions that she could not soften with any philosophy at her command.

Elviry Prooner had gone away when Bas arrived, and the strokes of Sim Squires' axe sounded from a distant patch of woods, so she was alone with her visitor.

Bas planted his feet wide apart and stood with an offensive manner of proprietorship on the hearth, toasting himself in the grateful warmth.

"We've done got along right well tergether, little gal," he deigned to announce. "An hit all only goes ter show how good things mout hev been ef we hedn't nuver been hindered from weddin' at ther start."

The insolent presumption of the creature sent the blood pounding through Dorothy's temples and the room swum about her: a room sacred to clean memories that were being defiled by his presence.

"Ther time hain't ripe," she found herself making impetuous declaration, "fer ye ter take no sich masterful tone, Bas. Matters hain't ended yet." But here she caught herself up. Her anger had flashed into her tone and it was not yet time to let it leap—so she laughed disarmingly as she read the kindling of sullen anger in his eyes and added, "I don't allow no man ter brag thet he overcome my will without no fight."

Bas Rowlett roared out a laugh that dissipated his dangerously swelling temper and nodded his head.

"Thet's ther fashion ter talk, gal. I likes ter see a woman thet kin toss her head like a fractious filly. I hain't got no manner of use fer tame folks."

He came close and stood devouring her with the passion of his lecherous eyes, and Dorothy knew that her long effort to play a part had reached its climax.

He reached out his hands and for the second time he laid them upon her, but now he did not seek to sweep her into an embrace. He merely let his fingers rest, unsteady with hot feeling, on her shoulders as he said, "Why kain't we quit foolin' along with each other, gal? *He* hain't nuver comin' back ter ye no more."

But at that Dorothy jerked herself away and her over-wrought control snapped.

"What does ye mean?" she demanded, breathlessly. A sudden fear possessed her that fatal news had reached him before it had come to her. "Hes anything happened ter him?"

Instantly she realized what she had done, but it was useless to go on acting after the self-betrayal of that moment's agitation, and even Rowlett's self-complacent egotism read the whole truth of its meaning. He read it and knew with a fullness of conviction that through the whole episode she had been leading him on as a hunter decoys game and that her slow and grudging conversion was no conversion at all.

"Nothin' hain't happened ter him *yit*, so fur's I knows," he said, slowly. "But ye doomed him ter death when ye flared up like thet, an' proved ter me thet ye'd jest been lyin'."

Dorothy gave back to the wall and one hand groped with outstretched fingers against the smoothly squared logs, while the other ripped open the buttons of her waist and closed on the knife hilt that was always concealed there.

Her voice came low and in a dead and monotonous level and her face was ghost pale.

"Yes, I lied ter ye ter keep ye from goin' over thar an' murderin' him. I knowed ther way ye fights—I hain't nuver feared ye on my own account but I *did* fear ye fer him ther same es a rattlesnake thet lays cyled in ther grass."

She paused and drew a resolute breath and her words were hardly louder than a whisper.

"Thar hain't no way on y'arth I wouldn't fight ter save him—even ef I hed ter fight a Judas in Judas fashion. So I aimed ter keep ye hyar—an' I kep' ye."

"Ye've kep' me thus fur," he corrected her with his swarthy face as malevolent as had ever been that of his red-skinned ancestors. "But ye told ther truth awhile ago—an' ye told hit a mite too previous. Ther matter hain't ended yit."

"Yes, hit's es good es ended," she assured him with the death-like quiet of a final resolve. "I made up my mind sometime back thet ye hed ter die, Bas."

Slowly the right hand came out of her loosened blouse and the firelight flashed on the blade of the dirk so tightly held that the woman's knuckles stood out white.

"I'm goin' ter kill ye now, Bas," she said.

For a few long moments they stood without other words, the woman holding the dirk close to her side, and neither of them noted that for the past ten minutes the sound of the axe had been silent off there in the woods.

Then abruptly the door from the kitchen opened and Sim Squires stood awkwardly on the threshold, with a face of wooden and vapid stupidity. Apparently he had noted nothing unusual, yet he had looked through the window before entering the house, and back of his unobservant seeming lay the purpose of averting bloodshed.

"I war jest lookin' fer ye, Bas," he said with the artlessness of perfect art. "I hollered but ye didn't answer. I wisht ye'd come out an' holp me manpower a chunk up on ther choppin' block. I kain't heft hit by myself."

Bas scowled at the man whom he was supposed to dislike, but he followed him readily enough out of the room, and when he had lifted the log, he left the place without returning to the house.

A half-hour later old Jase Burrell drew rein by the stile and handed Dorothy a letter.

"I reckon thet's ther one ye've been waitin' fer," he said, "so I fetched hit over from ther post-office. What's ther matter, gal? Ye looks like ye'd been seein' hants."

"I hain't seed nothin' else fer days past," she declared, almost hysterically. "I've done sickened with waitin', Uncle Jase, an' I aimed ter start out soon termorrer mornin', letter or no letter."

CHAPTER XXVIII

A CROSS in Virginia, Sally Turk, the wife of the dead man and the sister of the accused, had rocked her anæmic baby to sleep after a long period of twilight fretfulness and stood looking down into its crib awhile with a distrait and numbed face of distress. She was leaving it to the care of another and did not know when she would come back.

"I'm right glad leetle Ken's done tuck ter ther bottle," she said with forced cheerfulness to the hag-like Mirandy Sloane. "Mebby when I gits back thar'll be a mite more flesh on them puny leetle bones of his'n." Her words caught sob-like in her throat as she wheeled resolutely and caught up her shawl and bonnet.

Out at the tumble-down stable she saddled and mounted a mule that plodded with a limp through a blackness like a sea of freezing ink, and she shivered as she sat in the old carpet-cushioned side-saddle and flapped a long switch monotonously upon the flanks of her "ridin'-critter."

The journey she was undertaking lay toward the town where her brother was "hampered" in jail, but she turned at a cross-road two miles short of that objective and kept to the right until she came to a two-storied house set in an orchard: a place of substantial and commodious size. Its windows were shuttered now and it loomed only as a squarish block of denser shadow against the formless background of night. All shapes were neutralized under a clouded and gusty sky.

Dogs rushed out barking blatantly as the woman slid from her saddle, but at the sound of her voice they stilled their clamour—for dogs are not informed when old friendships turn to enmity.

The front door opened upon her somewhat timid knock, but it opened only to a slit and the face that peered out was that of a woman who, when she recognized the outer voice, seemed half minded to slam it again in refusal of welcome. Curiosity won a minor victory, though, over hostility,

and the mistress of the house slipped out, holding the door inhospitably closed at her back.

"Fer ther land's sakes, what brings ye hyar, Sally Turk?" she challenged in the rasp of hard unreceptiveness, and the visitor replied in a note of pleading, "I come ter see Will ... I've jest *got* ter see Will."

The other woman still held the door as she retorted harshly: "All thet you an' Will hev got ter do kin be done in co'te termorrer, I reckon."

But Sally Turk clutched the arm of Will Turk's wife in fingers that were tight with the obduracy of despair.

"I've got ter see Will," she pleaded. "Fer God's sake, don't deny me. Hit's ther only thing I asks of ye now—an' hit's a matter of master int'rest ter Will es well es me. I'll go down on my knees ef hit'll pleasure him—but I've *got* ter see him."

There was something in the colourless monotony of that reiteration which Lindy Turk, whose teeth were chattering in the icy wind, could not deny. With a graceless concession she opened the door.

"Come inside, then," she ordered, brusquely. "I'll find out will he see ye—but I misdoubts hit."

Inside the room the woman who had ridden across the hills sank into a low, hickory-withed chair by the simmering hearth and hunched there, faint and wordless. Now that she had arrived, the ordeal before her loomed big with threat and fright, and Lindy, instead of calling her husband, stood stolidly with arms akimbo and a merciless glitter of animosity in her eyes.

"Hit's a right qu'ar an' insolent thing fer ye ter do," she finally observed, "comin' over hyar thisaway, on ther very eve of Ken Thornton's trial."

"I've got ter see Will," echoed the strained voice by the hearth, as though those words were the only ones she knew. "I've got ter see Will."

"When John war murdered over thar—afore yore baby was borned," went on Lindy as though she were reading from a memorized indictment, "Will stud ready ter succour an' holp ye every fashion he could. Then hit come ter light thet 'stid of defendin' ther fame of yore dead husband ye

aimed ter stand by ther man thet slew him. Ye even named yore brat atter his coldblooded murderer."

The huddled suppliant in the chair straightened painfully out of her dejection of attitude and her words seemed to come from far away.

"He war my brother," she said, simply.

"Yes, an' John Turk wasn't nothin' but yore husband," flashed back the scathing retort. "Ye give hit out ter each an' every thet all yore sympathy war with ther man thet kilt him—an' from thet day on Will an' me war done with ye. Now we aims ter see thet brother of yourn hanged—and hit's too tardy ter come a beggin' an' pleadin'."

Kenneth Thornton's sister rose and stood swaying on her feet, holding herself upright by the back of the chair. Her eyes were piteous in their suffering.

"Fer God's sake, Lindy," she begged, "don't go on denyin' me no more. We used ter love one another ... when I was married ye stud up with me ... when yore fust baby war born I set by yore bedside ... now I'm nigh heart-broke!"

Her voice, hysterically uncontrolled, shrilled almost to a scream, and the door of the other room opened to show Will Turk, shirt-sleeved and sombre of visage, standing on its threshold.

"What's all this ter-do in hyar?" he demanded gruffly, then seeing the wife of his dead brother he stiffened and his chin thrust itself outward into bulldog obduracy.

"I kain't no fashion git shet of her," explained the wife as though she felt called upon to explain her ineffectiveness as a sentinel.

Will Turk's voice came in the crispness of clipped syllables. "Lindy, I don't need ye no more, right now. I reckon I kin contrive ter git rid of this woman by myself."

Then as the door closed upon the wife, the sister-in-law moved slowly forward and she and the man stood gazing at each other, while between them lay six feet of floor and mountains of amassed animosities.

"Ef ye've come hyar ter plead fer Ken," he warned her at last, "ye comes too late. Ef John's bein' yore husband didn't mean nuthin' ter ye, his bein' my brother does mean a master lot ter *me*—an' ther man thet kilt him's goin' ter die."

"Will," she began, brokenly, "ye was always like a real brother ter me in ther old days ... hain't ye got no pity left in yore heart fer me...? Don't ye remember nothin' but ther day thet John died...?"

The drooping moustaches seemed to droop lower and the black brows contracted more closely.

"I hain't fergot nothin'.... I wanted ter befriend ye so long es I could ... outside my own fam'ly I didn't love no person better, but thet only made me hate ye wusser when ye turned traitor ter our blood."

She stepped unsteadily forward and caught at his hand, but the man jerked it away as from an infection.

"But don't ye know thet John misused me, Will? Don't ye know thet he war a-killin' me right then?"

"I takes notice ye didn't niver make no complaint till ye tuck thought of Ken's *deefence*, albeit men knowed thar was bad blood betwixt him an' John. Now I aims ter let Ken pay what he owes in lawful fashion.... I aims ter hang him."

Sally retreated to the hearth and stood leaning there weakly. With fumbling fingers she brought from inside her dress a soiled sheet of folded paper and drew a long breath of resolution, passing one hand over her face where the hair fell wispy and straggling. Then she braced herself with all the strength and self-will that was left her.

"Ken didn't niver kill John," she said, slowly, forcing a voice that seemed to have hardly breath enough to carry it to audibility. "I kilt him."

For an instant the room was as still as a tomb with only lifeless tenants, then Will Turk took one quick step forward, to halt again, and his voice broke into an amazed and incredulous interjection:

"*You* kilt him?"

"Yes, I kilt him.... He hed done beat me an' he war chokin' me.... His misuse of me war what him an' Ken fell out erbout.... I war too proud ter tell anybody else ... but Ken knowed.... I was faintin' away with John's fingers on my throat.... We was right by ther table whar his own pistol lay.... I grabbed hit up an' shot. Ken come ter ther door jest es hit went off."

Facing this new statement of alleged fact the brother of the dead man remained in his unmoving posture of amazed silence for a space, then he responded with a scornfully disbelieving laugh. In a woman one would have called it hysterical, but his words, when he spoke, were steady enough.

"Thet's a right slick story, Sally, but hit don't pull no wool over my eyes. Hit's too tardy fer right-minded folks ter believe hit."

The woman sought to answer, but her moving lips gave no sound. She had thought the world stood always ready to accept self-confessed guilt, and now her throat worked spasmodically until at last her dumbness was conquered.

"Does ye think ... hit's ther sort of lie I'd tell willin'ly?" she asked. "Don't hit put me right whar Ken's at now ... with ther gallows ahead of me?" She broke off, then her words rose to a shrill pitch of excitement.

"Fer God's sake, heed me in time! Ye seeks ter hang somebody fer killin' John. I'm ther right one. Hang me!"

Will Turk paced the room for several meditative turns with his head low on his breast and his hands gripped at his back. Then he halted and stood facing her.

"What does ye aim ter do with thet thar paper?" he demanded.

"Hit's my confession—all wrote out ... an' ready ter be swore ter," she told him. "Ef ye won't heed me, I've got ter give hit ter ther jedge—in open co'te."

But the man who gave orders to judges shook his head.

"Hit won't avail ye," he assured her with a voice into which the flinty quality had returned. "Hit's jest evidence in Ken's favour.... Hit don't jedgmatically sottle nothin'. I reckon bein' a woman ye figgers ye kin come

cl'ar whilst Ken would be shore ter hang—but I'll see thet nothin' don't come of thet."

"Does ye mean"—Sally was already so ghost pale that she could not turn paler—"Does ye mean they'll go on an' hang him anyhow?"

Will Turk's head came back and his shoulders straightened.

"Mayhap they will—ef I bids 'em to," he retorted.

"Listen at me, Will," the woman cried out in such an anguish of beseeching that even her present auditor could not escape the need of obeying. "Listen at me because ye knows in yore heart I hain't lyin'. I'm tellin' ther whole truth thet I was afeared ter tell afore. I let him take ther blame because I was skeered—an' because ther baby was goin' ter be borned. I hain't nuver been no liar, Will, an' I hain't one now!"

The man had half turned his back as if in final denial of her plea, yet now, after a momentary pause, he turned back again and she thought that there was something like a glimmer of relenting back of his gruffness as he gave curt permission: "Go on, then, I'm hearkenin'."

Late into that night they talked, but it was the woman who said most while the man listened in non-committal taciturnity. His memory flashed disturbingly back to the boyhood days and testified for the suppliant with reminders of occasional outcroppings of cruelty in his brother as a child. That outward guise of suavity which men had known in John Turk he knew for a coat under which had been worn another and harsher garment of self-will.

But against these admissions the countryside dictator doggedly stiffened his resistance. His brother had been killed and the stage was set for reprisal. His moment was at hand and it was not to be lightly forfeited.

Yet to take vengeance on an innocent scapegoat would bring no true appeasement to the deep bruise of outraged loyalty. If Ken Thornton had assumed a guilt, not his own, to protect a woman, he had no quarrel with Ken Thornton, and he could not forget that until that day of the shooting this man had been his friend.

He must make no mistake by erring on the side of passion nor must he, with just vengeance in his grasp, let it slip because a woman had beguiled him with lies and tears.

Finally the brother-in-law went over to where Sally was still sitting with her eyes fixed on him in a dumb tenseness of waiting.

"Ye compelled me ter harken ter ye," he said, "but I hain't got no answer ready fer ye yit. Hit all depends on whether ye're tellin' me ther truth or jest lyin' ter save Ken's neck, and thet needs ter lie studied. Ye kin sleep hyar ternight anyhow, an' termorrer when I've talked with ther state lawyer I'll give ye my answer—but not afore then."

Will Turk did not sleep that night. His thoughts were embattled with the conflict of many emotions, and morning found him hollow-eyed.

In its sum total, this man's use of his power had been unquestionable abuse. Terrorization and the prostitution of law had been its keystone and arch, but he had not yet surrendered his self-respect, because he thought of himself as a strong man charged with responsibility and accountable to his own conscience. Now he remembered the Ken Thornton who had once been almost a brother. Old affections had curdled into wormwood bitterness, but if the woman told the truth, her narration altered all that. Somehow he could feel no resentment at all against her. If *she* had killed John, she had acted only at the spur of desperation, and she had been feminine weakness revolting against brutal strength. As he pondered his determination wavered and swung to and fro, pendulum fashion. If she were lying—and he would hardly blame her for that, either—he would be her dupe to show mercy and likewise, if she were lying, mercy would be weakness.

Sally Turk rested no more peacefully than he that night, and when in the gray of dawn she looked searchingly into his face across the kitchen table, she could read nothing from the stony emptiness that kept guard over his emotions.

A little later she rode at his saddle skirt in a crucial suffering of suspense, and whenever she cast an agonized glance at him she saw her companion's face staring stiffly ahead, flintily devoid of any self-revelation.

Once she ventured to demand, "Whatever ye decides, Will, will them co'te-house fellers heed ye, does ye reckon?"

For a moment Turk glanced sidewise with narrowed eyes.

"I don't seek ter persuade them fellers," he made brief and pointed reply, "I orders 'em."

At the court house door Will Turk left her with a nod and went direct into the judge's chamber and the Commonwealth's attorney followed him—but of what law was being laid down there, she remained in heart-wracking ignorance.

Beyond the court house doors, plastered with notices of sheriff's sales and tax posters, the county seat simmered with an air of excitement that morning.

Street loungers, waiting for the trial to begin, knew the faces of those who had been neighbours, friendly or hostile, for many years; but to-day there were strangers in town as well.

Soon after daylight these unknown men had arrived, and one could see that they came from a place where life was primitive; for even here, where the breadth of a street was at their disposal, they did not ride abreast but in single file, as men do who are accustomed to threading narrow trails. They were led by a patriarchal fellow with a snowy beard and a face of simple dignity, and behind him came a squat and twisted hunchback who met every inquisitive gaze with a sharp challenge that discouraged staring. Back of these two were more than a dozen others, and though their faces were all quiet and their bearing courteous, rifles lay balanced across their saddles.

But most challenging in interest of all the newcomers was a young woman whose bronzed hair caught the glint of morning sunlight and whose dark eyes were deep and soft like forest pools.

"Ther Kaintuckians," murmured onlookers along the broken sidewalks as that cavalcade dismounted in the court house square to file quietly through the entrance doors, and eyes narrowed in a sinister augury of hostile welcome.

These visitors seated themselves together in a body on one side of the aisle and when the old bell had clanged its summons and Sheriff Beaver sang out his "Oyez, Oyez," the judge looked down upon them with more than passing interest.

From the door at one side of the bench Ken Thornton was brought in and as a gratuitous mark of indignity he came with his wrists manacled.

But from the Kentucky group, even from Dorothy herself, that circumstance wrung no murmur of resentment and the accused stood for a moment before he took his seat with eyes ranging over the place until they came to the section of the dingy room where he encountered the unscowling faces of friends.

There were his supporters who had come so far to raise their voices in his behalf, and perhaps to share the brunt of hatred that had been fired into blazing against him, and there—he felt a surge of emotion under which his face burned—was Dorothy herself!

They had not brought her to the jail to see him, and on the advice of Jim Rowlett she had not signalized her coming by insistence—so their eyes met without prior warning to the man.

It was to Kenneth Thornton as if there were sunlight in one corner of that cobwebbed room with its unwashed windows and its stale smells, and elsewhere hung the murk of little hope. A few staunch friends, at least, he had, but they were friends among enemies, and he steeled himself for facing the stronger forces.

Back of the rostrum where the judge sat squalidly enthroned a line of dusty and cobwebbed volumes tilted tipsily in ironical reminder of the fact that this law-giver took his cue less from their ancient principles than from whispers alien to their spirit.

A shuffling of muddy feet ensued; then a lesser sound that came with the giving out of many breaths; a sound that has no name but which has been known since days when men and women settled back in the circus of the Cæsars and waited for the lions to be turned into the arena where the victims waited.

From the bench was drawled the routine query, "Has the Commonwealth any motions?" and the Commonwealth's attorney rose to his feet and straightened the papers on his desk.

"May it please your Honour," he said, slowly, "in the case of the Commonwealth against Kenneth Thornton, charged with murder, now pending on this docket, I wish to enter a motion of dismissal and to ask that your Honour exonerate the bond of the defendant."

The man in the prisoner's dock had come braced against nerve-trying, but now he bent forward in an amazement that he could not conceal, and from the back of the courtroom forward ran an inarticulate sound from human throats that needed no words to voice its incredulity—its disappointment.

There was a light rapping of the gavel and the state's representative went evenly on:

"The trial of this defendant would only entail a fruitless cost upon the state. I hold here, duly attested, the confession of Sally Turk, sister of the accused and widow of the deceased, that it was she and not Kenneth Thornton who shot John Turk to death. I have sworn out a warrant for this woman's arrest, and will ask the sheriff to execute it forthwith and take her into custody."

Kenneth Thornton was on his feet with a short protest shaping itself on his lips, but his eyes met those of his sister who rose from her place against the wall as her name was spoken and he read in them a contentment that gave him pause and an unspoken plea for silence.

Answering to the restraining hand of his own lawyer on his elbow he sank back into his seat with a swimming head and heard the calm, almost purring voice from the bench directing, "Mr. Clerk, let the order be entered." After that, astonishment mounted to complete dumfounding as he saw standing in the aisle Will Turk, the backbone and energy of the entire prosecution—and heard his voice addressing the judge:

"May it please your Honour, I'd love ter be tuck on Sally Turk's bond when ther time comes. I've done satisfied myself thet she kilt my brother in self *deefence*."

CHAPTER XXIX

OUTSIDE on the straggling streets clumps of perplexed men gathered to mull over the seven days' wonder which had been enacted before their eyes.

Slowly they watched the Kentuckians troop out of the court house, the late prisoner in their midst, and marvelled to see Will Turk join them with the handshaking of complete amity. Many of these onlookers remembered the dark and glowing face with which Turk had said yesterday of the man upon whom he was now smiling, "Penitenshery, hell! Hit's got ter be ther gallows!"

Public amazement was augmented when Kenneth Thornton and his wife went home with Will Turk and slept as guests under his roof.

"Ye needn't hev no fear erbout goin' on home, Ken, an' leavin' Sally hyar," said Turk when he and Thornton sat over their pipes that night. "I gives ye my hand thet she's goin' ter go free on bond an' when her case is tried she'll come cl'ar."

Kenneth Thornton knew that he was listening to the truth, and as his fingers, groping in his pocket for a match, touched the small walnut-shell basket, he drew it out and looked at it. Then turning to Dorothy, who sat across the hearth, he said seriously: "Ther luck piece held hits charm, honey."

But an hour later, when Kenneth had gone out to see to his horse in the barn and when Lindy was busied about some kitchen task, Will Turk rose from his seat and standing before Dorothy began to speak in a low-pitched and sober voice:

"Ye seems ter me like a woman a man kin talk sense ter," he said, "an' I'm goin' ter tell ye somethin' either you or yore man ought ter know. Ken hain't plum outen danger yit. He's got an enemy over thar in Kaintuck: an' when

he starts back thet enemy's right like ter be watchin' ther trail thet leads home."

Dorothy held his eyes steadily when she questioned him with a name, "Bas Rowlett?"

Will Turk shook his head as he responded deliberately: "Whatever I knows come ter me in secrecy—but hit was at a time when I miscomprehended things, an' I sees 'em different now. I didn't say hit was Bas Rowlett ner I didn't say hit wasn't nuther, but this much I kin say. Whoever this feller is thet aims ter layway Ken, he aims ter do hit in Virginny. Seems like he dastn't undertake hit in Kaintuck."

Dorothy drew a breath of relief for even that assurance, and for the duration of a short silence Turk again paced the floor with his head bent and his hands at his back, then he halted.

"You go on home termorrer an' leave Ken hyar," he enjoined, "he wants ter see his sister free on bail afore he leaves, anyhow. When he gits ready ter start back I'll guide him by a way I knows, but one a woman couldn't handily travel, an' I'll pledge ye he'll crost over ter Kaintuck es safe as he come."

So on the morrow Dorothy rode with the same cavalcade that had escorted her to Virginia, and near sunset a few days later, when low-hanging clouds were sifting down a thick veil of snow and the bare woods stood ghostly and white, Bas Rowlett lay numb with cold but warm with anticipation by the trail that led from the county seat in Virginia to the gap that gave a gateway into Kentucky.

He huddled under a tangle of briars, masking an ambushade from which his rifle could rake the road and his eyes command it for a hundred yards to its eastern bend, and he had lain there all day. Kenneth Thornton would ride that trail, he felt assured, before dark, and ride it alone, and here, far from his own neighbourhood, he would himself be suspected of no murderous activity.

But as Bas lay there, for once prepared to act as executioner in person instead of through a hireling, Kenneth Thornton and Will Turk were nearing

the state border, having travelled furtively and unseen by a "trace" that had put the bulk of a mountain between them and ambuscade.

The winter settled after that with a beleaguering of steeps and broken levels under a blockade of stark hardship. Peaks stood naked save for their evergreens, alternately wrapped in snow and viscid with mud. Morning disclosed the highways "all spewed up with frost" and noon found them impassably mired. Night brought from the forests the sharp frost-cracking of the beeches like the pop of small guns, and in wayside stores the backwoods merchants leaned over their counters and shook dismal heads, when housewives plodded in over long and slavish trails to buy salt and lard, and went home again with their sacks empty.

Those who did not "have things hung up" felt the pinch of actual suffering, and faces in ill-lighted and more illy ventilated cabins became morose and pessimistic.

Such human soil was fallow for the agitator, and the doctrine which the winter did not halt from travelling was that incitement preached by the "riders."

Every wolf pack that runs on its food-trail is made up of strong-fanged and tireless-thewed beasts, but at its head runs a leader who has neither been balloted upon nor born to his place. He has taken it and holds it against encroachment by title of a strength and boldness above that of any other. He loses it if a superior arises. The men who are of the vendetta acknowledge only the chieftainship which has risen and stands by that same gauge and proving.

Parish Thornton, the recent stranger, had come to such a position. He had not sought it, but neither, when he realized the conditions, had he evaded it. Now he had made a name of marvellous prowess, which local minstrels wove into their "ballets." He was accounted to be possessed of an almost supernatural courage and invulnerability; of a physical strength and quickness that partook of magic. Men pointed to his record as to that of a sort of superman, and they embellished fact with fable.

He had been the unchallenged leader of the Harpers since that interview with old Aaron Capper, and the ally of Jim Rowlett since his bold ride to

Hump Doane's cabin, but now it was plain that this leadership was merging rapidly into one embracing both clans.

Old Jim had not long to live, and since the peace had been reestablished, the Doanes no less than the Harpers began to look to, and to claim as their own, this young man whose personal appeal had laid hold upon their imaginations.

But that is stating one side of the situation that the winter saw solidifying into permanence. There was another.

Every jealousy stirred by this new regime, every element that found itself galled by the rearrangement, was driven to that other influence which had sprung up in the community—and it was an influence which was growing like a young Goliath.

So far that growth was hidden and furtive, but for that reason only the more dangerous. The riders had failed to free Sam Opdyke, and Sam was in prison—but the riders were not through. It pleased them to remain deceptively quiet just now but their meetings, held in secret places, brought a multiplied response to the roll call. Plans were building toward the bursting of a storm which should wreck the new dykes and dams—and the leaders preached unendingly, under the vicarious urging of Bas Rowlett, that the death of Parish Thornton was the aim and end beyond other aims and ends.

The riders were not striking sporadic blows now, as they had done at first, in petty "regulatings." They were looking to a time when there was to be one ride such as the mountains had never seen; a ride at whose end a leader living by the river bend, a judge, a Commonwealth's attorney living in town and the foreman of a certain jury, should have paid condignly for their offences.

Christmas came to the house in the bend of the river with a crystal sheeting of ice.

The native-born in the land of "Do Without" have for the most part never heard of Christmas trees or the giving of gifts, but they know the old legend which says that at the hour when the Saviour was born in a manger the bare and frozen elder bushes come to momentary bloom again in the thickets and

the "critters and beasties" kneel down in their stalls, answering to some dumb mandate of reverence. This, however, is myth, and the fact is more substantially recognized that at this period the roisterous ride the highways, shooting and yelling, and the whiskey jug is tilted and tragedy often bares her fangs.

But Dorothy and Parish Thornton had each other, and the cloud that their imaginations had always pictured as hanging over the state border had been dispelled. Their hearts were high, too, with the reflection that when spring came again with its fragrances and whispers from the south there would be the blossoming of a new life in that house, as well as along the slopes of the inanimate hills.

But now on Christmas morning, as Dorothy looked out of a window, whose panes were laced with most delicate trceries of frost rime, there was a thorn-prickle of fear in her heart.

Parish came in and stood looking outward over her shoulder, and his smile flashed as it had done that first day when it startled her, because, before she had seen it, she had read of just such a smile in a journal written almost a century and a half ago.

"Hit's plum beautiful—out thar," she murmured, and the man's arm slipped around her. It might almost have been the Kenneth Thornton who had seen Court life in England who gallantly responded, "Hit's still more beautiful—in *hyar*."

There had been an ice storm the night before, following on a day of snowfall, and the mountain world stood dazzling in its whiteness with every twig and branch glacéd and resplendent under the sun.

On the ice-bound slopes slept shadows of ultramarine, and near the window the walnut tree stood, no more a high-priest garbed in a green mantle or a wind-tossed cloak of orange-brown, but a warrior starkly stripped of his draperies and glitteringly mailed in ice.

He stood with his bold head high lifted toward the sky, but bearing the weight of winter, and when it passed he would not be found unscarred.

Already one great branch dropped under its freighting, and as the man and woman looked out they could hear from time to time the crash of weaker brethren out there in the forests; victims and sacrifices to the crushing of a beauty that was also fatal.

Until spring answered her question, Dorothy reflected, she could only guess how deep the blight, which she had discovered in the fall, had struck at the robustness of the old tree's life. For all its stalwartness its life had already been long, and if it should die—she closed her eyes as though to shut out a horror, and a shudder ran through her body.

"What is it, honey," demanded the man, anxiously, as he felt her tremor against his arm, "air ye cold?"

Dorothy opened her eyes and laughed, but with a tremulousness in her mirth.

"I reckon I hain't plum rekivered from ther fright hit give me when ye went over thar ter Virginny," she answered, "sometimes I feels plum timorous."

"But ther peril's done past now," he reassured her, "an' all ther enemies we had, thet's wuth winnin' over, hev done come ter be friends."

"All thet's wuth winnin' over, yes," she admitted without conviction, "but hit's ther other kind thet a body hes most cause ter fear."

Into the man's thought flashed the picture of Bas Rowlett, and a grim stiffness came to his lips, but she could hardly know of that remaining danger, he reflected, and he asked seriously, "What enemies does ye mean, honey?"

She, too, had been thinking of Bas, and she, too, believed that fear to be her own exclusive secret, so she answered in a low voice:

"I was studyin' erbout ther riders. I reckon they've done tuck thought thet you an' Hump hev been seekin' *evidence* erginst 'em."

The man laughed.

"Don't disquiet yoreself erbout them fellers, honey. We *hev* been seekin' *evidence*—an' gittin' hit, too, in some measure. Ef ther riders air strong enough ter best us we hain't fit ter succeed."

The smile gave slowly way to a sterner and more militant expression, the look which his wife had come to know of late. It had brought a gravity to his eyes and a new dimension to his character, for it had not been there before he had dedicated himself to a cause and taken up the leadership which he had at first sought to refuse. Dorothy knew that he was thinking of the fight which lay ahead, before the scattered enmities of that community were resolved and the disrupted life welded and cemented into a solidarity of law.

CHAPTER XXX

SIM SQUIRES was finding himself in a most intricate and perplexing maze of circumstance; the situation of the man who wears another man's collar and whose vassalage galls almost beyond endurance.

It was dawning on Squires that he was involved in a web of such criss-cross meshes that before long he might find no way out. He had been induced to waylay Parish Thornton at the demand of one whom he dared not incense on pain of exposures that would send him to the penitentiary.

His intended victim had not only failed to die but had grown to an influence in the neighbourhood that made him a most dangerous enemy; and to become, in fact, such an enemy to Sim he needed only to learn the truth as to who had fired that shot.

Squires had come as Rowlett's spy into that house, hating Thornton with a sincerity bred of fear, but now he had grown to hate Rowlett the more bitterly of the two. Indeed, save for that sword of Damocles which hung over him in the memory of his murderous employment and its possible consequences, he would have liked Parish, and Dorothy's kindness had awakened in the jackal's heart a bewildering sense of gratitude such as he had never known before.

So while compulsion still bound him to Bas Rowlett, his own sympathies were beginning to lean toward the fortunes of that household from which he drew his legitimate wage.

But complications stood irrevocably between Sim and his inclinations. His feeling against Bas Rowlett was becoming an obsession of venom fed by the overweening arrogance of the man, but Bas still held him in the hollow of his hand, and besides these reefs of menace were yet other shoals to be navigated.

Squires had been compelled by Rowlett not only to join the "riders" who were growing in numbers and covert power, but to take such an active part

in their proceedings as would draw down upon his head the bolts of wrath should the organization ever be brought to an accounting.

There was terrible danger there and Sim recognized it. Sim knew that when Rowlett had quietly stirred into life the forces from which the secret body was born he had been building for one purpose—and one purpose only. To its own membership, the riders might be a body of vigilantes with divers intentions, but to Bas they were never anything but a mob which should some day lynch Parish Thornton—and then be themselves destroyed like the bee that dies when it stings. Through Squires as the unwilling instrument Rowlett was possessing himself of such evidence as would undo the leaders when the organization had served that one purpose.

Yet Sim dared reveal none of these secrets. The active personality who was the head and front of the riders was Sam Opdyke's friend Rick Joyce—and Rick Joyce was the man to whom Bas could whisper the facts that had first given him power over Sim.

For Sim had shot to death Rick's nephew, and though he had done it while drunk and half responsible; though he had been incited to the deed by Bas himself, no man save the two of them knew that, and so far the murderer had never been discovered.

It seemed to Sim that any way he turned his face he encountered a cul-de-sac of mortal danger—and it left him in a perplexity that fretted him and edged his nerves to rawness.

Part of Christmas day was spent by the henchman in the cabin where he had been accustomed to holding his secret councils with his master, Bas Rowlett, and his venom for the man who had used him as a shameless pawn was eclipsing his hatred for Parish Thornton, the intended victim whom he was paid to shadow and spy upon. For Dorothy he had come to acknowledge a dumb worship, and this sentiment was not the adoration of a lover but that dog-like affection which reacts to kindness where there has been no other kindness in life.

It was not in keeping with such a character that he should attempt any candid repudiation of his long-worn yoke, or declare any spirit of conversion, but in him was a ferment of panic.

"I'm growin' right restive, Bas," whined Sim as the two shivered and drank whiskey to keep themselves warm in that abandoned shack where they were never so incautious as to light a fire. "Any time this feller Parish finds out I shot him, he'll turn on me an' kill me. Thar hain't but jest one safe way out. Let me finish up ther job an' rest easy."

Bas Rowlett shook his head decisively.

"When I gits ready ter hev ye do thet," he ruled, imperiously, "I'll let ye know. Right now hit's ther last thing I'd countenance."

"I kain't no fashion make ye out," complained Sim. "Ye hired me ter do ther job an' blackguarded me fer failin'. Now ye acks like ye war paid ter pertect ther feller from peril."

Rowlett scowled. It was not his policy to confide in his Myrmidons, yet with an adherent who knew as much as Squires it was well to have the confidential seeming.

"Things hev changed, Sim," he explained. "Any heedless killin's right now would bring on a heap of trouble afore I'm ready fer hit—but ye hain't no more fretful ter hev him die then what I be—an' thet's what we're buildin' up this hyar night-rider outfit ter do."

"Thet's another thing thet disquiets me, though," objected Squires. "I'm es deep inter thet es anybody else, an' them fellers, Thornton and Old Hump, hain't niver goin' ter rest twell they penitensheries some of ther head men."

Bas Rowlett laughed, then with such a confidential manner as he rarely bestowed upon a subordinate, he laid a hand on his hireling's arm. "Thet's all right, Sim. Ther penitenshery's a right fit an' becomin' place fer them men, when ye comes ter study hit out. We hain't objectin' ter thet ourselves—in due time."

Sim Squires drew back and his face became for the moment terror-stricken. "What does ye mean?" he demanded, tensely, "does ye aim ter let me sulter out my days in convict-stripes because I've done s'arved yore eends?"

But Bas Rowlett shook his head.

"Not you, Sim," he gave assurance. "I'm goin' ter tek keer of *you* all right—but when ther rest of 'em hev done what we wants, we hain't got no further use fer them riders. Atter thet they'll jest be a pest an' burden ter us ef they goes on terrifyin' everybody."

"I don't no fashion comprehend ye, but I've got ter know whar I stands at." There was a momentary stiffening of the creature's moral backbone and the employer hastened to smooth away his anxiety.

"I hain't nuver drapped no hint of this ter no man afore," he confided, "but me an' you air actin' tergither es pardners, an' ye've got a license ter know. These hyar riders air ergoin' ter handle ther men that stands in my light—then I'm goin' ter everlastin'ly bust up ther riders. I wouldn't love ter see 'em git too strong. Ye fights a forest fire by buildin' back-fires, Sim, but ef ye lets ther back-fires burn too long ye're es bad off es ye war when ye started out."

"How does ye aim ter take keer of me?" inquired the listener and Bas replied promptly: "When ther time comes ter bust 'em up, we'll hev strength enough ter handle ther matter. Leave thet ter me. You'll be state's *evidence* then an' we'll prove thet ye ji'ned up ter keep watch fer me."

Over Sim Squires' face spread the vapid grin that he used to conceal his emotions.

"But thet all comes later on," enjoined Bas. "Meanwhile, keep preachin' ter them fellers thet Thornton's buildin' up a case erginst 'em. Keep 'em skeered an' wrought up."

"I reckon we'd better not start away tergither," suggested Sim when they had brought their business to its conclusion, "you go on, Bas, an' I'll foller d'reckly."

When he stood alone in the house Sim spent a half-hour seeking to study the ramifications of the whole web of intrigue from various angles of consideration, but before he left the place he acted on a sudden thought and, groping in the recess between plate-girder and overhang, he drew out the dust-coated diary that Bas had thrust there and forgotten, long ago. This Sim put into his pocket and took with him.

* * *

The winter dragged out its course and broke that year like a glacier suddenly loosened from its moorings of ice. A warm breath came out of the south and icicled gorges sounded to the sodden drip of melting waters. Snowslides moved on hundreds of steeply pitched slopes, and fed sudden rivulets into freshet roarings.

The river itself was no longer a clear ribbon but a turgid flood-tide that swept along uprooted trees and snags of foam-lathered drift.

There was as yet neither bud nor leaf, and the air was raw and bone-chilling, but everywhere was the restless stirring of dormant life impulses and uneasy hints of labour-pains.

While the river sucked at its mud bank and lapped its inundated lowlands, the walnut tree in the yard above the high-water mark sang sagas of rebirth through the night as the wind gave tongue in its naked branches.

But in the breast of Sim Squires this spirit of restlessness was more than an uneasy stirring. It was an obsession.

He knew that when spring, or at the latest early summer, brought firmness to the mired highways and deeper cover to the woods, the organization of which he was a prominent member would strike, and stake its success or failure upon decisive issue. Then Parish Thornton, and a handful of lesser designates, would die—or else the "riders" would encounter defeat and see their leaders go to the penitentiary.

Bas Rowlett, himself a traitor to the Ku Klux, had promised Sim safety, but Sim had never known Bas to keep faith, and he did not trust him now.

Yet, should he break with the evil forces to which he stood allied, Sim's peril became only the greater. So he lay awake through these gusty nights cudgelling his brain for a solution, and at the end, when spring had come with her first gracious touches of Judas-tree and wild plum blossoming, he made up his mind.

Sim Squires came to his decision one balmy afternoon and went, with a caution that could not have been greater had he contemplated murder, to the

house of Hump Doane, when he knew the old man to be alone.

His design, after all, was a simple one for a man versed in the art of double-crossing and triple-crossing.

If the riders prevailed he was safe enough, by reason of his charter membership, and none of his brother vigilantes suspected that his participation had been unwilling. But they might not prevail, and, in that event, it was well to have a friend among the victors.

He meant, therefore, to tell Hump Doane some things that Hump Doane wished very much to know, but he would go to the confessional under such oath of secrecy as could not recoil upon him. Then whoever triumphed, be it Bas, the white-caps, or the forces of law and order, he would have a protector on the winning side.

The hunchback met his furtive visitor at the stile and walked with him back into the chill woods where they were safe from observation. The drawn face and the frightened eyes told him in advance that this would be no ordinary interview, yet he was unprepared for what he heard.

When Squires had hinted that he came heavy with tidings of gravest import, but must be given guarantees of protection before he spoke, Hump Doane sat reflecting dubiously upon the matter, then he shook his head. "I don't jest see whar hit profits me ter know things thet I kain't make no use of," he demurred, and Sim Squires bent forward with haunted eyes.

"They're *facts*," he protested. "Ye kin use them facts, only ye mustn't tell no man whar ye got 'em from."

"Go ahead, then," decided Hump Doane after weighing the proposition even further. "I'm hearkenin', an' I stands pledged ter hold my counsel es ter yore part in tellin' me."

The sun was sinking toward the horizon and the woods were cold. The informer rose and walked back and forth on the soggy carpet of rotted leaves with hands that clasped and unclasped themselves at his back. He was under a stress of feeling that bordered on collapse.

The dog that has been kicked and knocked about from puppyhood has in it the accumulated viciousness of his long injuries. Such a beast is ready to run amuck, frothing at the mouth, and Sim Squires was not unlike that dog. He had debated this step through days and nights of hate and terror. He had faltered and vacillated. Now he had come, and the long-repressed passions had broken all his dams of reserve, transforming him, as if with an epilepsy. His eyes were bloodshot, his cheeks were putty-yellow and, had he been a dog instead of a man, his fangs would have been slathered with foam.

Heretofore he had spoken hesitantly and cautiously. Now like the epileptic or the mad dog, he burst into a volcanic outpouring in which wild words tumbled upon themselves in a cataract of boiling abandon. His fists were clenched and veins stood out on his face.

"I'm ther man thet shot Parish Thornton when he fust come hyar," was his sensational beginning, "but albeit my hand sighted ther gun an' pulled ther trigger hit was another man's damn dirty heart that contrived ther act an' another man's dollars thet paid fer hit. I was plum fo'ced ter do hit by a low-lived feller thet hed done got me whar he wanted me—a feller thet bulldozed an' dogged me an' didn't suffer me ter call my soul my own—a feller thet I hates an' dreads like I don't niver expect ter hate Satan in hell!"

The informer broke off there and stood a pitiable picture of rage and cowardice, shaken with tearless sobs of unwonted emotion.

"Some men ruins women," he rushed on, "an' some ruins other men. *He* done thet ter me—an' whenever I boggled or balked he cracked his whip anew—an' I wasn't nuthin' but his pore white nigger thet obeyed him. I ached ter kill him an' I didn't even dast ter contrary him. His name's Bas Rowlett!"

The recital broke off and the speaker stood trembling from head to foot. Then the hearer who had listened paled to the roots of his shaggy hair and his gargoyle face became a mask of tragic fury.

At first Hump Doane did not trust himself to speak and when he did, there was a moment in which the other feared him almost more than he feared Bas Rowlett.

For the words of the hunchback came like a roar of thunder and he seemed on the verge of leaping at his visitor's throat.

"Afore God, ye self-confessed, murderin' liar," he bellowed, "don't seek ter accuse Bas Rowlett ter me in no sich perjury! He's my kinsman an' my friend—an' I knows ye lies. Ef ye ever lets words like them cross yore lips ergin in my hearin' I'll t'ar ther tongue outen yore mouth with these two hands of mine!"

For a space they stood there in silence, the old man glaring, the younger slowly coming back from his mania of emotion as from a trance.

Perhaps had Sim sought to insist on his story he would never have been allowed to finish it, but in that little interval of pause Hump Doane's passion also passed, as passions too violent to endure must pass.

After the first unsuspected shock, it was borne in on him that there are confessions which may not be doubted, and that of them this was one. His mind began to reaccommodate itself, and after a little he said in a voice of deadly coldness:

"Howsoever, now thet ye've started, go on. I'll hear ye out."

"I'm tellin' ye gospel truth, an' sometimes ther truth hurts," insisted Sim. "Bas war jealous of Dorothy Harper—an' I didn't dast ter deny him. He paid me a patch of river-bottom land fer ther job, albeit I failed."

Hump Doane stood, his ugly face seamed with a scowl of incredulous sternness, his hand twitching at the ends of his long and gorilla-like arms. "Go on," he reiterated, "don't keep me waitin'."

Under the evening sky, standing rigid with emotion, Squires doggedly went on. He told, abating nothing, the whole wretched story from his own knowledge: how Bas had sought to bring on the war afresh in order that his enemy Parish Thornton might perish in its flaming; how with the same end in view Bas had shot at Old Jim; how he himself had been sent to trail Thornton to Virginia that his master might inform upon him, and how while the Virginian was away, in jeopardy of his life, the arch-conspirator had pursued his wife, until she, being afraid to tell her husband, had come near killing the tormentor herself.

"Hit war Bas thet stirred up ther riders into formin'," declared the spy in conclusion. "He didn't niver take no part hisself, but he used two men thet didn't dast disobey him—two men thet he rules over like nigger slaves—an' ther riders hev got one object over an' above everything else, thet he aims ter hev 'em carry through. Thet is ter kill Parish Thornton."

Hump Doane walked over and stood looking up from his squat, toad-like deformity into the face of the man who towered above him, yet in his eyes was the blaze with which a giant might look down on a pigmy.

"Ye says he used two men, Sim," the falsetto of the hunchback's voice was as sharp as a dagger's point. "Ef ye came hyar fer any honest purpose, I calls on ye, now, ter give me them two names."

Squires' face turned even paler than it had been. The veins along his temple were pulsing, and his words caught and hung in hesitancy; but he gulped and said in a forced voice: "I was one of 'em, Hump."

"An' t'other one? Who war he?"

Again the informer hesitated, this time longer than before, but in the end he said dully:

"Hump, t'other one war—yore own boy, Pete."

CHAPTER XXXI

STRANGELY enough it was as though the old man's capacity for being shocked or infuriated had been exhausted. There was no roar of maddened wrath or denunciation of denial now. Never had Sim seen on a human face such a despair of stricken grief. Hump Doane only passed an open palm across his forehead. Somehow this hideous recital, which had made him an old man in the space of a few minutes, blasting him like a thunder bolt, could not be seriously doubted. It was not allegation but revelation.

Pete was young and impressionable. He was clay upon the wheel of Bas Rowlett's domination, and of late he had been much away from home.

The father tried to straighten his twisted shoulders and his warped back. He turned his eyes to the west where the fires of sunset were crimson and purple, then he spoke again in a manner of recovered and hard-held self-control.

"Ef these things ye tells me be true," he said, "I hev need ter know 'em an' I'm beholden ter ye. Ef they're false ye've done struck me a blow I kain't nuver fergive, an' I don't see how you an' me kin both go on livin'. I aims ter find out fer myself, an' meanwhile—I'll keep my pledge ter ye." He paused, then the leader triumphed over the stricken individual.

"Keep right on goin' ter every meetin' ther riders holds," he directed, quietly. "Don't suffer 'em ter suspicion no falsity."

But when Sim had left him Hump Doane stood there while the sunset faded, while the afterglow livened and died, while the cold twilight settled.

He was thinking of the son he loved and despised, of the soft human metal that had been hammered into debauchery by this other man whom he had trusted.

He was acknowledging, too, that if the riders numbered among their secret adherents such men as Bas Rowlett and his own boy, his fight was upon a poison that had struck deeper and more malignantly into the arteries of the community than he had heretofore dreamed.

He must talk with Parish Thornton, whose strength and judgment could be trusted. He would see him to-night.

But at that point he halted. As yet he could not reveal his unsubstantiated information to another. A pledge of sacredly observed confidence had been the price of his learning these things—and over there at the Thornton house a baby was expected before long. It would be both wise and considerate to defer the interview that must of necessity bring the whole crisis to violent issue until the young father's thoughts were less personally involved. It was a time to make haste slowly. Old Hump Doane laughed bitterly. He was a father himself, and to-night he had learned how the heart of a parent can be battered.

But before he went to his bed he had talked with his son, while his son sat cowering. It had been a stormy interview during which Pete had denied, expostulated, and at the end broken down in confession, and when Hump Doane rose he had abandoned that slender shred of hope to which, in the teeth of conviction, he had been clinging, that his boy might still be able to clear himself.

"Ye've done lied ter me, an' ye've done broke my heart," declared the hunchback, slowly, "but ye've done confessed—an' I'm too damn weak ter turn ye over ter ther law like my duty demands. Don't niver go ter no other meetin', an' ef they questions why ye don't come, tell 'em ter ask me! An' now"—the old man crumpled forward and buried his great head in his knotted hands—"an' now git outen my sight fer a spell, fer I kain't endure ther sight of ye!"

But when he rode abroad the next day no man suspected the cataclysm which had shattered Hump Doane's world into a chaos of irretrievable wreck.

A closer guard of caution than ever before he set upon his speech and bearing, while he sought to run down those devastating truths that had come

to him with such unwelcome illumination.

* * *

In those days of first bud and leaf Dorothy Thornton looked out of her window with a psychological anxiety. If the first hint of life that came to the great tree were diseased or marked with blight, it would be an omen of ill under which she did not see how she could face her hour, and with fevered eyes she searched the gray branches where the sap was rising and studied the earliest tinge of green.

"Ef harm hed done come ter hit," she argued with herself, "hit would show, by this time, in them leetle buds an' tossels," but she was not satisfied, and reaching through the attic window she broke off from day to day bits of twig to see whether the vitality of rising sap or the brittleness of death proclaimed itself in the wood.

Slowly, under soft air and rain, the buds broke into tiny spears, too small and tender, it seemed to her, to live against the unkind touch of harsh winds, and the rudimentary filaments spread and grew into leaves.

But the time that seemed to Dorothy to lag so interminably was passing, and the veils of misty green that had scarcely showed through the forest grays were growing to an emerald vividness. Waxen masses of laurel were filling out and flushing with the pink of blossom. The heavy-fragranced bloom of the locust drooped over those upturned chalices of pink, and the black walnut was gaunt no more, but as brightly and lustily youthful as a troubador whom age had never touched.

Warm with swelling life and full throated with bird music the beginnings of summer came to the hills, and the hills forgot their grimness.

But Old Jim Rowlett, over there in his house, was failing fast, men said. He prattled childishly, and his talon-like hands were pitifully palsied. He would scarcely see another spring, and in the fight that was coming his wise old tongue would no longer be available for counsel. So toward the younger and more robust influence of Parish Thornton his adherents turned in his stead.

In those places where secret night sessions were held were the stir of preparation and the talk of punishing a traitor—for young Pete had deserted the cause, and the plotters were divided in sentiment. A majority advocated striking with stunning suddenness toward the major purpose and ignoring the disaffection of the one young renegade, but a fiercer minority was for making him an example, and cool counsels were being taxed.

To Dorothy Thornton's eyes contentment had returned because gay and hopeful young flags of green flew from every twig of the tree of augury, and in her deep pupils dwelt the serene sweetness that broods on thoughts of approaching motherhood.

Then one morning before dawn Uncle Jase Burrell and a neighbour woman, versed in the homely practises of the midwife, came to the room where Parish Thornton sat with tightly clenched hands before the ruddy hearth.

"He's done been borned," said Uncle Jase, cheerily; "he's hale an' survigrouse an' sassy—an' he's a boy."

Sim Squires had not gone home that night, and now he rose from his chair and picked up his hat. "I reckon I'll be farin' on," he announced, "hit's all over now but ther shoutin'." At the door, though, he turned back and from his coat pocket drew a roll of sheafed paper bound in a limp cloth.

"I found this hyar thing layin' behind a barrel up thar in ther attic," he lied, as he restored the lost journal of the revolutionary ancestress. "I 'lowed hit mout be somethin' ye prized."

* * *

One night, when June had come to her full-bosomed richness, young Pete Doane did not return to his father's house and the old hunchback's face darkened anxiously.

The warm night was a blue and moonlit glory of summer tranquillity and from the creek bottom came the full-throated chorus of the frogs. Back in the dark timber sounded the plaintive sweetness of the whippoorwills, and from everywhere drifted an intangible blending of fragrances.

But Hump sat alone and morose in the house where no one dwelt but himself and his son—save the neighbour woman who came in the daytime to cook and clean house for the widower. He sat there until midnight had passed and the moon was riding low to the west; he was still sitting in the darkness that comes before dawn, and young Pete had not yet come. Then when even June could not make gracious that dismal hour that brings fog and reek before the first gray streaks the east, the old man heard a voice outside his door and rose heavily to answer it.

He was a marked man, and should not have been so incautious, but in these days death held no threat for Hump Doane. It was life that brought him torture.

So he ignored those precepts of wariness which had been taught him by years of experience, and when he stood unarmed in the doorway, against a background of pale lamplight, he felt the thrust of a rifle muzzle against his ribs, and heard a disguised voice ordering, "Come with us."

Hump did not flinch or give back. Neither did he obey. Instead, he laughed with a hollow callousness and replied, "Shoot ef ye've a mind ter. I hain't goin' ter stir a step ter foller ye."

But masked men closed in and caught his misshapen elbows, and the voice that had first accosted him went on in the level tones of its disguise:

"We don't aim ter harm ye, Hump; leastways not yit—but we aims ter show ye somethin' we've brought ye fer a gift."

They led him, too dull and apathetic of spirit to resist, too indifferent of any consequence to protest, out and across his own fog-wrapped yard and down to the sledge-trail road.

There in the bleak obscurity of blackness his eyes could make out a squad of silent figures, but nothing more.

"Ye kain't rightly see hit yit, Hump," announced the spokesman, "but thar's a fodder-sledge standin' thar at ther aidge of ther road—an' on hit thar's somethin' thet b'longs ter ye. Hyar's a pine faggot thet's soaked with kerosene—an' hyar's matches ter light hit with—but—on pain of death—wait twell we've done gone away."

Into the heavy indifference of the old man's mood flashed a sickening shaft of dread. He took the torch and the matches, and then with a cowardice that was alien to his character he stood trembling like a frightened child, while the dark figures disappeared as though they had melted.

Hump Doane was afraid to kindle his torch, not afraid because of any threat to himself, but terrified for what he might see.

Then he braced himself, and with his back turned, struck the match and saw the guttering flames leap greedily upon the oiled pine splinter.

Slowly he wheeled, and his eyes fell on the illuminated sledge—his own sledge stolen from his barn—and there stretched lifeless, and shamefully marked with the defacement of the hangman's rope, lay what was left of his son.

Old Hump Doane, who had never stepped aside from any danger, who had never known tears since babyhood, stood for a moment gulping, then the light dropped from his hand and the agony of his shriek went quavering across the silent hills and reëchoed in the woods.

The pine splinter burned out in the wet grass and old Hump lay beside it insensible, but after a while he awakened out of that merciful sleep and crawled on his hands and knees over to where the sledge stood, and he knelt there with his face buried on the lifeless breast.

"God fergive me," he murmured with a strangled voice. "He didn't nuver hev no mammy ter raise him up aright. I reckon I failed him when he needed me most—but Bas Rowlett's accountable ter *me*!"

When the neighbour woman came the next morning to prepare breakfast she fled screaming away from the gruesome sight that met her eyes: the sight of a dead man lying on a sledge, and a hunchback, who seemed dead, too, stretched unconscious across the body. It was so that men found them later, and carried them in, and it would have been more merciful had Hump Doane been as lifeless as he seemed instead of coming back to the ordeal he must face.

* * *

Through a community stunned and appalled into breathlessness the news ran like quicksilver, and the easy-pacing mule from Parish Thornton's barn was lathered with sweat as the young man called upon it to annihilate time and space over the broken ways between his house and that of his stricken friend.

At Hump Doane's stile Thornton flung himself out of his saddle and paused for no word with those neighbours who stood gathered about the dooryard. He heard the whine of a saw and the pounding of a hammer off somewhere to the rear, and knew that volunteer and amateur undertakers were fashioning a coffin—but he hurled himself like a human hurricane across the threshold and demanded briefly: "War's Hump at?"

The room was dim and murky at its corners, but through the two doors poured a flood of morning light, and into its shaft projected an unhinged shutter supported on two saw-horses, with a sheeted burden upon it. As his eyes became more accustomed to the gloom beyond the room's centre, Parish could make out the hunched figure that sat at the head of the body, still mercifully wrapped in something like lethargy and too numbed for full acuteness of feeling.

Other figures to the number of two or three moved as silently as dark wraiths about the place, but when Parish entered they drifted out, leaving him alone with his friend, and one of the doors closed upon their going.

Then the lightnings of outraged wrath that seemed to crackle in the young clansman's eyes stilled themselves and altered into something like tenderness as he moved with catlike softness of footfall to where the elder man sat, and let a hand fall on his malformed shoulder.

"Hump," he said, briefly, "my heart's plum sufferin' fer ye. I jest heared of hit."

Hump Doane stirred and looked stupidly at him for a space, then with laboured slowness he came to his feet, and his only answer was the eloquent gesture with which one hand swept toward the dead body.

A stupefaction of grief had held him since they had brought him in this morning from the road where they had found him, and thought had moved so haltingly that it had scarcely been thought at all.

But now the vitalizing light of sympathy and outrage in those other eyes seemed to rouse him out of his long coma with an awakening like that which comes after ether.

As gray dawn quickens gradually out of darkness, a numbed indignation in his pupils began to liven into unquenchable wrath.

"I hain't been able ter talk ... ter these hyar kindly neighbours of mine...." he faltered, "but somehow, I believes I kin with *you*."

"I'm hyar ter s'arve ye, howsoever I kin, Hump," Parish assured him. "Ef ye was my own father I couldn't love ye better."

Hump Doane held out a crumpled paper that had been crushed in his taut hand, and Thornton stepping to the light smoothed it and read, pencilled in roughly printed characters, "A warning to all traitors."

"Hit war pinned on him...." explained the father. "Ther riders done hit ... *he'd* done jined 'em ... an' he quit."

Parish Thornton stood with the light full on his face and the paper grasped in his hand. The angle of his clean-cut jaw seemed to harden from the plastic texture of flesh to the hardness of granite, and in his narrowed eyes spurted jets of those blue-and-white fires that hold intensest heat.

"I always aimed ter raise him up in godly ways," went on the father with self-accusing misery, "but I war a hard man, an' I never gentled him none. I reckon I driv him ter others ... thet debauched an' ruint him."

He had been, to that point, the man conscious only of his hurt, but now his face became contorted and livid with a sudden hurricane of rage.

"But them thet hanged him," he cried out in abrupt violence, "vile es they war ... they warn't nothin' ter ther man thet made a dupe out of him ... ther man thet egged them on.... Bas Rowlett's accountable ter me—an' afore ther sun sets I aims ter stand over his dead body!"

Parish Thornton flinched at the name. He had turned his face toward the sheeted figure, but now he wheeled back, crouching and straightening with the spasmodic quickness of a boxer who sidesteps a blow.

"Bas Rowlett!" he echoed in a low but deadly tensy of voice. "Steady yoreself, man, an' construe what ye means!"

Hump Doane had shaken off his torpor now and stood trembling under all the furies of repressed years. His words came in a torrent of vehemence that could not be stemmed, and they mounted like gathering winds.

"I've preached peace day in an' day out.... I've striven ter keep hit ... an' I knows I did aright ... but this day I'm goin' ter stultify myself an' kill a man ... an' when I finishes him, I'm going ter keep right on till I'm either kilt myself or gits all them thet's accountable fer *this*!" He paused, breathing in gasps, then rushed on again: "I trusted Bas Rowlett ... I believed in him ... some weeks back I l'arned some things erbout him thet shocked me sore, but still I held my hand ... waitin' ter counsel with *you* atter yore baby hed been borned."

"What war hit ye l'arned, Hump?" The younger man's voice was almost inaudibly low, and the answer came like volley-firing with words.

"Hit war Bas thet hired ye laywayed.... Hit war Bas thet egged Sam Opdyke on ter kill ye.... Hit war Bas thet sent word over inter Virginny ter betray ye ter ther law.... Hit war Bas thet shot through old Jim's hat ter make a false appearance an' foment strife.... Hit war Bas thet stirred men up ter organizin' ther riders ... an' used my boy fer a catspaw!"

"Listen, man!" Parish Thornton was breathing his words through lips that scarcely moved as he bent forward with the tautness of a coiled spring. "I knowed Bas Rowlett hired me shot ... but we'd done pledged ourselves ter settle thet betwixt us.... I held my hand because of ther oath I give ye when we made ther truce ... but these other things, I hain't niver even drempt' of ther like afore. Does ye know aught more of him?"

"I knows thet whilst ye war away in Virginny he went over an' sought ter make love ter yore wife ... an' she come nigh killin' him fer hit ... but she feared fer bloodshed ef she bore thet tale ter *you*."

The old man paused, and Parish Thornton made no answer in words, but between his lips the breath ran out with the hiss of sobbing waters.

"I kain't prove none of them things in law," went on Hump, and his eyes travelled back to the hideous fascination of the sheeted body, "yit I knows, in my heart, every one of 'em's true—an' thet's enough fer me. Now I'm goin' ter be my own law!"

The cripple turned and walked unsteadily to the corner of the room, and from its place behind a calico curtain he took out a repeating rifle.

"Thar's my co'te of jestice," he declared, and his voice trembled as with hunger and thirst.

But Parish Thornton had thrown back his head and unaccountably he laughed as he laid on the other's arm fingers that closed slowly into a grip of steel and rawhide.

"Hump," he said, "hit would be a turrible pity fer us ter quarrel—but I don't aim ter be robbed, even by *you*! Thet man belongs ter *me* ... an' I aims ter claim him now. When my blood war bi'lin' like a mortal fever ... right hyar in this room ... didn't ye fo'ce me ter lay aside my grudge till sich day es ye give me license ter take hit up ergin?... an' hain't thet day come now?... From thet time till this I've kep' my word ... but hell hitself couldn't hold me back no longer.... Ye kain't hev him, Hump. He's *mine*!"

He paused, then with something like a sob he repeated in a dazed voice, "An' ye says he aimed ter fo'ce Dorothy with his love-makin'. God!"

Hump Doane was still clinging to the rifle upon which Thornton had laid his hands, and they stood there, two claimants, neither of whom was willing to surrender his title to a disputed prize—the prize of Bas Rowlett's life.

But at length the older fingers loosened their hold and the older man took a stumbling step and knelt by his dead. Then the younger, with the gun cradled in his elbow, and a light of release in his eyes—a light that seemed almost one of contentment—went out through the door and crossed the yard to the fence where his mount was hitched.

CHAPTER XXXII

SIM, standing at the barn door, had watched Parish Thornton ride away that morning with a troubled heart, as he wondered what sequel these events would bring for himself. Then he went to the house and called softly to Dorothy. She was crooning a lullaby, behind the closed door of her room, to the small mite of humanity that had come, in healthy pinkness, to the comparatively mature age of one month.

"Thar hain't nuthin' ter be done right now," the hired man told her, "an' I've got ter fare over ter my own place fer a spell. A man's comin' ter haggle with me over a cattle deal."

But Sim was not going to his own house. He was acting under standing orders which might in no wise be disobeyed.

The organization that had been born in secret and nurtured to malignant vigour had never held a daylight session before. No call had gone out for one now, but an understanding existed and an obligation, acknowledged by its membership in the oath of allegiance.

If ever at any time, day or night, shine or storm, such an occasion developed as carried the urge of emergency, each rider must forthwith repair to his designated post, armed and ready for instant action.

This prearranged mobilization must follow automatically upon the event that brought the need, and it involved squad meetings at various points. In its support a system of signalling and communication had been devised, whereby separated units might establish and hold unbroken touch, and might flow together like shattered beads of quicksilver.

Unless Sim Squires was profoundly mistaken, such a time had come.

But Sim went with a heavy heart of divided allegiance. He dared not absent himself, and he knew that after last night's happening the space of twenty-four hours could scarcely pass without bringing the issue of decisive

battle between the occult and the open powers that were warring for domination in that community.

He realized that somehow a hideous blunder had been committed and he guessed with what a frenzy of rage Bas Rowlett had learned that the organization into which he had infused the breath of life had murdered one of his two confidential vassals.

At the gorge that men called a "master shut-in", which was Sim's rendezvous for such an emergency meeting, he found that others had arrived before him, and among the faces into which he looked was that of Rick Joyce, black with a wrath as yet held in abeyance, but promising speedy and stormy eruption.

The spot was wild beyond description, lying in the lap of mountains that had in some day of world infancy been riven into a mighty boulder-strewn fissure between walls of sheer and gloomy precipices.

It was a place to which men would come for no legitimate purpose; a place which the hounded bear and deer had avoided even when hard driven, and inviting only to copperhead, skunk, and fox. About it lay "laurel-hells" thick-matted and gnarled, briars that were like entanglements of barbed wire, and woods so black of recess that bats flew through their corridors of pine at midday. But these men had cut, and used familiarly, tortuous and hidden zig-zags of entry and exit, and they came separately from divergent directions.

When Sim arrived they were waiting for their informal quorum, but at last a dozen had assembled and in other places there were other dozens. Each group had a commander freshly come from a sort of staff meeting, which had already decided the larger questions of policy. There would be little debate here, only the sharp giving of orders which none would venture to disobey.

Rick Joyce took inventory of the faces and mentally called his roll. Then he nodded his head and said brusquely, "We're ready ter go ahead now."

The men lounged about him with a pretence of stoical composure, but under that guise was a mighty disquiet, for even in an organization of his

own upbuilding the mountaineer frets against the despotic power that says "thou shall" and "thou shalt not."

"Thar's been treason amongst us," announced Rick Joyce, sharply, and every man seemed to find that wrathful glance resting accusingly upon himself. "Thar's been treason that's got ter be paid in full an' with int'rest hereatter. Thet thing thet tuck place last night was mighty damnable an' erginst all orders. Ther fellers thet did hit affronted this hyar army of riders thet they stood sworn ter obey."

Whether among those followers gathered about him there were any who had participated in last night's murder Rick Joyce did not know, but he knew that a minority had run to a violence which had been neither ordered nor countenanced. They had gotten out of hand, wreaked a premature vengeance, and precipitated the need of action before the majority was ready. But it was now too late to waste time in lamentation. The thing was done, and the organization saddled with that guilt must strike or be struck down.

The Ku Klux had meant to move at its own appointed time, with the irresistible sweep and force of an avalanche. Before the designated season a lighter snowslide had broken away and the avalanche had no choice but to follow.

To-morrow every aroused impulse of law and order would be battle-girt and the secret body would be on the defensive—perhaps even on the run. If it were to hold the offensive it must strike and terrorize before another day had dawned—and that was not as it had planned its course.

"Hit's too late now ter cry over spilt milk," declared Joyce with a burr in his voice. "Later on we'll handle our own traitors—right now thar's another task thet won't suffer no delay."

He paused, scowling, then enlightened his hearers briefly:

"We warn't ready ter finish up this matter yit but now we hain't got no choice. Hit's ternight or never. We stands disgusted by all mankind, an' in sheer self-defence we've got ter terrify mankind so they won't dast utter what disgust they feels. Old Jim's nigh ter death an' we don't need ter bother with him; Hump Doane kin wait—one blow's done fell on him already—

but thar's yit another man thet won't never cease ter dog us whilst he lives, an' thet's Parish Thornton—so ternight we aims ter hang him."

Once more there was a pause, then as though pointing his moral the spokesman supplemented his remarks:

"Hit hes need ter be a thing," he said, solemnly, "thet's goin' ter terrify this whole country in sich dire fashion thet fer twenty y'ars ter come no grand juror won't dast vote fer no investigation."

There remained those exact details that should cause the elaborate operation to function together without hitch or miscarriage, and to these Rick Joyce addressed himself.

The mob was to participate in force of full numbers and no absentees were to be tolerated.

"When ther game starts up hit's got ter go quick as a bat flyin' through hell," enjoined the director. "Every man teks his slicker an' his false-face, an' goes one by one ter ther woods around Thornton's house es soon es dusk sattles. Every man's got ter be nigh enough afore sun-down ter make shore of gettin' thar on time. Then they all draws in, holdin' ter ther thickets. Ther signal will be ther callin' of whippoorwills—a double call with a count of five betwixt 'em. When we're all drawed up around ther house, so no way hain't left open thet a rabbit could break through, I'll sing out—an' when I does thet ye all closes in on ther run. Thar's a big walnuck tree right by ther door ter hang him on—an' termorrer mornin' folks'll hev a lesson thet they kin kindly take ter heart."

* * *

On his way back from Hump Doane's house that morning Parish Thornton made a detour for a brief visit upon Jase Burrell, the man to whose discretion he had entrusted the keeping of Bas Rowlett's sealed confession. From the hands of that faithful custodian he took the envelope and thrust it into his breast pocket. Now that his own pledge of suspended vengeance had been exonerated he would no longer need that bond of amnesty. Moreover, he knew now that this compact had been a rope of sand to Bas Rowlett from the beginning, and would never be anything else. It only served to divert the plotter's activities and treacheries into subtler

channels—and when the sun set to-day there would be either no Bas Rowlett to bind or no Parish Thornton to seek to bind him.

Then he rode home.

Thornton entered his own house silently, but with the face of an avenging spirit, and it was a face that told his story.

The rigid pose and the set jaw, the irreconcilable light in the eyes, were all things that Dorothy understood at once and without explanation. As she looked at her husband she thought, somehow, of a falcon or eagle poised on a bare tree-top at a precipice edge. There was the same alert restiveness as might have marked a bird of prey, gauging the blue sky-reaches with predatory eye, and ready to strike with a winged bolt of death.

Quietly, because the baby had just fallen asleep, she rose and laid the child on the bright patterned coverlet of the fourposter, and she paused, too, to brace herself with a glance into the cool shadows and golden lights of the ample branches beyond the window.

Then she came back to the door and her voice was steady but low as she said, "Ye've done found out who did hit. I kin read thet in yore eyes, Ken."

He nodded, but until he had crossed the room and laid a hand on each of her shoulders, he did not speak.

"Since ther fust day I ever seed ye, honey," he declared with a sort of hushed fervour, "standin' up thar in ther winder, my heart hain't nuver struck a beat save ter love ye—an' thet war jest erbout a y'ar ago."

"Hit's been all my life, Ken," she protested. "Ther time thet went ahead of thet didn't skeercely count atall."

Her voice trembled, and the meeting of their gaze was a caress. Then he said: "When I wedded with ye out thar—under thet old tree—with ther sun shinin' down on us—I swore ter protect ye erginst all harm."

"Hain't ye always done thet, Ken?"

"Erginst all ther perils I knowed erbout—yes," he answered, slowly, then his tone leaped into vehemence. "But I didn't suspicion—until terday—thet

whilst I was away from ye—ye hed ter protect yoreself erginst Bas Rowlett."

"Bas Rowlett!" the name broke from her lips with a gasp and a spasmodic heart-clutch of panic. Her well-kept secret stood unveiled! She did not know how it had come about, but she realized that the time of reckoning had come and, if her husband's face was an indication to be trusted, that reckoning belonged to to-day and would be neither diverted nor postponed.

Her old fear of what the consequence would be if this revelation came to his knowledge rose chokingly and overpoweringly.

Why had she not killed Bas herself before Sim Squires came in to interfere that day? Why had she allowed the moment to pass when a stroke of the blade might have ended the peril?

Atavistic impulses and contradictions of her blood welled confusedly up within her. This was her own battle and she wanted to fight it out for herself. If Rowlett were to be executed it should be she herself who sent him to his accounting. She was torn, as she stood there, between her terror for the man she loved and her hatred for the other—a hatred which clamoured for blood appeasement.

But she shook her head and sought to resolve the conflicting emotions.

"I hid ther truth from ye, Ken," she said, "because I feared fer what mout happen ef ye found out. I wasn't affrighted of Bas fer myself—but I war fer *you*. I knowed ye trusted him an' ef ye diskivered he war a traitor——"

"Traitor!" the man interrupted her, passionately, "he hain't never deluded me es ter thet since ther fust night I laid in thet thar bed atter I'd been shot. Him an' me come ter an' understandin' then an' thar—but he swore ter hold his hand twell we could meet man ter man, jest ther two of us."

A bitter laugh came with his pause, then he went on: "I 'lowed you trusted him an' I didn't seek ter rouse up no needless fears in yore heart—but now we both knows ther truth, an' I'm startin' out d'reckly ter settle ther score fer all time."

Dorothy Thornton caught his shoulders and her eyes were full of pleading.

"Ye've done built up a name fer yoreself, Ken," she urged with burning fervour. "Hit war me thet told ye, thet day when Aaron Capper an' them others come, thet ye couldn't refuse ter lead men—but I told ye, too, ye war bounden ter lead 'em to'rds peace an' law. Ye've done led 'em thetaway, Ken, an' folks trusts ye, Harpers an' Doanes alike. Now ye kain't afford ter start in leadin' 'em wrong—ye kain't afford ter dirty yore hands with bloodshed, Ken. Ye kain't afford ter do hit!"

The man stood off looking at her with a love that was almost awe, with an admiration that was almost idolatry, but the obduracy persisted in his eyes.

"Partly ye're talkin' from conscience thet don't traffic ner barter with no evil, Dorothy," he made sober response, "an' partly, too, ye're talkin', woman-fashion, outen a fear thet seeks ter shield yore man. I honours both them things, but this time I hain't follerin' no fox-fire an' I kain't be stayed." He paused, and the hand that closed over hers was firm and resolute for all the tenderness of its pressure.

"Hit's warfare now ter ther hilt of ther knife, honey, but hit's ther warfare of them that strives fer decency an' law erginst them thet murders in ther night-time. An' yit ther riders has good men amongst 'em, too—men thet's jest sorely misguided. I reckon ye don't know thet, either, but Bas Rowlett's ther one body thet brought 'em ter life an' eggs 'em on. When he dies ther riders'll fall apart like a string of beads thet's been cut in two. Terday I aims ter cut ther thread."

The woman stood trembling with the fervour of outraged indignation as he told her all he knew, but when he finished she nodded her head, in a finale of exhortation, toward the bedroom. Possibly she was not unlike the lawyer whose duty is to argue for legal observances even though his heart cries out mutinously for a hotter course.

"Air hit wuth while—orphanin' him—an' widderin' me fer—Ken?"

"Hit's wuth while his growin' up ter know thet he wasn't fathered by no craven, ner yit borne by a woman thet faltered," answered Parish Thornton;

then he set Hump Doane's rifle in the corner and took out his own with the particularity of a man who, for a vital task, dares trust no tool save that with which he is most familiar.

When he had gone Dorothy sat down in her chair again. She remembered that other time when her mind had reeled under anxieties almost too poignant for endurance. Now she was nursing a baby, and she must hold herself in hand. Her eyes wandered about the place, seeking something upon which her mind might seize for support, and at length she rose and ran up the boxed-in stairway to the attic.

When she came back again to the bedroom she carried the journal that had been so mysteriously lost and recovered, and then she drew a chair to the window and opened the document where she had left off in her reading. But often she laid the book absent-mindedly in her lap to listen with an ear turned toward the bed, and often, too, she looked out into the spreading softness of golden-green laced through by dove-gray and sepia-brown branches on which played baffling reflexes of soft and mossy colours.

* * *

Parish Thornton did not approach the house of his enemy from the front. He came upon it from behind and held to the shelter of the laurel as long as that was possible, but he found a padlock on the door and all the windows closed.

For an hour or more he waited, but there was no return of the owner and Parish carried his search elsewhere.

Bas, he reflected, was busy to-day conferring with those leaders of the riders from whom he ostensibly stood aloof, and the man who was hunting him down followed trail after trail along roads that could be ridden and "traces" that must be tramped. Casual inquiries along the highway served only to send him hither and yon on a series of wild goose chases.

This man and that had seen Bas Rowlett, and "Bas he seemed right profoundly shocked an' sore distressed," they said. They gave Thornton the best directions they could, and as the clan-leader rode on they nodded sage heads and reflected that it was both natural and becoming that he should be seeking for Bas at such a time. The man who had been murdered last night

was Rowlett's kinsman and Thornton was Rowlett's friend. Both men were prominent, and it was a time for sober counsel. The shadow of the riders lay over the country broader and deeper than that which the mountains cast across the valleys.

So from early forenoon until almost sunset Parish Thornton went doggedly and vainly on with his man-hunt. Yet he set his teeth and swore that he must not fail; that he could not afford to fail. He would go home and have supper with Dorothy, then start out afresh.

He was threading a blind and narrow pathway homeward between laurel thickets, when he came to the spot where he and Bas Rowlett had stood on that other June night a year ago, the spot where the shot rang out that had wounded him.

There he paused in meditation, summing up in his mind the many things that had happened since then, and the sinister strands of Rowlett's influence that ran defacingly through the whole pattern.

Below that shelf of rock, kissed by the long shadow of the mountain, lay the valley with its loop of quietly moving water. The roof of his own house was a patch of gray and the canopy of his own tree a spot of green beneath him. At one end, the ledge on which he stood broke away in a precipice that dropped two hundred feet, in sheer and perpendicular abruptness, to a rock-strewn gorge below. Elsewhere it shelved off into the steep slope down which Bas had carried him.

Suddenly Thornton raised his head with abrupt alertness. He thought he had heard the breaking of a twig somewhere in the thicket, and he drew back until he himself was hidden.

Five minutes later the man he had spent the day seeking emerged alone from the woods and stood ten yards from his own hiding place.

This was a coincidence too remarkable and providential to be credited, thought Thornton, yet it was no coincidence at all. Bas knew of the drama that was to be played out that night—a drama of which he was the anonymous author—and he was coming, in leisurely fashion, to a lookout from which he could witness its climax while he still held to his pose of detachment.

The master-conspirator seated himself on a boulder and wiped his brow, for he had been walking fast. A little later he glanced up, to see bent upon him a pair of silent eyes whose message could not be misread. In one hand Thornton held a cocked revolver, in the other a sealed envelope.

Rowlett rose to his feet and went pale, and Parish advanced holding the paper out to him.

"Ther day hes come, Bas," said Thornton with the solemnity of an executioner, "when I don't need this pledge no longer. I aims ter give hit back ter ye now."

CHAPTER XXXIII

ONE might have counted ten while the picture held with no other sound than the breathing of two men and the strident clamour of a blue-jay in a hickory sapling.

Rowlett had not been ordered to raise his hands, but he held them ostentatiously still and wide of his body. The revolver in its holster under his armpit might as well have been at home, for even had both started with an equal chance in the legerdemain of drawing and firing, he knew his master, and as it was, he stood covered.

Now, too, he faced an adversary no longer fettered by any pledge of private forbearance.

This, then, was the end—and it arrived just a damnable shade too soon, when with the falling of dusk he might have witnessed the closing scenes of his enemy's doom. To-morrow there would be no Parish Thornton to dread, but also to-morrow there would be no Bas Rowlett to enjoy immunity from fear.

"Hit war jest erbout one y'ar ago, Bas," came the even and implacable inflection of the other, "thet us two stud up hyar tergither, an' a heap hes done come ter pass since then—don't ye want yore envellip, Bas?"

Silently and with a heavily moving hand, Rowlett reached out and took the proffered paper which bore his incriminating admissions and signature, but he made no answer.

"Thet other time," went on Thornton with maddening deliberation, "hit was in ther moonlight thet us two stud hyar, an' when ye told me ye war befriendin' me I war fool enough ter b'lieve ye. Don't ye recollect how we turned and looked down, an' ye p'inted out thet big tree—in front of ther house?"

The intriguer ground his teeth, but from the victor's privilege of verbose taunting he had no redress. After all, it would be a transient victory. Parish might "rub it in" now, but in a few hours he would be dangling at a rope's end.

"Ye showed hit ter me standin' thar high an' widespread in ther moonlight, an' I seems ter recall thet ye 'lowed ye'd cut hit down ef ye hed yore way. Ye hain't hed yore way, though, Bas, despite Satan's unflaggin' aid. Ther old tree still stands thar a-castin' hits shade over a place thet's come ter be my home—a place ye've done vainly sought ter defile."

Still Rowlett did not speak. There was a grim vestige of comfort left in the thought that when the moon shone again Parish Thornton would have less reason to love that tree.

"Ye don't seem no master degree talkative terday, Bas," suggested the man with the pistol, which was no longer held levelled but swinging—though ready to leap upward. Then almost musingly he added, "An' thet's a kinderly pity, too, seein' ye hain't nuver goin' ter hev no other chanst."

"Why don't ye shoot an' git done?" barked Rowlett with a leer of desperation. "Pull yore trigger an' be damned ter ye—we'll meet in hell afore long anyhow."

When Thornton spoke again the naked and honest wrath that had smouldered for a year like a banked fire at last leaped into untrammelled blazing.

"I don't strike down even a man like *you* ouden sheer hate an' vengeance," he declared, with an electrical vibrance of pitch. "Hit's a bigger thing then thet an' ye've got ter know in full what ye dies for afore I kills ye—ye hain't deluded me as fur es ye thinks ye have—I knows ye betrayed me in Virginny; I knows ye shot at old Jim an' fathered ther infamies of ther riders; I knows ye sought ter fo'ce yoreself on Dorothy; but I didn't git thet knowledge from *her*. She kep' her bargain with ye."

"A man right often thinks he knows things when he jest suspicions 'em," Bas reminded him, with a forced and factitious calm summoned for his final interview, but the other waved aside the subterfuge.

"Right often—yes—but not always, an' this hain't one of them delusions. I knows ther full sum an' substance of yore infamies, an' yit I've done held my hand. Mebby ye thought my wrath war coolin'. Ef ye did ye thought wrong!"

Parish Thornton drew a long breath and the colour gradually went out of his brown face, leaving it white and rapt in an exaltation of passion.

"I've been bidin' my time an' my time hes come," he declared in a voice that rang like a bronze bell. "When I kills ye I does a holy act. Hit's a charity ter mankind an' womankind—an' yit some foreparent bred hit inter me ter be a fool, an' I've got ter go on bein' one."

A note of hopefulness, incredulous, yet quickening with a new lease on courage, flashed into the gray despair of the conspirator's mind and he demanded shortly:

"What does ye mean?"

Thornton recognized that grasping at hope, and laughed ironically.

"I hain't goin' ter shoot ye down like ye merits," he said, "an' yit I misdoubts ef hit's so much because I've got ter give ye a chanst, atter all, es ther hunger ter see yore life go out under my bare fingers."

Slowly dying hope had its redawning in Bas Rowlett's face. His adversary's strength and quickness were locally famous, but he, too, was a giant in perfect condition, and the prize of life was worth a good fight.

He stood now with hands held high while Thornton disarmed him and flung his pistol and knife far backward into the thicket. His own weapon, the Harper leader still held.

"Now, me an' you are goin' ter play a leetle game by ther name of 'craven an' damn fool'," Thornton enlightened him with a grim smile. "I'm ther damn fool. Hit's fist an' skull, tooth an' nail, or anything else ye likes, but fust I'm goin' ter put this hyar gun of mine in a place whar ye kain't git at hit, an' then one of us is goin' ter fling t'other one offen thet rock-clift whar she draps down them two hundred feet. Does ye like thet play, Bas?"

"I reckon I'll do my best," said Rowlett, sullenly; "I hain't skeercely got no rather in ther matter nohow."

Thornton stripped off his coat and rolled his sleeves high and the other man followed suit. Bas even grinned sardonically in appreciation when the other at length thrust his pistol under a rock which it strained his strength to lift. The man who got that weapon out would need to be one who had time and deliberation at his disposal—not one who snatched it up in any short-winded interval of struggle.

Then the two stood glaring into each other's faces with the naked savagery of wild beasts, and under the stress of their hate-lust the whites of their eyes were already bloodshot and fever-hot with murder-bent.

Yet with an impulse that came through even that red fog of fury Parish Thornton turned his head and looked for the fraction of an instant down upon the gray roof and the green tree where the shadows lay lengthed in the valley—and in that half second of diverted gaze Rowlett launched himself like a charging bull, with head down to ram his adversary's solar plexus and with arms outstretched for a bone-breaking grapple.

It was a suddenness which even with suddenness expected came bolt-like, and Thornton, leaping sidewise, caught its passing force and stumbled, but grappled and carried his adversary down with him. The two rolled in an embrace that strained ribs inward on panting lungs, leg locking leg, and fingers clutching for a vulnerable hold. But Thornton slipped eel-like out of the chancery that would have crushed him into helplessness and sprang to his feet, and if Rowlett was slower, it was by only a shade of difference.

They stood, with sweat already flowing in tiny freshets out of their pores and eyes blazing with murderous fire. They crouched and circled, advancing step by step, each warily sparring for an advantage and ready to plunge in or leap sidewise. Then came the impact of bone and flesh once more, and both went down, Thornton's face pressed against that of his enemy as they fell, and Rowlett opened and clamped his jaws as does a bull-dog trying for a grip upon the jugular.

That battle was homerically barbaric and starkly savage. It was fought between two wild creatures who had shed their humanity: one the stronger

and more massive of brawn; the other more adroit and resourceful. But the teeth of the conspirator closed on the angle of the jawbone instead of the neck—and found no fleshy hold, and while they twisted and writhed with weird incoherencies of sound going up in the smother of dust, Bas Rowlett felt the closing of iron fingers on his throat. While he clawed and gripped and kicked to break the strangle, his eyes seemed to swell and burn and start from their sockets, and the patch of darkening sky went black.

It was only the collapse of the human mass in his arms into dead weight that brought Parish Thornton again out of his mania and back to consciousness. The battle was over, and as he drew his arms away his enemy sank shapeless and limp at his feet.

For a few seconds more Thornton stood rocking on unsteady legs, then, with a final and supreme effort, he stooped and lifted the heavy weight that hung sagging like one newly dead and not yet rigid.

With his burden Parish staggered to the cliff's edge and swung his man from side to side, gaining momentum.

Then suddenly he stopped and stood silhouetted there, sweat-shiny and tattered, blood-stained and panting, and instead of pitching Bas Rowlett outward he laid him down again on the shelf of rock.

How much later he did not know, though he knew that it was twilight now, Bas Rowlett seemed to come out of a heavy and disturbed sleep in which there had been no rest, and he found himself lying with his feet hanging over the precipice edge, and with Thornton looking intently down upon him. In Thornton's hand was the recovered pistol—so there must have been time enough for that.

But his perplexed brain reeled to the realization that he still lay up here instead of among the rocks upon which he should have been broken two hundred feet below. Presumably the victor had waited for returning consciousness in the victim to consummate that atrocity.

But Thornton's unaccountable whims had flown at another tangent.

"Git up, Bas," he commanded, briefly, "yore life b'longs ter me. I won hit—an' ye're goin' ter die—but my fingers don't ache no more fer a holt on

yore throat—they're satisfied."

"What air—ye goin' ter do, now?" Rowlett found words hard to form; and the victor responded promptly, "I've done concluded ter take ye down thar, afore ye dies, an' make ye crave Dorothy's pardon on yore bended knees. Ye owes hit ter her."

Slowly Rowlett dragged himself to a sitting posture. His incredulous senses wanted to sing out in exultation, but he forced himself to demur with surly obduracy.

"Hain't hit enough ter kill me without humiliatin' me, too?"

"No, hit hain't enough fer me an' hit's too tardy fer *you* ter make no terms now."

Bas Rowlett exaggerated his dizzy weakness. There was every reason for taking time. This mad idea that had seized upon the other was a miracle of deliverance for him. If only he could kill time until night had come and the moon had risen, it would prove not only a respite but a full pardon—capped with a reserved climax of triumph.

Down there at that house the mob would soon come, and circumstance would convert him, at a single turn of the wheel, from humbled victim to the avenger ironically witnessing the execution of his late victor.

After a while he rose and stood experimentally on his legs.

"I reckon I kin walk now," he said, drearily, "ef so be ye lets me go slow—I hain't got much of my stren'th back yit."

"Thar hain't no tormentin' haste," responded Thornton; "we've got all night afore us."

* * *

When they reached the house, it stood mistily bulked among shadows, with its front door open upon an unlighted room.

The men had tramped down that slope in silence, and they crossed the threshold in silence, too, the captive preceding his captor; and the

householder paused to bolt the door behind him.

Then, holding a vigilant eye on the forced guest who had not spoken, Thornton lighted a lamp and backed to the closed bedroom door at whose sill he had seen a slender thread of brightness. In all his movements he went with a wary slowness, as though he were held by a cord, and the cord was the line of direct glance that he never permitted to deviate from the face of his prisoner.

Now while his right hand still fondled the revolver, he groped with his left for the latch and opened the door at his back.

"Dorothy," he called in a low voice, "I wisht ye'd come in hyar, honey."

From within he heard a sound like a low moan; but he knew it was a sigh of relief loosening tight nerve cords that had been binding his wife's heart in suspense.

"Thank God, ye're back, Ken," she breathed. "Air ye all right—an' unharmed?"

"All right an' unharmed," he responded, as he stepped to the side of the door frame and stood there a rigid and unmoving sentinel.

But when Dorothy came to the threshold, she took in at once the whole picture, pregnant with significance: the glint of lamplight on the ready revolver, the relentless, tooth-marked face of her husband, and the figure of the vanquished plotter with its powerful shoulders hunched forward and its head hanging.

On the mantel ticked the small tin clock, which Bas Rowlett watched from the tail of a furtive eye.

As Dorothy Thornton stood in gracious slenderness against the background of the lighted door with a nimbus about her head, she was all feminine delicacy and allurements. But in that moment she stiffened to an overwhelming rush of memories which incited her to a transport of wrath for which she had no words.

She saw Bas Rowlett stripped naked to the revolting bareness of his unclean soul, and she drew back with a shudder of loathing and

unmoderated hate.

"Why did ye dally with him, Ken?" she demanded, fiercely; "don't ye know thet whilst ye lets him live yere jest handlin' an' playin' with a rattlesnake?"

"He hain't got long ter live," came the coldly confident response, "but afore he dies, he wants ter crave yore pardon, Dorothy, an' he wants ter do hit kneelin' down."

Bas Rowlett shot a sidelong glance at the clock. Time was soul and essence of the matter now and minutes were the letters that spelled life and death. He listened tensely, too, and fancied that he heard a whippoorwill.

There were many whippoorwills calling out there in the woods but he thought this was a double call and that between its whistlings a man might have counted five. Of that, however, he could not be sure.

"I hain't got no choice, Dorothy," whined the man, whose craven soul was suffering acutely as he fenced for delay—delay at any cost. "Even ef I hed, though, I'd crave yore pardon of my own free will—but afore I does hit, thar's jest a few words I'd love ter say."

Dorothy Thornton stood just inside the door. Pity, mercy, and tenderness were qualities as inherent in her as perfume in a wild flower, but there was something else in her as well—as there is death in some perfumes. If he had been actually a poisonous reptile instead of a snake soul in the body of a man Bas Rowlett could have been to her, just then, no less human.

"Yes," she said, slowly, as a memory stirred the confession of her emotions, "thar's one thing I'd like ter say, too—but hit hain't in no words of my own—hit's somethin' thet was said a long spell back."

From the mantel shelf she produced the old journal, and opened its yellowed pages.

"I've been settin' hyar," said Dorothy Thornton, in a strained quietness of voice, "readin' this old book mighty nigh all day—I *hed* ter read hit—" her voice broke there, then went steadily on again—"or else go mad, whilst I was waitin'—waitin' ter know whether Ken hed kilt ye or *you'd* kilt *him*."

Again she paused for a moment and turned her eyes to her husband. "This book sheds light on a heap of things thet we all needs ter know erbout—hit tells how his foreparent sought ter kill ther tree thet our ancestors planted—an' hit's kinderly like an indictment in ther high co'te."

While Dorothy Thornton accused the blood sprung from the renegade and his Indian squaw out of those ancient pages the men listened.

To the husband it was incitement and revelation. The tree out there standing warder in the dark became, as he listened with engrossed interest, more than ever a being of sentient spirit and less than ever a thing of mere wood and leaf.

To Bas Rowlett it should have been an indictment, or perhaps an excuse, with its testimony of blood strains stronger than himself—but from its moral his mind was wandering to a more present and gripping interest.

Now he was sure he had heard the double whippoorwill call! In five minutes more he would be saved—yet five minutes might be too long.

Dorothy paused. "Ye sees," she said with a deep gravity, "from ther start, in this country, our folks hev been despitefully tricked an' misused by ther offspring of thet Indian child thet our foreparents tuck in an' befriended. From ther start, ther old tree hes held us safe with hits charm erginst evil! Ever since——"

She broke off there and paused with astonished eyes that turned to the door, upon which had sounded a commanding rap. Then she rose and went over cautiously to open it an inch or two and look out.

But when she raised the latch a man, rendered uncognizable by a black slicker that cloaked him to his ankles and a masked face, threw it wide, so that the woman was forced, stumbling, back. Then through the opening poured a half dozen others in like habiliments of disguise.

All held outthrust rifles, and that one who had entered first shouted: "All right, boys, ther door's open."

Parish Thornton had not been able to shoot at the initial instant because Dorothy stood in his way. After that it was useless—and he saw Bas

Rowlett step forward with a sudden change of expression on his pasty face.

"Now, then," said Bas, exultantly, "hit's a gray hoss of another colour!"

CHAPTER XXXIV

WHEN Parish Thornton had brought his captive down the slope that afternoon he had left his rifle in safe concealment, not wishing to hamper himself with any weapon save the revolver, which had never left his palm until this moment.

Now with the instant gone in which he might have used it to stem the tide of invasion, he was not fool enough to fire. A silent and steady current of black-clad humanity was still flowing inward across the threshold, and every man was armed.

Yet at the ring of victorious elation in Bas Rowlett's voice the impulse to strike down that master of deceit before his own moment came almost overpowered him—almost but not quite.

He knew that the bark of his weapon would bring chorused retort from other firearms, and that Dorothy might fall. As it was, the mob had come for him alone, so he walked over and laid his revolver quietly down on the table.

But the girl had seen the by-play and had rightly interpreted its meaning. For her the future held no promise—except a tragedy she could not face, and for a distracted moment she forgot even her baby as she reacted to the bitterness of her vendetta blood. So she caught up Hump Doane's rifle that still rested against the wall near her hand and threw the muzzle to Rowlett's breast.

"I'll git *you*, anyhow," she screamed between clenched teeth, and it was a promise she would have kept; a promise that would have turned that room into a shambles had not one of the masked figures been dexterous enough in his intervention to reach her and snatch the gun from her grasp—still unfired.

Dorothy stepped back then, her eyes staring with the fury of failure as she gazed at the man who had disarmed her—while one by one other dark

and uniformed figures continued to enter and range themselves about the wall.

The night-rider who held the captured rifle had not spoken, but the woman's eye, as it ranged up and down, caught sight of a shoe—and she recognized a patch. That home-mending told her that the enemy who had balked her in the last poor comfort of vengeance was Sim Squires, a member of her own household, and her lips moved in their impulse to call out his name in denunciation and revilement.

They moved and then, in obedience to some sudden afterthought, closed tight again without speaking, but her eyes did speak in silent anathema of scorn—and though she did not know or suspect it, the thoughts mirrored in them were read and interpreted by the mob-leader.

Dorothy crossed the floor of the room, ringed with its border of grimly cloaked humanity, and took her stand by the side of the man who leaned stoically at the corner of his hearth. At least she could do that much in declaration of loyalty.

Thornton himself folded his arms and, as his eyes ran over the anonymous beings who had come to kill him, he fell back on the only philosophy left him: that of dying with such as unwhining demeanour as should rob them of triumph in their gloating.

At length the door closed, and it was with a dramatic effect of climax that the last man who entered bore, coiled on his arm, the slender but stout rope which was to be both actual instrument and symbol of their purpose there.

Parish felt Dorothy, whose two hands were clasped about his folded arm, wince and shudder at the sinister detail, and unwilling to remain totally passive, even with the end so near and so certain, he chose to speak before they spoke to him.

"I knows right well what ye've come fer, men," he said, and in the level steadiness of his voice was more of disdain than abjectness, "but I hain't got no lamentation ter make, an' somehow I hain't es much terrified as mebbly I ought ter be."

"Ye've got a right good license ter be terrified," announced the disguised voice of the masked leader, "onlessen death's a thing ye favours over life. Even ef ye does thet, hangin's a right shameful way ter die."

But Parish Thornton shook his head.

"Hit hain't hangin' hitself thet's shameful," he corrected the other, "hit's what a man hangs fer." He paused, then with the note of entire seriousness he inquired: "I reckon ye don't aim ter deny me ther privilege of sayin' a few words fust, does ye? I've always heered thet they let a man talk afore he got hung."

"Go on," growled the other, "but mebbby ye'd better save hit, twell we've done tried ye. We aims ter give ye a hearin' afore ye dies."

Thornton inclined his head gravely, more sensible of the clutching grasp of his wife's fingers on his tensed biceps than of more fateful matters.

"When ye gits through hangin' me," he told them by way of valedictory, "I wants ye ter recall thet thar's somethin' ye hain't kilt yit in these hills—an' won't niver kill. Thar's a sperit that some of us hes fostered hyar, and hit'll go on jest ther same without us—hit's a bigger thing then any man, an' hit's goin' ter dog ye till hit gits ye all—every sneakin' mother's son an' every murderin' man-jack of yore sorry outfit! What things we've ondertook hain't a-goin' ter die with me ner with no other man ye gang murders—an' when ther high co'te sets next time, thar'll be soldiers hyar thet hain't none affrighted by ther reputé ye b'ars!"

He paused, then added soberly, yet with a conviction that carried persuasiveness: "Thet's all I've got ter say, an' albeit *I'm* ther victim right now, God in Heaven knows I pities all of ye from ther bottom of my heart—because I'm confident that amongst ye right now air some siv'ral thet, save fer bein' deluded by traitors an' cravens, air good men."

The individual who was acting as spokesman bent forward and thrust his face close to that of the man they had come to lynch.

"Nuther yore brag nor yore threats hain't agoin' ter avail ye none, Parish Thornton—because yore time is done come. Thar's a hugeous big tree astandin' out thar by yore front door, an' afore an hour's gone by, ye're goin'

ter be swingin' from hit. Folks norrates thet yore woman an' you sets a heap of store by thet old walnuck an' calls hit ther roof tree, an' believes hit holds a witch-spell ter safeguard ye.... We're goin' ter see kin hit save ye now."

He paused, and at the mention of the walnut Dorothy clutched her hands to her breast and caught her breath, but the man went on:

"Ye hain't no native-born man hyar, Thornton, albeit ye've done sought ter run ther country like some old-time king or lord beyond ther water.... Ye hain't nuthin' but a trespassin' furriner, nohow—an' we don't love no tyrant. This roof-tree hain't yourn by no better right then ther nest thet ther cuckoo steals from ther bird thet built hit...."

Again he paused, then, added with a sneer:

"We don't even grant ye ownership of thet old walnuck tree—but we aims ter loan hit ter ye long enough ter hang on." He halted and looked about the place, then with cheap theatricism demanded:

"Who accuses this man? Let him stand ter ther front."

Three or four dark figures moved unhurriedly toward the centre of the circle, but one who had not been rehearsed in his part stepped with a more eager haste to the fore, and that one was Bas Rowlett.

"I don't know es I've rightly got no license ter speak up—amongst men that I kain't *reecognize*," he made hypocritical declaration, "but yit, I kain't hardly hold my peace, because ye come in good season fer me—an' saved my life."

After a momentary pause, as if waiting for permission to be heard, he went on:

"This man thet I saved from death one time when somebody sought ter kill him laywayed me an hour or so back, an' atter he'd done disarmed an' maltreated me, he fotched me home hyar ter insult me some more in front of his woman—afore he kilt me in cold blood.... He done them things because I wouldn't censure an' disgust you men thet calls yoreself ther riders."

Parish Thornton smiled derisively as he listened to that indictment, then he capped it with an ironic amendment.

"We all knows ye're ther true leader of this murder-gang, Bas—ye don't need ter be bashful erbout speakin' out yore mind ter yore own slaves."

Rowlett wheeled, his swarthy face burning to its high cheekbones with a flush that spread and dyed his bull-like neck.

"All right, then," he barked out, at last casting aside all subterfuge. "Ef they h'arkens ter what I says I'll tell 'em ter string ye up, hyar an' now, ter thet thar same tree you an' yore woman sots sich store by! I'll tell 'em ter teach Virginny meddlers what hit costs ter come trespassin' in Kaintuck." He was breathing thickly with the excited reaction from his recent terror and despair.

"Men," he bellowed, almost jubilantly, "don't waste no time—ther gallows tree stands ready. Hit's right thar by ther front porch."

Dorothy had listened in a stunned silence. Her face was parchment-pale but she was hardly able yet to grasp the sudden turn of events to irremediable tragedy.

The irrevocable meaning of the thing she had feared in her dreams seemed too vast to comprehend when it drew near her, and she had not clearly realized that minutes now—and few of them—stood between her husband and his death. Her scornful eyes had been dwelling on the one figure she had recognized: the figure of Sim Squires, whom it had never occurred to her to distrust.

But when several night-riders pushed her brusquely from her place beside her man, and drew his hands together at his back and began whipping cords about his unresisting wrists, the horror broke on her in its ghastly fullness and nearness.

The stress they laid on the mention of the tree had brought her out of the coma of her dazed condition into an acute agony of reality.

There was a fiendish symbolism in their intent.... The man they called a usurper must die on the very tree that gave their home its significance, and

no other instrument of vengeance would satisfy them. The old bitterness had begun generations ago when the renegade who "painted his face and went to the Indians" had sought to destroy it, and happiness with it. Now his descendant was renewing the warfare on the spot where it had begun, and the tree was again the centre of the drama.

Dorothy Thornton thought that her heart would burst with the terrific pressure of her despair and helplessness.

Then her knees weakened and she would have fallen had she not reeled back against the corner of the mantel, and a low, heart-broken moan came, long drawn, from her lips.

There was nothing to be done—yet every moment before death was a moment of life, and submission meant death. In the woman's eyes blazed an unappeasable hunger for battle, and as they met those of her husband they flashed the unspoken exhortation: "Don't submit ... die fighting!"

It was the old dogma of mountain ferocity, but Parish Thornton knew its futility and shook his head. Then he answered her silent incitement in words:

"Hit's too late, Dorothy.... I'd only git you kilt as well as me.... I reckon they hain't grudgin' *you* none, es things stands now."

But the mob leader laughed, and turning his face to the wife, he ruthlessly tore away even that vestige of reassurance.

"We hain't makin' no brash promises erbout ther woman, Thornton," he brutally announced. "I read in her eyes jest now thet she *reeco'nized* one of us—an' hit hain't safe ter know too much."

They were still working at the ropes on the prisoner's wrists and the knots were not yet secure. The man had gauged his situation and resigned himself to die like a slaughter-house animal, instead of a mountain lion—in order to save his wife. Now they denied him that.

Suddenly his face went black and his eyes became torrential with fury.

His lunging movement was as swift and powerful as a tiger-spring, and his transition from quiet to earthquake violence as abrupt and deadly as the

current of the electric chair.

His shoulders and wrists ripped at their bonds, and the men busied about them were hurled away as with a powder blast. The arms came free and the hands seized up a chair. A human tornado was at work in a space too crowded for the use of firearms; and when the insufficient weapon had been shattered into splinters and fallen in worthless bits there were broken crowns and prostrate figures in that room.

Faces were marked with bruise and blood and laceration—but the odds were too overwhelmingly uneven, and at last they bore him down, pounded and kicked, to the puncheon floor, and when they lifted him to his feet again the ropes that fastened him were firm enough to hold.

Then Parish Thornton spoke again: spoke with a passion that seemed almost as destructive as the short-lived chair he had been swinging flail-like, though the panting exertion made his voice come in disjointed and sob-like gasps.

"Ye hain't done yit," he shouted into their maddened faces as they crowded and yapped about him. "By dint of numbers ye've done tuck me alive, but thar's still a reckonin' ahead!"

Above the answering chorus of jeers rang his berserk fury of defiance.

"Ye kin go ahead an' hang me now—an' be damned ter ye! Ye kin even murder a woman ef ye've got a mind ter—but thar's a baby in this house thet's comin' ter manhood some day."

"Ye won't be hyar ter train him up fer vengeance," came the sneering voice of Bas Rowlett who had stood clear of that conflict; and glaring at him Thornton managed a bitter laugh.

"He won't need no trainin' up," he retorted. "Hit's bred in his blood an' his bone ter hate snakes an' kill 'em. He's drunk hit in at his mother's breast an' breathed hit in ther air.... He'll settle our scores some day!"

CHAPTER XXXV

SIM SQUIRES knew that when the brief farce of the trial took place he would be called forward to testify with a few prearranged lies. In his mouth was a pebble, put there to change his voice—but in his mutinous heart was an obsession of craving to see Bas Rowlett in such a debased position as that which Parish Thornton occupied—for, of all men, he feared and hated Bas most.

This unrelished participation in the mob spirit was more abhorrent than it had been before. The scorn of Dorothy's eyes had a scorpion sting that he could not escape—and this woman had given his life an atmosphere of friendliness and kindness which it had not known before.

"Now," announced the masked spokesman, "we're well-nigh ready, an' thar hain't no virtue in bein' dilitary—albeit we don't aim ter hang him untried. Witness Number One, come forward."

Witness Number One was Sim Squires, and as though his tongue had been stricken with sudden dumbness and his limbs with paralysis, he hung back when he had been called. Slowly he looked at Parish Thornton, whose face was pale, but set once more to the calm of resoluteness—and at the ghost-terror and the lingering contempt in the deep and suffering eyes of the wife.

"Thar's a man hyar in this room," began Sim Squires, "thet's done been seekin' *evidence* erginst ther riders, an' he's done secured a lavish of hit, too." So far, his words were running in expected grooves, and as the voice went on a little indistinct because of the pebble under the tongue, his impatient audience accorded him only a perfunctory attention.

"He's done hed spies amongst ye an' he's got *evidence* thet no co'te kain't fail ter convict on," proceeded the witness, slowly. "He aims ter penitenshery *you*," his finger rose and settled, pointing toward the man who

had acted as spokesman, and who was Rick Joyce. Then it rose again and fell on others, as Sim added, "an' *you*—an' *you*!"

"We don't aim ter give him no chanst," interrupted Joyce, and it was then that Sim Squires branched into unanticipated ways.

Suddenly this amazing witness ripped off his mask and threw aside his hat. Then he spat out the pebble that interfered with his enunciation and annoyed him, and like the epilepsy victim who slides abruptly from sane normality into his madness, the man became transformed. The timidities that had fettered him and held him a slave to cowardice were swept away like unconsidered drift on the tide of a passion that was willing to court death, if vengeance could come first. He had definitely crossed the line of allegiance and meant to swing the fatal fury of that mob from one victim to another, or die in his effort to that end. His eyes were the ember pupils of the madman or the martyr, his face was the frenzied face of a man to whom ordinary considerations no longer count; whose idea as fixed and single, and to whom personal consequences have become unimportant. His body was rigid yet vibrant, and his voice rang through the room as his finger rose and pointed into the face of Bas Rowlett.

"Thet man," he shouted, "hes bore ther semblance of yore friend, but he aims ter *deestroy* ye.... I knows because I've done been his slave an' he's told me so ... he aims ter hev ye murder Parish Thornton fer him fust ... an' then ter penitenshery ye fer doin' his dirty work. Ye hain't nothin' on God's green y'arth but only his dupes!"

Squires paused for breath, and instead of the clamour and outcry for which he had braced himself he encountered a hushed stillness through which he could hear the hammering of his own heart.

Rowlett had started to bellow out an enraged denial, but he had swiftly reconsidered and chosen instead to treat the accusation with a quieter and more telling contempt. Now he laughed derisively as he turned toward Joyce.

"I reckon," he suggested, "I don't even need ter gainsay no sich damn lies thet, does I?"

But of late there had been so much traitorousness that no man knew whom he could trust. Now to Rowlett's astonished discomfiture he recognized the stern and ominous note of doubt in Joyce's response.

"Ef I was you, I wouldn't only gainsay hit, but I'd strive master hard ter *prove* my denial."

"I hain't done yit," shouted Sim with a new vigour of aggressiveness, and at the sight of this human hurricane which had developed out of a man heretofore regarded as unimportant, the tempest violence of the mob hung suspended, inquisitive, astonished.

The tanned face of the witness had become pallid, but out of it his eyes shot jets of fire, hysterical to madness, yet convincing in an earnestness that transcended the fear of death and carried indubitable conviction. His body shook with a palsy as he confronted the man whom, next to Bas Rowlett, he had feared above all others; and now in evidence of his impassioned sincerity he blurted out his own confession.

"I kilt Joe Joyce," announced Sim Squires, "an' I sought ter kill Parish Thornton, too, when he fust come hyar, but I done both them deeds because I didn't dast gainsay ther man thet bade me do 'em. His bull-dozin' terrified me ... his power over me made me a craven, an' his dollars in my pocket paid me fer them dasterdly jobs. Thet man war Bas Rowlett thar!"

The leader of the mob stood for an instant with the stunned senses of an ox struck by a cleaver, and after that first dumfounded moment he wanted the truth, as a starving man wants food. Joe Joyce had been his nephew, and if this witness were telling the truth it would not appease him to take vengeance on the servant only. A more summary punishment was owing to the master.

Now he gulped down the tight constriction of his throat and ordered, "Go on! Tell hit all!"

Rowlett again thrust himself forward, but Rick Joyce, scarcely looking at him, sent him reeling backward with an open-handed blow against his chest.

With torrential and cascading onrush came the capitulation of the long and black record against the master plotter from its beginning in jealousy to its end in betrayal of the Ku Klux.

"He come over hyar when this man Thornton lay in jail an' sought ter make love ter thet woman," shouted the frenzied witness, but Dorothy, who had been leaning unnerved and dazed against the wall, raised a warning hand and interrupted.

"Stop!" she shouted. "I've done told Parish all thet! Whatever he hears erbout this man, he hears from me. We don't need no other testimony!"

Then it was that the room began to waver and spin about Dorothy Thornton, until with the drone of the hired man's voice diminishing in her ears she fell swooning, and was lifted to a chair.

When her eyes opened—even before they opened—she was conscious again of that voice, but now it was one of dominating confidence, stinging with invective; scourging with accusations that could be verified; ripping away to its unbelievable nakedness all the falsity of Bas Rowlett's record—a voice of triumph.

In the altered attitudes of the attentive figures the woman could read that the accuser was no longer talking to a hostile audience, but to one capriciously grown receptive, and educated to the deceits of the accused. They knew now how Bas had craftily set the Harpers and the Doanes at one another's throats, and how Thornton had tranquilized them; they knew how their own grievances against the man they had come to hang had been trumped up from carefully nourished misconceptions. But above all that, they saw how they themselves had been dupes and tools, encouraged to organize and jeopardize their necks only that they might act as executioners of Rowlett's private enemy, and then be thrown to the wolves of the law.

"I come inter this house," declared Sim Squires, "at Bas Rowlett's behest, ter spy on Parish Thornton—an' I j'ined ther riders fer ther same reason—but I'm done with lyin' now! Hit's Bas Rowlett thet made a fool of me an' seeks ter make convicts outen *you*."

He paused; then wheeling once more he walked slowly, step by step, to where Bas Rowlett stood cowering.

"Ye come hyar ter hang ther wrong man, boys," he shouted, "but ther right man's hyar—ther rope's hyar, an' ther tree's hyar! Hang Bas Rowlett!"

There was a silence of grim tension over the room when the accuser's voice fell quiet after its staccato peroration of incitement. The masked men gave no betrayal of final sentiment yet, and the woman rose unsteadily from her chair and pressed her hands against the tumultuous pounding of her heart. She could not still it while she waited for the verdict, and scarcely dared yet to hope.

Rowlett had been long trusted, and had there been left in him the audacity for ten adroitly used minutes of boldness, he might have been heard that night in his own defence. But Bas had, back of all his brutal aggressions, a soul-fibre of baseness and it had wilted.

Now, with every eye turned on him, with the scales of his fate still trembling, the accused wretch cast furtive glances toward the door, weighing and considering the chances of escape. He abandoned that as hopeless, opened his lips and let his jaw sag, then crouched back as though in the shadow of the room's corner he hoped to find concealment.

"Look at him, men!" shouted Sim Squires, following up the wreck of arrogance who through years had brow-beaten him, and becoming in turn himself the bully. "Look at him huddlin' thar like a whipped cur-dawg! Hain't he done es good es made confession by ther guilty meanness in his face?"

He paused, and then with a brutal laugh he struck the cowering Rowlett across his mouth—a blow that he had dreamed of in his sleep but never dared to think of when awake—and Rowlett condemned himself to death when he flinched and failed to strike back.

"Jest now, men," rushed on the exhorter, "ye seed Thornton thar facin' death—an' he showed ye how a man kin demean himself when he thinks his time hes come. Take yore choice between them two—an' decide which one needs hangin'!"

Then feeding on the meat of new authority, Sim Squires, who had always been an underling before, seized up from the hearth, where the ashes were

dead, a charred stick—and it happened to be a bit of black walnut that had grown and died on the tree which was about to become a gallows.

With its blackened end Sim drew a line across the planks of the floor between himself and Rick Joyce.

"Thar, now," he passionately importuned his hearers. "Thar hain't room in this country fer a lot of warrin' enemies thet would all be friends save fer mischief makers. Parish Thornton hes done admitted thar's good men amongst ye, an' we've agreed ter punish them briggatty fellers thet kilt Pete Doane, so thar hain't rightfully no grudge left outstandin'. I takes up my stand on this side of thet line, along with Parish Thornton, an' I summonses every man thet's decent amongst ye all ter come over hyar an' stand with us. We aims ter hev our hangin' without no *deefault*, but with a diff'rent man swingin' on ther rope!"

For the space of forty seconds that seemed as many minutes a thunder-brooding tension hung in the stillness of the room—then without haste or excitement Rick Joyce took off his hat and dropped it to the floor. After it he flung his mask, and when he had crossed the line, he turned.

"Come on, men," he gave brusque and half-peremptory invitation, "this hyar's whar we b'longs at."

At first they responded singly and hesitantly, but soon it was a small stampede—save for those who kept guard at the doors—and ten minutes later Parish Thornton stood free of limb and Bas Rowlett trembled, putty pale, in the centre of the room with bound wrists and a noose draped across his shoulders.

"I only asks one thing of ye," faltered Bas, from whose soul had oozed the last drop of manly resistance, "I come hyar ter crave this woman's pardon—I still wants ter do thet—without nobody else ter heer what I says."

"Ef she's willin' ter listen, we'll let ye talk," acceded Squires, who found himself unchallenged spokesman now. "But we won't take no chances with ye. When ther rope's over ther limb an' everything's ready, then ye kin hev yore say."

* * *

Outside the night was as gracious as had been the last, when Old Hump Doane had sat waiting vainly for the return of his son; but across the moonlit sky drifted squadrons of fleecy cloud sails, and through the plumed head of the mighty walnut sounded the restive whisper of a breeze.

The house stood squarely blocked with cobalt shadows about it, and the hills were brooding in blue-black immensities—but over the valley was a flooding wash of platinum and silver.

Fragrances and quiet cadences stole along the warm current, but the song of the whippoorwill was genuine now, and plaintive with a saddened sweetness.

The walnut tree itself, a child of the forest that had, through generations, been the friend of man, stood like a monument in the silence and majesty of its own long memories.

Under its base, where the roots sank deep into the foundations of the enduring hills, slept the dead who had loved it long ago. Perhaps in its pungent and aromatic sap ran something of the converted life and essence that had been their blood. Its bole, five feet of stalwart diameter, rose straight and tapering to the first right-angle limbs, each in itself almost a tree. Its multitude of lance-head leaves swept outward and upward in countless succession to the feathery crests that stirred seventy feet overhead—seeming to brush the large, low-hanging stars that the moon had dimmed.

All was tranquil and idyllic there—until the house door opened and a line of men filed out, bringing to his shameful end a human creature who shambled with the wretchedness of broken nerves.

Over the lowest branch, with business-like precision, Sim Squires pitched a stone on the end of a long cord, and to the cord he fastened the rope's end. All that was needed now was the weight which the rope was to lift, and in the blue-ink shadow that mercifully cloaked it and made it vague they placed the bound figure of their man.

CHAPTER XXXVI

AS THOUGH to mask a picture of such violence the tree's heavy canopy made that spot one of Stygian murk, and even the moon hid its face just then, so that the world went black, and the stars seemed more brilliant against their inky velvet. But the light had held until the grim preparations were finished, and then when Bas Rowlett had taken his appointed place, tethered and wearing the hempen loop, when the other end of the long line had been passed through the broken slat of the closed window shutters, where it would be held by many hands in assurance against escape, Sim Squires kept his promise.

His followers trooped callously back into the house and he himself remained there, on watch, only until with the stiffness of a sleep walker Dorothy Thornton appeared for a moment in the open door and came slowly to the foot of the tree.

She could scarcely see the two men shrouded there in the profundity of shadow, and she had almost walked into the one who was to die before she realized his nearness and drew back shuddering.

Then Sim, who was holding the loose end of the rope so that it would not slacken too freely, put it in her hand and, as their fingers touched, found it icy.

"Ye'll hev ter take hold of this," he directed, "we've got t'other end indoors. When ye're ready for us—or should he seek ter git away—jest give hit a tight jerk or two. We won't interfere with ye ner come out till we gits thet signal—but don't suffer him ter parley overlong."

Then the man left her, and the woman found herself standing there in the darkness with a terrible sense of Death hovering at her shoulder.

For a moment neither spoke, and Dorothy Thornton lifted her eyes to the tree from which had always emanated an influence of peace. She needed that message of peace now. She looked at the dark human figure, robbed of

its menace, robbed of all its own paltry arrogance, and the furies that had torn her ebbled and subsided into a sickness of contemptuous pity.

Then the cloud drifted away from the moon and the world stood again out of darkness into silvery light; the breeze that had brought that brightening brought, too, a low wailing voice from high overhead, where the walnut tree seemed to sob with some poignant suffering; seemed to strive for the articulate voice that nature had denied it.

That monument to honoured dead could never shed its hallowed spirit of peace again if once it had been outraged with the indignities of a gibbet! If once it bore, instead of its own sweetly wholesome produce, that debased fruit of the gallows tree, its dignity would be forever broken! There in the flooding moonlight of the white-and-blue night it was protesting with a moan of uneasy rustling. The thing could not be tolerated—and suddenly, but clearly, Dorothy knew it. This man deserved death. No false pity could blind her to that truth, and death must ride at the saddle cantle of such as he; must some day overtake him. It might overtake him to-night—but it must not be here.

"Bas," she broke out in a low and trembling voice of abrupt decision, "I kain't suffer hit ter happen—I kain't do hit."

The varied strains and terrors of that day and night had made her voice a thing of gasps and catching breath, but while the man stood silent she gathered her scattered powers and went on, ignoring him and talking to the tree.

"He needs killin', God knows," she declared, "but he mustn't die on yore branches, old Roof Tree—hit was love thet planted ye—an' love thet planted ye back ergin when hate hed tore ye up by ther roots—I kain't suffer ye ter be defiled!"

She broke off, and somehow the voice that stirred up there seemed to alter from its note of suffering to the long-drawn sigh of relief; the calm of a tranquilized spirit.

The young woman stood for a moment straight and slim, but with such an eased heart as might come from answered prayer in the cloistered dimness of a cathedral.

It was, to her, a cathedral that towered there above her, with its single column; a place hallowed by mercy, a zone of sanctuary; a spot where vengeance had always been thwarted; where malevolence had failed—and her voice came in a rapt whisper.

"Ye stands ternight fer ther same things ye've always stud fer," she said, "ye stands fer home an' decency—fer ther restin' place of dead foreparents—an' ther bornin' of new gin'rations—fer green leaves an' happiness—an' ther only death ye gives countenance to is thet of folks thet goes straight ter God, an' not them thet's destined fer torment."

Inside the room the conclave maintained a grim silence. The shuttered window screened from their sight the interview to which they were submitting with a rude sense of affording the man they had condemned some substitute for extreme unction: an interval to shrive his soul with penitence and prayer.

But through the opening of the broken slat, high up in the shutter which gave sliding room, passed the rope, and at its other end stood the man upon whose neck it was fixed: the man whose hands and feet were tethered and whose movements were being watched by the woman.

They shifted uneasily and impatiently on their feet in there. Sim Squires and Rick Joyce standing shoulder to shoulder held the free end of the rope in their hands. The others breathed heavily and their faces were implacable, restive of this time being vouchsafed to an idea, yet steadfast in their resolve to keep the word given their victim.

"She's lettin' him talk too long," growled a voice, and in monosyllables Rick Joyce growled back, "Shet up—he'll be dead a long time."

But outside Dorothy had turned again to the man.

"You an' yore foreparents hev plotted an' worked evil since ther fust days ther white man come hyar, Bas," she declared. "Thar hain't no death too shameful fer ye—an' ther hain't no hate deeper then thet I feels fer ye. Ye've betrayed an' wronged me an' everybody I ever loved, an' I swore I'd kill ye myself ef need be. I'm half sorrowful I didn't do hit—but from them fust days this hyar tree hes spread peace an' safety over this house an' them thet dwelt in hit. Hit's been holy like some church thet God hed blessed, an' I

aims ter keep hit holy. Ef they hangs ye somewhars else, I reckon they'll do simple jestice—but hit hain't goin' ter be on this tree. My child hain't ergoin' ter look up in them branches an' see no shadow of evil thar. I hain't goin' ter lay buried in hits shade some day with yore black sperit hoverin' nigh. Sinner shame hain't nuver teched hit yit. They hain't nuver ergoin' ter. Ther bright sun an' ther clean wind air goin' ter come ter hit an' find hit like hit's always been. God's breath is goin' ter stir in hit ther same es hit's always done."

Just then a heavier cloud shut off the moonlight, and still holding the rope steadily enough to prevent its sudden jerking in premature signal, she came close to Bas Rowlett and ordered in clipped syllables of contempt, "Turn round! I aims ter sot ye free."

She handed the loose rope to the man, and knowing full well the vital need of keeping it undisturbed, he held it gingerly.

The other end of that line still rested in the hands of his executioners, who waited with no suspicion of any confederacy between their victim and the woman.

Dorothy loosened the noose and slipped it from his neck, and her fingers busied themselves nervously with his wrist-knots.

She worked fast and anxiously, for she had promised to set frugal limits on the duration of that interview and the interval of clouded darkness was precious, but while she freed the cords, she talked:

"I hain't doin' this fer yore sake, Bas. Ye richly merits ter die—an' I misdoubts ef ye escapes fur—but I hain't ergoin' ter suffer ye ter contam'nate this tree—an' I aims ter give ye a few minutes' start, ef I kin."

Now she rose from the ankle fetters and the man took a step, to find himself free.

"Begone," ordered the woman, tensely. "Don't tarry—an' don't nuver let me see ye ergin'!"

She saw him cross the fence in the heavy shadow, hardly discernible even to her straining eyes that had grown accustomed to the dark. She heard the

light clatter of his feet and knew that he was running, with the speed and desperation of a hounded deer, then she straightened and lifted her eyes to the rustling masses of cool serenity overhead.

Across the ranges came a warm, damp scent that promised rain, and the clouds once more parted bringing the tranquil magic of a silver-toned nocturne. The tree stood with its loftiest plumes moving lightly, as though brushing the heavens, where the clouds were flakes of opal fleece. Then the breeze stiffened a little and the branches swayed with an enhancement of movement and sound—and the murmur was that of a benediction.

Dorothy waited as long as she dared, and her soul was quiet despite the anger which she knew would shortly burst in an eruption over the threshold of her house. When she had stretched her allotted interval to its limit she gave the rope its designated signal of jerk, and saw the door swing to disgorge its impatient humanity. She saw them coming with lanterns held high, saw them halt halfway, and heard their outbursts of angry dismay when the yellow light revealed to them the absence of the victim they had left in her keeping.

But Dorothy turned and stood with her back against the great trunk and her fingers clutching at its seamed bark, and there she felt the confidence of sanctuary.

"I couldn't suffer hit—ter happen hyar," she told them in a steady voice. "Us two was married under this old tree—hit's like a church ter me—I couldn't let no man hang on hit—I turned him loose."

For an instant she thought that Sim Squires would leap upon her with all the transferred rage that she had thwarted on the eve of its glutting. The others, too, seemed to crouch, poised, waiting for their cue and signal from Sim, but Parish Thornton came over and took her in his arms.

Then with an abrupt transition of mood Sim Squires wheeled to his waiting cohorts.

"Men," he shouted, "we kain't handily blame her—she's a woman, an' I honours her fer bein' tenderhearted, but any other tree'll do jest as well! He kain't hev got fur off yit. Scatter out an' rake ther woods."

She saw them piling over the fence like a pack of human hounds, and she shuddered. The last man carried the rope, which he had paused to pull from the limb. They had already forgotten her and the man they had come to kill. They were running on a fresh scent, and were animated with renewed eagerness.

For a few minutes the two stood silent, then to their ears came a shout, and though he said nothing, the husband thought he recognized the piercing shrillness of the hunchback's voice and the resonant tones of the sheriff. He wondered if Hump Doane had belatedly received an inkling of that night's work and gathered a posse at his back.

There followed a shot—then a fusilade.

But Parish Thornton closed Dorothy in his arms and they stood alone. "Ther old tree's done worked hits magic ergin, honey," he whispered, "an' this time I reckon ther spell will last so long es we lives."

THE END



THE COUNTRY LIFE PRESS,
GARDEN CITY, N. Y.

THE ROOF TREE

by Charles Neville Buck

*Author of "The Tempering," "The Call of
the Cumberlands," "The Clan Call," etc.*

THE very breath of the Kentucky Hills is in Charles Neville Buck's novels. In interpreting its elemental life, and its big-boned and big-hearted people, he takes his place beside John Fox, Jr.

Here he tells a tale, the beginnings of which are laid several generations in the past. Then the roof tree was planted, a token of love to celebrate the wedding of Thornton and the first Dorothy Parrish. But the same soil held the blood-watered seed of feud war, and now it was bringing forth bitter fruit again, in the romance of the new Dorothy Parrish and Thornton's descendant.

Under the name of Cal Maggard he had fled from Virginia, where, with the juries packed against him, justice would have been a travesty. In self-defense his sister had killed her husband, and he had taken the guilt.

He sought only a refuge. Returning from a friendly visit to his neighbor's where he met Dorothy, he found nailed to his door, a threat of death if he repeated the visit.

What follows; the strange reopening of an ancient feud, the treachery and hatred—and the conquering loyalty and love; and how in its course, war ends forever in these mountains, makes a story of compelling power and tensivity.

Transcriber's Note:

Inconsistent punctuation has been retained as in the original text. Obvious typographical errors have been corrected and marked like this.

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